NEW ISSUE–Book-Entry Only

Senior Bonds Ratings:
Insured Ratings: "A1/AA/AA+"
Underlying Ratings: Moody's "A1 (2025A)/A3 (2025B)"
(See "SENIOR BONDS RATINGS" herein)

In the opinion of Gilmore & Bell, P.C., Bond Counsel to the District, under existing law and assuming continued compliance with certain requirements of the Internal Revenue Code of 1986, as amended, the interest on the Bonds is excludable from gross income for federal income tax purposes, and is not an item of tax preference for purposes of the federal alternative minimum tax. Bond Counsel is also of the opinion that the interest on the Bonds is exempt from State of Utah individual income taxes. Bond Counsel notes that interest on the Bonds may be included in adjusted financial statement income of applicable corporations for purposes of determining the applicability and amount of the federal corporate alternative minimum tax. See "TAX MATTERS" in this Official Statement.

DOWNTOWN REVITALIZATION PUBLIC INFRASTRUCTURE DISTRICT

$649,895,000
FIRST LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025A

$194,460,000
SECOND LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025B

$25,000,000
SUBORDINATE LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025C

Dated: Date of Initial Delivery **Due: As shown on inside cover**

Downtown Revitalization Public Infrastructure District (the "**District**") is issuing (a) its First Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025A (the "**2025A Bonds**") and its Second Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025B (the "**2025B Bonds**" and, together with the 2025A Bonds, the "**Senior Bonds**"), pursuant to an Indenture of Trust (Senior) to be dated as of June 1, 2025 (the "**Senior Indenture**"), between the District and Zions Bancorporation, National Association, as trustee (the "**Trustee**"), and (b) its Subordinate Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025C (the "**Subordinate Bonds**" and, together with the Senior Bonds, the "**Bonds**") pursuant to an Indenture of Trust (Subordinate) to be dated as of June 1, 2025 (the "**Subordinate Indenture**" and, together with the Senior Indenture, the "**Indentures**"), between the District and the Trustee, as trustee for the Subordinate Bonds. The Trustee will also act as Registrar and Paying Agent for the Bonds. DTC will act as securities depository for the Bonds. The Bonds will be issued in book-entry-only form and purchasers of the Bonds will not receive certificates evidencing their ownership interests in the Bonds. Capitalized terms used on the cover page of this Official Statement are defined in the Introduction herein or in APPENDIX C—SUMMARY OF THE INDENTURES hereto.

The scheduled payment of principal of and interest on the Senior Bonds when due will be guaranteed under a respective insurance policy each to be issued concurrently with the delivery of the Senior Bonds by ASSURED GUARANTY INC. See "BOND INSURANCE."

ASSURED GUARANTY®

The Senior Bonds bear interest at the rates set forth on the inside cover hereof, payable semiannually on June 1 and December 1 of each year, commencing December 1, 2025, from available Senior Pledged Revenue, if any. See "THE SENIOR BONDS." The Subordinate Bonds bear interest at the rate set forth on the inside cover hereof, payable annually on July 15 of each year, commencing July 15, 2025, from capitalized interest through July 15, 2025, and thereafter from available Subordinate Pledged Revenue, if any. See "THE SUBORDINATE BONDS."

The Senior Bonds are special limited sales tax revenue obligations of the District secured by and payable solely from the Senior Pledged Revenue consisting of all income and revenue derived by Salt Lake City (the "**City**") from (a) the Revitalization Sales Tax imposed by the City and transferred to the Trustee in accordance with the Participation Agreement and the Pledge Agreement (each as defined herein), except for the City's Administrative Fee and the District Administrative Expenses, and (b) all investment income from any fund or account established under the Senior Indenture (excluding investment income, if any, required to be retained in the Rebate Fund established therein). **The Senior Indenture provides that, notwithstanding any other provision therein, in the event that any amount of principal of or interest on the Senior Bonds remains unpaid after the application of all Senior Pledged Revenue available therefor, the Senior Bonds and the lien of the Senior Indenture securing payment thereof will be deemed discharged on December 31, 2055, and the estate and rights thereby granted will cease, terminate, and be void.**

The Subordinate Bonds are "cash flow" obligations of the District secured by and payable from the Subordinate Pledged Revenue, consisting of a subordinate lien on the Revitalization Sales Tax subject only to the lien on the Senior Pledged Revenue (the "**Subordinate Pledged Revenue**") (the Senior Pledged Revenue and Subordinate Pledged Revenue are together referred to herein as the "**Pledged Revenue**"). No regularly scheduled payments of principal are due on the Subordinate Bonds prior to their stated maturity date, and any interest payments on the Subordinate Bonds that are not paid when due will accrue and compound on each Interest Payment Date until sufficient Subordinate Pledged Revenue is available for payment, or until discharged as described below. **The Subordinate Indenture provides that, notwithstanding any other provision therein, in the event that any amount of principal of or interest on the Subordinate Bonds remains unpaid after the application of all Subordinate Pledged Revenue available therefor, the Subordinate Bonds and the lien of the Subordinate Indenture securing payment thereof will be deemed discharged on December 31, 2055, and the estate and rights thereby granted will cease, terminate, and be void.**

THE BONDS DO NOT CONSTITUTE A GENERAL OBLIGATION OF THE DISTRICT, THE CITY OF SALT LAKE, THE STATE OF UTAH OR ANY OTHER POLITICAL SUBDIVISION, AND THE FULL FAITH AND CREDIT OF THE DISTRICT IS NOT PLEDGED TO THE PAYMENT OF THE BONDS.

The Senior Bonds are being issued as fully registered bonds in minimum denominations of $5,000 or any integral multiple thereof, and the Subordinate Bonds are being issued as fully registered bonds in minimum denominations of $100,000 or any integral multiple of $1,000 in excess thereof. See "THE SENIOR BONDS—Authorized Denominations of the Senior Bonds" and "THE SUBORDINATE BONDS—Authorized Denominations of the Subordinate Bonds."

The Senior Bonds are subject to optional and mandatory sinking fund redemption and the Subordinate Bonds are subject to optional and mandatory redemption prior to maturity at the prices and upon the terms set forth in the Senior Indenture and the Subordinate Indenture, respectively, as described in this Official Statement.

Proceeds from the sale of the Senior Bonds will be used to (i) pay a portion of the Project (defined herein) and (ii) pay the costs of issuing the Senior Bonds. Proceeds from the sale of the Subordinate Bonds will be used to (i) pay a portion of the Project, (ii) pay the costs of issuing the Subordinate Bonds and (iii) fund capitalized interest on the 2025C Bonds through July 15, 2025.

REPAYMENT OF THE PRINCIPAL OF AND INTEREST ON THE SUBORDINATE BONDS IS SPECULATIVE IN NATURE AND INVOLVES A HIGH DEGREE OF INVESTMENT RISK. AS SUBORDINATE "CASH FLOW" OBLIGATIONS, REPAYMENT OF THE SUBORDINATE BONDS IS SUBJECT TO A HIGHER DEGREE OF RISK THAN REPAYMENT OF THE SENIOR BONDS. EACH PROSPECTIVE INVESTOR IS ADVISED TO READ "RISK FACTORS" HEREIN FOR A DISCUSSION OF CERTAIN RISK FACTORS THAT SHOULD BE CONSIDERED IN CONNECTION WITH AN INVESTMENT IN THE BONDS. THE SUBORDINATE BONDS ARE NOT RATED AND ARE BEING OFFERED AND SOLD ONLY TO "QUALIFIED INSTITUTIONAL BUYERS" AS SUCH TERM IS DEFINED IN 17 C.F.R. SECTION 230.144A OR AN "ACCREDITED INVESTOR" AS DEFINED IN RULE 501 OF REGULATION D UNDER THE SECURITIES ACT. INVESTORS PURCHASING SUBORDINATE BONDS WILL BE REQUIRED TO EXECUTE AN INVESTOR LETTER IN SUBSTANTIALLY THE FORM APPENDED HERETO AS APPENDIX G.

This cover page contains certain information for quick reference only. It is not a summary of this issue. Investors must read the entire Official Statement to obtain information essential to the making of an informed investment decision.

The Bonds are offered when, as, and if issued by the District and accepted by the Underwriters subject to the approval of legality of the Bonds by Gilmore & Bell, P.C., Salt Lake City, Utah, as Bond Counsel to the District, and the satisfaction of certain other conditions. Gilmore & Bell, P.C. has also assisted in the preparation of this Official Statement in its capacity as Disclosure Counsel to the District. Certain legal matters will be passed upon by Gilmore & Bell, P.C., Salt Lake City, Utah, as counsel to the District, and for the Senior Managing Underwriter by its counsel Kutak Rock LLP, Denver, Colorado. Zions Public Finance, Inc., Salt Lake City, Utah, is acting as Municipal Advisor for the District with respect to the Bonds. The Bonds are expected to be available for delivery through the facilities of DTC on or about June 18, 2025.

Goldman Sachs & Co. LLC **D.A. Davidson & Co.**

This Official Statement is dated June 5, 2025.

2025A Bonds Maturity Schedule
Serial Maturities

Maturity June 1	Principal Amount	Interest Rate	Price	Yield	CUSIP*
2026	$5,300,000	5.000%	101.853	3.010%	26118T AA8
2027	4,695,000	5.000	103.783	2.990	26118T AB6
2028	5,710,000	5.000	105.580	3.010	26118T AC4
2029	6,790,000	5.000	107.131	3.070	26118T AD2
2030	7,940,000	5.000	108.707	3.090	26118T AE0
2031	9,165,000	5.000	109.457	3.240	26118T AF7
2032	10,470,000	5.000	110.156	3.350	26118T AG5
2033	11,855,000	5.000	110.698	3.450	26118T AH3
2034	13,325,000	5.000	110.712	3.590	26118T AJ9
2035	14,885,000	5.000	110.389	3.740	26118T AK6
2036	16,545,000	5.000	103.858	4.130c	26118T AL4
2037	17,370,000	5.000	103.315	4.250c	26118T AM2
2038	18,240,000	5.000	102.731	4.380c	26118T AN0
2039	19,150,000	5.000	102.329	4.470c	26118T AP5
2040	20,110,000	5.000	105.038	4.370c	26118T AQ3
2041	21,115,000	5.250	106.622	4.420c	26118T AR1
2042	22,220,000	5.250	105.632	4.540c	26118T AS9
2043	23,390,000	5.250	104.734	4.650c	26118T AT7
2044	24,615,000	5.250	103.926	4.750c	26118T AU4
2045	25,910,000	5.250	103.445	4.810c	26118T AV2

$152,190,000 5.500% Series 2025A Term Bond due June 1, 2050; Price 104.678 to Yield 4.900%c; CUSIP 26118T AW0*
$198,905,000 5.500% Series 2025A Term Bond due June 1, 2055; Price 104.118 to Yield 4.970%c; CUSIP 26118T AX8 *

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* The above-referenced CUSIP number(s) have been assigned by an independent company not affiliated with the parties to this bond transaction and are included solely for the convenience of the holders of the Bonds. None of the District, the Underwriters or the Trustee is responsible for the selection or uses of such CUSIP numbers, and no representation is made as to its correctness on the particular Bonds or as indicated above. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part of such maturity or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities.

c The yields on the 2025A Bonds maturing June 1, 2036-2039 are priced to the first optional redemption date of June 1, 2030. The yields on the 2025A Bonds maturing June 1, 2040-2045, June 1, 2050 and June 1, 2055 are priced to the first optional redemption date of June 1, 2035.

2025B Bonds Maturity Schedule
Serial Maturities

Maturity June 1	Principal Amount	Interest Rate	Price	Yield	CUSIP*
2026	$1,585,000	5.000%	101.645	3.230%	26118T AY6
2027	1,405,000	5.000	103.379	3.200	26118T AZ3
2028	1,710,000	5.000	104.974	3.220	26118T BA7
2029	2,035,000	5.000	106.440	3.250	26118T BB5
2030	2,375,000	5.000	107.660	3.310	26118T BC3
2031	2,745,000	5.000	108.443	3.420	26118T BD1
2032	3,135,000	5.000	108.991	3.530	26118T BE9
2033	3,545,000	5.000	109.460	3.620	26118T BF6
2034	3,985,000	5.000	109.270	3.770	26118T BG4
2035	4,455,000	5.000	108.827	3.920	26118T BH2
2036	4,950,000	5.000	107.546	4.070c	26118T BJ8
2037	5,200,000	5.000	106.618	4.180c	26118T BK5
2038	5,455,000	5.000	105.120	4.360c	26118T BL3
2039	5,730,000	5.000	104.136	4.480c	26118T BM1
2040	6,015,000	5.000	103.405	4.570c	26118T BN9
2041	6,315,000	5.250	104.978	4.620c	26118T BP4
2042	6,650,000	5.250	104.168	4.720c	26118T BQ2
2043	7,000,000	5.250	103.205	4.840c	26118T BR0
2044	7,365,000	5.250	102.648	4.910c	26118T BS8
2045	7,750,000	5.250	102.253	4.960c	26118T BT6

$45,540,000 5.500% Series 2025B Term Bond due June 1, 2050; Price 103.642 to Yield 5.030%c; CUSIP 26118T BU3*
$59,515,000 5.500% Series 2025B Term Bond due June 1, 2055; Price 103.404 to Yield 5.060%c; CUSIP 26118T BV1*

2025C Bonds Maturity Schedule

$25,000,000 5.000% Series 2025C Term Bond due July 15, 2035; Price 100.00 to Yield 5.000%; CUSIP 26118T BW9*

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* The above-referenced CUSIP number(s) have been assigned by an independent company not affiliated with the parties to this bond transaction and are included solely for the convenience of the holders of the Bonds. None of the District, the Underwriters or the Trustee is responsible for the selection or uses of such CUSIP numbers, and no representation is made as to its correctness on the particular Bonds or as indicated above. The CUSIP number for a specific maturity is subject to being changed after the issuance of the Bonds as a result of various subsequent actions including, but not limited to, a refunding in whole or in part of such maturity or as a result of the procurement of secondary market portfolio insurance or other similar enhancement by investors that is applicable to all or a portion of certain maturities.

c The yields on the 2025B Bonds maturing June 1 2036-2045, June 1, 2050 and June 1, 2055 are priced to the first optional redemption date of June 1, 2035.

USE OF INFORMATION IN THIS OFFICIAL STATEMENT

This Official Statement, which includes the cover page and the appendices, does not constitute an offer to sell or the solicitation of an offer to buy any of the Bonds in any jurisdiction in which it is unlawful to make such offer, solicitation, or sale. No dealer, salesperson, or other person has been authorized to give any information or to make any representations other than those contained in this Official Statement in connection with the offering of the Bonds, and if given or made, such information or representations must not be relied upon as having been authorized by the District, the Municipal Advisor or the Underwriters.

The information set forth in this Official Statement has been obtained from the District and from other sources believed to be reliable but is not guaranteed as to accuracy or completeness. In accordance with its responsibilities under federal securities laws, the Underwriters have reviewed the information in this Official Statement but does not guarantee its accuracy or completeness. This Official Statement contains, in part, estimates and matters of opinion which are not intended as statements of fact, and no representation or warranty is made as to the correctness of such estimates and opinions, or that they will be realized.

The information, estimates, and expressions of opinion contained in this Official Statement are subject to change without notice, and neither the delivery of this Official Statement nor any sale of the Bonds shall, under any circumstances, create any implication that there has been no change in the affairs of the District, or in the information, estimates, or opinions set forth herein, since the date of this Official Statement.

This Official Statement has been prepared only in connection with the original offering of the Bonds and may not be reproduced or used in whole or in part for any other purpose.

The Bonds have not been registered with the Securities and Exchange Commission due to certain exemptions contained in the Securities Act of 1933, as amended. In making an investment decision, investors must rely on their own examination of the District, the Bonds and the terms of the offering, including the merits and risks involved. The Bonds have not been recommended by any federal or state securities commission or regulatory authority, and the foregoing authorities have neither reviewed nor confirmed the accuracy of this document. Any representation to the contrary may be a criminal offense.

THE PRICES AT WHICH THE BONDS ARE OFFERED TO THE PUBLIC BY THE UNDERWRITERS (AND THE YIELDS RESULTING THEREFROM) MAY VARY FROM THE INITIAL PUBLIC OFFERING PRICES OR YIELDS APPEARING ON THE INSIDE COVER HEREOF. IN ADDITION, THE UNDERWRITERS MAY ALLOW CONCESSIONS OR DISCOUNTS FROM SUCH INITIAL PUBLIC OFFERING PRICES TO DEALERS AND OTHERS. IN ORDER TO FACILITATE DISTRIBUTION OF THE BONDS, THE UNDERWRITERS MAY ENGAGE IN TRANSACTIONS INTENDED TO STABILIZE THE PRICE OF THE BONDS AT A LEVEL ABOVE THAT WHICH MIGHT OTHERWISE PREVAIL IN THE OPEN MARKET. SUCH STABILIZING, IF COMMENCED, MAY BE DISCONTINUED AT ANY TIME.

References to website addresses presented herein are for informational purposes only and may be in the form of a hyperlink solely for the reader's convenience. Unless specified otherwise, such websites and the information or links contained therein are not incorporated into, and are not part of, this offering document.

Assured Guaranty Inc. ("AG") makes no representation regarding the Senior Bonds or the advisability of investing in the Senior Bonds. In addition, AG has not independently verified, makes no representation regarding, and does not accept any responsibility for the accuracy or completeness of this Official Statement or any information or disclosure contained herein, or omitted herefrom, other than with respect to the accuracy of the information regarding AG supplied by AG and presented under the heading "BOND INSURANCE" and "APPENDIX H - Specimen Municipal Bond Insurance Policy."

FORWARD-LOOKING STATEMENTS

This Official Statement, including, but not limited to, the Pledged Revenue Report attached hereto as APPENDIX A, contains statements relating to future results that are "forward-looking statements" as defined in the Private Securities Litigation Reform Act of 1995. When used in this Official Statement, the words "estimate," "forecast," "anticipate," "intend," "expect," "plan," "projected" and similar expressions identify forward–looking statements. Any forward-looking statement is subject to risks and uncertainties that could cause actual results to differ materially from those contemplated in such forward-looking statements. Inevitably, some assumptions used to develop the forward-looking statement will not be realized and unanticipated events and circumstances will occur. Therefore, it can be expected that there will be differences between forward-looking statements and actual results, and those differences may be material. For a discussion of certain of such risks and possible variations in results, see "RISK FACTORS." Undue reliance should not be placed on forward-looking statements. All forward-looking statements included in this Official Statement are based on information available to the District on the date hereof, and the District assumes no obligation to update any such forward looking statements if or when the expectations or events, conditions, or circumstances on which such statements are based occur or fail to occur.

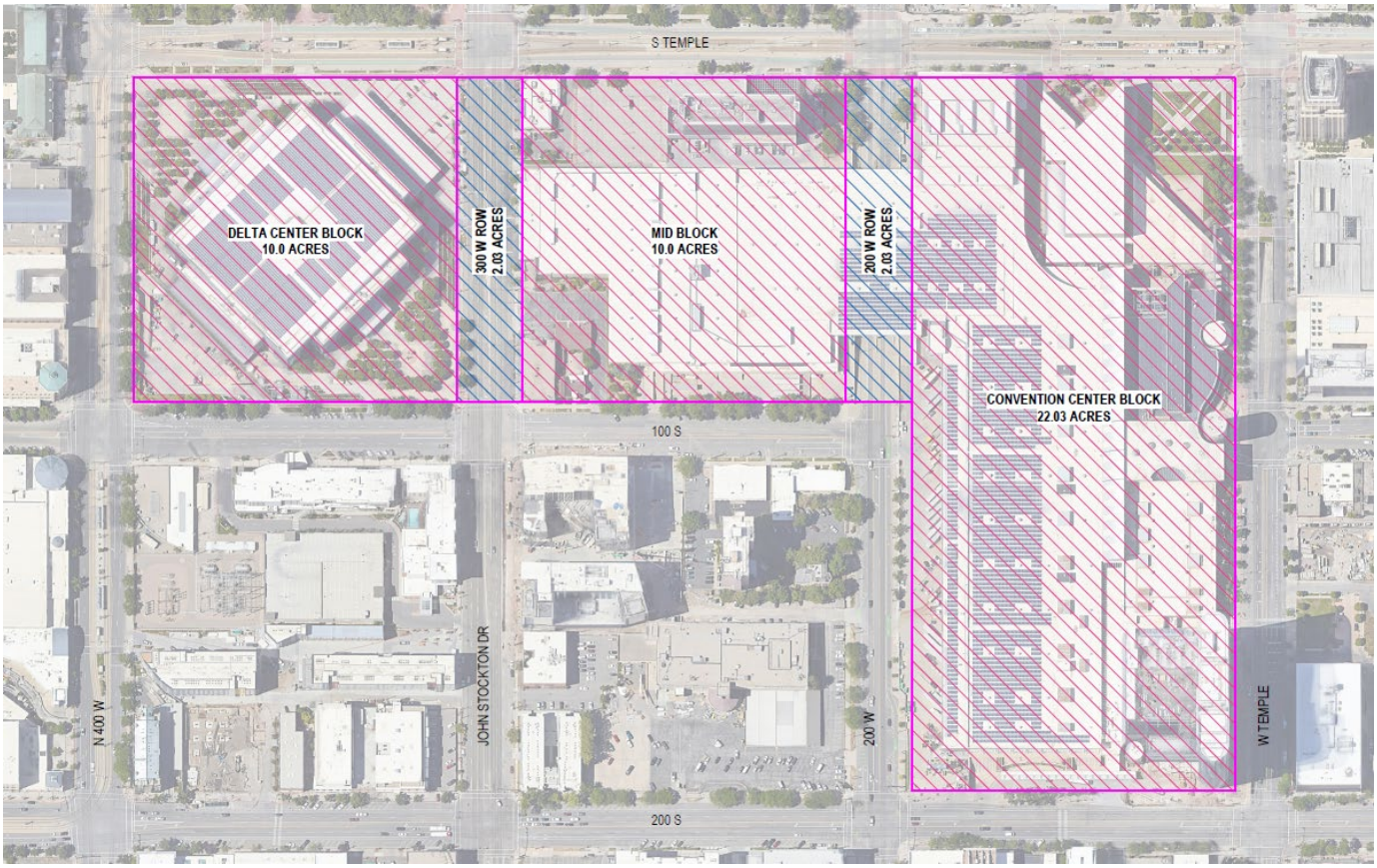
VICINITY MAP [1]



[1] Only the block containing the Delta Center is within the boundaries of the District.

SEG PROPERTY MAP

The **"SEG Property"** encompasses the Delta Center Block (referred to herein as the **"Arena Redevelopment Property"**) and a portion of the block immediately east (Mid Block) of the Arena Redevelopment Property.



Downtown Revitalization Public Infrastructure District
Salt Lake City, Utah

Board of Trustees
John Larson, Chair/Treasurer
Mike Maughan, Vice Chair
Andrew Smith, Clerk/Secretary
Darrin Casper, Assistant Clerk/Secretary
Blake Thomas, Board Member

Trustee, Registrar and Paying Agent
Zions Bancorporation, National Association
Salt Lake City, Utah

District Counsel
Gilmore & Bell, P.C.
Salt Lake City, Utah

Bond and Disclosure Counsel
Gilmore & Bell, P.C.
Salt Lake City, Utah

Senior Managing Underwriter's Counsel
Kutak Rock LLP
Denver, Colorado

Municipal Advisor
Zions Public Finance, Inc.
Salt Lake City, Utah

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OFFICIAL STATEMENT RELATING TO

DOWNTOWN REVITALIZATION PUBLIC INFRASTRUCTURE DISTRICT

$649,895,000
FIRST LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025A

$194,460,000
SECOND LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025B

$25,000,000
SUBORDINATE LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025C

INTRODUCTION

This Official Statement is furnished by the Downtown Revitalization Public Infrastructure District (the "**District**") to provide certain information concerning (a) $649,895,000 its First Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025A (the "**2025A Bonds**"), its $194,460,000 Second Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025B (the "**2025B Bonds**" and, together with the 2025A Bonds, the "**Senior Bonds**"), pursuant to an Indenture of Trust (Senior) to be dated as of June 1, 2025 (the "**Senior Indenture**"), between the District and Zions Bancorporation, National Association, as trustee (the "**Trustee**"), and (b) its $25,000,000 Subordinate Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025C (the "**Subordinate Bonds**" and, together with the Senior Bonds, the "**Bonds**") pursuant to an Indenture of Trust (Subordinate) to be dated as of June 1, 2025 (the "**Subordinate Indenture**" and, together with the Senior Indenture, the "**Indenture**"), between the District and the Trustee, as trustee for the Subordinate Bonds. The offering of the Bonds is made only by this Official Statement, which supersedes any other information or materials used in connection with the offer or sale of the Bonds. This Official Statement speaks only as of its date, and the information contained herein is subject to change.

While a single Official Statement is being used in connection with the offer and sale of the Senior Bonds (2025A Bonds and 2025B Bonds) and the Subordinate Bonds (2025C Bonds), such bonds are secured by two separate Indentures: the Senior Indenture and the Subordinate Indenture, respectively, as more particularly described herein. The use of a single Official Statement does not imply that the Owners of the Senior Bonds and the Subordinate Bonds are secured by the same revenue sources, funds, or covenants. Owners of the Senior Bonds and the Subordinate Bonds are afforded different rights under the Senior Indenture and the Subordinate Indenture, respectively. POTENTIAL PURCHASERS OF THE BONDS ARE CAUTIONED TO REVIEW CAREFULLY THE PROVISIONS HEREIN DESCRIBING THE SENIOR INDENTURE AND THE SUBORDINATE INDENTURE AS APPLICABLE TO THE BONDS TO BE PURCHASED.

The information set forth in this Official Statement has been obtained from the District and Smith Entertainment Group, LLC (**"SEG"**), and from other sources believed to be reliable but is not guaranteed as to accuracy or completeness. This Official Statement, including the appendices hereto, contains, in part, estimates and matters of opinion which are not intended as statements of fact, and no representation or warranty is made as to the correctness of such estimates and opinions, or that they will be realized. See "FORWARD-LOOKING STATEMENTS" and "RISK FACTORS." Any capitalized terms not defined herein have the respective meanings set forth in APPENDIX C—SUMMARY OF THE INDENTURES hereto, unless the context clearly indicates a contrary meaning.

The following introductory material is only a brief description and summary of certain information contained in this Official Statement, and is qualified in its entirety by reference to the more complete information contained throughout this Official Statement. The order and placement of materials in this Official Statement, including the appendices, are not to be deemed a determination of relevance, materiality or relative importance. A full review should be made of the entire Official Statement and the documents summarized or described herein.

The District

Formation. On April 8, 2025, the Salt Lake City, a municipal corporation and body politic of the State of Utah (the **"City"**) adopted a resolution authorizing the creation of the Downtown Revitalization Public Infrastructure District (the "**District**"), which is a convention center public infrastructure district in a capital city and a body corporate and politic with perpetual succession duly organized and existing under the Constitution and laws of the State of Utah (the "**State**"), including particularly Title 17D, Chapter 4 of the Utah Code (the "**PID Act**"), those provisions of Title 63N, Chapter 3, Part 6 of the Utah Code relating to a Convention Center Reinvestment Zone in a Capital City (the "**CCRZ Act**"), and Title 17B of the Utah Code (the "**Special District Act**" and together with the PID Act and the CCRZ Act, the "**District Act**"). Pursuant to the District Act and the governing document for the District approved by the City on April 8, 2025 (as the same may be amended or restated from time to time, the "**Governing Document**"), the District is authorized to issue bonds for the purpose of paying all or part of the costs of the Project (defined below), which bonds shall be issued under and pursuant to the District Act, a portion of the Local Government Bonding Act, Title 11, Chapter 14, Utah Code Annotated 1953, as amended (the "**Bond Act**"), the Governing Document, the Interlocal Capital Pledge Agreement dated April 8, 2025, by and between the District and the City (the "**Pledge Agreement**"), and all other laws thereunto pertaining.

Pursuant to the Participation, Tax Sharing and Reimbursement Agreement (SEG Property) entered into by and among the City, SEG, and SEG Real Estate, LLC, a Utah limited liability company ("**SEG Real Estate**"), dated as of October 1, 2024, as the same may be amended or supplemented from time to time (the "**Participation Agreement**"), the City, SEG and SEG Real Estate (collectively, the **"Developer"**) have agreed that a portion of the Revitalization Sales Tax (defined herein) will be used for the development of the Project on the SEG Property (defined herein), and pursuant to the terms and conditions described in the Participation Agreement, to facilitate or reimburse SEG for Eligible Expenses (defined therein) related to the Project, as allowed by the Capital City Revitalization Zone set forth in Utah Code Annotated Section 63N-3-1401, *et. seq.* (the "**CCR Act**"). The **"SEG Property"** encompasses the Delta Center Block (referred to as the **"Arena Redevelopment Property"**) and a portion of the block immediately east (Mid Block) of the Arena Redevelopment Property. See "SEG PROPERTY MAP."

The Board of Trustees of the District has previously determined to develop and redevelop the SEG Property as a sports, entertainment, cultural, and convention district. The sports, entertainment, cultural, and convention district will include the SEG Property as well as Salt Lake County owned land where the current Convention Center, symphony hall and Utah Museum of Contemporary Art sit. The developments on the SEG Property are anticipated to include hotel accommodations, multi-family housing, parking facilities and various commercial uses, along with related improvements and facilities either currently existing or planned for the future of the SEG Property, as detailed in the Participation Agreement and herein (collectively known as the "**District Improvements**"). Furthermore, a significant investment of funds is anticipated to renovate Delta Center, situated on the Arena Redevelopment Property, to meet the National Hockey League's arena standards and capacity requirements for the Utah Mammoth, while also enhancing the guest experience for both hockey and basketball without compromising the existing basketball experience of the Utah Jazz, a National Basketball Association professional basketball franchise (these renovations are referred to as the "**Arena Renovation,**" and together with the District Improvements, constitute the "**Project**"). See "SEG PROPERTY MAP" and "THE PROJECT."

Location. The Project site is generally located just west of downtown Salt Lake City, approximately 15 minutes from the Salt Lake City International Airport, adjacent to the Salt Palace Convention Center, and within convenient walking distance of hotels, restaurants, and Temple Square. See "VICINITY MAP."

Land Ownership within the District. Jazz Arena Investors, LLC, a subsidiary of SEG, serves as the ground lessee of the Arena Redevelopment Property. This property includes the block where Delta Center is located, leased from the City through its Community Reinvestment Agency under the **"Arena Redevelopment Property Lease."** The initial District boundaries align with the Arena Redevelopment Property. See "SEG PROPERTY MAP."

The Project

The following section contains a summary of the information set forth herein under "THE PROJECT." Additional information regarding the Project is set forth therein. Certain of the information contained in this subsection has been obtained from public records and from representatives of SEG. Although believed to be reliable, such information has not been independently verified by the Underwriters or Senior Managing Underwriter's counsel, Bond Counsel, or Disclosure Counsel, and neither the Underwriters nor the Senior Managing Underwriter's counsel, Bond Counsel, nor Disclosure Counsel makes any representation or warranty regarding the accuracy or completeness thereof. Investors are urged to review this Official Statement and the appendices attached hereto carefully and in their entirety before making an investment in the Bonds. See "THE PROJECT" and "RISK FACTORS."

General Description. The Arena Renovation phase of the Project commenced in April 2025 with the majority of the work on the Delta Center scheduled during the summer months in 2025, 2026, and 2027. This timeline ensures that both the Utah Jazz and the Utah Mammoth can utilize the Delta Center for their respective NBA and NHL seasons beginning each fall. The Developer anticipates the completion of the Arena Renovation portion of the Project by fall of 2027, with the District Improvements expected to commence in 2027. The Project is projected to be completed within approximately five years. See "THE PROJECT."

Pledged Revenue Report

The District engaged MuniCap, Inc. ("**MuniCap**") for the purpose of independently projecting the future collection of Revitalization Sales Tax (defined herein) to be remitted to the District, the results of which are set forth in the report entitled SEG Redevelopment Project Downtown Revitalization Public Infrastructure District Salt Lake City, Utah Pledged Revenue Report dated June 5, 2025 (the **"Pledged Revenue Report"**) attached hereto as APPENDIX A. As noted throughout the Pledged Revenue Report, projections of Pledged Revenue included therein are based on historical sales, adjusted for assumed increases in per capita spending and population growth. **The forecasts in the Pledged Revenue Report do not contemplate any additional sales that may result from the completion of the Project or any other specific development.** See "FORWARD-LOOKING STATEMENTS," and "RISK FACTORS – Risks Inherent in Pledged Revenue Report."

Authorization and Purpose of the Bonds

The Bonds are issued under the PID Act, the Special District Act, the CCRZ Act, the Bond Act, the Governing Document and other applicable laws of the State of Utah (the "**State**").

The Senior Bonds will be issued under an Indenture of Trust (Senior) related to the Senior Bonds to be dated as of June 1, 2025 (the "**Senior Indenture**"), by and between the District and Zions Bancorporation, National Association, as trustee (the "**Trustee**"). The Subordinate Bonds will be issued

under an Indenture of Trust (Subordinate) related to the Subordinate Bonds to be dated as of June 1, 2025 (the "**Subordinate Indenture**"), by and between the District and the Trustee. The Bonds were authorized by a resolution adopted by the District's Board of Trustees (the "**Board**") on April 17, 2025 (the "**Bond Resolution**"). The Senior Indenture and the Subordinate Indenture are collectively referred to herein as the "**Indentures**."

The proceeds from the sale of the Bonds will be used to pay a portion of the Project, including reimbursing expenditures to SEG pursuant to the Infrastructure Acquisition and Reimbursement Agreement, more particularly described in "THE DISTRICT—District Agreements—*Infrastructure Acquisition and Reimbursement Agreement*," and paying the costs of issuing the Bonds. A portion of the proceeds of the Senior Bonds will also be used to fund the Second Lien Reserve Requirement, and a portion of the proceeds of the Subordinate Bonds will be used to pay capitalized interest on the Subordinate Bonds through July 15, 2025. See "SOURCES AND USES OF FUNDS" and "DEBT SERVICE SCHEDULE."

Security and Sources of Payment for the Senior Bonds; Discharge on December 31, 2055

The Senior Bonds are special limited sales tax revenue obligations of the District secured by and payable solely from the Senior Pledged Revenue[1] (defined below) with a lien on the Senior Pledged Revenue which is senior and prior to the lien securing the Subordinate Bonds, and amounts payable under each Policy (defined herein) and the Reserve Policy (defined herein) with respect to the 2025B Bonds. The 2025A Bonds are payable solely from the Senior Pledged Revenue with a lien on the Senior Pledged Revenue which is senior and prior to the lien thereon securing the 2025B Bonds. The 2025B Bonds are payable solely from the Senior Pledged Revenue with a lien on the Senior Pledged Revenue which is subordinate and junior to the lien thereon securing the 2025A Bonds. See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS" and "BOND INSURANCE" herein.

"Senior Pledged Revenue" consists of all income and revenue derived by the City from (a) the Revitalization Sales Tax (defined below) imposed by the City, and transferred to the Trustee in accordance with the Participation Agreement and the Pledged Agreement, except for the City's Administrative Fee and the District Administrative Expenses (both as defined below), and (b) all investment income from any fund or account established under the Senior Indenture (excluding investment income, if any, required to be retained in the Rebate Fund established therein). See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS – Flow of Funds."

Pursuant to the CCR Act and the Participation Agreement, the City will receive an administrative fee equal to one percent (1%) of the Revitalization Sales Taxes collected (the **"City Administrative Fee"**), which will be deducted from the Revitalization Sales Tax received by the City before transferring the remaining amount to the Trustee. See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS – Flow of Funds."

"**Revitalization Sales Tax**" means the 0.5% sales and use tax adopted by the City on October 1, 2024, for a period of thirty (30) years (commencing on January 1, 2025, through December 31, 2054) as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5. The City currently levies the Revitalization Sales Tax at the maximum rate permitted by State law. The Revitalization Sales Tax is a new tax levied at the same rate and on the same goods and services as the previously imposed Correctional Facility Tax described below. The District expects the City's historical Correctional Facility Tax revenues

[1] Senior Pledged Revenue" is defined in the Senior Indenture as "Pledged Revenue" but referred to herein as "Senior Pledged Revenue" in order to distinguish such revenue from the "Subordinate Pledged Revenue" that secures the Subordinate Bonds.

to be a reasonable proxy for what the Revitalization Sales Tax revenues would have been if levied historically by the City. In general, the Revitalization Sales Tax is collected by the Utah State Tax Commission (the "**Tax Commission**") and distributed to the City on a monthly basis. See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS."

The Senior Pledged Revenue may or may not be sufficient to pay the principal of and interest on the Senior Bonds. No representation is made by the District or the Underwriters that the Senior Pledged Revenue will be sufficient to pay the principal of and interest on the Senior Bonds. In addition, the City has levied the Revitalization Sales Tax at the maximum amount of 0.5% and is limited by State law in its ability to increase the rate of the Revitalization Sales Tax.

The Senior Bonds do not constitute a general obligation indebtedness or a pledge of the ad valorem taxing power or the full faith and credit of the City, and are not obligations of the State or any other agency or other political subdivision or entity of the State. The District will not mortgage or grant any security interest in the improvements financed with the proceeds of the Senior Bonds or any portion thereof to secure payment of the Senior Bonds. See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS" herein.

The 2025B Bonds are also secured by amounts on deposit in the Second Lien Reserve Fund, in an amount equal to the Second Lien Reserve Requirement. Such requirement may be met and satisfied by the Reserve Policy issued by the Insurer. The Second Lien Reserve Fund will not be funded with proceeds of the 2025B Bonds. The Second Lien Reserve Requirement will be satisfied by the issuance of a reserve fund insurance policy (the **"Reserve Policy"**) by AG, which will guarantee the funding of the Second Lien Reserve Requirement. See "BOND INSURANCE" herein.

Notwithstanding anything in the Senior Indenture to the contrary, all of the Senior Bonds and interest thereon are to be deemed paid, satisfied, and discharged on December 31, 2055, regardless of the amount of principal and interest paid prior to such date.

THE SENIOR BONDS ARE SOLELY THE OBLIGATIONS OF THE DISTRICT. UNDER NO CIRCUMSTANCES ARE ANY OF THE SENIOR BONDS TO BE CONSIDERED OR HELD TO BE AN INDEBTEDNESS, OBLIGATION OR LIABILITY OF THE CITY, THE STATE OR ANY POLITICAL SUBDIVISION THEREOF OTHER THAN THE DISTRICT.

Security and Sources of Payment for the Subordinate Bonds; Discharge on December 31, 2055

The Subordinate Bonds are "cash flow" obligations of the District secured by and payable from the "**Subordinate Pledged Revenue**"[1] consisting of a subordinate lien on the Revitalization Sales Tax subject only to the lien on the Senior Pledged Revenue.

The Subordinate Pledged Revenue may or may not be sufficient to pay the principal of and interest on the Subordinate Bonds. No representation is made by the District or the Underwriters that the Subordinate Pledged Revenue will be sufficient to pay the principal of and interest on the Subordinate Bonds. In addition, the City has levied the Revitalization Sales Tax at the maximum amount of 0.5% and is limited by State law in its ability to increase the rate of the Revitalization Sales Tax.

[1] Subordinate Pledged Revenue" is defined in the Subordinate Indenture as "Pledged Revenue" but referred to herein as "Subordinate Pledged Revenue" in order to distinguish such revenue from the "Senior Pledged Revenue" that secures the Senior Bonds.

The Subordinate Bonds do not constitute a general obligation indebtedness or a pledge of the ad valorem taxing power or the full faith and credit of the City, and are not obligations of the State or any other agency or other political subdivision or entity of the State. The District will not mortgage or grant any security interest in the improvements financed with the proceeds of the Subordinate Bonds or any portion thereof to secure payment of the Subordinate Bonds. See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS."

Notwithstanding anything in the Subordinate Indenture to the contrary, all of the Subordinate Bonds and interest thereon are to be deemed paid, satisfied, and discharged on December 31, 2055, regardless of the amount of principal and interest paid prior to such date.

THE SUBORDINATE BONDS ARE SOLELY THE OBLIGATIONS OF THE DISTRICT. UNDER NO CIRCUMSTANCES ARE ANY OF THE SUBORDINATE BONDS TO BE CONSIDERED OR HELD TO BE AN INDEBTEDNESS, OBLIGATION OR LIABILITY OF THE CITY, THE STATE OR ANY POLITICAL SUBDIVISION THEREOF OTHER THAN THE DISTRICT.

Priority of Lien; Subordinate Nature of Subordinate Bonds

The Subordinate Bonds are special limited sales tax revenue obligations of the District payable solely from the Subordinate Pledged Revenue with a lien on the Subordinate Pledged Revenue which is subordinate and junior to the lien thereon securing the Senior Bonds.

"Cash Flow" Nature of Subordinate Bonds

The Subordinate Bonds are structured as "cash flow" bonds, meaning that the Subordinate Indenture does not provide for any scheduled payments of principal on the Subordinate Bonds prior to the final stated maturity date. Rather, principal on the Subordinate Bonds is payable on each July 15 from, and to the extent of, Subordinate Pledged Revenue on deposit, if any, in the Subordinate Bond Fund, annually, on June 2, in accordance with the terms of the Subordinate Indenture, pursuant to mandatory redemption. Furthermore, accrued unpaid interest on the Subordinate Bonds will compound annually on each July 15. Interest payable on the Subordinate Bonds in each Bond Year is to be paid prior to any payments of principal in such Bond Year.

Initial Bonds; Additional Bonds

The Senior Bonds and the Subordinate Bonds are the initial series of Bonds under the Senior Indenture and the Subordinate Indenture, respectively. The Senior Indenture and the Subordinate Indenture impose different limitations on the issuance of additional parity bonds. See "THE SENIOR BONDS - No Additional First Lien Bonds or Second Lien Bonds Other than Refunding Bonds" and "THE SUBORDINATE BONDS - No Additional Subordinate Bonds Other than Refunding Bonds."

State Constitution "Contract Clause" Protections

Article 1, Section 18 of the Utah Constitution prohibits, among other things, laws impairing the obligation of contracts. Laws that affect the legal force or enforceability of existing agreements either by directly invalidating those agreements or by materially altering the rights and obligations outlined in those agreements are prohibited by the Utah Constitution.

However, the District notes that the State's "Contract Clause" protection has not been interpreted by a court of law with respect to the transactions described in this Official Statement and, therefore, the District cannot predict the extent that such provision would (i) be upheld under constitutional or other legal

challenge, (ii) protect the current rates and collection of the Revitalization Sales Tax, or (iii) impact any other aspect of the Revitalization Sales Tax.

Redemption

The Bonds are subject to redemption prior to maturity. See "THE SENIOR BONDS—Redemption" and "THE SUBORDINATE BONDS—Redemption."

Registration, Denominations, Manner of Payment

The Bonds are issuable only as fully registered bonds without coupons and, when initially issued, will be registered in the name of Cede & Co., as nominee for The Depository Trust Company, New York, New York ("**DTC**"). DTC will act as securities depository of the Bonds. Purchases of Bonds will be made in book-entry form only, in the principal amount of $5,000 or any integral multiple thereof for Senior Bonds, and in the principal amount of $100,000 or any integral multiple of $1,000 in excess thereof for Subordinate Bonds, through brokers and dealers who are, or who act through, DTC Participants. Beneficial Owners of the Bonds will not be entitled to receive physical delivery of bond certificates so long as DTC or a successor securities depository acts as the securities depository with respect to the Bonds.

Principal of and interest on the Bonds are payable by Zions Bancorporation, National Association, as paying agent (the "**Paying Agent**"), to the registered owners of the Bonds. So long as DTC is the registered owner, it will, in turn, remit such principal and interest to its Participants, for subsequent disbursements to the Beneficial Owners of the Bonds, as described under "THE SERIES 2025 BONDS—Book-Entry Only System" herein.

Tax Status

In the opinion of Gilmore & Bell, P.C., Bond Counsel to the District, under existing law and assuming continued compliance with certain requirements of the Internal Revenue Code of 1986, as amended, the interest on the Bonds (including any original issue discount properly allocable to an owner thereof) is excludable from gross income for federal income tax purposes, and is not an item of tax preference for purposes of the federal alternative minimum tax. The Bonds have not been designated as "qualified tax-exempt obligations" within the meaning of Section 265(b)(3) of the Code. Bond Counsel notes that interest on the Bonds may be included in adjusted financial statement income of applicable corporations for purposes of determining the applicability and amount of the federal corporate alternative minimum tax. Bond Counsel is also of the opinion that the interest on the Bonds is exempt from State of Utah individual income taxes.

See "TAX MATTERS" in this Official Statement. Bond Counsel expresses no opinion regarding any other tax consequences relating to ownership or disposition of or the accrual or receipt of interest on the Bonds.

Conditions of Delivery, Anticipated Date, Manner and Place of Delivery

The Bonds are offered, subject to prior sale, when, as and if issued and received by the Underwriters subject to approval of legality by Gilmore & Bell, P.C., Bond Counsel to the District, and certain other conditions. Certain matters relating to disclosure will be passed upon for the District by Gilmore & Bell, P.C., Salt Lake City, Utah, Disclosure Counsel to the District. Certain legal matters will be passed upon for the District by Gilmore & Bell, P.C., Salt Lake City, Utah, counsel to the District and for the Senior Managing Underwriter by its counsel Kutak Rock LLP, Denver, Colorado. Zions Public Finance, Inc., Salt Lake City, Utah, is acting as Municipal Advisor for the District with respect to the Bonds. See

"MUNICIPAL ADVISOR." It is expected that the Bonds, in book-entry only form, will be available for delivery to DTC or its agent on or about June 18, 2025.

Continuing Disclosure

The District will execute a Continuing Disclosure Undertaking for the benefit of the beneficial owners of the Bonds and to enable the Underwriters to comply with the requirements of Rule 15c2-12 under the Securities Exchange Act of 1934 (as previously defined, the "Rule"). See "CONTINUING DISCLOSURE" and "APPENDIX D—FORM OF CONTINUING DISCLOSURE UNDERTAKING."

Basic Documentation

The "basic documentation" which includes the Bond Resolution, the Indentures and other documentation, authorizing the issuance of the Bonds and establishing the rights and responsibilities of the District and other parties to the transaction, may be obtained from the "contact persons" as indicated herein.

Offering and Delivery Information

As stated above, the offering of the Subordinate Bonds is being made to investors who are believed to be knowledgeable and experienced investors and who are not purchasing with a view to distributing the Subordinate Bonds. Each purchaser of Subordinate Bonds must be a "Qualified Institutional Buyer" as defined under Rule 144A under the Securities Act of 1933, as amended (the "**Securities Act**") or an "Accredited Investor" as defined in Rule 501 of Regulation D under the Securities Act (together "**Qualified Investors**"). Investors purchasing Subordinate Bonds will be required to execute an investor letter in substantially the form attached hereto as APPENDIX G.

Contact Persons

The chief contact person for the District concerning the Bonds is:

John Larson
1420 S 500 W
Salt Lake City, Utah 84115
(801) 328-7448
jlarson@teamseg.com

THE SENIOR BONDS

The following is a summary of certain general provisions of the Senior Bonds. The definitions of certain words and terms and a summary of certain provisions of the Senior Indenture relating to the Senior Bonds are set forth in APPENDIX C to this Official Statement. Reference is hereby made to the Senior Indenture in its entirety for the detailed provisions pertaining to the Senior Bonds.

Description

The Senior Bonds will be dated as of their date of issuance and delivery, and will bear interest from their dated date computed on the basis of a 360-day year consisting of twelve 30-day months at the rates set forth on the inside cover of this Official Statement, payable to the extent of Senior Pledged Revenue available therefor semiannually on June 1 and December 1 of each year beginning December 1, 2025 and, subject to the redemption provisions set forth below, will mature on the dates and in the amounts as set forth on the inside cover page of this Official Statement.

Sources of Payment

The Senior Bonds are special sales tax revenue obligations of the District secured by and payable solely from and to the extent of the "Senior Pledged Revenue," consisting of a senior lien on the Revitalization Sales Tax which is senior and prior to the lien securing the Subordinate Bonds. See "INTRODUCTION – Security and Sources of Payment for the Senior Bonds: Discharge on December 31, 2055."

Discharge on December 31, 2055

In accordance with the CCR Act and Section 59-12-402.5, Utah Code, the Revitalization Sales Tax is not permitted to be imposed for a period exceeding thirty (30) years from the first date of its imposition, i.e. January 1, 2025, through December 31, 2054 (the "Imposition Period"). Pursuant to the Participation Agreement and the Capital Pledge Agreement, the City shall remit to the District Revitalization Sales Taxes imposed but not collected during the Imposition Period, including any delinquent taxes, through December 31, 2055. In the event that any amount of principal of or interest on the Senior Bonds remains unpaid after the application of all Senior Pledged Revenue available therefor, the Senior Bonds and the lien of the Senior Indenture securing payment thereof shall be deemed discharged on December 31, 2055 (the "Discharge Date"), the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Senior Indenture, and execute and deliver to the District such instruments in writing as shall be requested to evidence the same. Notwithstanding the foregoing, in the event that the Imposition Period for the Revitalization Sales Tax is legally extended beyond December 31, 2054, the Discharge Date may likewise be extended upon authorization by the District in its discretion as permitted by law. Upon such discharge, the Owners will have no recourse to the District or any property of the District for the payment of any amount of principal of or interest on the Senior Bonds remaining unpaid.

Authorized Denominations of the Senior Bonds

The Senior Bonds are being issued in "Authorized Denominations," defined in the Senior Indenture to mean the amount of $5,000 or any integral multiple thereof, provided that no individual Senior Bond may be in an amount which exceeds the principal amount coming due on any maturity date. Notwithstanding the foregoing, in the event a Senior Bond is partially redeemed and the unredeemed portion is less than $5,000, such unredeemed portion of such Senior Bond may be issued in the largest possible denomination of less than $5,000, in an integral multiple of $1,000.

Payment of Principal and Interest

The Senior Indenture provides that the principal of and premium, if any, on the Senior Bonds are payable in lawful money of the United States of America to the owner of each Senior Bond (the "Senior Bond Owners") upon maturity or prior redemption and presentation at the principal office of the Trustee. Payment of each installment of interest will be made to the registered owner. The interest on any Senior Bond is payable to the person in whose name such Senior Bond is registered, at their address as it appears on the registration books maintained by or on behalf of the District by the Trustee, at the close of business on the Record Date (defined in the Indenture as the 15th day of the calendar month next preceding each Interest Payment Date), irrespective of any transfer or exchange of such Senior Bond subsequent to such Record Date and prior to such Interest Payment Date; provided that any such interest not so timely paid or duly provided for shall cease to be payable to the person who is the Senior Bond Owner thereof at the close of business on the Record Date and shall be payable to the person who is the Senior Bond Owner thereof at the close of business on a Special Record Date for the payment of any such unpaid interest. Such Special Record Date shall be fixed by the Trustee whenever moneys become available for payment of the unpaid interest and notice of the Special Record Date shall be given to the Senior Bond Owners not less than ten

(10) days prior to the Special Record Date by first-class mail to each such Senior Bond Owner as shown on the registration books kept by the Trustee on a date selected by the Trustee. Such notice shall state the date of the Special Record Date and the date fixed for the payment of such unpaid interest.

Interest payments shall be paid by check or draft of the Trustee mailed on or before the Interest Payment Date to the Senior Bond Owners. The Trustee may make payments of interest on any Senior Bond by such alternative means as may be mutually agreed to between the Senior Bond Owner of such Senior Bond and the Trustee; provided that the District shall not be required to incur any expenses in connection with such alternative means of payment.

To the extent principal of any Senior Bond is not paid when due, such principal shall remain Outstanding until paid, subject to the discharge provisions of the Senior Indenture. To the extent interest on any Senior Bond is not paid when due, such interest shall compound semiannually on each Interest Payment Date, at the interest rate then borne by the Senior Bond; provided however, that notwithstanding anything in the Senior Indenture to the contrary, the District shall not be obligated to pay more than the amount permitted by law.

Payments for the principal of and interest on the Senior Bonds will be made as described in APPENDIX F—PROVISIONS REGARDING BOOK-ENTRY FORM ONLY.

Redemption

Optional Redemption of 2025A Bonds. The 2025A Bonds maturing June 1, 2036-2039 are subject to redemption prior to maturity, at the option of the District, in whole or in integral multiples of $1,000 at any time, and if in part in such order of maturities as the District shall determine and by lot within maturities, on June 1, 2030, and on any date thereafter, at the redemption price of 100% of the principal amount redeemed, plus accrued interest thereon to the date of redemption.

The 2025A Bonds maturing on or after June 1, 2040 are subject to redemption prior to maturity, at the option of the District, in whole or in integral multiples of $1,000 at any time, and if in part in such order of maturities as the District shall determine and by lot within maturities, on June 1, 2035, and on any date thereafter, at the redemption price of 100% of the principal amount redeemed, plus accrued interest thereon to the date of redemption

Mandatory Sinking Fund Redemption of 2025A Bonds. The 2025A Bonds maturing on June 1, 2050 and June 1, 2055 are also subject to mandatory sinking fund redemption and payment prior to the maturity date of such 2025A Bonds, in part, by maturities or portions thereof designated by the District by lot, on June 1 in each of the years set forth below, at 100% of the principal amount thereof plus accrued interest to the redemption date, without premium:

2025A Bonds Maturing on June 1, 2050

Year of Redemption (June 1)	Redemption Amount
2046	$27,270,000
2047	28,770,000
2048	30,350,000
2049	32,020,000
2050*	33,780,000

*Final Maturity

2025A Bonds Maturing on June 1, 2055

Year of Redemption (June 1)	Redemption Amount
2051	$35,640,000
2052	37,600,000
2053	39,665,000
2054	41,850,000
2055*	44,150,000

*Final Maturity

On or before 30 days prior to each sinking fund installment date as set forth above, the Trustee is to select for redemption, by lot in such manner as the Trustee may determine, from the Outstanding 2025A Bonds, a principal amount of such 2025A Bonds equal to the applicable sinking fund installment. The amount of the applicable sinking fund installment for any particular date is to be reduced by the principal amount of any 2025A Bonds which prior to said date have been redeemed (otherwise than through the operation of the sinking fund) and cancelled and not theretofore applied as a credit against a sinking fund installment. Such reductions are to be applied in such year or years as may be determined by the District. In the event that there are not sufficient moneys in the First Lien Bond Fund to pay the full amount due in accordance with the foregoing on any sinking fund installment date, the Trustee is to redeem 2025A Bonds on such date in integral multiples of $1,000, and any redemption amount for which funds are not available to redeem 2025A Bonds shall be added to the redemption amount for the immediately succeeding sinking fund installment date.

Optional Redemption of 2025B Bonds. The 2025B Bonds maturing on or after June 1, 2036 are subject to redemption prior to maturity, at the option of the District, in whole or in integral multiples of $1,000 at any time, and if in part in such order of maturities as the District shall determine and by lot within maturities, on June 1, 2035, and on any date thereafter, at the redemption price of 100% of the principal amount redeemed, plus accrued interest thereon to the date of redemption.

Mandatory Sinking Fund Redemption of 2025B Bonds. The 2025B Bonds maturing on June 1, 2050 and June 1, 2055 are also subject to mandatory sinking fund redemption and payment prior to the maturity date of such 2025B Bonds, in part, by maturities or portions thereof designated by the District by lot, on June 1 in each of the years set forth below, at 100% of the principal amount thereof plus accrued interest to the redemption date, without premium:

2025B Bonds Maturing on June 1, 2050

Year of Redemption (June 1)	Redemption Amount
2046	$ 8,160,000
2047	8,610,000
2048	9,080,000
2049	9,580,000
2050*	10,110,000

*Final Maturity

2025B Bonds Maturing on June 1, 2055

Year of Redemption (June 1)	Redemption Amount
2051	$10,665,000
2052	11,250,000
2053	11,870,000
2054	12,520,000
2055*	13,210,000

*Final Maturity

On or before 30 days prior to each sinking fund installment date as set forth above, the Trustee is to select for redemption, by lot in such manner as the Trustee may determine, from the Outstanding 2025B Bonds, a principal amount of such 2025B Bonds equal to the applicable sinking fund installment. The amount of the applicable sinking fund installment for any particular date is to be reduced by the principal amount of any 2025B Bonds which prior to said date have been redeemed (otherwise than through the operation of the sinking fund) and cancelled and not theretofore applied as a credit against a sinking fund installment. Such reductions are to be applied in such year or years as may be determined by the District. In the event that there are not sufficient moneys in the Second Lien Bond Fund to pay the full amount due in accordance with the foregoing on any sinking fund installment date, the Trustee is to redeem 2025B Bonds on such date in integral multiples of $1,000, and any redemption amount for which funds are not available to redeem 2025B Bonds shall be added to the redemption amount for the immediately succeeding sinking fund installment date.

General Redemption Provisions. If less than all of the Senior Bonds within a maturity are to be redeemed on any prior redemption date, the Senior Bonds to be redeemed shall be selected by lot prior to the date fixed for redemption, in such manner as the Trustee shall determine. The Senior Bonds shall be redeemed only in integral multiples of $1,000. In the event a Senior Bond is of a denomination larger than $1,000, a portion of such Senior Bond may be redeemed, but only in the principal amount of $1,000 or any integral multiple thereof. Such Senior Bond shall be treated for the purpose of redemption as that number of Senior Bonds which results from dividing the principal amount of such Senior Bond by $1,000. In the event a portion of any Senior Bond is redeemed, the Trustee shall, without charge to the Senior Bond Owner of such Senior Bond, authenticate and deliver a replacement Senior Bond or Senior Bonds for the unredeemed portion thereof.

Notice and Effect of Redemption. In the event any of the Senior Bonds or portions thereof are called for redemption as aforesaid, notice thereof identifying the Senior Bonds or portions thereof to be redeemed will be given by the Trustee by mailing a copy of the redemption notice by first-class mail (postage prepaid) or by electronic means to DTC or its successors, not less than 20 days prior to the redemption date to the Owner of each Senior Bond to be redeemed in whole or in part at the address shown on the registration books maintained by or on behalf of the District by the Trustee. Failure to give such notice by mailing to any Senior Bond Owner or by electronic means to DTC or its successors, or any defect therein, is not to affect the validity of any proceeding for the redemption of other Senior Bonds as to which no such failure or defect exists. The redemption of the Senior Bonds may be contingent or subject to such conditions as may be specified in the notice, and if funds for the redemption are not irrevocably deposited with the Trustee or otherwise placed in escrow and in trust prior to the giving of notice of redemption, the notice is to be specifically subject to the deposit of funds by the District. All Senior Bonds so called for redemption will cease to bear interest after the specified redemption date, provided funds for their redemption are on deposit at the place of payment at that time.

Security for the Senior Bonds; Senior Lien

The Senior Bonds are special limited obligations of the District secured by and payable from the Senior Pledged Revenue consisting of the following revenues: (a) the Revitalization Sales Tax imposed by the City, and transferred to the Trustee in accordance with the Participation Agreement and the Pledge Agreement, except for the City's Administrative Fee and the District Administrative Expenses, and (b) all investment income from any fund or account established under the Senior Indenture (excluding investment income, if any, required to be retained in the Rebate Fund established therein), and not in excess of the "Maximum Dollar Amount" as defined in the Participation Agreement. The Senior Pledged Revenue means all or a portion of the Senior Pledged Revenue but does not include any amounts determined, pursuant to State law, to be subject to valid claims for refunds. See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS - Flow of Funds."

Revitalization Sales Tax. The Senior Indenture defines "**Revitalization Sales Tax**" to mean the 0.5% sales and use tax adopted by the City on October 1, 2024, for a period of thirty (30) years (commencing on January 1, 2025, through December 31, 2054), as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5.

The Senior Bonds are not secured by property lying within the District, but rather by, among other things, the District's obligation under the Senior Indenture to pledge and assign the annual Revitalization Sales Tax, less the City's Administrative Fee, to the Trustee, in an amount sufficient to pay, along with other legally available revenues, the principal of and interest on the Senior Bonds. The lien of such pledge shall constitute a first priority, with the District receiving a first-lien pledge of available Revitalization Sales Taxes towards Senior Bonds up to the qualifying amount thereof set forth in the Participation Agreement.

The 2025B Bonds are also secured by amounts on deposit in the Second Lien Reserve Fund, in an amount equal to the Second Lien Reserve Requirement. Such requirement may be met and satisfied by the Reserve Policy issued by the Insurer. The Second Lien Reserve Fund will not be funded with proceeds of the 2025B Bonds. The Second Lien Reserve Requirement will be satisfied by the issuance of the Reserve Policy by AG, which will guarantee the funding of the Second Lien Reserve Requirement. See "BOND INSURANCE" herein.

Certain Senior Indenture Provisions

The following is a description of certain provisions of the Senior Indenture and is subject in all respects to the more specific provisions of the Senior Indenture. Capitalized terms used in this section are defined herein or in APPENDIX C—SUMMARY OF THE INDENTURES.

Creation of Funds and Accounts. Under the Senior Indenture, there are created and established the following funds and accounts, which are to be established with the Trustee and maintained by the Trustee in accordance with the provisions of the Senior Indenture:

(a) the Senior Project Fund and within the Senior Project Fund a 2025 Senior Project Account and a 2025 Senior Costs of Issuance Account;

(b) Working Capital Fund;

(c) the Revenue Fund;

(d) the First Lien Bond Fund;

(e) the Second Lien Bond Fund;

(f) Rebate Fund;

(g) Second Lien Reserve Fund; and

(h) Surplus Fund.

Senior Project Fund. The Senior Project Fund is to be maintained by the Trustee in accordance with the terms of the Senior Indenture.

Draws from the 2025 Senior Project Account. So long as no Event of Default shall have occurred and be continuing, amounts in the 2025 Senior Project Account shall be released by the Trustee to the District in accordance with requisitions submitted to the Trustee in substantially the form set forth in the Senior Indenture, signed by the District Representative and certifying that all amounts drawn will be applied to pay or as reimbursement for payment made for Project Costs. The Trustee may rely conclusively on any such requisitions and shall not be required to make any independent investigation in connection therewith. The execution of any requisition by the District Representative shall constitute, unto the Trustee, an irrevocable determination that all conditions precedent to the payments requested have been completed.

Termination of 2025 Senior Project Account. Upon the receipt by the Trustee of a certificate of the District determining that the Project Costs paid or reimbursed with the proceeds of the Senior Bonds have been fully paid, and after all rebatable earnings have been transferred to the Rebate Fund, there shall remain any moneys in the 2025 Senior Project Account, such moneys shall be deposited and applied in the following order of priority: (1) to pay the Bond Requirements of any Outstanding 2025A Bonds or any other Outstanding First Lien Bonds due in such Bond Year and not paid; (2) to pay the Bond Requirements of any Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds due in such Bond Year and not paid; (3) pay accrued interest on and/or to redeem Outstanding 2025C Bonds or any other Outstanding Subordinate Bonds; (4) if there are no Subordinate Bonds Outstanding, to pay accrued interest on and/or to redeem any Outstanding Second Subordinate Bonds, if any; (5) to optionally redeem any Outstanding 2025A Bonds or any other Outstanding First Lien Bonds; and (6) to optionally redeem Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds; provided, in the discretion of the District, such moneys may be applied for any other purpose that, based on an opinion of Bond Counsel addressed and delivered to the Trustee, will not adversely affect the exclusion of the interest on the Senior Bonds from gross income for federal income tax purposes.

The Senior Project Fund shall terminate at such time as no further moneys remain therein.

Application of Senior Pledged Revenue. In accordance with the Participation Agreement and the Capital Pledge Agreement, not later than 30 days following receipt by the City of the Senior Pledged Revenue derived from the Revitalization Sales Tax, the City shall transfer to the Trustee such Senior Pledged Revenue, less the City's Administrative Fee, as defined in the Participation Agreement, for deposit to the Revenue Fund. Notwithstanding the foregoing, prior to the District's issuance of the Senior Bonds and the Subordinate Bonds, all Revitalization Sales Tax collected by the City shall be held and maintained by the City in a separate City-managed account in accordance with the Participation Agreement. On the issue date of the Senior Bonds and the Subordinate Bonds, the City will transfer all accumulated Revitalization Sales Tax in the amount of $13,946,935.41 to the Trustee, of which $520,404.00 will be deposited in the Working Capital Fund to fund District Administrative Expenses through March 1, 2029, and the remaining amount of $13,426,531.41 will be deposited in the Revenue Fund.

So long as any of the Senior Bonds and any other First Lien Bonds or Second Lien Bonds authorized by the Senior Indenture are Outstanding, the following payments shall be made from the Revenue Fund as provided below under "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS – Flow of Funds." See APPENDIX C—SUMMARY OF THE INDENTURES.

IN NO EVENT IS THE DISTRICT PERMITTED TO APPLY ANY PORTION OF THE SENIOR PLEDGED REVENUE TO ANY OTHER PURPOSE, OR TO WITHHOLD ANY PORTION OF THE SENIOR PLEDGED REVENUE.

Additional Covenants and Agreements of the District in the Senior Indenture. The District irrevocably covenants in the Senior Indenture and agrees with each and every Owner that so long as any of the Senior Bonds remain Outstanding:

(a) The District shall faithfully and punctually perform or cause to be performed all duties with respect to the Senior Pledged Revenues and the Project required by the Bond Act and the District Act, the Constitution and laws of the State and the various resolutions, ordinances and other instruments of the District, including, without limitation, the proper segregation of the proceeds of the Senior Bonds and the Senior Pledged Revenues and their application from time to time to the respective funds and accounts provided for in the Senior Indenture.

(b) The District will maintain its existence and is not to merge or otherwise alter its corporate structure in any manner or to any extent as might reduce the security provided for the payment of the Senior Bonds, and will continue to operate and manage the District and its facilities in an efficient and economical manner in accordance with all applicable laws, rules, and regulations.

(c) At least once a year the District will cause an audit to be performed of the records relating to its revenues and expenditures, and the District is to use its best commercially reasonable efforts to have such audit report completed no later than 200 days following the end of its Fiscal Year. The foregoing covenant is to apply notwithstanding any State law audit exemptions that may exist. In addition, at least once a year in the time and manner provided by law, the District will cause a budget to be prepared and adopted. Copies of the budget and the audit will be filed and recorded in the places, time, and manner provided by law.

(d) The District will carry general liability, public officials' liability, and such other forms of insurance coverage on insurable District property upon the terms and conditions, and in such amount, as in the judgment of the District will protect the District and its limited operations.

(e) Each District official or other person having custody of any District funds or responsible for the handling of such funds, is to be bonded or insured against theft or defalcation at all times.

(f) Other than as set forth in the Senior Indenture, the District covenants that it will not take any action, (other than issuing refunding bonds permitted under the Senior Indenture) that could reduce the amounts available for Subordinate Bond Owners or any Second Subordinate Bond Owners in any year. The District covenants that it will not exercise any optional redemption of First Lien Bonds and Second Lien Bonds that are not funded from refunding bond proceeds that could result in the reduction of amounts available for Subordinate Bond Owners in any year.

No Additional First Lien Bonds or Second Lien Bonds Other than Refunding Bonds. No additional indebtedness, bonds or notes of the District secured by a lien upon or a pledge of Senior Pledged

Revenues ranking prior to the lien or to the pledge created by the Senior Indenture shall be created or incurred without the prior written consent of the Owners of 100% of the Outstanding First Lien Bonds, Second Lien Bonds, Subordinate Bonds and Second Subordinate Bonds, if any. No additional bonds or other obligations may be issued on a parity with the liens of the 2025A Bonds or the 2025B Bonds, except for the purpose of refunding Outstanding bonds, provided that:

(a) Any First Lien Bonds or Second Lien Bonds refunded must be defeased in accordance with their terms and thus no longer Outstanding for purposes of the Senior Indenture or the indenture authorizing such refunded bonds;

(b) Upon the issuance of the 2025A Bonds, First Lien Bonds may only be issued thereafter to refund, in whole or in part, Outstanding First Lien Bonds; and

(c) Upon the issuance of the 2025B Bonds, Second Lien Bonds may only be issued thereafter to refund, in whole or in part, Outstanding First Lien Bonds and/or Second Lien Bonds.

In addition, prior to the issuance of any First Lien Bonds or Second Lien Bonds for refunding purposes in accordance with the Senior Indenture, a certificate of the District Representative must be delivered setting forth, for each Bond Year from and after the date of the refunding to and including the latest Bond Year of all Outstanding Bonds for all series, (a) combined annual debt service on all First Lien Bonds and Second Lien Bonds Outstanding prior to such refunding and (b) combined annual debt service on all First Lien Bonds and Second Lien Bonds Outstanding taking into account such refunding, and (c) that for each such Bond Year, the amount set forth in clause (b) is no greater than the amounts set forth in clause (a). See APPENDIX C—SUMMARY OF THE INDENTURES hereto.

Events of Default. The occurrence of any one or more of the following events or the existence of any one or more of the following conditions shall constitute an Event of Default under the Senior Indenture (whatever the reason for such event or condition and whether it shall be voluntary or involuntary or be effected by operation of law or pursuant to any judgment, decree, rule, regulation, or order of any court or any administrative or governmental body), and there shall be no default or Event of Default under the Senior Indenture except as follows:

(a) default in the payment of the principal of (or premium, if any, on) any of the First Lien Bonds or Second Lien Bonds when the same becomes due and payable, either at maturity or otherwise;

(b) default in the payment of any installment of interest on the First Lien Bonds or Second Lien Bonds when the same becomes due and payable;

(c) the District shall be in default in the due and punctual performance of any other representations, covenants, conditions, agreements and provisions contained in the First Lien Bonds or Second Lien Bonds or in the Senior Indenture or the Capital Pledge Agreement on its part to be performed, and if such default shall continue for thirty (30) days after written notice specifying such default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in principal amount of the 2025A Bonds and all other First Lien Bonds then Outstanding or, if no First Lien Bonds are Outstanding, the Owners of ten percent (10%) in principal amount of the 2025B Bonds and all other Second Lien Bonds then Outstanding; provided, that if such default cannot be fully remedied within such 30-day period, but can reasonably be expected to be fully remedied, such default shall not constitute an Event of Default if the District shall promptly upon receipt of such notice commence the curing of such default and shall thereafter prosecute and complete the same with due diligence and dispatch; and

(d) the District files a petition under the federal bankruptcy laws or other applicable bankruptcy laws seeking to adjust the obligation represented by the Bonds.

Notwithstanding the foregoing, and subject to the provisions of the Senior Indenture with respect to the discharge of the lien of the Senior Indenture, except as otherwise provided in the Senior Indenture, if the 2025A Bonds or other First Lien Bonds are Outstanding, no Event of Default (other than an Event of Default described in (a) and (b) above) will exist or may be declared with respect to the 2025B Bonds or any Second Lien Bonds and no remedies shall be pursued by the Trustee on behalf of the Owners of 2025B Bonds or any other Second Lien Bonds or directly by the 2025B Owners or the other Second Lien Owners and, provided further, that upon the occurrence of an Event of Default described in (a) and (b) above, the Trustee or such Second Lien Owners' remedy shall be to specifically enforce the provisions of the Senior Indenture to provide for payment of principal and interest on the Second Lien Bonds.

WITHOUT LIMITING THE FOREGOING, AND NOTWITHSTANDING ANY OTHER PROVISION CONTAINED IN THE SENIOR INDENTURE, THE DISTRICT ACKNOWLEDGED AND AGREED IN THE SENIOR INDENTURE THAT THE APPLICATION OF ANY PORTION OF THE SENIOR PLEDGED REVENUE TO ANY PURPOSE OTHER THAN DEPOSIT WITH THE TRUSTEE IN ACCORDANCE WITH THE PROVISIONS OF THE SENIOR INDENTURE CONSTITUTES A VIOLATION OF THE TERMS OF THE SENIOR INDENTURE AND A BREACH OF THE COVENANTS MADE THEREUNDER FOR THE BENEFIT OF THE OWNERS OF THE SENIOR BONDS, WHICH SHALL ENTITLE THE TRUSTEE TO PURSUE, ON BEHALF OF THE OWNERS OF THE SENIOR BONDS, ALL AVAILABLE ACTIONS AGAINST THE DISTRICT IN LAW OR IN EQUITY, AS MORE PARTICULARLY DESCRIBED IN THE SENIOR INDENTURE. THE DISTRICT FURTHER ACKNOWLEDGED AND AGREED THAT THE APPLICATION OF SENIOR PLEDGED REVENUE IN VIOLATION OF THE COVENANTS OF THE SENIOR INDENTURE WILL RESULT IN IRREPARABLE HARM TO THE OWNERS OF THE SENIOR BONDS. IN NO EVENT SHALL ANY PROVISION OF THE SENIOR INDENTURE BE INTERPRETED TO PERMIT THE DISTRICT TO RETAIN ANY PORTION OF THE SENIOR PLEDGED REVENUE, EXCEPT AS PROVIDED IN THE SENIOR INDENTURE WITH RESPECT TO THE DEPOSIT OF REVITALIZATION SALES TAX TO THE WORKING CAPITAL FUND.

Remedies on Occurrence of Event of Default. Upon the occurrence and continuance of an Event of Default, the Trustee shall have the following rights and remedies which may be pursued:

(a) *Receivership*. Upon the filing of a bill in equity or other commencement of judicial proceedings to enforce the rights of the Trustee and of the Owners, the Trustee shall be entitled as a matter of right to the appointment of a receiver or receivers of the Trust Estate, and of the revenues, income, product, and profits thereof pending such proceedings, subject however, to constitutional limitations inherent in the sovereignty of the District; but notwithstanding the appointment of any receiver or other custodian, the Trustee shall be entitled to the possession and control of any cash, securities, or other instruments at the time held by, or payable or deliverable under the provisions of the Senior Indenture to, the Trustee.

(b) *Suit for Judgment*. The Trustee may proceed to protect and enforce its rights and the rights of the Owners under the Bond Act, the District Act, the Bonds, the Bond Resolution, the Senior Indenture, and any provision of law by such suit, action, or special proceedings as the Trustee, being advised by counsel, shall deem appropriate.

(c) *Mandamus or Other Suit*. The Trustee may proceed by mandamus or any other suit, action, or proceeding at law or in equity, to enforce all rights of the Owners.

No Right of Acceleration. Notwithstanding anything in the Senior Indenture to the contrary, there shall be no right of acceleration with respect to any obligations secured by the Senior Pledged Revenues, including the First Lien Bonds, the Second Lien Bonds and all other obligations secured by the Senior Pledged Revenues. Any Event of Default with respect to one series of bonds shall not cause an event of default with respect to any other series of bonds unless such event or condition on its own constitutes an Event of Default with respect to such other series of bonds pursuant to the Senior Indenture. The remedies provided in the Senior Indenture with respect to using the moneys on deposit in funds and accounts shall be limited to the funds and accounts pledged under the Senior Indenture to the applicable series of bonds with respect to which an Event of Default exists.

As long as the 2025A Bonds or any other First Lien Bonds are Outstanding, neither the Trustee nor the Second Lien Owners shall have the right to institute or exercise any remedies provided for in the Senior Indenture during an Event of Default; provided, however, that the Trustee may, and upon the written direction of the Owners of a majority in aggregate principal amount of Second Lien Bonds then Outstanding, shall institute action against the District to specifically enforce any Event of Default with respect to (1) the payment of principal and interest on Second Lien Bonds, and (2) the issuance of additional bonds if such Event of Default shall continue for thirty (30) days after written notice specifying such Event of Default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in aggregate principal amount of Second Lien Bonds then Outstanding.

Notwithstanding the foregoing, the Trustee for the Subordinate Bonds may, and upon the written direction of the Owners of ten percent (10%) in aggregate principal amount of Subordinate Bonds, shall institute action against the District to specifically enforce any Event of Default with respect to the provisions relating to the issuance of additional bonds, the District's covenant that it will not take any action that could reduce the amounts available for Subordinate Bond Owners in any year, or with respect to supplemental indentures requiring the consent of the Consent Parties of the Subordinate Bonds, if such Event of Default shall continue for thirty (30) days after written notice specifying such Event of Default and requiring the same to be remedied shall have been given to the District by the Trustee for the Subordinate Bonds or by the Owners of ten percent (10%) in aggregate principal amount of Subordinate Bonds then Outstanding.

No recovery of any judgment by the Trustee shall in any manner or to any extent affect the lien of the Senior Indenture or any rights, powers, or remedies of the Trustee under the Senior Indenture, or any lien, rights, powers, and remedies of the Owners of the Bonds, but such lien, rights, powers, and remedies of the Trustee and of the Owners shall continue unimpaired as before.

Majority of Consent Parties May Control Proceedings. The Consent Parties of not less than a majority in principal amount of the 2025A Bonds and all other First Lien Bonds then Outstanding or, if there are no 2025A Bonds or other First Lien Bonds Outstanding, a majority in principal amount of the 2025B Bonds and all other Second Lien Bonds then Outstanding, shall have the right, at any time, to the extent permitted by law, by an instrument or instruments in writing executed and delivered to the Trustee, to direct the time, method, and place of conducting all proceedings to be taken in connection with the enforcement of the terms and conditions of the Senior Indenture, or for the appointment of a receiver, and any other proceedings under the Senior Indenture; provided that such direction shall not be otherwise than in accordance with the provisions of the Senior Indenture; and provided further that at its option the Trustee shall be indemnified as provided in the Senior Indenture.

Rights and Remedies of Owners. No Owner of any First Lien Bond or Second Lien Bonds shall have any right to institute any suit, action, or proceeding in equity or at law for the enforcement of the Senior Indenture or for the execution of any trust thereof or for the appointment of a receiver or any other remedy thereunder, unless (a) a default has occurred of which the Trustee has been notified or is deemed to have notice as provided in the Senior Indenture; (b) such default shall have become an Event of Default;

(c) the Owners of not less than 10% in aggregate principal amount of First Lien Bonds and Second Lien Bonds then Outstanding shall have made written request to the Trustee and shall have offered reasonable opportunity either to proceed to exercise the powers granted in the Senior Indenture or to institute such action, suit, or proceedings in their own name, and shall have also offered to the Trustee indemnity as provided in the Senior Indenture; and (d) the Trustee shall thereafter fail or refuse to exercise the powers granted in the Senior Indenture, or to institute such action, suit, or proceeding in its own name; such notification, request, and offer of indemnity are declared in every case at the option of the Trustee to be conditions precedent to any action or cause of action for the enforcement of the Senior Indenture, or for the appointment of a receiver or for any other remedy thereunder; it being understood and intended that no one or more Owners of First Lien Bonds or Second Lien Bonds shall have any right in any manner whatsoever to affect, disturb, or prejudice the lien of the Senior Indenture by his, her, its, or their action, or to enforce any right thereunder except in the manner provided in the Senior Indenture and that all proceedings at law or in equity shall be instituted, had, and maintained in the manner provided in the Senior Indenture.

Waivers of Events of Default. The Trustee shall waive any Event of Default under the Senior Indenture and its consequences, upon the written request of the Consent Parties of not less than a majority in principal amount of the 2025A Bonds and all other First Lien Bonds then Outstanding or, if there are no 2025A Bonds or other First Lien Bonds Outstanding, a majority in principal amount of the 2025B Bonds and all other Second Lien Bonds then Outstanding; provided however, that there shall not be waived without the consent of the Consent Parties of 100% of the First Lien Bonds then Outstanding or, if there are no 2025A Bonds or other First Lien Bonds Outstanding, the consent of the Consent Parties of 100% of the Second Lien Bonds Outstanding, as to any default in the payment of principal or interest on First Lien Bonds or Second Lien Bonds when the same becomes due and payable. In case of any such waiver, or in case any proceedings taken by the Trustee on account of any such default shall have been discontinued or abandoned or determined adversely to the Trustee, then in every such case the District, the Trustee, and the Owners shall be restored to their former positions and rights under the Senior Indenture respectively, but no such waiver or rescission shall extend to any subsequent or other default, or impair any right consequent thereon.

Senior Indenture Supplements Not Requiring Consent. Subject to the provisions of the Senior Indenture, the District and the Trustee may, without the consent of or notice to the Consent Parties of any First Lien Bonds or Second Lien Bonds, enter into such indentures supplemental thereto, which supplemental indentures shall thereafter form a part thereof, for any one or more of the following purposes: (a) to cure any ambiguity, to cure, correct, or supplement any formal defect or omission or inconsistent provision contained in the Senior Indenture, to make any provision necessary or desirable due to a change in law, to make any provisions with respect to matters arising under the Senior Indenture, or to make any provisions for any other purpose if such provisions are necessary or desirable and do not materially adversely affect the interests of the Owners of the First Lien Bonds and the Second Lien Bonds; (b) to grant or confer upon the Trustee for the benefit of the Owners any additional rights, remedies, powers, or authority that may lawfully be granted to or conferred upon the Owners or the Trustee; (c) to add to the conditions, limitations and restrictions thereafter to be observed by the District under the provisions of the Senior Indenture; (d) to add to the covenants and agreements of the District in the Senior Indenture other covenants and agreements thereafter to be observed by the District or to surrender any right or power therein reserved or conferred upon the District; (e) to provide for the issuance of additional First Lien and Second Lien refunding bonds; (f) to make any changes that may be required by the rating agencies and to the extent necessary to prevent any then current ratings of said services in respect of the First Lien Bonds and Second Lien Bonds from being reduced or withdrawn to the extent such changes do not materially adversely affect the interests of the Owners of such Bonds; (g) to preserve the excludability of interest on any First Lien Bonds and Second Lien Bonds from gross income for purposes of federal income taxes, or to change the tax covenants set forth in the Senior Indenture pursuant to an opinion of Bond Counsel that such action will not adversely affect such excludability; (h) to evidence the appointment of a separate Trustee or the

succession of a new Trustee under the Senior Indenture; (i) to modify, eliminate or add to the provisions of the Senior Indenture to such extent as shall be necessary to effect the qualification of the Senior Indenture under the Trust Indenture Act of 1939, as amended, or under any similar federal statute thereafter enacted, or to permit the qualification of the First Lien Bonds and Second Lien Bonds for sale under the securities laws of the United States or any state of the United States; and (j) to make any other change that would not materially adversely affect the security for the First Lien Bonds or the Second Lien Bonds.

Supplemental Indentures Requiring Consent. Except for supplemental indentures delivered as described above, and subject to the provisions of the Senior Indenture, the Consent Parties with respect to not less than a majority (or for modifications of provisions thereof which require the consent of a percentage of Owners or Consent Parties higher than a majority, such higher percentage) in aggregate principal amount of the First Lien Bonds and Second Lien Bonds then Outstanding shall have the right, from time to time, to consent to and approve the execution by the District and the Trustee of such indenture or indentures supplemental thereto as shall be deemed necessary or desirable by the District for the purpose of modifying, altering, amending, adding to, or rescinding, in any particular, any of the terms or provisions contained in the Senior Indenture.

Notwithstanding the foregoing, without the consent of the Consent Parties of the First Lien Bonds or Second Lien Bonds adversely affected thereby, nothing therein contained shall permit, or be construed as permitting: (a) a change in the maturity of the principal amount of any Outstanding First Lien Bond or Second Lien Bond or any installment of interest thereon or mandatory redemption provisions applicable thereto; (b) a reduction in the principal amount of any First Lien Bond or Second Lien Bond, or the rate of interest thereon; (c) the creation of a lien upon or a pledge of Senior Pledged Revenues ranking prior to the lien or to the pledge created by the Senior Indenture; (d) a reduction in the principal amount or percentages or otherwise affecting the description of First Lien Bonds or Second Lien Bonds or the consent of the Consent Parties of which is required for any such modification or amendment; (e) the establishment of priorities as between First Lien Bonds or Second Lien Bonds issued and Outstanding under the provisions of the Senior Indenture; or (f) the modifications of or otherwise prejudicially affect the rights or privileges of the Owners of less than all of the First Lien Bonds or Second Lien Bonds then Outstanding.

Notwithstanding the foregoing, without the consent of the Consent Parties of the Subordinate Bonds adversely affected thereby, nothing therein contained shall permit, or be construed as permitting: (a) any modification of maturity dates, redemption provisions or interest rates of First Lien Bonds and Second Lien Bonds that could reduce amounts available to the Subordinate Bond Owners in any year; (b) any change which would permit the issuance of additional obligations with a lien on Senior Pledged Revenues prior and superior to the lien thereon of the Subordinate Bonds, other than First Lien Bonds and Second Lien Bonds issued for refunding purposes in accordance with the provisions of the Senior Indenture; (c) any changes to the refunding bonds provisions in the Senior Indenture that could reduce the amounts available to the Subordinate Bond Owners in any year; (d) any amendment to the covenants of the District that could reduce the amount available for the Subordinate Bond Owners in any year; (e) any modification to rights and remedies of the First Lien Bond Owners and the Second Lien Bond Owners which (1) permit acceleration, (2) increase amounts payable to the First Lien Bond Owners and the Second Lien Bond Owners prior to the Subordinate Bond Owners, or (3) grant additional rights to the First Lien Bond Owners and the Second Lien Bond Owners that have a material adverse impact on the Subordinate Bond Owners; (f) the creation of a lien upon or a pledge of the Senior Pledged Revenues ranking prior to the lien or to the pledge created by the Senior Indenture; or (g) the modification of priorities as between the Subordinate Bond Owners and either the First Lien Bond Owners or the Second Lien Bond Owners.

If at any time the District shall request the Trustee to enter into such supplemental indenture for any of the purposes described above, the Trustee shall, upon being satisfactorily indemnified with respect to fees and expenses, cause notice of the proposed execution of such supplemental indenture to be given by

mailing such notice by certified or registered first class mail to the Owners of the First Lien Bonds, the Second Lien Bonds and the Subordinate Bonds to the address shown on the registration books of the Trustee or by electronic means to DTC or its successors, as well as the rating agencies then maintaining a rating on the First Lien Bonds and Second Lien Bonds, at least 30 days prior to the proposed date of execution and delivery of any such supplemental indenture. Such notice shall briefly set forth the nature of the proposed supplemental indenture and shall state that copies thereof are on file at the principal corporate trust office of the Trustee for inspection by all Owners. If owner consent is required by the Senior Indenture, within 60 days or such longer period as shall be prescribed by the District following the giving of such notice, the requisite percentage of Owners at the time of the execution of any such supplemental indenture shall have consented to and approved the execution thereof as herein provided, the District may execute and deliver such supplemental indenture and no Owner of any First Lien Bond, Second Lien Bond or Subordinate Bond shall have any right to object to any of the terms and provisions contained therein, or the operation thereof, or in any manner to question the propriety of the execution thereof, or to enjoin or restrain the Trustee or the District from executing the same or from taking any action pursuant to the provisions thereof.

Discharge of the Lien of the Senior Indenture. If the District shall pay or cause to be paid to the Trustee, for the Owners of the Senior Bonds, the principal of and interest to become due thereon at the times and in the manner stipulated in the Senior Indenture, and if the District shall keep, perform, and observe all and singular the covenants and promises in the Senior Bonds and in the Senior Indenture expressed to be kept, performed, and observed by it or on its part, and if all fees and expenses of the Trustee required by the Senior Indenture to be paid shall have been paid, then these presents and the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Senior Indenture, and execute and deliver to the District such instruments in writing as shall be required to satisfy the lien thereof, and assign and deliver to the District any property at the time subject to the lien of the Senior Indenture which may then be in its possession, and deliver any amounts required to be paid to the District as provided in the Senior Indenture, except for moneys and Federal Securities held by the Trustee for the payment of the principal of, premium if any, and interest on the Senior Bonds.

Any Senior Bond shall, prior to the maturity or prior redemption thereof, be deemed to have been paid within the meaning and with the effect expressed in the Senior Indenture if, for the purpose of paying such Senior Bond (i) there shall have been deposited with the Trustee an amount sufficient, without investment, to pay the principal of, premium if any, and interest on such Senior Bond as the same becomes due at maturity or upon one or more designated prior redemption dates, or (ii) there shall have been placed in escrow and in trust with a commercial bank exercising trust powers, an amount sufficient (including the known minimum yield from Federal Securities in which such amount may be invested) to pay the principal of, premium if any, and interest on such Senior Bond, as the same becomes due at maturity or upon one or more designated prior redemption dates. The Federal Securities in any such escrow shall not be subject to redemption or prepayment at the option of the issuer, and shall become due at or prior to the respective times on which the proceeds thereof shall be needed, in accordance with a schedule established and agreed upon between the District and such bank at the time of the creation of the escrow, or the Federal Securities shall be subject to redemption at the option of the holders thereof to assure such availability as so needed to meet such schedule. The sufficiency of any such escrow funded with Federal Securities shall be verified by a certified public accountant.

Neither the Federal Securities, nor moneys deposited with the Trustee or placed in escrow and in trust pursuant to the Senior Indenture, nor principal or interest payments on any such Federal Securities shall be withdrawn or used for any purpose other than, and shall be held in trust for, the payment of the principal of and interest on the Senior Bonds; provided however, that any cash received from such principal or interest payments on such Federal Securities, if not then needed for such purpose, shall, to the extent

practicable, be reinvested subject to the provisions of the Senior Indenture in Federal Securities maturing at the times and in amounts sufficient to pay, when due, the principal of and interest on the Senior Bonds.

Prior to the investment or reinvestment of such moneys or such Federal Securities as therein provided, the Trustee shall receive and may rely upon: (i) an opinion of Bond Counsel experienced in matters arising under Section 103 of the Code and acceptable to the Trustee, that the investment or reinvestment of such moneys or such Federal Securities complies with the tax covenants of the Senior Indenture; and (ii) a report of a certified public accountant that the moneys or Federal Securities will be sufficient to provide for the payment of the principal of and interest on the Senior Bonds when due.

The release of the obligations of the District under the Senior Indenture shall be without prejudice to the rights of the Trustee to be paid reasonable compensation by the District for all services rendered by it thereunder and all its reasonable expenses, charges, and other disbursements incurred in the administration of the trust thereby created, the exercise of its powers, and the performance of its duties thereunder.

Continuing Role as Bond Registrar and Paying Agent. Notwithstanding the defeasance of the Senior Bonds prior to maturity and the discharge of the Senior Indenture, the Trustee shall continue to fulfill its obligations as Paying Agent and Bond Registrar under the Senior Indenture until the Senior Bonds are fully paid, satisfied, and discharged.

THE SUBORDINATE BONDS

The following is a summary of certain general provisions of the Subordinate Bonds. The definitions of certain words and terms and a summary of certain provisions of the Subordinate Indenture relating to the Subordinate Bonds are set forth in APPENDIX C to this Official Statement. Reference is hereby made to the Subordinate Indenture in its entirety for the detailed provisions pertaining to the Subordinate Bonds.

Description

The Subordinate Bonds will be dated as of their date of issuance and delivery, and will bear interest from their dated date computed on the basis of a 360-day year consisting of twelve 30-day months at the rates set forth on the inside cover of this Official Statement, payable to the extent of Subordinate Pledged Revenue available therefor annually on July 15 of each year beginning July 15, 2025 and, subject to the redemption provisions set forth below, will mature on the dates and in the amounts as set forth on the inside cover page of this Official Statement. Interest due on July 15, 2025 will be payable from capitalized interest.

Sources of Payment

The Subordinate Bonds are special sales tax revenue obligations of the District secured by and payable solely from and to the extent of the "**Subordinate Pledged Revenue**," consisting of a subordinate lien on the Revitalization Sales Tax subject only to the lien on the Senior Pledged Revenue. See "INTRODUCTION—Security and Sources of Payment for the Subordinate Bonds; Discharge on December 31, 2055."

Discharge on December 31, 2055

In accordance with the CCR Act and Section 59-12-402.5, Utah Code, the Revitalization Sales Tax is not permitted to be imposed for a period exceeding thirty (30) years from the first date of its imposition, i.e. January 1, 2025, through December 31, 2054 (the "Imposition Period"). Pursuant to the Participation

Agreement and the Capital Pledge Agreement, the City shall remit to the District Revitalization Sales Taxes imposed but not collected during the Imposition Period, including any delinquent taxes, through December 31, 2055. In the event that any amount of principal of or interest on the 2025C Bonds remains unpaid after the application of all Subordinate Pledged Revenue available therefor, the 2025C Bonds and the lien of the Subordinate Indenture securing payment thereof shall be deemed discharged on December 31, 2055 (the "Discharge Date"), the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Subordinate Indenture, and execute and deliver to the District such instruments in writing as shall be requested to evidence the same. Notwithstanding the foregoing, in the event that the Imposition Period for the Revitalization Sales Tax is legally extended beyond December 31, 2054, the Discharge Date may likewise be extended upon authorization by the District in its discretion as permitted by law. Upon such discharge, the Owners will have no recourse to the District or any property of the District for the payment of any amount of principal of or interest on the 2025C Bonds remaining unpaid.

"Cash flow" Nature of Subordinate Bonds

The Subordinate Bonds are structured as "cash flow" bonds, meaning that the Subordinate Indenture does not provide for any scheduled payments of principal on the Subordinate Bonds prior to the final stated maturity dates thereof. Rather, principal on the Subordinate Bonds is payable on each July 15 from, and to the extent of, Subordinate Pledged Revenue on deposit, if any, in the Subordinate Bond Fund annually, on June 2, in accordance with the terms of the Subordinate Indenture, pursuant to mandatory redemption more particularly described in " – Redemption – *Mandatory Redemption of Subordinate Bonds*." Furthermore, accrued unpaid interest on the Subordinate Bonds will compound annually on each July 15. Interest payable on the Subordinate Bonds in each Bond Year is to be paid prior to any payments of principal in such Bond Year. See "Summary of the Subordinate Indenture - Subordinate Bond Fund" in APPENDIX C to this Official Statement.

Notwithstanding any other provision in the Subordinate Indenture, in the event that any amount of principal of or interest on the Subordinate Bonds remains unpaid after the application of all Subordinate Pledged Revenue available therefor, the Subordinate Bonds and the lien of the Subordinate Indenture securing payment thereof is to be deemed discharged on December 31, 2055.

Authorized Denominations of the Subordinate Bonds

The Subordinate Bonds are being issued in "Authorized Denominations," defined in the Subordinate Indenture to mean the amount of $100,000 or any integral multiple of $1,000 in excess thereof, provided that no individual Subordinate Bond may be in an amount which exceeds the principal amount coming due on any maturity date. Notwithstanding the foregoing, in the event a Subordinate Bond is partially redeemed and the unredeemed portion is less than $100,000, such unredeemed portion of such Subordinate Bond may be issued in the largest possible denomination of less than $100,000, in an integral multiple of $1,000.

Payment of Principal and Interest

The Subordinate Bonds will bear interest at the rate set forth on the inside cover hereof (computed on the basis of a 360-day year of twelve 30-day months) payable annually July 15 of each year, commencing on July 15, 2025, from capitalized interest through July 15, 2025, and thereafter from available Subordinate Pledged Revenue, if any.

To the extent principal of any Subordinate Bond is not paid when due, such principal is to remain Outstanding until paid, subject to the bold paragraph below. To the extent interest on any Subordinate Bond

is not paid when due, such interest is to compound annually on each Interest Payment Date, at the rate then borne by the Subordinate Bond; provided however, that notwithstanding anything in the Subordinate Indenture to the contrary, the District is not to be obligated to pay more than the amount permitted by law.

Notwithstanding any other provision in the Subordinate Indenture, in the event that any amount of principal of or interest on the Subordinate Bonds remains unpaid after the application of all Subordinate Pledged Revenue available therefor, the Subordinate Bonds and the lien of the Subordinate Indenture securing payment thereof are to be deemed discharged on December 31, 2055, the estate and rights thereby granted are to cease, terminate, and be void, and thereupon the Trustee is to cancel and discharge the lien of the Subordinate Indenture, and execute and deliver to the District such instruments in writing as are to be required to evidence the same. Upon such discharge, the Owners will have no recourse to the District or any property of the District for the payment of any amount of principal of or interest on the Subordinate Bonds remaining unpaid.

The principal of and premium, if any, on the Subordinate Bonds are payable in lawful money of the United States of America to the Owner of each Subordinate Bond upon maturity or prior redemption and presentation at the principal office of the Trustee. The interest on any Subordinate Bond is payable to the person in whose name such Subordinate Bond is registered, at his address as it appears on the registration books maintained by or on behalf of the District by the Trustee, at the close of business on the Record Date, irrespective of any transfer or exchange of such Subordinate Bond subsequent to such Record Date and prior to such Interest Payment Date; provided that any such interest not so timely paid or duly provided for is to cease to be payable to the person who is the Owner thereof at the close of business on the Record Date and is to be payable to the person who is the Owner thereof at the close of business on a Special Record Date for the payment of any such unpaid interest. Such Special Record Date shall be fixed by the Trustee whenever moneys become available for payment of the unpaid interest, and notice of the Special Record Date shall be given to the Owners of the 2025C Bonds not less than ten (10) days prior to the Special Record Date by first-class mail to each such Owner as shown on the registration books kept by the Trustee on a date selected by the Trustee. Such notice shall state the date of the Special Record Date and the date fixed for the payment of such unpaid interest.

Interest payments shall be paid by check or draft of the Trustee mailed on or before the Interest Payment Date to the Owners. The Trustee may make payments of interest on any Subordinate Bond by such alternative means as may be mutually agreed to between the Owner of such Subordinate Bond and the Trustee; provided that the District shall not be required to incur any expenses in connection with such alternative means of payment.

To the extent principal of any Subordinate Bond is not paid when due, such principal shall remain Outstanding until paid, subject to the discharge provisions of the Subordinate Indenture. To the extent interest on any Subordinate Bond is not paid when due, such interest shall compound annually on each Interest Payment Date, at the interest rate then borne by the Subordinate Bond; provided however, that notwithstanding anything therein to the contrary, the District shall not be obligated to pay more than the amount permitted by law.

Payments for the principal of and interest on the Subordinate Bonds will be made as described in APPENDIX F—PROVISIONS REGARDING BOOK-ENTRY-ONLY SYSTEM.

Redemption

Optional Redemption of Subordinate Bonds. The 2025C Bonds are subject to redemption prior to maturity, at the option of the District, in whole on January 15, 2027, and in whole on any date thereafter, at

the redemption price of 100% of the principal amount redeemed, plus accrued interest thereon to the redemption date.

Mandatory Redemption of Subordinate Bonds. The Subordinate Bonds are subject to mandatory redemption in part by lot on July 15 of each year (each a "**Mandatory Redemption Date**"), commencing July 15, 2026, to the extent of moneys on deposit, if any, in the Subordinate Bond Fund on each June 2 prior to the applicable Mandatory Redemption Date, and subject to any minimum requirements with respect to the principal amount of Subordinate Bonds to be redeemed as set forth in the Subordinate Indenture, at a redemption price (the "**Mandatory Redemption Price**") equal to the principal amount thereof (with no redemption premium), plus accrued interest to the redemption date. The District acknowledges and agrees in the Subordinate Indenture that, notwithstanding anything therein to the contrary, borrowed moneys are not to be used for the purpose of redeeming principal of the Subordinate Bonds pursuant to the mandatory redemption described in the Subordinate Indenture.

General Redemption Provisions. If less than all of the Subordinate Bonds are to be redeemed on any prior redemption date, the Subordinate Bonds to be redeemed are to be selected by lot prior to the date fixed for redemption, in such manner as the Trustee is to determine. The Subordinate Bonds are to be redeemed only in integral multiples of $1,000. In the event a Subordinate Bond is of a denomination larger than $1,000, a portion of such Subordinate Bond may be redeemed, but only in the principal amount of $1,000 or any integral multiple thereof. Such Subordinate Bond is to be treated for the purpose of redemption as that number of Subordinate Bonds which results from dividing the principal amount of such Subordinate Bond by $1,000. In the event a portion of any Subordinate Bond is redeemed, the Trustee is to, without charge to the Owner of such Subordinate Bond, authenticate and deliver a replacement Subordinate Bond or Subordinate Bonds for the unredeemed portion thereof.

Notice and Effect of Redemption. In the event any of the Subordinate Bonds or portions thereof are called for redemption as aforesaid, notice thereof identifying the Subordinate Bonds or portions thereof to be redeemed will be given by the Trustee by mailing a copy of the redemption notice by first-class mail (postage prepaid) or by electronic means to DTC or its successors, not less than 20 days prior to the redemption date to the Owner of each Subordinate Bond to be redeemed in whole or in part at the address shown on the registration books maintained by or on behalf of the District by the Trustee. Failure to give such notice by mailing to any Owner or by electronic means to DTC or its successors, or any defect therein, is not to affect the validity of any proceeding for the redemption of other Subordinate Bonds as to which no such failure or defect exists. The redemption of the Subordinate Bonds may be contingent or subject to such conditions as may be specified in the notice, and if funds for the redemption are not irrevocably deposited with the Trustee or otherwise placed in escrow and in trust prior to the giving of notice of redemption, the notice is to be specifically subject to the deposit of funds by the District. All Subordinate Bonds so called for redemption will cease to bear interest after the specified redemption date, provided funds for their redemption are on deposit at the place of payment at that time.

Security for the Subordinate Bonds; Subordinate Lien

The Subordinate Bonds are "cash flow" subordinate special limited sales tax revenue obligations of the District secured by and payable solely from and to the extent of the Subordinate Pledged Revenue, consisting of a subordinate lien on the Revitalization Sales Tax subject only to the lien on the Senior Pledged Revenue.

Certain Subordinate Indenture Provisions

The following is a description of certain provisions of the Subordinate Indenture and is subject in all respects to the more specific provisions of the Subordinate Indenture. Capitalized terms used in this section are defined herein or in APPENDIX C—SUMMARY OF THE INDENTURES.

Creation of Funds and Accounts. Under the Subordinate Indenture, the funds and accounts created under the Senior Indenture are ratified, continued and confirmed. The Revenue Fund and the Rebate Fund shall be maintained by the Trustee for so long as the 2025C Bonds and any other Subordinate Bonds are Outstanding. The Working Capital Fund will be maintained by the Trustee in accordance with the provisions of the Senior Indenture and the Subordinate Indenture. Under the Subordinate Indenture, there are created and established the following funds and accounts, which are to be established with the Trustee and maintained by the Trustee in accordance with the provisions of the Subordinate Indenture:

(a) the Subordinate Project Fund and within the Subordinate Project Fund a 2025 Subordinate Project Account and a 2025 Subordinate Costs of Issuance Account; and

(b) the Subordinate Bond Fund.

Subordinate Project Fund. The Subordinate Project Fund is to be maintained by the Trustee in accordance with the terms of the Subordinate Indenture.

Draws from the 2025 Subordinate Project Account. So long as no Event of Default shall have occurred and be continuing, amounts in the 2025 Subordinate Project Account shall be released by the Trustee to the District in accordance with requisitions submitted to the Trustee in substantially the form set forth in the Subordinate Indenture, signed by the District Representative and certifying that all amounts drawn will be applied to pay or as reimbursement for payment made for Project Costs. The Trustee may rely conclusively on any such requisitions and shall not be required to make any independent investigation in connection therewith. The execution of any requisition by the District Representative shall constitute, unto the Trustee, an irrevocable determination that all conditions precedent to the payments requested have been completed.

Termination of 2025 Subordinate Project Account. Upon the receipt by the Trustee of a certificate of the District determining that all Project Costs paid or reimbursed with the proceeds of the Subordinate Bonds have been fully paid, and after all rebatable earnings have been transferred to the Rebate Fund, there shall remain any moneys in the 2025 Subordinate Project Account, such moneys shall be deposited and applied in the following order of priority: (1) to pay the Bond Requirements of any Outstanding 2025A Bonds or any other Outstanding First Lien Bonds due in such Bond Year and not paid; (2) to pay the Bond Requirements of any Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds due in such Bond Year and not paid; (3) to pay accrued interest on and/or redeem Outstanding 2025C Bonds or any other Outstanding Subordinate Bonds; (4) if there are no Subordinate Bonds Outstanding, to pay accrued interest on and/or redeem any Outstanding Second Subordinate Bonds, if any (5) to optionally redeem Outstanding 2025A Bonds or any other Outstanding First Lien Bonds; and (6) to optionally redeem Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds; provided, in the discretion of the District, such moneys may be applied for any other purpose that, based on an opinion of Bond Counsel addressed and delivered to the Trustee, will not adversely affect the exclusion of the interest on the 2025C Bonds from gross income for federal income tax purposes.

The Subordinate Project Fund shall terminate at such time as no further moneys remain therein.

Application of Subordinate Pledged Revenue. In accordance with the Participation Agreement and the Capital Pledge Agreement, not later than 30 following receipt by the City of the Pledged Revenues derived from the Revitalization Sales Tax, the City shall transfer to the Trustee such Pledged Revenues, less the City's Administrative Fee, as defined in the Participation Agreement, for deposit to the Revenue Fund. Notwithstanding the foregoing, prior to the District's issuance of the Senior Bonds and the Subordinate Bonds, all Revitalization Sales Tax collected by the City shall be held and maintained by the City in a separate City-managed account in accordance with the Participation Agreement. On the issue date of the Senior Bonds and the Subordinate Bonds, the City will transfer all accumulated Revitalization Sales Tax in the amount of $13,946,935.41 to the Trustee of which $520,404.00 will be deposited in the Working Capital Fund to fund District Administrative Expenses through March 1, 2029, and the remaining amount of $13,426,531.41 will be deposited in the Revenue Fund.

So long as the 2025C Bonds and any other Subordinate Bonds authorized by the Subordinate Indenture are Outstanding, the following payments shall be made from the Revenue Fund as provided below under "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS – Flow of Funds." See APPENDIX C—SUMMARY OF THE INDENTURES.

IN NO EVENT IS THE DISTRICT PERMITTED TO APPLY ANY PORTION OF THE SUBORDINATE PLEDGED REVENUE TO ANY OTHER PURPOSE, OR TO WITHHOLD ANY PORTION OF THE SUBORDINATE PLEDGED REVENUE.

Additional Covenants and Agreements of the District in the Subordinate Indenture. The District irrevocably covenants in the Subordinate Indenture and agrees with each and every Owner that so long as any of the Subordinate Bonds remain Outstanding:

(a) The District shall faithfully and punctually perform or cause to be performed all duties with respect to the Subordinate Pledged Revenues and the Project required by the Bond Act and the District Act, the Constitution and laws of the State and the various resolutions, ordinances and other instruments of the District, including, without limitation, the proper segregation of the proceeds of the Subordinate Bonds and the Subordinate Pledged Revenues and their application from time to time to the respective funds and accounts provided for in the Subordinate Indenture.

(b) The District will maintain its existence and is not to merge or otherwise alter its corporate structure in any manner or to any extent as might reduce the security provided for the payment of the Subordinate Bonds, and will continue to operate and manage the District and its facilities in an efficient and economical manner in accordance with all applicable laws, rules, and regulations.

(c) At least once a year the District will cause an audit to be performed of the records relating to its revenues and expenditures, and the District is to use its best commercially reasonable efforts to have such audit report completed no later than 200 days following the end of its Fiscal Year. The foregoing covenant is to apply notwithstanding any State law audit exemptions that may exist. In addition, at least once a year in the time and manner provided by law, the District will cause a budget to be prepared and adopted. Copies of the budget and the audit will be filed and recorded in the places, time, and manner provided by law.

(d) The District will carry general liability, public officials' liability, and such other forms of insurance coverage on insurable District property upon the terms and conditions, and in such amount, as in the judgment of the District will protect the District and its limited operations.

(e) Each District official or other person having custody of any District funds or responsible for the handling of such funds, is to be bonded or insured against theft or defalcation at all times.

(f) Other than as set forth in the Subordinate Indenture, the District covenants that it will not take any action, other than issuing refunding bonds permitted under the provisions of the Subordinate Indenture that could reduce the amounts available for Subordinate Bond Owners in any year, if any. The District covenants that it will not exercise any optional redemption of Subordinate Bonds that are not funded from refunding bond proceeds that could result in the reduction of amounts available for Subordinate Bond Owners in any year, if any.

No Additional Subordinate Bonds Other than Refunding Bonds. No additional indebtedness, bonds or notes of the District secured by a lien upon or a pledge of Subordinate Pledged Revenues ranking prior to the lien or to the pledge created by the Subordinate Indenture shall be created or incurred without the prior written consent of the Owners of 100% of the Outstanding First Lien Bonds, Second Lien Bonds, Subordinate Bonds and Second Subordinate Bonds, if any. No additional bonds or other obligations may be issued on a parity with the liens of the First Lien Bonds or the Second Lien Bonds, expect for the purpose of refunding such Outstanding bonds in accordance with the Senior Indenture.

No additional bonds or other obligations may be issued on a parity with the lien of the 2025C Bonds, except for the purpose of refunding, in whole, all Outstanding Subordinate Bonds. All Subordinate Bonds must be defeased in accordance with their terms and thus no longer Outstanding for purposes of the Subordinate Indenture. See APPENDIX C—SUMMARY OF THE INDENTURES.

Events of Default. The occurrence of any one or more of the following events or the existence of any one or more of the following conditions shall constitute an Event of Default under the Subordinate Indenture (whatever the reason for such event or condition and whether it shall be voluntary or involuntary or be effected by operation of law or pursuant to any judgment, decree, rule, regulation, or order of any court or any administrative or governmental body), and there shall be no default or Event of Default under the Subordinate Indenture except as follows:

(a) the District fails or refuses to apply the Pledged Revenues as required by the Subordinate Indenture;

(b) the District shall be in default in the due and punctual performance of any other representations, covenants, conditions, agreements and provisions contained in the Subordinate Bonds or in the Subordinate Indenture or in the Capital Pledge Agreement on its part to be performed, and if such default shall continue for thirty (30) days after written notice specifying such default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in principal amount of the 2025C Bonds and all other Subordinate Bonds then Outstanding; provided, that if such default cannot be fully remedied within such 30-day period, but can reasonably be expected to be fully remedied, such default shall not constitute an Event of Default if the District shall promptly upon receipt of such notice commence the curing of such default and shall thereafter prosecute and complete the same with due diligence and dispatch; and

(c) the District files a petition under the federal bankruptcy laws or other applicable bankruptcy laws seeking to adjust the obligation represented by the 2025C Bonds and any other Subordinate Bonds.

The District acknowledges in the Subordinate Indenture that due to the limited nature of the Pledged Revenue available to pay debt service on the Subordinate Bonds, the failure to pay the principal of or interest on the Bonds when due shall not, of itself, constitute an Event of Default thereunder.

Notwithstanding the foregoing, and subject to the provisions of the Subordinate Indenture with respect to the discharge of the lien of the Subordinate Indenture, except as otherwise provided in the Subordinate Indenture, if any Second Lien Bonds are Outstanding, no Event of Default (other than an Event of Default described in (a) above) will exist or may be declared with respect to the Subordinate Bonds and no remedies shall be pursued by the Trustee on behalf of the Owners of Subordinate Bonds or directly by the Owners of the Subordinate Bonds and, provided further, that upon the occurrence of an Event of Default described in (a) above, the Trustee on behalf of such Subordinate Bond Owners or such Subordinate Owners' remedy shall be to specifically enforce the provisions of the Subordinate Indenture to provide for payment of principal and interest on the Subordinate Bonds.

WITHOUT LIMITING THE FOREGOING, AND NOTWITHSTANDING ANY OTHER PROVISION CONTAINED IN THE SUBORDINATE INDENTURE, THE DISTRICT ACKNOWLEDGED AND AGREED IN THE SUBORDINATE INDENTURE THAT THE APPLICATION OF ANY PORTION OF THE SUBORDINATE PLEDGED REVENUE TO ANY PURPOSE OTHER THAN DEPOSIT WITH THE TRUSTEE IN ACCORDANCE WITH THE PROVISIONS THEREOF CONSTITUTES A VIOLATION OF THE TERMS OF THE SUBORDINATE INDENTURE AND A BREACH OF THE COVENANTS MADE THEREUNDER FOR THE BENEFIT OF THE OWNERS OF THE SUBORDINATE BONDS, WHICH SHALL ENTITLE THE TRUSTEE TO PURSUE, ON BEHALF OF THE OWNERS OF THE SUBORDINATE BONDS, ALL AVAILABLE ACTIONS AGAINST THE DISTRICT IN LAW OR IN EQUITY, AS MORE PARTICULARLY DESCRIBED IN THE SUBORDINATE INDENTURE. THE DISTRICT FURTHER ACKNOWLEDGED AND AGREED IN THE SUBORDINATE INDENTURE THAT THE APPLICATION OF SUBORDINATE PLEDGED REVENUE IN VIOLATION OF THE COVENANTS THEREOF WILL RESULT IN IRREPARABLE HARM TO THE OWNERS OF THE SUBORDINATE BONDS. IN NO EVENT SHALL ANY PROVISION THEREOF BE INTERPRETED TO PERMIT THE DISTRICT TO RETAIN ANY PORTION OF THE SUBORDINATE PLEDGED REVENUE, EXCEPT AS PROVIDED THEREIN WITH RESPECT TO THE DEPOSIT OF REVITALIZATION SALES TAX TO THE WORKING CAPITAL FUND.

Remedies on Occurrence of Event of Default. Upon the occurrence and continuance of an Event of Default, the Trustee shall have the following rights and remedies which may be pursued:

(a) *Receivership*. Upon the filing of a bill in equity or other commencement of judicial proceedings to enforce the rights of the Trustee and of the Owners, the Trustee shall be entitled as a matter of right to the appointment of a receiver or receivers of the Trust Estate, and of the revenues, income, product, and profits thereof pending such proceedings, subject however, to constitutional limitations inherent in the sovereignty of the District; but notwithstanding the appointment of any receiver or other custodian, the Trustee shall be entitled to the possession and control of any cash, securities, or other instruments at the time held by, or payable or deliverable under the provisions of the Subordinate Indenture to, the Trustee.

(b) *Suit for Judgment*. The Trustee may proceed to protect and enforce its rights and the rights of the Owners under the Bond Act, the District Act, the Bonds, the Bond Resolution, the Subordinate Indenture, and any provision of law by such suit, action, or special proceedings as the Trustee, being advised by counsel, shall deem appropriate.

(c) *Mandamus or Other Suit*. The Trustee may proceed by mandamus or any other suit, action, or proceeding at law or in equity, to enforce all rights of the Owners.

No Right of Acceleration. Notwithstanding anything in the Subordinate Indenture to the contrary, there shall be no right of acceleration with respect to any obligations secured by the Pledged Revenues, including the First Lien Bonds, the Second Lien Bonds, the Subordinate Bonds and all other obligations secured by the Pledged Revenues. Any Event of Default with respect to one series of bonds shall not cause an event of default with respect to any other series of bonds unless such event or condition on its own constitutes an Event of Default with respect to such other series of bonds pursuant to the Subordinate Indenture. The remedies provided in the Subordinate Indenture with respect to using the moneys on deposit in funds and accounts shall be limited to the funds and accounts pledged under the Subordinate Indenture to the applicable series of bonds with respect to which an Event of Default exists.

As long as any First Lien Bonds or Second Lien Bonds are Outstanding, neither the Trustee nor the Subordinate Bond Owners shall have the right to institute or exercise any remedies provided for in the Subordinate Indenture during an Event of Default; provided, however, that the Trustee may, and upon the written direction of the Owners of a majority in aggregate principal amount of Subordinate Bonds then Outstanding, shall institute action against the District to specifically enforce any Event of Default with respect to (1) the District's failure to apply the Pledged Revenue as required by the Subordinate Indenture, and (2) the issuance of additional bonds if such Event of Default shall continue for thirty (30) days after written notice specifying such Event of Default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in aggregate principal amount of Subordinate Bonds then Outstanding.

No recovery of any judgment by the Trustee shall in any manner or to any extent affect the lien of the Subordinate Indenture or any rights, powers, or remedies of the Trustee under the Subordinate Indenture, or any lien, rights, powers, and remedies of the Owners of the 2025C Bonds or any other Subordinate Bonds, but such lien, rights, powers, and remedies of the Trustee and of the Owners shall continue unimpaired as before.

Majority of Consent Parties May Control Proceedings. The Consent Parties of not less than a majority in principal amount of the Subordinate Bonds then Outstanding, shall have the right, at any time, to the extent permitted by law, by an instrument or instruments in writing executed and delivered to the Trustee, to direct the time, method, and place of conducting all proceedings to be taken in connection with the enforcement of the terms and conditions of the Subordinate Indenture, or for the appointment of a receiver, and any other proceedings under the Subordinate Indenture; provided that such direction shall not be otherwise than in accordance with the provisions of the Subordinate Indenture; and provided further that at its option the Trustee shall be indemnified as provided in the Subordinate Indenture.

No Owner of any 2025C Bonds or any other Subordinate Bonds shall have any right to institute any suit, action, or proceeding in equity or at law for the enforcement of the Subordinate Indenture or for the execution of any trust thereof or for the appointment of a receiver or any other remedy thereunder, unless (a) a default has occurred of which the Trustee has been notified or is deemed to have notice as provided in the Subordinate Indenture; (b) such default shall have become an Event of Default; (c) the Owners of not less than 10% in aggregate principal amount of Subordinate Bonds then Outstanding adversely affected thereby shall have made written request to the Trustee and shall have offered reasonable opportunity either to proceed to exercise the powers granted in the Subordinate Indenture or to institute such action, suit, or proceedings in their own name, and shall have also offered to the Trustee indemnity as provided in the Subordinate Indenture; and (d) the Trustee shall thereafter fail or refuse to exercise the powers granted in the Subordinate Indenture, or to institute such action, suit, or proceeding in its own name; such notification, request, and offer of indemnity are declared in every case at the option of the Trustee to

be conditions precedent to any action or cause of action for the enforcement of the Subordinate Indenture, or for the appointment of a receiver or for any other remedy thereunder; it being understood and intended that no one or more Owners of 2025C Bonds or other Subordinate Bonds shall have any right in any manner whatsoever to affect, disturb, or prejudice the lien of the Subordinate Indenture by his, her, its, or their action, or to enforce any right thereunder except in the manner provided in the Subordinate Indenture and that all proceedings at law or in equity shall be instituted, had, and maintained in the manner provided in the Subordinate Indenture.

Waivers of Events of Default. The Trustee shall waive any Event of Default under the Subordinate Indenture and its consequences, upon the written request of the Consent Parties of not less than a majority in principal amount of the Subordinate Bonds then Outstanding; provided however, that there shall not be waived without the consent of the Consent Parties of 100% of the Subordinate Bonds Outstanding, as to any default with respect to the District's refusal or failure to apply the Pledged Revenues as required by the Subordinate Indenture. In case of any such waiver, or in case any proceedings taken by the Trustee on account of any such default shall have been discontinued or abandoned or determined adversely to the Trustee, then in every such case the District, the Trustee, and the Owners shall be restored to their former positions and rights under the Subordinate Indenture respectively, but no such waiver or rescission shall extend to any subsequent or other default, or impair any right consequent thereon.

Subordinate Indenture Supplements Not Requiring Consent. Subject to the provisions of the Senior Indenture, the District and the Trustee may, without the consent of or notice to the Consent Parties of any Subordinate Bonds, enter into such indentures supplemental thereto, which supplemental indentures shall thereafter form a part thereof, for any one or more of the following purposes: (a) to cure any ambiguity, to cure, correct, or supplement any formal defect or omission or inconsistent provision contained in the Subordinate Indenture, to make any provision necessary or desirable due to a change in law, to make any provisions with respect to matters arising under the Subordinate Indenture, or to make any provisions for any other purpose if such provisions are necessary or desirable and do not materially adversely affect the interests of the Owners of the Subordinate Bonds; (b) to grant or confer upon the Trustee for the benefit of the Owners any additional rights, remedies, powers, or authority that may lawfully be granted to or conferred upon the Owners or the Trustee; (c) to add to the conditions, limitations and restrictions thereafter to be observed by the District under the provisions of the Subordinate Indenture; (d) to add to the covenants and agreements of the District in the Subordinate Indenture other covenants and agreements thereafter to be observed by the District or to surrender any right or power therein reserved or conferred upon the District; (e) to provide for the issuance of additional Subordinate refunding bonds; (f) to preserve the excludability of interest on the Subordinate Bonds from gross income for purposes of federal income taxes, or to change the tax covenants set forth in the Subordinate Indenture pursuant to an opinion of Bond Counsel that such action will not adversely affect such excludability; (g) to evidence the appointment of a separate Trustee or the succession of a new Trustee under the Subordinate Indenture; (h) to modify, eliminate or add to the provisions of the Subordinate Indenture to such extent as shall be necessary to effect the qualification of the Subordinate Indenture under the Trust Indenture Act of 1939, as amended, or under any similar federal statute thereafter enacted, or to permit the qualification of the 2025C Bonds and any other Subordinate Bonds for sale under the securities laws of the United States or any state of the United States; and (i) to make any other change that would not materially adversely affect the security for the Subordinate Bonds.

Subordinate Indenture Supplements Requiring Consent. Except for supplemental indentures delivered as described above, and subject to the provisions of the Subordinate Indenture, the Consent Parties with respect to not less than a majority (or for modifications of provisions thereof which require the consent of a percentage of Owners or Consent Parties higher than a majority, such higher percentage) in aggregate principal amount of the 2025C Bonds and any other Subordinate Bonds then Outstanding shall have the right, from time to time, to consent to and approve the execution by the District and the Trustee of such indenture or indentures supplemental thereto as shall be deemed necessary or desirable by the District for

the purpose of modifying, altering, amending, adding to, or rescinding, in any particular, any of the terms or provisions contained in the Subordinate Indenture.

Notwithstanding the foregoing, without the consent of the Consent Parties of the Subordinate Bonds adversely affected thereby, nothing therein contained shall permit, or be construed as permitting: (a) a change in the maturity of the principal amount of any Outstanding Subordinate Bond or any installment of interest thereon, or change in the optional or mandatory redemption provisions applicable thereto; (b) a reduction in the principal amount of any Subordinate Bond, or the rate of interest thereon; (c) the creation of a lien upon or a pledge of Subordinate Pledged Revenues ranking prior to the lien or to the pledge created by the Subordinate Indenture, other than First Lien Bonds and Second Lien Bonds; (d) a reduction in the principal amount or percentages or otherwise affecting the description of Subordinate Bonds or the consent of the Consent Parties of which is required for any such modification or amendment; (e) the establishment of priorities as between Subordinate Bonds issued and Outstanding under the provisions of the Subordinate Indenture and First or Second Lien Bonds issued and Outstanding under the provisions of the Senior Indenture; or (f) the modifications of or otherwise prejudicially affect the rights or privileges of the Owners of less than all of the Subordinate Bonds then Outstanding.

Notwithstanding the foregoing, without the consent of the Consent Parties of any Second Subordinate Bonds, if any, adversely affected thereby, nothing therein contained shall permit, or be construed as permitting: (a) any modification of maturity dates, redemption provisions or interest rates of Subordinate Bonds that could reduce amounts available to the Second Subordinate Bond Owners in any year; (b) any change which would permit the issuance of additional obligations with a lien on Pledged Revenues prior and superior to the lien thereon of the Second Subordinate Bonds, other than Subordinate Bonds issued for refunding purposes in accordance with the provisions of the Subordinate Indenture; (c) any changes to the refunding bonds provisions in the Subordinate Indenture that could reduce the amounts available to the Second Subordinate Bond Owners in any year; (d) any amendment to the covenants of the District that could reduce the amount available for the Second Subordinate Bond Owners in any year; (e) any modification to rights and remedies of the Subordinate Bond Owners which (1) permit acceleration, (2) increase amounts payable to the Subordinate Bond Owners prior to the Second Subordinate Bond Owners, or (3) grant additional rights to the Subordinate Bond Owners that have a material adverse impact on the Second Subordinate Bond Owners; (f) the creation of a lien upon or a pledge of the Senior Pledged Revenues ranking prior to the lien or to the pledge created by the Senior Indenture; or (g) the modification of priorities as between the Second Subordinate Bond Owners and the Subordinate Bond Owners.

If at any time the District shall request the Trustee to enter into such supplemental indenture for any of the purposes described above, the Trustee shall, upon being satisfactorily indemnified with respect to fees and expenses, cause notice of the proposed execution of such supplemental indenture to be given by mailing such notice by certified or registered first class mail to the Owners of the Subordinate Bonds and the Second Subordinate Bonds, if any, to the address shown on the registration books of the Trustee or by electronic means to DTC or its successors, at least 30 days prior to the proposed date of execution and delivery of any such supplemental indenture. Such notice shall briefly set forth the nature of the proposed supplemental indenture and shall state that copies thereof are on file at the principal corporate trust office of the Trustee for inspection by all Owners. If owner consent is required in accordance with the Subordinate Indenture, within 60 days or such longer period as shall be prescribed by the District following the giving of such notice, the requisite percentage of Owners at the time of the execution of any such supplemental indenture shall have consented to and approved the execution thereof as therein provided, the District may execute and deliver such supplemental indenture and no Owner of any Subordinate Bond or Second Subordinate Bond shall have any right to object to any of the terms and provisions contained therein, or the operation thereof, or in any manner to question the propriety of the execution thereof, or to enjoin or restrain the Trustee or the District from executing the same or from taking any action pursuant to the provisions thereof.

Discharge of the Lien of the Subordinate Indenture. If the District shall pay or cause to be paid to the Trustee, for the Owners of the Subordinate Bonds, the principal of and interest to become due thereon at the times and in the manner stipulated in the Subordinate Indenture, and if the District shall keep, perform, and observe all and singular the covenants and promises in the Subordinate Bonds and in the Subordinate Indenture expressed to be kept, performed, and observed by it or on its part, and if all fees and expenses of the Trustee required by the Subordinate Indenture to be paid shall have been paid, then these presents and the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Subordinate Indenture, and execute and deliver to the District such instruments in writing as shall be required to satisfy the lien thereof, and assign and deliver to the District any property at the time subject to the lien of the Subordinate Indenture which may then be in its possession, and deliver any amounts required to be paid to the District as provided in the Subordinate Indenture, except for moneys and Federal Securities held by the Trustee for the payment of the principal of, premium if any, and interest on the Subordinate Bonds.

Any Subordinate Bond shall, prior to the maturity or prior redemption thereof, be deemed to have been paid within the meaning and with the effect expressed in the Subordinate Indenture if, for the purpose of paying such Bond (i) there shall have been deposited with the Trustee an amount sufficient, without investment, to pay the principal of, premium if any, and interest on such Bond as the same becomes due at maturity or upon one or more designated prior redemption dates, or (ii) there shall have been placed in escrow and in trust with a commercial bank exercising trust powers, an amount sufficient (including the known minimum yield from Federal Securities in which such amount may be invested) to pay the principal of, premium if any, and interest on such Bond, as the same becomes due at maturity or upon one or more designated prior redemption dates. The Federal Securities in any such escrow shall not be subject to redemption or prepayment at the option of the issuer, and shall become due at or prior to the respective times on which the proceeds thereof shall be needed, in accordance with a schedule established and agreed upon between the District and such bank at the time of the creation of the escrow, or the Federal Securities shall be subject to redemption at the option of the holders thereof to assure such availability as so needed to meet such schedule. The sufficiency of any such escrow funded with Federal Securities shall be verified by a certified public accountant.

Neither the Federal Securities, nor moneys deposited with the Trustee or placed in escrow and in trust pursuant to the Subordinate Indenture, nor principal or interest payments on any such Federal Securities shall be withdrawn or used for any purpose other than, and shall be held in trust for, the payment of the principal of and interest on the Subordinate Bonds; provided however, that any cash received from such principal or interest payments on such Federal Securities, if not then needed for such purpose, shall, to the extent practicable, be reinvested subject to the provisions of the Subordinate Indenture in Federal Securities maturing at the times and in amounts sufficient to pay, when due, the principal of and interest on the Subordinate Bonds.

Prior to the investment or reinvestment of such moneys or such Federal Securities as therein provided, the Trustee shall receive and may rely upon: (i) an opinion of Bond Counsel experienced in matters arising under Section 103 of the Code and acceptable to the Trustee, that the investment or reinvestment of such moneys or such Federal Securities complies with the tax covenants of the Subordinate Indenture; and (ii) a report of a certified public accountant that the moneys or Federal Securities will be sufficient to provide for the payment of the principal of and interest on the Subordinate Bonds when due.

The release of the obligations of the District under the Subordinate Indenture shall be without prejudice to the rights of the Trustee to be paid reasonable compensation by the District for all services rendered by it thereunder and all its reasonable expenses, charges, and other disbursements incurred in the administration of the trust thereby created, the exercise of its powers, and the performance of its duties thereunder.

Continuing Role as Bond Registrar and Paying Agent. Notwithstanding the defeasance of the Subordinate Bonds prior to maturity and the discharge of the Subordinate Indenture, the Trustee shall continue to fulfill its obligations as Paying Agent and Bond Registrar under the Subordinate Indenture until the Subordinate Bonds are fully paid, satisfied, and discharged.

SECURITY AND SOURCES OF PAYMENT FOR THE BONDS

The Bonds are special, limited obligations of the District, payable solely by a pledge and assignment of the Revenues and moneys on deposit in the funds and accounts (other than the Rebate Fund) established under the Senior Indenture and the Subordinate Indenture, as applicable. The Bonds do not constitute a general obligation indebtedness or a pledge of the ad valorem taxing power or the full faith and credit of the District, and are not obligations of the State or any other agency or other political subdivision or entity or the State. The District will not mortgage or grant any security interest in the improvements financed or refinanced with the proceeds of the Bonds or any portion thereof to secure payments of the Bonds.

Revitalization Sales Tax

The City adopted a 0.5% sales and use tax on October 1, 2024, for a period of thirty (30) years (commencing on January 1, 2025, through December 31, 2054) as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5. The City currently levies the Revitalization Sales Tax at the maximum rate permitted by State law. The Revitalization Sales Tax is a new tax levied at the same rate and on the same goods and services as the previously imposed Correctional Facility Tax described below. For these reasons, the District reasonably expects the City's historical Correctional Facility Tax revenues to be a reasonable proxy for what the Revitalization Sales Tax revenues would have been if levied historically by the City.

In general, the Revitalization Sales Tax is collected by the Utah State Tax Commission (the "Tax Commission") and distributed to the City on a monthly basis. The City's Administrative Fee will be deducted from the Revitalization Sales Tax received by the City before transferring the remaining amount to the Trustee. See "INTRODUCTION – Security and Sources of Payment for the Senior Bonds; Discharge on December 31, 2055," SECURITY AND SOURCES OF PAYMENT FOR THE BONDS – Flow of Funds," and "—Historical Correctional Facility Tax Revenues" below.

The District notes the following minor factors in comparing the Correctional Facility Tax to the Revitalization Sales Tax:

First, pursuant to Section 59-12-402.5 of the Utah Code, the Revitalization Sales Tax shall not include any of such tax revenues collected in the Utah Fairpark Area Investment and Restoration District (the "Fairpark District") created by way of House Bill 562 passed in the 2024 general session of the Utah State Legislature (codified in Section 11-70-201 of the Utah Code). The Fairpark District was created to help oversee major redevelopment planned for property the Larry H. Miller Company owns from the Jordan River to Redwood Road and North Temple to I-80, also known as the Power District (approximately 93 acres). It also sets up the framework for state funding of a possible Major League Baseball stadium to incentivize a new team via relocation or expansion. The Revitalization Sales Tax collected in the Fairpark District is remitted back to the Fairpark District to assist with qualified redevelopment there and is not included in Pledged Revenues. To date the Fairpark District has generated Revitalization Sales Tax revenues of only $4,150, $8,406 and $7,991 for the months of January, February, and March, respectively, in 2025.

Second, as is common with newly imposed sales taxes, there can be some minor vendors that fail to appropriately collect the same in the first months of operation. There can also be minor differences in collections and remittance due to whether a business is required to file monthly, quarterly or annual sales tax returns. Accordingly, since the Revitalization Sales Tax is not as mature as the Correctional Facility Tax, there are some immaterial differences in the monthly collections not attributable to the amounts remitted to the Fairpark District. For the months of January and February in 2025, the difference between the Correctional Facility Tax and the Revitalization Sales Tax (after including the amount of Revitalization Sales Tax sent to the Fairpark District) was only $92,670 and $59,923, respectively.

Despite these minor factors, the District does not expect any material differences between Correctional Facility Tax collection and Revitalization Sales Tax over time except as may be attributable to material increases in sales tax activity in the Fairpark District. Furthermore, the District notes the relationship between the Fairpark District objectives and legislative negotiations were simultaneous with the imposition of the Revitalization Sales Tax for the Project. Future redirection to other City areas from the Revitalization Sales Tax are not expected and would likely be challenged by the District. See "INTRODUCTION - State Constitution "Contract Clause" Protections" herein.

Historical Revitalization Sales Tax Revenues

The following table shows the monthly amounts of the Revitalization Sales Tax received by the City in 2025.

Month	Revitalization Sales Tax Revenues†	Change from Prior Month
January††	$4,194,415	
February	$4,224,583	$30,168
March	$5,527,937	$1,303,354

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† The Revitalization Sales Tax collection is shown for January 2025 through March 2025 for illustrative purposes only.

†† The City began collecting the Revitalization Sales Tax on January 1, 2025.

(Source: The Utah State Tax Commission)

Local Sales and Use Tax

General. Sales tax is imposed on the amount paid or charged for sales of tangible personal property in the State and for services rendered in the State for the repair, renovation or installation of tangible personal property. Use tax is imposed on the amount paid or charged for the use, storage or other consumption of tangible personal property in the State, including services for the repair, renovation or installation of such tangible personal property. Sales and use taxes also apply to leases and rentals of tangible personal property if the tangible personal property is in the State, the lessee takes possession in the State or the tangible personal property is stored, used or otherwise consumed in the State. Sales and use taxes, including the Revitalization Sales Tax, are collected by the Tax Commission and distributed on a monthly basis to each county, city and town.

Local Sales and Use Taxes. The Local Sales and Use Tax Act provides that each city and town in the State may levy a local sales and use tax of up to 1.00% on the purchase price of taxable goods and services. The legislative intent contained in the Local Sales and Use Tax Act is to provide an additional source of revenues to municipalities that is to be used to finance their capital outlay requirements and to service their bonded indebtedness. The City has levied the Local Sales and Use Taxes at the maximum legal rate of 1.00%. The distributions of the Local Sales and Use Taxes to the City from the Tax Commission are

based on a formula, which provides that (a) 50% of each dollar of sales tax collections will be distributed on the basis of the population of the local government and (b) 50% of each dollar of sales tax collections will be distributed on the basis of the point of sale (the "Redistribution Formula"). Under the Redistribution Formula, the City has historically been a net contributor to other cities of Local Sales and Use Taxes. The Redistribution Formula is not applicable to the Revitalization Sales Tax, therefore historical trends of the City's collection of Local Sales and Use Taxes should be reviewed in light of this distinction. See "RISK FACTORS—Uncertainty of Economic Activity and Revitalization Sales Taxes" and "—Legislative Changes to Sales Tax Statutes," herein.

In addition to the sales and use taxes described above, counties and cities in the State are authorized to impose sales and use taxes to fund a public transportation system, for zoo, art and parks purposes and at the option of the county for general fund purposes of the county, which sales and use taxes do not constitute Revitalization Sales Tax. Salt Lake County (the "**County**") currently imposes sales and use taxes to fund public transportation, zoo, art and parks purposes, and for general fund purposes of the County. **None of these taxes are pledged as a component of Revitalization Sales Tax.** The total sales and use tax imposed in the City (other than certain specialty taxes, including a motor vehicle rental tax, a transient room tax, and a tourism restaurant tax imposed by the County) is 8.25%.

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Historical Local Sales and Use Tax Revenues

The following table shows the amounts of the Local Sales and Use Tax received by the City for the City's fiscal year ending June 30, 2004-2024. Collections for the City's fiscal year ending June 30, 2025, are currently budgeted to be $94,000,000.

City Fiscal Year	Local Sales and Use Tax Revenues (in millions)†	Change from Prior Year
2024	$91.02	0.8%
2023	90.25	4.3
2022	86.53	17.3
2021	73.78	11.2
2020	66.36	2.3
2019	64.90	4.9
2018	61.86	8.3
2017	57.12	6.4
2016	53.67	3.7
2015	51.76	5.8
2014	48.93	2.6
2013	47.69	4.6
2012	45.59	9.5
2011	41.64	4.8
2010	39.74	-4.3
2009	41.53	-10.6
2008	46.48	1.7
2007	45.69	8.4
2006	42.15	9.7
2005	38.44	7.0
2004	35.92	-2.3

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† The Local Sales and Use Tax collection is shown for the City's fiscal years 2004 through 2024 for illustrative purposes only.

(Source: The City.)

Correctional Facility Tax

In connection with the construction of a new State prison in the northwestern quadrant of the City, the City was authorized under the Impacted Communities Taxes Act to impose a tax at a rate not to exceed 0.5% with some exemptions for certain goods and services as compared to the Local Sales and Use Taxes (see "—Correctional Facility Tax/Revitalization Sales Tax/Local Sales and Use Tax Comparisons" below for details). By an ordinance passed on May 1, 2018, the City approved the levy of the Correctional Facility Tax beginning October 1, 2018. While distributions of Local Sales and Use Taxes are subject to the Redistribution Formula, the full amount of the Correctional Facility Tax collection is distributed to the City without the Redistribution Formula. The District reasonably expects the City's historical Correctional Facility Tax revenues to be a proxy for what the Revitalization Sales Tax revenues would have been if levied historically by the City.

Historical Correctional Facility Tax Revenues

The following table shows the amounts of the Correctional Facility Tax received by the City for the City's fiscal year ending June 30, 2020-2024. Collections for the City's fiscal year ending June 30, 2025 are currently budgeted to be $56,484,479. The District expects the City's historical Correctional Facility Tax revenues to be a reasonable proxy for what the Revitalization Sales Tax revenues would have been if levied historically. Correctional Facility Tax Revenues for fiscal year-to-date 2025, from July 1 through December 31, 2024, were $27,662,091, a 2.6% increase for the same period in fiscal year 2024 which were $26,959,054. On a calendar year basis, Correctional Facility Tax Revenues from January 1 through December 31, 2024, were $54,854,540, a 2.66% increase for the same period in calendar year 2023 which were $53,435,667.

City Fiscal Year	Correctional Facility Tax Revenues (in millions)†	Change from Prior Year
2024	$54.15	0.2%
2023	54.04	7.5
2022	50.26	25.4
2021	40.10	2.9
2020	38.96	–

† The Correctional Facility Tax collection is shown for years 2020 through 2024 for illustrative purposes only.

(Source: The City.)

Correctional Facility Tax/Revitalization Sales Tax/Local Sales and Use Tax Comparisons

	State Correctional Facility Sales and Use Tax (SCF) (59-12-402.1)	City Revitalization Sales and Use Tax (CCR) (59-12-402.5)	Local Sales and Use Tax Act (59-12-201-218)
What is taxable: (The same items that are taxable under the Sales and Use Tax Act)	(4) Except as provided in Subsection (5), a tax under this section shall be imposed on the transactions described in Subsection 59-12-103(1) within the city or town.	(4) Except as provided in Subsection (5), the local government shall impose a tax under this section on the transactions described in Subsection 59-12-103(1).	(1) The tax ordinance adopted pursuant to this part shall impose a tax upon those transactions listed in Subsection 59-12-103(1).
What is not taxable:	(5) A city or town may not impose a tax under this section on: (a) the sale of: (i) a motor vehicle; (ii) an aircraft; (iii) a watercraft; (iv) a modular home; (v) a manufactured home; or (vi) a mobile home; (b) the sales and uses described in Section 59-12-104 to the extent the	(5) A local government may not impose a tax under this section on: (a) the sale of: (i) a motor vehicle; (ii) an aircraft; (iii) a watercraft; (iv) a modular home; (v) a manufactured home; or (vi) a mobile home; (b) the sales and uses described in Section 59-12-104 to the extent the	(2) (b) Notwithstanding Subsection (2)(a), a tax ordinance under this Subsection (2) shall include a provision prohibiting a county, city, or town from imposing a tax under this section on the sales and uses described in Section 59-12-104 to the extent the sales and uses are exempt from taxation under Section 59-12-104.

	sales and uses are exempt under Section 59-12-104; and (c) except as provided in Subsection (7), amounts paid or charged for food and food ingredients.	sales and uses are exempt from taxation under Section 59-12-104; and (c) except as provided in Subsection (7), amounts paid or charged for food and food ingredients.	(Section 59-12-104 lists the items exempt from taxation under the Sales and Use Tax Act)
The SCF and the CCR follow the same taxation on food as the Statewide Sales Tax.	(7) A city or town that imposes a tax under this section shall impose the tax on the purchase price or sales price for amounts paid or charged for food and food ingredients if the food and food ingredients are sold as part of a bundled transaction attributable to food and food ingredients and tangible personal property other than food and food ingredients.	(7) A local government that imposes a tax under this section shall impose the tax on the purchase price or the sales price for amounts paid or charged for food and food ingredients if the food and food ingredients are sold as part of a bundled transaction attributable to food and food ingredients and tangible personal property other than food and food ingredients.	All food items are taxed under the Local Sales and Use Tax.

Collections. The Revitalization Sales Tax is collected by the Tax Commission and distributed on a monthly basis to the City. See "RISK FACTORS—Legislative Changes to Sales Tax Statutes," herein.

The City is not legally allowed to provide actual dollar figures of sales and use tax collections by specific businesses. However, during the Fiscal Year Ended June 30, 2024, of the top 50 businesses, only eight of such businesses generated at least 1% of the total Sales Taxes collected in the City. Together, these eight businesses generated 12.68% of the Sales Tax revenues generated in the City. No single business accounted for more than 2.67% of the City's total Sales Tax revenues. The five largest industry segments collecting the sales and use taxes include automotive, eating and drinking establishments, grocery stores, non-durable goods and retail/miscellaneous.

Unpaid Sales and Use Taxes. A sales and use tax, including the Revitalization Sales Tax, due and unpaid constitutes a debt due from the vendor and may be collected, together with interest, penalty, and costs, by appropriate judicial proceeding within three years after the vendor is delinquent. Furthermore, if a sales and use tax is not paid when due and if the vendor has not followed the procedures to object to a notice of deficiency, the Tax Commission may issue a warrant directed to the sheriff of any county commanding him or her to levy upon and sell the real and personal property of a delinquent taxpayer found within such county for the payment of the tax due. The amount of the warrant shall have the force and effect of an execution against all personal property of the delinquent taxpayer and shall become a lien upon the real property of the delinquent taxpayer in the same manner as a judgment duly rendered by any district court.

First-Lien Pledge

In accordance with the Pledge Agreement, the City covenants (among other things not relevant to the Bonds) to (i) impose the Revitalization Sales Tax, (ii) enforce collection of the Revitalization Sales Tax, and (iii) pay the Revitalization Sales Tax in accordance with the terms thereof.

Under the Pledge Agreement, the City assigns to the District (or, in accordance with the terms of the Pledge Agreement, the Trustee on behalf of the District) all of its right, title and interest in and to that portion of the Revitalization Sales Tax deposited with SEG as described in the Participation Agreement (referred to therein as the "Revitalization Sales Tax Revenues") and pledges the same to the District (or, in accordance with the Pledge Agreement, the Trustee on behalf of the District) for the purpose of paying and securing the Bonds. The lien of such pledge on the Revitalization Sales Tax Revenues is to constitute a first priority, with the District receiving a first-lien pledge of available Revitalization Sales Taxes towards the Bonds up to the qualifying amount thereof set forth in the Participation Agreement.

In accordance with the Participation Agreement, the maximum amount of the Revitalization Sales Tax that may be used for the Project or for the benefit of the Developer is to be an amount equal to the debt service on the Bonds. In accordance with the Participation Agreement, such Bonds may finance up to $900,000,000 in net project proceeds. Under the Participation Agreement, in lieu of the Developer receiving direct payments or reimbursement of Eligible Expenses (defined therein) from the Revitalization Sale Tax, Bond proceeds will be used to fund or reimburse, according to the applicable bond documents, the Developer for the payment of Eligible Expenses, and the portion of the Revitalization Sales Tax Revenues that would otherwise be available to the Developer will be used to pay the cost of issuance, principal and interest on such Bonds, stabilization funds and/or other funding or reserve requirements under the applicable bond documents.

Pro Forma Historical Debt Service Coverage

The amount of the Correctional Facility Tax received by the City has exceeded the City's budgeted amount of such taxes for the last two fiscal years. The City budgeted Correctional Facility Tax revenue of $44,364,490 and $49,084,479 for fiscal years ending June 30, 2023, and 2024, respectively. The City, based on audited statements, received Correctional Facility Tax revenue of $54,043,381 for fiscal year ended June 30, 2023, and based on unaudited statements, received Correctional Facility Tax revenue of $54,151,502 for fiscal year ended June 30, 2024.

Assuming the historical Correctional Facility Tax revenues are predictive of Revitalization Sales Tax revenues, if the City had imposed the Revitalization Sales Tax (i) for fiscal year 2024, the Revitalization Sales Tax collected by the City would have been an estimated $54,151,502, and (ii) for calendar year 2024, the Revitalization Sales Tax collected by the City would have been an estimated $54,854,540. Such estimated amount is approximately (i) 1.15 times the estimated maximum annual debt service requirement for the 2025A Bonds, and (ii) 0.89 times the estimated maximum annual debt service requirement for the Senior Bonds, assuming that annual Revitalization Sales Tax over the life of the Senior Bonds are maintained at the fiscal year 2024 amount. See "APPENDIX A—MUNICAP PLEDGED REVENUE REPORT," and "RISK FACTORS – Risks Inherent in Pledged Revenue Report" herein.

Municipal Bond Insurance Policy

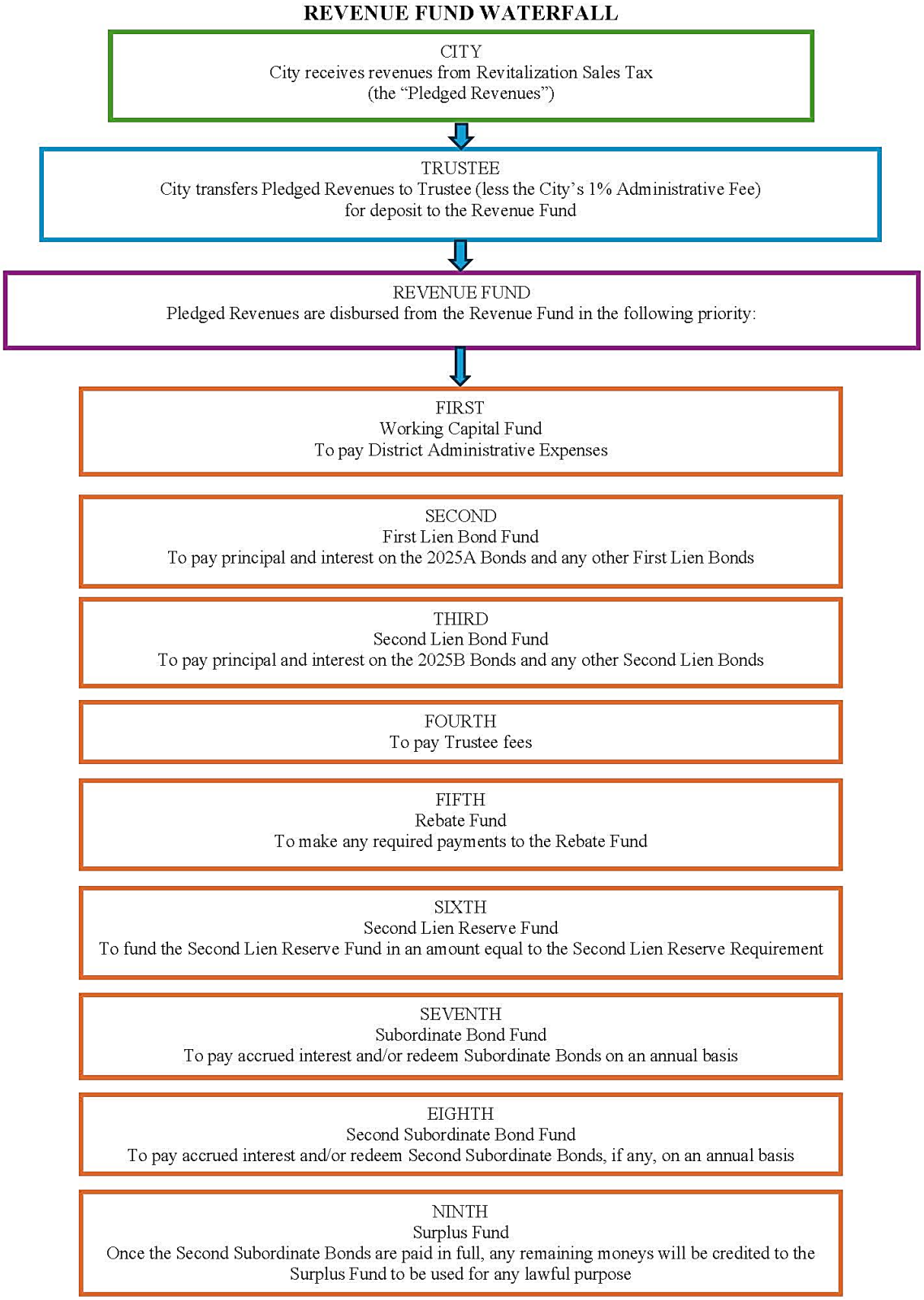
Assured Guaranty Inc. (**"AG"**) has committed to issue, effective as of the date of issuance of the Senior Bonds, a Municipal Bond Insurance Policy for each such series of Senior Bonds (in each case, the **"Policy"**), which Policy guarantees the scheduled payment of the principal of and interest on each series of Senior Bonds, respectively when due as set forth in the form of the Policy included as APPENDIX H to this Official Statement. See the caption "BOND INSURANCE" herein and "APPENDIX H - SPECIMEN MUNICIPAL BOND INSURANCE POLICY" attached to this Official Statement. It is anticipated that Moody's Investors Service, S&P Global Ratings and Kroll Bond Rating Agency will assign the Senior Bonds the insured ratings of A1 (stable outlook), AA (stable outlook) and AA+ (stable outlook), respectively, upon the issuance and delivery of the Insurance Policies by AG at the time of delivery of the Senior Bonds.

Second Lien Reserve Fund

The 2025B Bonds are also secured by amounts on deposit in the Second Lien Reserve Fund, in an amount equal to the Second Lien Reserve Requirement. Such requirement may be met and satisfied by the Reserve Policy issued by the Insurer. The Second Lien Reserve Requirement for the 2025B Bonds means, as of the date of any calculation, 50% of the Maximum Annual Principal and Interest Requirements for the 2025B Bonds, which on the date of issuance of the 2025B Bonds is $6,969,862.50. The Second Lien Reserve Fund will not be funded with proceeds of the 2025B Bonds. The Second Lien Reserve Requirement will be satisfied by the issuance of a reserve fund insurance policy (the **"Reserve Policy"**) by AG, which will guarantee the funding of the Second Lien Reserve Requirement. See "BOND INSURANCE" herein. **Neither the 2025A Bonds nor the Subordinate Bonds are secured by amounts on deposit in any reserve fund.**

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Flow of Funds



BOND INSURANCE

Bond Insurance Policy

Concurrently with the issuance of the Senior Bonds, Assured Guaranty Inc. ("AG") will issue its Municipal Bond Insurance Policy (in each case, the "Policy") for each series of Senior Bonds. In each case, the Policy guarantees the scheduled payment of principal of and interest on each series of Senior Bonds when due as set forth in the form of the Policy included as an appendix to this Official Statement.

The Policy is not covered by any insurance security or guaranty fund established under New York, Maryland, California, Connecticut or Florida insurance law.

Assured Guaranty Inc.

AG is a Maryland domiciled financial guaranty insurance company and an indirect subsidiary of Assured Guaranty Ltd. ("AGL" and together with its subsidiaries, "Assured Guaranty"), a Bermuda-based holding company whose shares are publicly traded and are listed on the New York Stock Exchange under the symbol "AGO." AGL, through its subsidiaries, provides credit enhancement products to the U.S. and non-U.S. public finance (including infrastructure) and structured finance markets and participates in the asset management business through ownership interests in Sound Point Capital Management, LP and certain of its investment management affiliates. Only AG is obligated to pay claims under the insurance policies AG has issued, and not AGL or any of its shareholders or other affiliates.

AG's financial strength is rated "AA" (stable outlook) by S&P Global Ratings, a business unit of Standard & Poor's Financial Services LLC ("S&P"), "AA+" (stable outlook) by Kroll Bond Rating Agency, Inc. ("KBRA") and "A1" (stable outlook) by Moody's Investors Service, Inc. ("Moody's"). Each rating of AG should be evaluated independently. An explanation of the significance of the above ratings may be obtained from the applicable rating agency. The above ratings are not recommendations to buy, sell or hold any security, and such ratings are subject to revision or withdrawal at any time by the rating agencies, including withdrawal initiated at the request of AG in its sole discretion. In addition, the rating agencies may at any time change AG's long-term rating outlooks or place such ratings on a watch list for possible downgrade in the near term. Any downward revision or withdrawal of any of the above ratings, the assignment of a negative outlook to such ratings or the placement of such ratings on a negative watch list may have an adverse effect on the market price of any security guaranteed by AG. AG only guarantees scheduled principal and scheduled interest payments payable by the issuer of bonds insured by AG on the date(s) when such amounts were initially scheduled to become due and payable (subject to and in accordance with the terms of the relevant insurance policy), and does not guarantee the market price or liquidity of the securities it insures, nor does it guarantee that the ratings on such securities will not be revised or withdrawn.

Merger of Assured Guaranty Municipal Corp. Into Assured Guaranty Inc.

On August 1, 2024, Assured Guaranty Municipal Corp., a New York domiciled financial guaranty insurance company and an affiliate of AG ("AGM"), merged with and into AG, with AG as the surviving company (such transaction, the "Merger"). Upon the Merger, all liabilities of AGM, including insurance policies issued or assumed by AGM, became obligations of AG.

Current Financial Strength Ratings

On October 18, 2024, KBRA announced it had affirmed AG's insurance financial strength rating of "AA+" (stable outlook).

On July 10, 2024, Moody's, following Assured Guaranty's announcement of the Merger, announced that it had affirmed AG's insurance financial strength rating of "A1" (stable outlook).

On May 28, 2024, S&P announced it had affirmed AG's financial strength rating of "AA" (stable outlook). On August 1, 2024, S&P stated that following the Merger, there is no change in AG's financial strength rating of "AA" (stable outlook).

AG can give no assurance as to any further ratings action that S&P, Moody's and/or KBRA may take. For more information regarding AG's financial strength ratings and the risks relating thereto, see AGL's Annual Report on Form 10-K for the fiscal year ended December 31, 2024.

Capitalization of AG

At March 31, 2025:

- The policyholders' surplus of AG was approximately $3,522 million.
- The contingency reserve of AG was approximately $1,421 million.
- The net unearned premium reserves and net deferred ceding commission income of AG and its subsidiaries (as described below) were approximately $2,416 million. Such amount includes (i) 100% of the net unearned premium reserve and net deferred ceding commission income of AG and (ii) the net unearned premium reserves and net deferred ceding commissions of AG's wholly owned subsidiary Assured Guaranty UK Limited ("AGUK"), and its 99.9999% owned subsidiary Assured Guaranty (Europe) SA ("AGE").

The policyholders' surplus, contingency reserve, and net unearned premium reserves and net deferred ceding commission income of AG were determined in accordance with statutory accounting principles. The net unearned premium reserves and net deferred ceding commissions of AGUK and AGE were determined in accordance with accounting principles generally accepted in the United States of America.

Incorporation of Certain Documents by Reference

Portions of the following documents filed by AGL with the Securities and Exchange Commission (the "SEC") that relate to AG are incorporated by reference into this Official Statement and shall be deemed to be a part hereof:

(i) the Annual Report on Form 10-K for the fiscal year ended December 31, 2024 (filed by AGL with the SEC on February 28, 2025); and

(ii) the Quarterly Report on Form 10-Q for the quarterly period ended March 31, 2025 (filed by AGL with the SEC on May 9, 2025).

All information relating to AG included in, or as exhibits to, documents filed by AGL with the SEC pursuant to Section 13(a) or 15(d) of the Securities Exchange Act of 1934, as amended, excluding Current Reports or portions thereof "furnished" under Item 2.02 or Item 7.01 of Form 8-K, after the filing of the last document referred to above and before the termination of the offering of the Senior Bonds shall be deemed incorporated by reference into this Official Statement and to be a part hereof from the respective dates of filing such documents. Copies of materials incorporated by reference are available over the internet at the SEC's website at http://www.sec.gov, at AGL's website at http://www.assuredguaranty.com, or will be provided upon request to Assured Guaranty Inc.: 1633 Broadway, New York, New York 10019,

Attention: Communications Department (telephone (212) 974-0100). Except for the information referred to above, no information available on or through AGL's website shall be deemed to be part of or incorporated in this Official Statement.

Any information regarding AG included herein under the caption "BOND INSURANCE – Assured Guaranty Inc." or included in a document incorporated by reference herein (collectively, the "AG Information") shall be modified or superseded to the extent that any subsequently included AG Information (either directly or through incorporation by reference) modifies or supersedes such previously included AG Information. Any AG Information so modified or superseded shall not constitute a part of this Official Statement, except as so modified or superseded.

Miscellaneous Matters

AG makes no representation regarding the Senior Bonds or the advisability of investing in the Senior Bonds. In addition, AG has not independently verified, makes no representation regarding, and does not accept any responsibility for the accuracy or completeness of this Official Statement or any information or disclosure contained herein, or omitted herefrom, other than with respect to the accuracy of the information regarding AG supplied by AG and presented under the heading "BOND INSURANCE."

THE PROJECT

The SEG Property, encompassing the Delta Center Block (referred to as the **"Arena Redevelopment Property"**) and a portion of the block immediately east (Mid Block) is intended for development and redevelopment as a sports, entertainment, cultural, and convention district. The sports, entertainment, cultural, and convention district will include the SEG Property as well as Salt Lake County owned land where the current Convention Center, symphony hall and Utah Museum of Contemporary Art sit. The developments on the SEG Property are anticipated to include hotel accommodations, multi-family housing, parking facilities, and various commercial uses, along with related improvements and facilities either currently existing or planned for the future of the SEG Property, as detailed in the Participation Agreement and herein (collectively known herein as the "**District Improvements**"). Furthermore, a significant investment of funds is anticipated to renovate Delta Center, situated on the Arena Redevelopment Property, to meet the National Hockey League's arena standards and capacity requirements for the Utah Mammoth, while also enhancing the guest experience for both hockey and basketball without compromising the existing basketball experience of the Utah Jazz, a National Basketball Association professional basketball franchise (these renovations are referred to as the "**Arena Renovation,**" and together with the District Improvements, constitute the "**Project**"). See "SEG PROPERTY MAP."

The Project site is generally located just west of downtown Salt Lake City, approximately 15 minutes from the Salt Lake City International Airport, adjacent to the Salt Palace Convention Center, and within walking distance of hotels, restaurants, and Temple Square. See "VICINITY MAP."

Jazz Arena Investors, LLC, a subsidiary of SEG, serve as the ground lessee of the Arena Redevelopment Property. This property includes the block where Delta Center is located, leased from the City through its Community Reinvestment Agency under the Arena Redevelopment Property Lease. The Arena Redevelopment Property Lease has a fifty-year (50) term, set to expire June 7, 2040, with two (2) separate renewal terms of ten-year (10) year renewal options. SEG is presently collaborating with the City to extend the current Delta Center land lease to a total term of ninety-nine (99) years. The initial District boundaries align with the Arena Redevelopment Property. SEG Real Estate Downtown LLC, an affiliate of SEG, and the County have entered into a Purchase and Sale Agreement dated as of April 29, 2025, for SEG to acquire the portions of the SEG Property currently owned by the County on or before February 16, 2027.

SCI Architects ("SCIA"), specializing in the design of multi-use sports and entertainment arenas, has been engaged by the Developer for the Arena Renovation. The renovated Delta Center will incorporate variable rise technology for its retractable seating risers, which is essential for providing optimal site-lines for both basketball and hockey. The Arena Renovation phase of the Project commenced in April 2025, with the majority of the work on Delta Center scheduled during the summer months in 2025, 2026, and 2027. This timeline ensures that both the Utah Jazz and the Utah Mammoth can utilize Delta Center for their respective NBA and NHL seasons beginning each fall. The Developer anticipates the completion of the Arena Renovation portion of the Project by fall of 2027, with the District Improvements expected to commence in 2027. The Project is projected to be completed within approximately five years.

SOURCES AND USES OF FUNDS

The estimated sources and uses of funds for the Bonds are as follows:

Sources of Funds

2025A Principal Amount	$649,895,000.00
2025B Principal Amount	194,460,000.00
2025C Principal Amount	25,000,000.00
Original Issue Premium	40,431,706.95
TOTAL	$909,786,706.95

Uses of Funds

Senior Project Account Deposit	$875,518,297.08
Subordinate Project Account Deposit	24,481,702.92
Capitalized Interest on the 2025C Bonds [(1)]	93,750.00
Costs of Issuance [(2)]	9,692,956.95
TOTAL	$909,786,706.95

(1) Proceeds of the 2025C Bonds will fund capitalized interest on the 2025C Bonds through July 15, 2025.

(2) Costs of Issuance include legal, rating agency and Trustee fees, Underwriters' discount, premiums for the bond insurance and the reserve policy for the Second Lien Reserve Fund, and other costs and expenses related to the issuance of the Bonds.

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DEBT SERVICE SCHEDULE

Set forth in the following table are the debt service requirements for the Senior Bonds and the forecasted payments for the Subordinate Bonds.

Bond Year Ending 7/15	*Series 2025A Bonds[1]*		*Series 2025B Bonds[1]*		*Series 2025C Subordinate Bonds [1] [2] [3]*	
	Principal	***Interest***	***Principal***	***Interest***	***Forecasted Principal***	***Forecasted Interest***
2026	$5,300,000	$32,912,136	$1,585,000	$9,847,887	$3,968,000	$1,250,000
2027	4,695,000	34,278,350	1,405,000	10,256,725	4,805,000	1,051,600
2028	5,710,000	34,043,600	1,710,000	10,186,475	5,160,000	811,350
2029	6,790,000	33,758,100	2,035,000	10,100,975	5,825,000	553,350
2030	7,940,000	33,418,600	2,375,000	9,999,225	5,242,000	262,100
2031	9,165,000	33,021,600	2,745,000	9,880,475	-	-
2032	10,470,000	32,563,350	3,135,000	9,743,225	-	-
2033	11,855,000	32,039,850	3,545,000	9,586,475	-	-
2034	13,325,000	31,447,100	3,985,000	9,409,225	-	-
2035	14,885,000	30,780,850	4,455,000	9,209,975	-	-
2036	16,545,000	30,036,600	4,950,000	8,987,225	-	-
2037	17,370,000	29,209,350	5,200,000	8,739,725	-	-
2038	18,240,000	28,340,850	5,455,000	8,479,725	-	-
2039	19,150,000	27,428,850	5,730,000	8,206,975	-	-
2040	20,110,000	26,471,350	6,015,000	7,920,475	-	-
2041	21,115,000	25,465,850	6,315,000	7,619,725	-	-
2042	22,220,000	24,357,313	6,650,000	7,288,188	-	-
2043	23,390,000	23,190,763	7,000,000	6,939,063	-	-
2044	24,615,000	21,962,788	7,365,000	6,571,563	-	-
2045	25,910,000	20,670,500	7,750,000	6,184,900	-	-
2046	27,270,000	19,310,225	8,160,000	5,778,025	-	-
2047	28,770,000	17,810,375	8,610,000	5,329,225	-	-
2048	30,350,000	16,228,025	9,080,000	4,855,675	-	-
2049	32,020,000	14,558,775	9,580,000	4,356,275	-	-
2050	33,780,000	12,797,675	10,110,000	3,829,375	-	-
2051	35,640,000	10,939,775	10,665,000	3,273,325	-	-
2052	37,600,000	8,979,575	11,250,000	2,686,750	-	-
2053	39,665,000	6,911,575	11,870,000	2,068,000	-	-
2054	41,850,000	4,730,000	12,520,000	1,415,150	-	-
2055	44,150,000	2,428,250	13,210,000	726,550	-	-
Total[4]	$649,895,000	$700,091,999	$194,460,000	$209,476,575	$25,000,000	$3,928,400

(1) Assumes no optional redemptions prior to maturity. Figures have been rounded.

(2) Principal and interest on the Subordinate Bonds are payable solely from and to the extent of Subordinate Pledged Revenue. There are no scheduled principal payments on the Subordinate Bonds until final maturity. The amounts set forth herein reflect the projected payments on the Subordinate Bonds as set forth in the Pledged Revenue Report, based upon the assumptions more particularly set forth therein. No assurance is given that the level of Subordinate Pledged Revenue projected in the Pledged Revenue Report will be achieved, or that payment of principal of and interest on the Subordinate Bonds will be paid as set forth in this table. Failure to pay the amounts set forth above with respect to the Subordinate Bonds will not constitute an event of default under the Subordinate Indenture. See "THE SUBORDINATE BONDS—"Cash flow" Nature of Subordinate Bonds," and "—Security for the Subordinate Bonds."

(3) Series 2025C forecasted debt service net of capitalized interest.

(4) Totals may not add due to rounding.

THE DISTRICT

Organization and Description

The District is a convention center public infrastructure district in a capital city, and as such is (a) a body corporate and politic with perpetual succession; (b) a quasi-municipal corporation; (c) a political subdivision of the state; and (d) separate and distinct from, and independent of, the City and any other public entity or political subdivision of the State, and, except as may otherwise be provided for by State law or the Governing Document, its activities are subject to review by the City only insofar as they may deviate in a material matter from the requirements of the Governing Document. The primary purpose of the District is to finance a portion of the Project.

District Powers

The District has the power and authority to finance and provide the Project within and without the boundaries of the District. The purpose of the District is to plan for, design, acquire, construct, install, relocate, redevelop, and finance the Project. The District is authorized, but not obligated, to own, operate and maintain any part of the Project not otherwise required to be dedicated to the City or other public entity.

The District will ensure that the Project is designed and constructed in accordance with the standards and specifications of the City and of other governmental entities having proper authority. The District will obtain the City's approval of civil engineering plans and will obtain applicable permits for construction and installation of the Project as required prior to performing such work. The Project shall be subject to the ordinary inspection and approval procedures of the City and other governmental entities having proper authority.

Annexation, Withdrawal, and Dissolution

Upon its creation, the District encompassed approximately 10 acres. The District will not include within its boundaries any property outside the District area without the prior written consent of the City. The Governing Document includes an approximately 46-acre area (the "**Annexation Area**") which may only be annexed upon the District obtaining consent of the City and all property owners or lessors, as applicable, within the area proposed to be annexed and the passage of a resolution of the Board approving such annexation.

Any annexation or withdrawal shall be in accordance with the requirements of the Governing Document and the PID Act. Upon any annexation or withdrawal, the District will provide the City a description of the revised District boundaries.

Upon an independent determination of the Board that purposes for which the District was created have been accomplished, the District is to file petitions for dissolution, pursuant to the applicable State statutes. In no event is a dissolution to occur until the District has provided for the payment or discharge of all of its outstanding indebtedness and other financial obligations as required pursuant to State Statutes and disbursal of any assets of the District.

Governing Document Authorizations and Limitations

The District has authority to provide funding for the planning, design, acquisition, construction, installation, relocation, redevelopment, maintenance, and financing of the Project within and without the boundaries of the District. An estimate of the costs of the Project which may be planned for, designed, acquired, constructed, installed, relocated, redeveloped, maintained, or financed was prepared based upon

the currently anticipated Project and Pledged Revenues. Pledged Revenues as defined in the Governing Document means all revenues legally available to the District (including via a Pledge Agreement, Mill Levy, and Assessments) and pledge in whole or in part to the repayment of Debt. However, this estimate is not a limitation on the Project ultimately financed by Pledged Revenues over time in accordance with the Act (as defined in the Governing Document) and the Participation Agreement.

The Project will be designed in such a way as to assure that the Project standards will be compatible with those of the City and/or any other applicable public entity. All construction cost estimates are and will be based on the assumption that construction conforms to applicable local, State or Federal requirements.

The District will not consent to the organization of any other public infrastructure district organized under the PID Act within the District Area (as defined in the Governing Document) which will overlap the boundaries of the District unless the aggregate mill levy for payment of Debt of such proposed districts will not at any time exceed the Maximum Debt Mill Levy (as defined in the Governing Document) of the District.

So long as Debt is issued in accordance with the provisions of the Governing Document, the Participation Agreement and the Act (as defined in the Governing Document), there is no limit to the amount of Debt that may be issued by the District.

All of the limitations contained in the Governing Document, including, but not limited to, those pertaining to the Pledged Revenues, the Assessments, Maximum Debt Mill Levy, Maximum Debt Mill Levy Imposition Term and the Fees have been established under the authority of the City to approve a Governing Document with conditions pursuant to Section 17D-4-201(5), Utah Code. It is expressly intended that such limitations (a) will not be subject to set-aside for any reason or by any court of competent jurisdiction, absent a Governing Document Amendment; and (b) are, together with all other requirements of Utah law, included in the "political or governmental powers" reserved to the State under the U.S. Bankruptcy Code (11 U.S.C.) Section 903, and are also included in the "regulatory or electoral approval necessary under applicable nonbankruptcy law" as required for confirmation of a Chapter 9 Bankruptcy Plan under Bankruptcy Code Section 943(b)(6).

While the District has the authority to impose a mill levy on taxable property within its boundaries and to levy an assessment on property within the District, the District has no current intention to do so. The Bonds are only secured to the extent of Senior Pledged Revenue and Subordinate Pledged Revenue available therefor, as applicable, and would not have claim on any property tax mill levy or assessments on property within the District.

Debt Instrument Disclosure Requirement

In the text of each Bond and any other instrument representing and constituting Debt, the District shall set forth a statement in substantially the following form:

> By acceptance of this instrument, the owner of this Bond agrees and consents to all of the limitations in respect of the payment of the principal of and interest on this Bond contained herein, in the resolution of the District authorizing the issuance of this Bond and in the Governing Document for creation of the District.

Governing Board

The Board is composed of five Trustees who shall be appointed by the City Council pursuant to the PID Act. Trustees 1, 2, and 3 shall be representatives of SEG, Trustee 4 shall be a representative of the City (unless withdrawn in accordance with the Act, as defined in the Governing Document), and Trustee 5 shall be a representative of the County (unless withdrawn in accordance with the Act). Trustee terms shall be staggered with initial terms as follows: Trustees 1, 3 and 5 shall serve an initial term of six (6) years; Trustees 2 and 5 shall serve an initial term of four (4) years. Appointed Trustees will be required to conform with the requirements of the Act. The Board will be self-perpetuating and may appoint and reappoint members as necessary, provided that Board seats will continue to be filled by representatives of SEG, City or the County, as applicable. In the event the City or County does not wish to have a representative on the Board, such seats shall be nominated by SEG.

Administration

The District will be responsible for submitting an annual report to the City Mayor's Office no later than 210 days following the end of the District's fiscal year. The annual report shall include information as to any of the following: (a) boundary changes made or proposed to the District's boundary as of the last day of the prior fiscal year, if changed; (b) a list of current interlocal agreements, if changed (to be delivered to the City upon request); (c) the names and terms of Board members and officers; (d) District office contact information, if changed; (e) a summary of any litigation which involves the Project as of the last day of the prior fiscal year, if any; (f) general status of the District's construction of the Project as of December 31 of the prior year; (g) a table summarizing total debt authorized and total debt issued by the District; (h) financial statements of the District for the most recent completed fiscal year (such statements shall be audited if required by bond documents or statute); and (i) notice of any uncured events of default by the District which continue beyond a ninety (90) day period, under any Debt instrument.

Upon an independent determination of the District Board that the purposes for which the District was created have been accomplished, the District shall file petitions for dissolution, pursuant to the applicable State statutes and the Governing Document. In no event shall a dissolution occur until the District has provided for the payment or discharge of all of their outstanding indebtedness and other financial obligations as required pursuant to State statutes and disbursal of any assets of the District.

District Agreements

Participation Agreement

The Project. Pursuant to the Participation Agreement, the City and the Developer have agreed that a portion of the Revitalization Sales Tax will be used for the development of the Project, consisting of the Arena Renovation and the District Improvements, on the SEG Property pursuant to the terms and conditions described in the Participation Agreement and to facilitate or reimburse SEG for Eligible Expenses (as defined below) related to the Project, as allowed by the CCR Act. The SEG Property consists of the Arena Redevelopment Property (the Delta Center Block), which is coterminous with the initial District boundaries, and the two blocks located immediately east of the Arena Redevelopment Property (Mid Block and the north half of the Convention Center Block), which are included in the Annexation Area for the District as provided in the District's Governing Document. See "SEG PROPERTY MAP."

Maximum Dollar Amount of Revitalization Sales Tax. The Participation Agreement provides that the maximum amount of *net* Bond proceeds that the Developer may receive for costs of the Project is Nine Hundred Million Dollars (**$900,000,000.00**), whether the Bonds are issued in one or more series, and which amount the Developer will use solely for payment of the Eligible Expenses incurred in completing the

Project. **"Eligible Expenses"** means any expense incurred by SEG, SEG Real Estate or their affiliates in connection with the Project that qualifies as an "allowable use of funds" pursuant to Section 63N-3-1403 of the CCR Act, including Debt Service.

Pursuant to the Participation Agreement, **"Debt Service"** includes (1) costs of issuance of the Bonds, (2) principal and interest on the Bonds, and (3) stabilization funds and/or other funding or reserve requirements under the Indentures. The funds available for payment of Eligible Expenses, including Debt Service, incurred pursuant to the Participation Agreement consist *solely* of the Revitalization Sales Tax. The Participation Agreement provides that the maximum amount of the Revitalization Sales Tax that may be used for the Project or for the benefit of the Developer pursuant to the CCR Act is an amount equal to the Debt Service (the **"Maximum Dollar Amount"**).

The City and the Developer anticipate that SEG will incur approximately Five Hundred Twenty-Five Million Dollars ($525,000,000) of Eligible Expenses for completion of the Arena Renovation and the remaining approximately Three Hundred Seventy-Five Million Dollars ($375,000,000) will be incurred by SEG Real Estate for Eligible Expenses incurred in connection with completion of the District Improvements. The City and the Developer acknowledge and agree in the Participation Agreement that the foregoing allocation is an estimate only and that the actual allocation of Eligible Expenses between the Arena Renovation and the District Improvements may change in connection with the completion of the Project.

Subordination of City's Rights. Notwithstanding anything in the Participation Agreement to the contrary, the remedies and rights of the City to reduce or otherwise adversely impact the pledge of the Revitalization Sales Tax to Debt Service under the Participation Agreement or the CCR Act, other than payment of the City's Administrative Fee shall be subordinated to such pledge for the benefit of the Bonds and the bondholders.

Events of Default. The occurrence of any of the following will constitute an "Event of Default" under the Participation Agreement: (1) the failure of any party to make any payment owing to the other, (2) subject to certain exceptions, the failure of SEG to operate a NBA or NHL franchise at the Renovated Arena, or (3) the failure of any party to perform, comply with or observe any covenant, warranty, condition, agreement non-monetary term or undertaking contained in the Participation Agreement.

No Termination for an Event of Default. Notwithstanding anything in the Participation Agreement to the contrary, in no event will an Event of Default under the Participation Agreement result in the termination of such Agreement.

Failure to Meet SEG Conditions a Termination Event. Notwithstanding the preceding paragraph or anything in the Participation Agreement to the contrary, all obligations of the Developer in the Participation Agreement are expressly conditioned upon (a) the execution and delivery of (1) either (A) a long-term ground lease between Salt Lake County and SEG Real Estate or one of its affiliates for the portions of the SEG Property that are currently owned by the County, or (B) a purchase and sale agreement between Salt Lake County and SEG Real Estate or one of its affiliates for the portions of the SEG Property that are currently owned by the County on terms and conditions reasonably acceptable to SEG and consistent with the Participation Agreement, (2) a long-term ground between the Redevelopment Agency of the City and Jazz Arena Investors LLC or one its affiliates for the Arena Redevelopment Property (the Delta Center Block) (collectively, the **"Lease Condition"**) and (b) the City of a bond issuer issuing bonds that result in net bond proceeds equal to $900,000,000.00 (the **"Financing Condition"** and together with the Lease Condition, the **"SEG Conditions"**). If either the Lease Condition or the Financing Condition is not satisfied on or before July 1, 2025 (**"Termination Event"**), at the option of SEG, the Participation Agreement may terminate in its entirety. Within 60 days of the Termination Event, SEG or SEG Real Estate will repay to

the City any Revitalization Sales Tax SEG or SEG Real Estate has received. Furthermore, the City will take such actions as are required by law to repeal the Revitalization Sales Tax as soon as reasonably possible following the Termination Event.

SEG Conditions Expect to be Satisfied on or Before July 1, 2025. Jazz Arena Investors LLC (successor to the Larry H. Miller Arena Corporation), as lessee, and the Redevelopment Agency of the City, as lessor, currently have in place a long-term ground lease for the Arena Redevelopment Property dated June 8, 1990, as amended (the **"Arena Redevelopment Property Lease"**). The Arena Redevelopment Property Lease has a fifty (50) year term which is set to expire June 7, 2040, with two (2) separate renewal terms of ten (10) years each. SEG Real Estate Downtown LLC, an affiliate of SEG, and the County have entered into the Agreement for the Purchase and Sale of Real Property and Escrow Instructions dated as of April 29, 2025, to purchase from the County on or before February 16, 2027, those portions of the SEG Property that are currently owned by the County. The Bonds are currently anticipated to be issued on June 18, 2025. Upon the issuance of the Bonds, SEG is currently expected to waive any right to assert that either the Lease Condition or the Financing Condition have not been satisfied.

Pledge Agreement

In accordance with the Pledge Agreement, the City covenants (among other things not relevant to the Bonds) to (i) impose the Revitalization Sales Tax, (ii) enforce collection of the Revitalization Sales Tax, and (iii) pay the Revitalization Sales Tax in accordance with the terms thereof.

Under the Pledge Agreement, the City assigns to the District (or, in accordance with the terms of the Pledge Agreement, the Trustee on behalf of the District) all of its right, title and interest in and to the Revitalization Sales Tax Revenues and pledges the same to the District (or, in accordance with the Pledge Agreement, the Trustee on behalf of the District) for the purpose of paying and securing the Bonds. The lien of such pledge on the Revitalization Sales Tax Revenues is to constitute a first priority, with the District receiving a first-lien pledge of available Revitalization Sales Tax Revenues towards the Bonds, which are in compliance with the qualifying amount thereof set forth in the Participation Agreement.

Infrastructure Acquisition and Reimbursement Agreement.

The District and the Developer are expected to enter into an Infrastructure Acquisition and Reimbursement Agreement (the **"Infrastructure Acquisition and Reimbursement Agreement"**). The Infrastructure Acquisition and Reimbursement Agreement sets forth the rights, obligations and procedures for the reimbursement of the Developer for certain District Eligible Costs (defined therein) incurred in connection with the design, construction, and installation of improvements related to the Project.

The Developer may advance funds to pay for Project-related costs in furtherance of the District's permitted purposes. Subject to the terms and conditions of the Infrastructure Acquisition and Reimbursement Agreement, the Participation Agreement, and applicable law, the District may reimburse the Developer for such costs if and when they are accepted by the District as eligible for reimbursement.

Following submission by the Developer of an application for acceptance of District Eligible Costs, the District's engineer and accountant is to review relevant materials presented for the purpose of substantiating the applicable costs. If the District's engineer (or other appropriate design professional) reasonably determines that corrective work must be completed before the Engineer's Cost Certification can be issued, the Developer is to be given written notice thereof and an opportunity to dispute and/or complete such corrective work.

Within 15 days following the certification of costs by the District's engineer and accountant, the District shall accept the District Eligible Costs and any related District Improvements (defined therein) by ratification by the Chair or Treasurer of the District's Board declaring the satisfaction of the conditions to acceptance as set forth in the Infrastructure Acquisition and Reimbursement Agreement, with any reasonable conditions the District may specify (the "Acceptance Ratification"). Following the Acceptance Ratification, the accepted District Eligible Costs shall be "Certified District Eligible Costs."

The District shall repay Certified District Eligible Costs approved by the District under the Infrastructure Acquisition and Reimbursement Agreement no later than thirty (30) days following adoption of an Acceptance Ratification and solely from the proceeds of loans or bonds issued by the District (if any), subject to the limitations of the Governing Document, the District Act, the Participation Agreement, and the availability of loan or bond proceeds in an unrestricted account.

Sovereign Immunity

The Governmental Immunity Act of Utah, Title 63G, Chapter 7, Utah Code (the "**Governmental Immunity Act**") provides that governmental entities, such as the District, and their employees retain immunity from suit for any injury that results from the exercise of a governmental function unless that immunity has been expressly waived under the Governmental Immunity Act.

The Governmental Immunity Act provides that sovereign immunity does not apply to injuries occurring as a result of certain specified actions or conditions. An action against a governmental entity for an injury caused by an act or omission that occurs during the performance of an employee's duties is a plaintiff's exclusive remedy under the Governmental Immunity Act unless, among other things, the employee acted or failed to act through fraud or willful misconduct, the injury or damage resulted from the employee driving a vehicle under the influence of alcohol or drugs, the injury or damage resulted from the employee being physically or mentally impaired so as to be unable to reasonably perform their job function because of alcohol or a controlled substance.

The maximum amounts that may be recovered under the Governmental Immunity Act from a governmental entity or an employee whom a governmental entity has a duty to indemnify, are as follows: (a) for damages for personal injury to one person in any one occurrence, the sum of $911,300; (b) for property damage $366,900; and (c) there is a $3,668,400 limit to the aggregate amount of individual awards that may be awarded in relation to a single occurrence. Each even numbered year, the legislative fiscal analyst of the State calculates new limits based upon changes in various price indexes with such limits to take effect July 1 of such year. According to the Utah Office of Administrative Rules, the above applicable limits are for incidents occurring on or after July 1, 2024 (the most recent published limits).

District Insurance

The District has obtained general liability and public officials' errors and omissions liability insurance through a policy with the Utah Local Governments Trust ("**ULGT**"). ULGT was organized in 1974 as a Public Agency Insurance Mutual under Section 63G-7-703 of the Government Immunity Act and insures more than 550 governmental entities in the State. The maximum combined aggregate limit of the policy is anticipated to be not less than $5,000,000.

The District's policy has an effective date of May 13, 2025, and will renew annually on July 1 each year, until cancelled. There is no guaranty that the District will continue to maintain such insurance in the future; provided that the Indentures require that the District carry general liability, public officials liability and such other forms of insurance coverage on insurable District property upon the terms and conditions, and in such amount, as in the judgement of such District will protect the District and its operations.

The District has not obtained any cyber-security insurance given its limited operations and internet presence.

DISTRICT FINANCIAL INFORMATION

The Senior Bonds are secured by and payable solely from the Senior Pledged Revenue with a lien on the Senior Pledged Revenue which is senior and prior to the lien securing the Subordinate Bonds. The 2025A Bonds are payable solely from the Senior Pledged Revenue with a lien on the Senior Pledged Revenue which is senior and prior to the lien thereon securing the 2025B Bonds. The 2025B Bonds are payable solely from the Senior Pledged Revenue with a lien on the Senior Pledged Revenue which is subordinate and junior to the lien thereon securing the 2025A Bonds. The 2025C Bonds are payable solely from the Subordinate Pledged Revenue with a lien on the Subordinate Pledged Revenue which is subordinate and junior to the lien on the Senior Pledged Revenue securing the 2025B Bonds. See "INTRODUCTION – Security and Sources of Payment for the Senior Bonds; Discharge on December 31, 2055," "– Security and Sources of Payment for the Subordinate Bonds; Discharge on December 31, 2055," and "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS."

Funding of District Administrative Expenses

All Revitalization Sales Tax collected by the City prior to the issuance of the Bonds has been held and maintained by the City in a separate City-managed account in accordance with the Participation Agreement. On the issue date of the Bonds, the City will transfer all accumulated Revitalization Sales Tax in the amount of $13,946,935.41 to the Trustee, of which $520,404.00 will be deposited in the Working Capital Fund to fund District Administrative Expenses through March 1, 2029, and the remaining amount of $ 13,426,531.41 will be deposited in the Revenue Fund.

Thereafter, Administrative Expenses of the District will be paid from Senior Pledged Revenue and Subordinate Pledged Revenue prior to application thereof for any other purpose. The Indentures define "**Administrative Expenses**" as an amount reasonably determined by the District as being necessary to pay the District's expenses reasonably incurred in connection with the administration and operation of the District, including accounting fees, audit expenses, legal fees, insurance premiums, management expenses, board member compensation, and generally all expenses, under which generally accepted accounting practices are properly allocable to administration; however, only such expenses as are reasonably and properly necessary to the efficient administration and operation of the District and permitted under the District Act shall be included, but not in excess of the following: (i) for calendar year 2025, the amount of $100,000, (ii) for each calendar year thereafter, an additional 2%; and (iii) in the event of a claim by a third-party challenging (A) the creation or existence of the District; (B) the Bonds; and (C) the District's ability to perform its obligations under the Indentures or any resolution, indenture, or other document relating to the issuance of Bonds; the amount reasonably necessary to defend the District from such claim to the extent such amount exceeds the limit established in (i) and (ii). See "SECURITY AND SOURCES OF PAYMENT FOR THE BONDS – Flow of Funds."

No assurance is provided, however, that the foregoing will be sufficient to cover operations and administrative expenses of the District for a given year and no assurance is provided that the District would have adequate financial resources to pay such excess costs.

Historical Financial Information

As a new entity, the District does not have any prior financial history.

Deposit and Investment of District Funds

The Indentures require the District's funds to be invested in Permitted Investments (as defined in the Indentures). The investment of the proceeds of the Bonds is also subject to the provisions of the federal Tax Code. See "TAX MATTERS."

District Budget

The District adopted a tentative budget on May 29, 2025. The District anticipates adopting a final budget at its June 17th meeting.

RISK FACTORS

THE PURCHASE OF THE BONDS INVOLVES CERTAIN INVESTMENT RISKS. ACCORDINGLY, EACH PROSPECTIVE PURCHASER OF THE BONDS SHOULD MAKE AN INDEPENDENT EVALUATION OF ALL OF THE INFORMATION PRESENTED IN THIS OFFICIAL STATEMENT IN ORDER TO MAKE AN INFORMED INVESTMENT DECISION. CERTAIN OF THESE RISKS ARE DESCRIBED BELOW; HOWEVER, IT IS NOT INTENDED TO BE A COMPLETE REPRESENTATION OF AL THE POSSIBLE RISKS INVOLVED. ADDITIONAL RISK FACTORS RELATING TO THE PURCHASE AND OWNERSHIP OF THE BONDS ARE DESCRIBED THROUGHOUT THIS OFFICIAL STATEMENT, WHETHER OR NOT SPECIFICALLY DESIGNATED AS RISK FACTORS. FURTHERMORE, ADDITIONAL RISK FACTORS NOT PRESENTLY KNOWN, OR CURRENTLY BELIEVED TO BE IMMATERIAL, MAY ALSO MATERIALLY AND ADVERSELY AFFECT, AMONG OTHER THINGS, SECURITY FOR THE BONDS. THERE CAN BE NO ASSURANCE THAT OTHER RISKS OR CONSIDERATIONS NOT DISCUSSED HEREIN ARE OR WILL NOT BECOME MATERIAL IN THE FUTURE.

Each prospective investor is urged to consult with its own legal, tax, and financial advisors to determine whether an investment in the Bonds is appropriate in light of its individual legal, tax, and financial situation.

Bonds are Limited Obligations

The Bonds are special limited obligations of the District, payable solely from the Pledged Revenue, moneys, securities and funds pledged therefor in the Indentures. The Pledged Revenue consists primarily of the Revitalization Sales Tax. The Bonds do not constitute a general obligation indebtedness nor are they secured by a pledge of the ad valorem taxing power or the full faith and credit of the District, and are not obligations of the State or any other agency or other political subdivision or entity of the State. The District will not mortgage or grant any security interest in the improvements refinanced with the proceeds of the Bonds or any portion thereof to secure payment of the Bonds.

Limitation on Increasing Rates for Revitalization Sales Tax

The City currently levies the maximum rate allowed under State law for the Revitalization Sales Tax. No assurance can be given that the Revitalization Sales Tax will remain sufficient for the payment of the principal or interest on the Bonds and the City is limited by State law in its ability to increase the rate of such taxes.

Uncertainty of Economic Activity and Sales Tax Revenues

The amount of Revitalization Sales Tax to be collected by the City is dependent on several factors beyond the control of the City, including, but not limited to, the state of the United States economy and the economy of the State and the City. Any one or more of these factors could result in the City receiving less Revitalization Sales Tax than anticipated. During periods in which economic activity declines, Revitalization Sales Tax are likely to fall as compared to an earlier year.

An Economic Downturn or Other Unfavorable Economic Conditions Could Negatively Impact Revitalization Sales Tax Collections

The U.S. economy is unpredictable. Economic downturns and other unfavorable economic conditions have previously impacted the retail sales and entertainment industries and their financial condition. If general economic conditions worsen, the City may receive less Revitalization Sales Tax than anticipated. Broad economic factors—such as inflation, unemployment rates or instabilities in consumer demand and consumer spending—could significantly reduce the amount of Revitalization Sales Tax the City receives. Other economic conditions that from time to time may adversely affect the amount of Revitalization Sales Tax received by the City, and consequently, the District's ability to make payments on the Bonds, include but are not limited to: (1) the shifting political landscape and the evolving priorities and policies of the new Trump Administration, (2) recent high levels of inflation and supply chain issues which has increased the cost of goods and services, (3) a reduction in the demand for goods and services subject to the Revitalization Sales Tax, (4) increased business failures and consumer and business bankruptcies, (5) a public health emergency, tariffs or other factors, and (6) unfavorable demographic developments in the City and State.

Legislative Changes to Sales Tax Statutes

From time-to-time proposals are discussed and introduced by the State Legislature that could alter the statutes under which the City derives its various sales and use tax revenues, including the Revitalization Sales Tax. This can be done by, among other things, expanding or diminishing the sales tax base, reducing rates or altering the formula by which the tax revenues are allocated among the counties, cities and towns within the State. If enacted, these types of changes could significantly reduce the amount of the Revitalization Sales Tax the City receives.

The District cannot predict whether the State Legislature will change the sales and use tax base, rates, and/or distribution methods, including changes that could affect the Revitalization Sales Tax at some point in the future. Consequently, no assurance can be given that the revenues from Revitalization Sales Tax will remain sufficient for the payment of the principal or interest on the Bonds, and the City is limited by State law in its ability to increase the rate of such taxes. See "INTRODUCTION - State Constitution "Contract Clause" Protections."

Future Changes in Law

General. Various State laws, constitutional provisions and federal laws and regulations apply to the obligations created by the issuance of the Bonds and various agreements described herein. There can be no assurance that there will not be any change in, interpretation of, or addition to the applicable laws and provisions which would have a material effect, directly or indirectly, on the affairs of the District or the Developer.

Changes in Federal and State Law. From time to time, there are Presidential proposals, proposals of various federal committees, and legislative proposals in the Congress and in the states that, if enacted,

could alter or amend the federal and state tax matters referred to herein or adversely affect the marketability or market value of the Bonds or otherwise prevent holders of the Bonds from realizing the full benefit of the tax exemption of interest on the Bonds. Further, such proposals may impact the marketability or market value of the Bonds simply by being proposed. It cannot be predicted whether or in what form any such proposal might be enacted or whether if enacted it would apply to bonds issued prior to enactment. In addition, regulatory actions are from time to time announced or proposed and litigation is threatened or commenced which, if implemented or concluded in a particular manner, could adversely affect the market value, marketability or tax status of the Bonds. It cannot be predicted whether any such regulatory action will be implemented, how any particular litigation or judicial action will be resolved, or whether the Bonds would be impacted thereby.

Purchasers of the Bonds should consult their tax advisors regarding any pending or proposed legislation, regulatory initiatives or litigation.

Tax Reform Could Eliminate Tax Exempt Status of Bonds

Legislative proposals to eliminate or limit the benefit of tax-exempt interest on bonds such as the Bonds have been made in the past, may currently be under consideration, and may be made again in the future. If adopted, any such proposal could alter for Owners of the Bonds the federal and/or state tax treatment described under the heading "TAX MATTERS" herein or could adversely affect the market value or marketability of the Bonds. In addition, the adoption of any such legislation could significantly increase the cost to the Developer of financing future capital needs.

The Trump Administration and the 119th U.S. Congress will consider extending (or expanding) the tax cuts to corporations and individuals provided by the Tax Cuts and Jobs Act of 2017 (the *"Tax Cuts and Jobs Act of 2017"*), which are set to expire at the end of 2025. To offset the significant cost of any such tax cuts, federal lawmakers have indicated they need to consider various spending cuts and revenue-raisers, which may include legislation which eliminates or limits the benefit of tax-exempt interest on municipal bonds. No assurance can be given that Congress will not propose or pass any such legislation, and no assurance can be given that any such legislation, if passed, would not apply retroactively to the Bonds.

Subordinate Bonds Distinction From Senior Bonds

While a single Official Statement is being used in connection with the offer and sale of the Senior Bonds and the Subordinate Bonds, such series of Bonds are secured by two separate Indentures: the Senior Indenture and the Subordinate Indenture, respectively, as more particularly described herein. The use of a single Official Statement does not imply that the Owners of the Senior Bonds and the Subordinate Bonds are secured by the same revenue sources, funds, or covenants. Owners of the Senior Bonds and the Subordinate Bonds are afforded different rights under the Senior Indenture and the Subordinate Indenture, respectively. POTENTIAL PURCHASERS OF THE BONDS ARE CAUTIONED TO REVIEW CAREFULLY THE PROVISIONS HEREIN DESCRIBING THE SENIOR INDENTURE AND THE SUBORDINATE INDENTURE AS APPLICABLE TO THE BONDS TO BE PURCHASED.

Subordinate Lien of the 2025C Subordinate Bonds; "Cash flow" Nature of 2025C Subordinate Bonds

Payments on the Subordinate Bonds are to be made annually from any Subordinate Pledged Revenue after all payments required to be paid with respect to the Senior Bonds and any obligations issued on parity therewith in such calendar year have been made.

The Subordinate Bonds are structured as "cash flow" bonds, meaning that the Subordinate Indenture does not provide for any scheduled payments of principal on the Subordinate Bonds prior to the

final stated maturity date. Rather, principal on the Subordinate Bonds is payable on each July 15 from, and to the extent of, Subordinate Pledged Revenue on deposit, if any, in the Subordinate Bond Fund on the second Business Day of each June, in accordance with the terms of the Subordinate Indenture, pursuant to mandatory redemption more particularly described in " – Redemption – *Mandatory Redemption*." Furthermore, accrued unpaid interest on the Subordinate Bonds will compound annually on each July 15. As further described in "—Certain Subordinate Indenture Provisions—*Subordinate Bond Fund,*" interest payable on the Subordinate Bonds in each Bond Year is to be paid prior to any payments of principal in such Bond Year." See also the Pledged Revenue Report attached as APPENDIX A hereto. ***However, notwithstanding any other provision in the Subordinate Indenture, in the event that any amount of principal of or interest on the Subordinate Bonds remains unpaid after the application of all Subordinate Pledged Revenue available therefor, the Subordinate Bonds and the lien of the Subordinate Indenture securing payment thereof will be deemed discharged on December 31, 2055, and the estate and rights thereby granted will cease, terminate, and be void.***

Prospective purchasers are cautioned that the payment of debt service on the Subordinate Bonds presented in the Pledged Revenue Report is only a projection, based upon the assumptions set forth therein, and failure to pay such amounts on the Subordinate Bonds in accordance with such projection will not constitute an event of default under the Subordinate Indenture. See also "—Risks Inherent in Pledged Revenue Report" below.

Discharge of Bonds on December 31, 2055

Notwithstanding any other provision in the Senior Indenture, in the event that any amount of principal or interest on the Senior Bonds remains unpaid after the application of all Senior Pledged Revenue available therefor, the Senior Bonds and the lien of the Senior Indenture securing payment thereof will be deemed discharged on December 31, 2055, the estate and rights granted by the Senior Indenture will cease, terminate, and be void, and thereupon the Trustee is to cancel and discharge the lien of the Senior Indenture, and execute and deliver to the District such instruments in writing as are required to evidence the same. In addition, notwithstanding any other provision in the Subordinate Indenture to the contrary, in the event that any amount of principal of or interest on the Subordinate Bonds remains unpaid after the application of all Subordinate Pledged Revenue available therefor on December 31, 2055, the Subordinate Bonds and the lien of the Subordinate Indenture securing payment thereof will be deemed discharged, the estate and rights granted by the Subordinate Indenture will cease, terminate, and be void, and thereupon the Trustee is to cancel and discharge the lien of the Subordinate Indenture, and execute and deliver to the District such instruments in writing as are required to evidence the same. Upon any such discharge, the Owners will have no recourse to the District or any property of the District for the payment of any amount of principal of or interest on the Bonds remaining unpaid.

No Acceleration; No Payment Default on Subordinate Bonds

The Indentures provide that acceleration of the Bonds is not an available remedy for any Event of Default under the Indentures. In addition, the District's failure to pay principal and interest on the Subordinate Bonds when due does not constitute an Event of Default under the Indentures so long as the District is otherwise in compliance with the respective Indenture covenants and other provisions relating to the Senior Pledged Revenue and the Subordinate Pledged Revenue, as applicable. See "THE SENIOR BONDS—Certain Senior Indenture Provisions—*Events of Default*" and "*—Remedies on Occurrence of Event of Default*," "THE SUBORDINATE BONDS—Certain Subordinate Indenture Provisions—*Events of Default*" and "*—Remedies on Occurrence of Event of Default*."

No Credit Rating for Subordinate Bonds; Risk of Investment

The Subordinate Bonds do not have a credit rating from any source and are not suitable investments for all investors. Each prospective purchaser is responsible for assessing the merits and risks of an investment in the Subordinate Bonds and must be able to bear the economic risk of such investment in the Subordinate Bonds. By purchasing the Subordinate Bonds, each purchaser represents that it is (i) a "qualified institutional buyer" (as defined in Rule 144A under the Securities Act) or (ii) an "accredited investor" (as defined in Rule 501 of Regulation D under the Securities Act), with sufficient knowledge and experience in financial and business matters, including the purchase and ownership of non-rated tax-exempt obligations, to be able to evaluate the merits and risks of an investment in the Subordinate Bonds. Investors will be required to execute an investor letter in substantially the form attached hereto as APPENDIX G.

Offering of Subordinate Bonds; Restrictions on Purchase; Investor Suitability

The offering of the Subordinate Bonds is being made to investors who are believed to be knowledgeable and experienced and who are not purchasing with a view to distributing the Subordinate Bonds.

Each initial purchaser of the Subordinate Bonds represents that it is (i) a "qualified institutional buyer" (as defined in Rule 144A under the Securities Act) or (ii) an "accredited investor" (as defined in Rule 501 of Regulation D under the Securities Act).

The foregoing standards are minimum requirements for prospective purchasers of the Subordinate Bonds. The satisfaction of such standards does not necessarily mean that the Subordinate Bonds are a suitable investment for a prospective investor. Accordingly, each prospective investor is urged to consult with its own legal, tax and financial advisors to determine whether an investment in the Subordinate Bonds is appropriate in light of its individual legal, tax, and financial situation.

No Assurance of Secondary Market for Subordinate Bonds

No assurance can be given concerning the future existence of a secondary market for the Subordinate Bonds and prospective purchasers of the Subordinate Bonds should therefore be prepared, if necessary, to hold the Subordinate Bonds to maturity or prior redemption. Even if a secondary market exists, as with any marketable securities, there can be no assurance as to the price for which the Subordinate Bonds may be sold. Such price may be lower than that paid by the initial purchaser of the Subordinate Bonds depending on the progress of the Project and existing financial market conditions. See also "—Restrictions on Transferability of Subordinate Bonds" below.

Restrictions on Transferability of Subordinate Bonds

By their acceptance of the Bonds, each Owner acknowledges that the Bonds may be sold, transferred or otherwise disposed of only in minimum denominations of $100,000 and any integral multiple of $1,000 in excess thereof, except as otherwise provided in the Subordinate Indenture. See "THE SUBORDINATE BONDS—Authorized Denominations of the Subordinate Bonds."

Each subsequent transferee of the Subordinate Bonds will be deemed to have represented and warranted as follows: Each subsequent purchaser of a Subordinate Bond (i) is a "qualified institutional buyer" within the meaning of Rule 144A of the Securities Act or an accredited investor, and (ii) is acquiring such Subordinate Bond for its own account or for the account of a "qualified institutional buyer" within the

meaning of Rule 144A of the Securities Act or an accredited investor, as the case may be, and not with a view to further distribution thereof but expressly reserves the right to re-sell the Subordinate Bond.

Risks Inherent in Pledged Revenue Report

The Developer has engaged MuniCap, Inc. for the purpose of projecting Revitalization Sales Tax revenue collections and the sufficiency of the Pledged Revenue to pay the Senior and Subordinate Bonds, the results of which are set forth in the Pledged Revenue Report, attached hereto as APPENDIX A. The projections set forth in the Pledged Revenue Report are based on certain assumptions about the growth rate of taxable sales in the City, as more particularly set forth therein. The Pledged Revenue Report does not address or evaluate other factors which could impact the Revitalization Sales Tax collections. See "- Uncertainty of Economic Activity and Sales Tax Revenues, - An Economic Downturn or Other Unfavorable Economic Conditions Could Negatively Impact Revitalization Sales Tax Collections, - Legislative Changes to Sales Tax Statutes" above.

The Pledged Revenue Report sets forth in Tables I-A through I-F the projected payment of Senior Bonds and Subordinate Bonds under the "Base Scenario," the "Downside Scenario" and the "Limited Growth Scenario." The Pledged Revenue Report projects Pledged Revenue to be sufficient to pay scheduled debt service on the Senior Bonds in every year under each scenario. See "FORWARD-LOOKING STATEMENTS" and APPENDIX A hereto. Under the Base Scenario, Pledged Revenue is projected to be sufficient to retire the Subordinate Bonds prior to their scheduled maturity date of July 15, 2035. Under the Downside Scenario and the Limited Growth Scenario, respectively, Pledged Revenue is projected to be sufficient to retire the Subordinate Bonds prior the discharge date of December 31, 2055.

The hypothetical scenarios presented in APPENDIX A are inherently subject to variations between the assumptions and actual results and those variations could be material. As discussed throughout this Official Statement, sufficient Pledged Revenue available to pay the Senior Bonds and the Subordinate Bonds is dependent on numerous factors. Any of these factors could result in reductions in Pledged Revenue available to pay the Senior Bond and the Subordinate Bonds (possibly to $0).

The hypothetical scenarios presented in APPENDIX A do not represent any expectations of future events or a projection of expected results. These scenarios are intended only to illustrate the effect that specific Pledged Revenue might have on the payment of the Senior Bonds and Subordinate Bonds in future years. The hypothetical scenarios in Appendix A do not illustrate all possible scenarios that could occur with respect to the Senior Bonds and Subordinate Bonds, but illustrate only the specific, limited circumstances described therein. Each of the sensitivity scenarios is based upon the estimates, assumptions and other information described in Appendix A. Investors should review the entire consents of Appendix A in order to obtain an understanding of the assumptions used in the various scenarios contained therein.

The hypothetical scenarios do not depict actual Pledged Revenue and Revenue Fund balances available to pay the Senor Bonds and the Subordinate Bonds in any year. Actual figures will vary from those depicted in the hypothetical scenarios and the variations could be material. Neither the District nor the Developer makes any representations that the results shown in the hypothetical scenarios can or will occur as depicted.

The Pledged Revenue Report attached hereto as APPENDIX A, is an integral part of this Official Statement. Investors are encouraged to read the entire Official Statement, including the Pledged Revenue Report, to obtain information essential to the making of an informed investment decision.

Senior Bond Ratings May Be Lowered or Withdrawn

There can be no assurance that the ratings assigned to the Senior Bonds as of the date of issuance thereof will not be lowered or withdrawn at any time, the effect of which could adversely affect the market price for and marketability of the Senior Bonds. See "— An Economic Downturn or Other Unfavorable Economic Conditions Could Negatively Impact Revitalization Sales Tax Collections" above for a discussion of certain conditions that may cause re-evaluation of ratings by rating agencies. See also the information under the heading "SENIOR BOND RATINGS."

Private Interests of Board of Trustees

According to disclosure statements executed by each director of the District's Board prior to taking any official action relating to the Bonds, all of the members of the Board have potential or existing personal or private interests relating to the issuance or delivery of the Bonds or the expenditure of the proceeds thereof because they are one or more of the following: an owner or principal in the Developer entity, an employee of or consultant for the Developer entity, an owner or employee of an affiliate of the Developer entity, or an owner of or affiliated with an owner of property located within or near the District. It is anticipated that a portion of the proceeds of the Bonds will be used to partially reimburse the Developer for amounts payable under the Infrastructure Acquisition and Reimbursement Agreement with the Developer. As of the date of this Official Statement, approximately $30,000,000 is owed to the Developer pursuant to the Infrastructure Acquisition and Reimbursement Agreement. See "THE DISTRICT—Governing Board" and "—District Agreements—*Infrastructure Acquisition and Reimbursement Agreement.*"

Natural Disasters and Infectious Disease Outbreak

The City, like communities in the State, may be subject to unpredictable seismic activity, fires, flood, or other natural disasters. In the event of a severe earthquake, fire, flood or other natural disaster, there may be significant damage to both property and infrastructure in the City which could result in a decrease in retail sales thereby reducing the amount of Revitalization Sales Tax available to pay debt service on the Bonds. The City may also be subject to local, national, or global outbreaks of infectious disease, such as COVID-19. The District cannot predict what impact future infectious disease outbreaks will ultimately have on future collections of the Revitalization Sales Tax and City operations.

Risk of Internal Revenue Service Audit

The Internal Revenue Service (the "Service") has a program of auditing tax-exempt bonds which can include those issued by special purpose governmental units, such as the District, for the purpose of determining whether the Service agrees (a) with the determination of Bond Counsel that interest on the Bonds is tax-exempt for federal income tax purposes, or (b) that the District is in or remains in compliance with Service regulations and rulings applicable to governmental bonds such as the Bonds. The commencement of an audit of the Bonds could adversely affect the market value and liquidity of the Bonds, regardless of the final outcome. An adverse determination by the Service with respect to the tax-exempt status of interest on the Bonds could be expected to adversely impact the secondary market, if any, for the Bonds, and, if a secondary market exists, would also be expected to adversely impact the price at which the Bonds can be sold. The Indentures do not provide for any adjustment to the interest rates borne by the Bonds in the event of a change in the tax-exempt status of the Bonds. Owners of the Bonds should note that, if the Service audits the Bonds, under current audit procedures the Service will treat the District as the taxpayer during the initial stage of the audit, and the owners of the Bonds will have limited rights to participate in such procedures. There can be no assurance that the District will have revenues available to contest an adverse determination by the Service. No transaction participant, including none of the District,

the Underwriters, or Bond Counsel is obligated to pay or reimburse an owner of any Bond for audit or litigation costs in connection with any legal action, by the Service or otherwise, relating to the Bonds.

There can be no assurance that an audit by the Service of the Bonds will not be commenced. However, the District has no reason to believe that any such audit will be commenced, or that if commenced, an audit would result in a conclusion of noncompliance with any applicable Service regulation or ruling. No rulings have been or will be sought from the Service with respect to any federal tax matters relating to the issuance, purchase, ownership, receipt or accrual of interest upon, or disposition of, the Bonds. See also "TAX MATTERS" below.

TAX MATTERS

The following is a summary of the material federal and State of Utah income tax consequences of holding and disposing of the Bonds. This summary is based upon laws, regulations, rulings and judicial decisions now in effect, all of which are subject to change (possibly on a retroactive basis). This summary does not discuss all aspects of federal income taxation that may be relevant to investors in light of their personal investment circumstances or describe the tax consequences to certain types of owners subject to special treatment under the federal income tax laws (for example, dealers in securities or other persons who do not hold the Bonds as a capital asset, tax-exempt organizations, individual retirement accounts and other tax deferred accounts, and foreign taxpayers), and, except for the income tax laws of the State of Utah, does not discuss the consequences to an owner under any state, local or foreign tax laws. The summary does not deal with the tax treatment of persons who purchase the Bonds in the secondary market. Prospective investors are advised to consult their own tax advisors regarding federal, state, local and other tax considerations of holding and disposing of the Bonds.

Opinion of Bond Counsel

In the opinion of Gilmore & Bell, P.C., Bond Counsel to the District, under the law currently existing as of the issue date of the Bonds:

Federal Tax Exemption. The interest on the Bonds is excludable from gross income for federal income tax purposes.

Alternative Minimum Tax. Interest on the Bonds is not an item of tax preference for purposes of computing the federal alternative minimum tax.

Bond counsel's opinions are provided as of the date of the original issue of the Bonds, subject to the condition that the District comply with all requirements of the Internal Revenue Code of 1986, as amended (the "Code") that must be satisfied subsequent to the issuance of the Bonds in order that interest thereon be, or continue to be, excludable from gross income for federal income tax purposes. The Issuer has covenanted to comply with all such requirements. Failure to comply with certain of such requirements may cause the inclusion of interest on the Bonds in gross income for federal income tax purposes retroactive to the date of issuance of the Bonds.

State of Utah Tax Exemption. The interest on the Bonds is exempt from State of Utah individual income taxes.

No Other Opinion. Bond Counsel is expressing no opinion regarding other federal, state or local tax consequences arising with respect to the Bonds but has reviewed the discussion under the heading "TAX MATTERS."

Other Tax Consequences

Original Issue Premium. For federal income tax purposes, premium is the excess of the issue price of a Bond over its stated redemption price at maturity. The stated redemption price at maturity of a Bond is the sum of all payments on the Bond other than "qualified stated interest" (i.e., interest unconditionally payable at least annually at a single fixed rate). The issue price of a Bond is generally the first price at which a substantial amount of the Bonds of that maturity have been sold to the public. Under Section 171 of the Code, premium on tax-exempt bonds amortizes over the term of the Bond using constant yield principles, based on the purchaser's yield to maturity. As premium is amortized, the owner's basis in the Bond and the amount of tax-exempt interest received will be reduced by the amount of amortizable premium properly allocable to the owner, which will result in an increase in the gain (or decrease in the loss) to be recognized for federal income tax purposes on sale or disposition of the Bond prior to its maturity. Even though the owner's basis is reduced, no federal income tax deduction is allowed. Prospective investors should consult their own tax advisors concerning the calculation and accrual of bond premium.

Sale, Exchange, or Retirement of Bonds. Upon the sale, exchange, or retirement (including redemption) of a Bond, an owner of the Bond generally will recognize gain or loss in an amount equal to the difference between the amount of cash and the fair market value of any property actually or constructively received on the sale, exchange, or retirement of the Bond (other than in respect of accrued and unpaid interest) and such owner's adjusted tax basis in the Bond. To the extent a Bond is held as a capital asset, such gain or loss will be capital gain or loss and will be long-term capital gain or loss if the Bond has been held for more than 12 months at the time of sale, exchange or retirement.

Reporting Requirements. In general, information reporting requirements will apply to certain payments of principal, interest and premium paid on the Bonds, and to the proceeds paid on the sale of the Bonds, other than certain exempt recipients (such as corporations and foreign entities). A backup withholding tax will apply to such payments if the owner fails to provide a taxpayer identification number or certification of foreign or other exempt status or fails to report in full dividend and interest income. The amount of any backup withholding from a payment to an owner will be allowed as a credit against the owner's federal income tax liability.

Collateral Federal Income Tax Consequences. Prospective purchasers of the Bonds should be aware that ownership of the Bonds may result in collateral federal income tax consequences to certain taxpayers, including, without limitation, certain applicable corporations subject to the corporate alternative minimum tax, financial institutions, property and casualty insurance companies, individual recipients of Social Security or Railroad Retirement benefits, certain S corporations with "excess net passive income," foreign corporations subject to the branch profits tax, life insurance companies, and taxpayers who may be deemed to have incurred or continued indebtedness to purchase or carry or have paid or incurred certain expenses allocable to the Bonds. Bond Counsel expresses no opinion regarding these tax consequences. Purchasers of Bonds should consult their tax advisors as to the applicability of these tax consequences and other federal income tax consequences of the purchase, ownership and disposition of the Bonds, including the possible application of state, local, foreign and other tax laws.

Bond Counsel notes that interest on the Bonds may be included in adjusted financial statement income of applicable corporations for purposes of determining the applicability and amount of the federal corporate alternative minimum tax.

CONTINUING DISCLOSURE

The District has agreed to provide to the Municipal Securities Rulemaking Board, via its Electronic Municipal Market Access system, the audited financial statements of the District and certain annual

financial information on or before September 30 after the completion date of the District's fiscal year, commencing September 30, 2026, and certain monthly information commencing September 1, 2025. The financial statements of the District are audited by the District's independent certified public accountants. The District has also agreed to provide notice to the Municipal Securities Rulemaking Board of the occurrence of certain material events with respect to the Bonds. These covenants have been made in order to assist the Underwriters in complying with SEC Rule 15c2-12 adopted by the Securities and Exchange Commission under the Securities Exchange Act of 1934, as amended. A form of the District's Continuing Disclosure Undertaking setting forth such obligations is attached as APPENDIX D to this Official Statement. The District has not previously entered into a continuing disclosure undertaking pursuant to the Rule.

MUNICIPAL ADVISOR

The District has entered into an agreement with the Municipal Advisor whereby the Municipal Advisor provides advice to the District regarding the pricing of the Bonds. The Municipal Advisor does *not* provide financial recommendations and guidance to the District with respect to preparation for sale of the Bonds, timing of sale, taxable and tax–exempt bond market conditions, costs of issuance and other factors related to the sale of the Bonds. The Municipal Advisor has read and participated in the drafting of certain portions of this Official Statement but has not supervised the completion and editing thereof. The Municipal Advisor has not audited, authenticated or otherwise verified the information set forth in this Official Statement, or any other related information available to the District, with respect to accuracy and completeness of disclosure of such information, and the Municipal Advisor makes no guaranty, warranty or other representation respecting accuracy and completeness of this Official Statement or any other matter related hereto.

UNDERWRITING

The Bonds are being purchased by Goldman Sachs & Co. LLC and D.A. Davidson & Co. (collectively, the "Underwriters"). The purchase contract relating to the Bonds (the "Purchase Contract") provides that the Underwriters will purchase all of the Bonds, if they are purchased. The purchase price of the 2025A Bonds is $678,401,454.64 (representing the principal amount of the 2025A Bonds of 649,895,000.00, plus original issue premium of $32,039,751.45, and less an underwriters' discount of $3,533,296.81). The purchase price of the 2025B Bonds is $201,794,731.01 (representing the principal amount of the 2025B Bonds of $194,460,000.00, plus original issue premium of $8,391,955.50, and less an underwriters' discount of $1,057,224.49). The purchase price of the 2025C Bonds is $24,651,582.02 (representing the principal amount of the 2025C Bond of $25,000,000.00, less an underwriters' discount of $348,417.98).

The obligation to make such purchase is subject to certain terms and conditions set forth in the Purchase Contract, the approval of certain legal matters by counsel and certain other conditions. The Underwriters reserve the right to join with dealers and other underwriters in offering the Bonds to the public. The Underwriters may offer and sell the Bonds to certain dealers (including dealers depositing the Bonds to investment trusts) and others at prices lower than the initial public offering prices indicated on the inside cover page hereof. The Underwriters may change the public offering prices from time to time without prior notice.

The Underwriters and their respective affiliates are full service financial institutions engaged in various activities, which may include sales and trading, commercial and investment banking, advisory, investment management, investment research, principal investment, hedging, market making, brokerage and other financial and non-financial activities and services. The Underwriters and their respective affiliates have provided, and may in the future provide, a variety of these services to the District and to persons and

entities with relationships with the District, for which they received or will receive customary fees and expenses.

In the ordinary course of their various business activities, the Underwriters and their respective affiliates, officers, directors and employees may purchase, sell or hold a broad array of investments and actively trade securities, derivatives, loans, commodities, currencies, credit default swaps and other financial instruments for their own account and for the accounts of their customers, and such investment and trading activities may involve or relate to assets, securities and/or instruments of the District (directly, as collateral securing other obligations or otherwise) and/or persons and entities with relationships with the District. The Underwriters and their respective affiliates may also communicate independent investment recommendations, market color or trading ideas and/or publish or express independent research views in respect of such assets, securities or instruments and may at any time hold, or recommend to clients that they should acquire, long and/or short positions in such assets, securities and instruments.

SENIOR BONDS RATINGS

It is anticipated that Moody's Investors Service (**"Moody's"**), S&P Global Ratings and Kroll Bond Rating Agency will assign the Senior Bonds the insured ratings of A1 (stable outlook), AA (stable outlook) and AA+ (stable outlook), respectively, upon the issuance and delivery of the Insurance Policies by AG at the time of delivery of the Senior Bonds. Moody's has assigned underlying municipal bond ratings of "A1" to the 2025A Bonds and "A3" to the 2025B Bonds, which reflects Moody's evaluation of the investment quality of the District, without regards to the issuance of the Insurance Policies or any other credit enhancement. No rating has been requested or assigned for the Subordinate Bonds.

Any explanation of the significance of these ratings should be obtained from rating agencies. There is no assurance that the ratings given to the Bonds will be maintained for any period of time or that a rating may not be lowered or withdrawn entirely by the rating agency if, in its judgment, circumstances so warrant. Any such downward change or withdrawal of such rating may have an adverse effect on the market price of the Bonds.

LITIGATION

The District. A no-litigation certificate issued by counsel for the District, dated the date of closing, will be provided stating, among other things, that to the best of its knowledge, after due inquiry, no action, suit, proceeding, inquiry, or any other litigation or investigation at law or in equity, before or by any court, public board or body, which is pending or threatened, challenging the creation, organization, or existence of the District or the titles of its officers to their respective offices or seeking to restrain or enjoin the issuance, sale, or delivery of the Bonds, or directly or indirectly contesting or affecting the proceedings or the authority by which the Bonds are issued or the validity of the Bonds or the issuance thereof.

The Developer. The Developer will provide a certificate to the District that there is no litigation of any nature now pending, or to the knowledge of the Developer, threatened, which could reasonably be expected to have a material and adverse effect upon the ability of the Developer to develop the Project as described herein, or materially and adversely affect the ability of SEG to perform its various obligations described in this Official Statement.

LEGAL MATTERS

Legal matters incident to the authorization and issuance of the Bonds are subject to the approving legal opinion of Gilmore & Bell, P.C., Salt Lake City, Utah, as Bond Counsel to the District. Certain legal matters will be passed upon for the District by Gilmore & Bell, P.C., Salt Lake City, Utah, as Disclosure

Counsel to the District. Certain legal matters will be passed upon for the District by Gilmore & Bell, P.C., Salt Lake City, Utah, as counsel to the District, and for the Senior Managing Underwriter by its counsel Kutak Rock LLP, Denver, Colorado. The various legal opinions to be delivered concurrently with the delivery of the Bonds express the professional judgment of the attorneys rendering the opinions as to the legal issues explicitly addressed therein. By rendering a legal opinion, the opinion giver does not become an insurer or guarantor of that expression of professional judgment, of the transaction opined upon, or for the future performance of parties to such transaction, nor does the rendering of an opinion guarantee the outcome of any legal dispute that may arise out of the transaction. A copy of the form of the approving opinion of Bond Counsel is set forth in "APPENDIX E" of this Official Statement.

MISCELLANEOUS

All quotations from and summaries and explanations of the Utah Constitution, statutes, programs, laws of the State of Utah, court decisions, and the Indenture, which are contained herein, do not purport to be complete, and reference is made to said Constitution, statutes, programs, laws, court decisions, and the Indenture for full and complete statements of their respective provisions.

Any statement in this Official Statement involving matters of opinion, whether or not expressly so stated, is intended as such and not as representations of fact.

This Official Statement is in a form "deemed final" by the District for purposes of Rule 15c2-12 of the Securities and Exchange Commission.

The appendices attached hereto are an integral part of this Official Statement and should be read in conjunction with the foregoing material.

The delivery of the Official Statement has been duly authorized by the District.

DOWNTOWN REVITALIZATION PUBLIC INFRASTRUCTURE DISTRICT

APPENDIX A

MUNICAP PLEDGED REVENUE REPORT

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SEG Redevelopment Project
Downtown Revitalization Public Infrastructure District
Salt Lake City, Utah

Pledged Revenue Report

June 5, 2025

Prepared By:

MuniCap, Inc.
Public Finance

SEG Redevelopment Project
Downtown Revitalization Public Infrastructure District
Salt Lake City, Utah

Pledged Revenue Report

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SEG Redevelopment Project
Downtown Revitalization Public Infrastructure District
Salt Lake City, Utah

Pledged Revenue Report

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I. RESULTS OF REPORT[1]

OVERVIEW

The purpose of this report is to provide estimates of certain future revenues generated within Salt Lake City, Utah (the "City") and available to the Downtown Revitalization Public Infrastructure District (the "District"). These revenues will be available for the payment of debt service on the following bonds to be issued by the District:

- First Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025A (the "2025A Bonds")
- Second Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025B (the "2025B Bonds," and, together with the 2025A Bonds, the "Senior Bonds")
- Subordinate Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025C (the "Subordinate Bonds," and, together with the Senior Bonds, the "Bonds")

Specifically, this report provides estimates of Pledged Revenue generated from the City's Revitalization Sales Tax, as subsequently described.

THE DISTRICT

DISTRICT CREATION

On April 8, 2025, the City passed a resolution creating the District, which is a convention center public infrastructure district in a capital city. The District was created pursuant to the following laws of the State of Utah (the "State"):

- Title 17D, Chapter 4 (the "PID Act")
- relevant portions of Title 63N, Chapter 3, Part 6 (the "CCRZ Act")
- Title 17B (the "Special District Act," and, together with the PID Act and the CCRZ Act, the "District Act")

The City also approved the District's governing document on April 8, 2025 (as may be amended or restated from time to time, the "Governing Document"), outlining the powers and structure of the District. Pursuant to the District Act and the Governing Document, the District is authorized to issue bonds to finance all or a portion of the costs associated with the District Redevelopment Project. Any such bonds will be issued pursuant to the following (along with the District Act and the Governing Document):

- the Local Government Bonding Act, Title 11, Chapter 14, Utah Code Annotated 1953, as amended (the "Bond Act")

[1] Capitalized terms not defined herein have the meaning as defined in the Official Statement (the "OS") or the Senior Indenture (as subsequently defined), except as noted.

- The Interlocal Capital Pledge Agreement between the City and the District dated April 8, 2025 (the "Pledge Agreement")

District Location and Boundaries

The District is located west of the City's downtown, adjacent to the Salt Palace Convention Center. The initial District boundaries are coterminous with the "Arena Development Property," an area that includes the existing Delta Center arena (the "Delta Center Block"). Jazz Area Investors, LLC, a subsidiary of Smith Entertainment Group, LLC ("SEG"), is the ground lessee of the Arena Development Property.

District Improvements and The Project

In connection with the creation of the Project Area, the City entered into a Participation, Tax Sharing and Reimbursement Agreement dated as of October 1, 2024, (the "Participation Agreement") with SEG and SEG Real Estate, LLC ("SEG Real Estate"). Pursuant to the Participation Agreement, a portion of the Revitalization Sales Tax will be used for the development of the District Redevelopment Project (as described below) on the SEG Property, including reimbursement of certain eligible expenses incurred by SEG, as allowed by the CCR Act.

The Board of Trustees of the District was created for the purpose of developing and redeveloping the SEG Property as a mixed-use district including sports, entertainment, cultural, lodging, residential, commercial, retail, office, and convention facilities ("District Improvements"). A significant portion of funds will be invested in remodeling and renovating the Delta Center, located on the Arena Redevelopment Property (the "Arena Renovation"). The renovated Delta Center will be used to host home games for the NHL's Utah Mammoth and the NBA's Utah Jazz. The Arena Renovation and the District Improvements are collectively referred to as the "District Redevelopment Project" or the "Project."

As noted throughout this report, projections of Pledged Revenue included herein are based on historical sales, adjusted for assumed increases in per capita spending and population growth. These forecasts do not contemplate any additional sales that may result from the successful delivery of the Project or any other specific development.

The Bonds

The Senior Bonds

The Senior Bonds will be issued in two series: the 2025A Bonds and the Series 2025B Bonds. The Senior Bonds are special limited sales tax revenue obligations of the District, secured by a lien on the Pledged Revenue that is senior to the lien on Pledged Revenue securing the Subordinate Bonds (the "Senior Pledged Revenue"). In turn, the lien on the Senior Pledged Revenue securing the 2025A Bonds is senior to the lien on the Senior Pledged Revenue securing the 2025B Bonds. The Senior Bonds have scheduled interest payments scheduled semiannually on June 1 and December 1 each year, commencing on December 1, 2025, and annual principal payments scheduled on June 1 each year, commencing on June 1, 2026.

THE SUBORDINATE BONDS

The Subordinate Bonds are "cash flow" obligations of the District secured by and payable from a lien on the Pledged Revenue that is subordinate to the lien on the Senior Pledged Revenue (the "Subordinate Pledged Revenue"). No regularly scheduled payments of principal are due on the Subordinate Bonds prior to their stated maturity date, and any interest payments on the Subordinate Bonds that are not paid when due will accrue and compound on each interest payment date (July 15 of each year) until sufficient Subordinate Pledged Revenue is available for payment, or until discharged as described in the OS.

USES

The proceeds from the sale of the Bonds will fund the following uses, with such terms defined in the OS:

- Senior Project Account Deposit
- Subordinate Project Account Deposit
- Second Lien Reserve Requirement
- Capitalized Interest for Subordinate Bonds (only on interest payable July 15, 2025)
- Costs of Issuance

PLEDGED REVENUE

As set forth in an indenture of trust related to the Senior Bonds to be dated as of June 1, 2025 (the "Senior Indenture")"), by and between the District and Zions Bancorporation, National Association, as trustee (the "Trustee"), Pledged Revenues are defined as follow:[2]

> "All income and revenue derived from (i) the Revitalization Sales Tax imposed by the City and transferred to the Trustee in accordance with the Participation Agreement, not in excess of the "Maximum Dollar Amount" as defined therein, and (ii) all investment income from any fund or account established under this Indenture (excluding investment income, if any, required to be retained in the Rebate Fund established herein). Pledged Revenues means all or a portion of the Pledged Revenues but does not include any amounts determined, pursuant to State law, to be subject to valid claims for refunds."

THE REVITALIZATION SALES TAX is a 0.5% sales and use tax adopted by the City on October 1, 2024, for a period of thirty years, commencing on January 1, 2025, and running through December 31, 2054, as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5. The City currently levies the Revitalization Sales Tax at the maximum rate permitted by State law.

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[2] Pursuant to the Participation Agreement, "Debt Service" includes (1) costs of issuance of the Bonds, (2) principal and interest on the Bonds, and (3) stabilization funds and/or other funding or reserve requirements under the Indentures. The funds available for payment of Eligible Expenses (as defined in the Participation Agreement), including Debt Service, incurred pursuant to the Participation Agreement consist solely of the Revitalization Sales Tax. The Participation Agreement provides that the maximum amount of the Revitalization Sales Tax that may be used for the Project or for the benefit of SEG and SEG Real Estate pursuant to the CCR Act is an amount equal to the Debt Service (the "Maximum Dollar Amount").

Pursuant to the CCR Act and the Participation Agreement, the City will receive an administrative fee equal to 1% of the Revitalization Sales Taxes collected (the "City Administrative Fee"). Projections of Pledged Revenue in this report are net of the City Administrative Fee.[3]

As more fully described in **SECTION II**, the District expects the City's historical Correctional Facility Tax revenues to be a reasonable proxy for what the Revitalization Sales Tax revenues would have been if they had been levied and collected over the same period. For purposes of this report, the historical Correctional Facility Tax revenues serve as a basis for projecting Revitalization Sales Tax revenues, as subsequently described.

ASSUMPTIONS FOR PROJECTED PLEDGED REVENUES

This report provides estimated assessed values, sales, and Pledged Revenues under the below-described assumptions.

"Base Scenario"

- Taxable sales are derived from historical Correctional Facility Tax revenues for calendar year 2024.
- Taxable sales are assumed to grow at an annual rate of 2.0% from calendar year 2025 through calendar year 2027.
- Taxable sales are assumed to grow at an annual rate of 2.5% in calendar year 2028, 3.0% in calendar year 2029, and 3.5% in each year thereafter.

"Downside Scenario" (differs from Base Case Scenario as follows)

- Taxable sales are assumed to decrease to 94.5% of prior year levels in 2026 to illustrate the impacts of a significant economic downturn.
- Taxable sales are assumed to grow at an annual rate of 2.0% in calendar year 2027, 2.5% in calendar year 2028, 3.0% in calendar year 2029, and 3.5% in each year thereafter.

"Reduced Growth Scenario" (differs from Base Case Scenario as follows)

- Taxable sales are assumed to increase at 1.010% annually beginning in calendar year 2025.

The methodology used to determine these assumptions is described in subsequent sections of this report.

[3] Projections of available Revitalization Sales Tax revenues are also net of District Administrative Expenses and Trustee fees, as noted in the accompanying appendices.

ORGANIZATION OF STUDY

The subsequent sections of this report are as follows:

SECTION II. REVITALIZATION SALES TAX: a discussion of tax collection procedures and historic collections for the City

SECTION III. HISTORICAL CHANGES IN TAX REVENUES: an analysis of historic appreciation of property values for the City

SECTION IV. ECONOMIC AND DEMOGRAPHIC INFORMATION: a summary of demographic trends and economic indicators for the market area

SECTION V. HISTORICAL TRENDS AND SECTOR ANALYSIS: an analysis of local and industry sales trends

SECTION VI. PROJECTED GROWTH RATE: an explanation of the growth rates assumed under each scenario

SECTION VII. PROJECTION OF PLEDGED REVENUES: a summary of the projection of Pledged Revenues under each scenario

SECTION VIII. ASSUMPTIONS AND LIMITATIONS: an account of the assumptions, limitations, caveats, and qualifications applicable to the forward-looking projections included herein

RESULTS OF STUDY

PAYMENT OF DEBT SERVICE

TABLE I-A, **TABLE I-B**, and **TABLE I-C** provide the projected payment of the Senior Bonds under the Base Scenario, Downside Scenario, and Limited Growth Scenario, respectively. **TABLE I-D, TABLE I-E** and **TABLE I-F** provide the projected payment of the Subordinate Bonds under the Base Scenario, Downside Scenario, and Limited Growth Scenario, respectively.

As shown in **TABLE I-A**, **TABLE I-B**, and **TABLE I-C**, Pledged Revenues are projected to be sufficient to pay scheduled debt service on the Senior Bonds in every year under each scenario.

As shown in **TABLE I-A**, under the Base Scenario, Pledged Revenues are projected to be sufficient to retire the Subordinate Bonds prior to the scheduled maturity date of July 15, 2035. As shown in **TABLE I-A** and **TABLE I-B**, under the Downside Scenario and the Limited Growth Scenario, respectively, Pledged Revenues are projected to be sufficient to retire the Subordinate Bonds prior to the discharge date of December 31, 2055.

Based on analysis by MuniCap, the "breakeven" growth rate for historical sales required to fully pay principal and interest in every year on the Senior Bonds and to fully pay off the Subordinate Bonds by the discharge date are as follows:[4]

- Series 2025A: -0.498% (assumes breakeven point occurs in bond year ending June 1, 2055)
- Senior Bonds (Series 2025A and Series 2025B): 0.713% (assumes Second Lien Reserve Fund balance of $6,969,863 is applied)
- Subordinate Bonds (Series 2025C): 0.600% (results in Subordinate Bonds fully paid off by December 31, 2055)[5]

The attached appendices provide the estimated Pledged Revenues and corresponding projected payment of debt service on an annual basis for the Bonds for each scenario.

[4] Stated growth rates assume application of available reserve funds.
[5] Assumes application and replenishment of Second Lien Reserve Fund.

TABLE I-A
Projected Net Debt Service Coverage—Senior Bonds (Base Scenario)

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Senior Debt Service[a]	Net Annual Debt Service			Revitalization Sales Tax Revenues Pledged To Sub. Debt Service	Cumulative Surplus Revenues	Debt Service Coverage	
		First Lien Senior Series 2025A[b]	Second Lien Senior Series 2025B[b]	Total			Series 2025A	Series 2025A and 2025B
1-Jun-26	$54,863,710	($38,212,136)	($11,432,887)	($49,645,024)	$5,218,686	$5,218,686	144%	111%
1-Jun-27	$56,491,956	($38,973,350)	($11,661,725)	($50,635,075)	$5,856,881	$11,075,568	145%	112%
1-Jun-28	$57,621,955	($39,753,600)	($11,896,475)	($51,650,075)	$5,971,880	$17,047,448	145%	112%
1-Jun-29	$59,062,704	($40,548,100)	($12,135,975)	($52,684,075)	$6,378,629	$23,426,077	146%	112%
1-Jun-30	$60,834,825	($41,358,600)	($12,374,225)	($53,732,825)	$7,102,000	$30,528,078	147%	113%
1-Jun-31	$62,853,916	($42,186,600)	($12,625,475)	($54,812,075)	$8,041,841	$38,569,919	149%	115%
1-Jun-32	$65,055,739	($43,033,350)	($12,878,225)	($55,911,575)	$9,144,164	$47,714,084	151%	116%
1-Jun-33	$67,334,660	($43,894,850)	($13,131,475)	($57,026,325)	$10,308,335	$58,022,418	153%	118%
1-Jun-34	$69,693,376	($44,772,100)	($13,394,225)	($58,166,325)	$11,527,051	$69,549,469	156%	120%
1-Jun-35	$72,134,681	($45,665,850)	($13,664,975)	($59,330,825)	$12,803,856	$82,353,325	158%	122%
1-Jun-36	$74,661,468	($46,581,600)	($13,937,225)	($60,518,825)	$14,142,643	$96,495,968	160%	123%
1-Jun-37	$77,276,728	($46,579,350)	($13,939,725)	($60,519,075)	$16,757,653	$113,253,621	166%	128%
1-Jun-38	$79,983,558	($46,580,850)	($13,934,725)	($60,515,575)	$19,467,983	$132,721,604	172%	132%
1-Jun-39	$82,785,165	($46,578,850)	($13,936,975)	($60,515,825)	$22,269,340	$154,990,944	178%	137%
1-Jun-40	$85,684,866	($46,581,350)	($13,935,475)	($60,516,825)	$25,168,041	$180,158,985	184%	142%
1-Jun-41	$88,686,096	($46,580,850)	($13,934,725)	($60,515,575)	$28,170,521	$208,329,506	190%	147%
1-Jun-42	$91,792,408	($46,577,313)	($13,938,188)	($60,515,500)	$31,276,908	$239,606,414	197%	152%
1-Jun-43	$95,007,481	($46,580,763)	($13,939,063)	($60,519,825)	$34,487,656	$274,094,070	204%	157%
1-Jun-44	$98,335,124	($46,577,788)	($13,936,563)	($60,514,350)	$37,820,774	$311,914,844	211%	162%
1-Jun-45	$101,779,275	($46,580,500)	($13,934,900)	($60,515,400)	$41,263,875	$353,178,719	219%	168%
1-Jun-46	$105,344,015	($46,580,225)	($13,938,025)	($60,518,250)	$44,825,765	$398,004,484	226%	174%
1-Jun-47	$109,033,565	($46,580,375)	($13,939,225)	($60,519,600)	$48,513,965	$446,518,449	234%	180%
1-Jun-48	$112,852,293	($46,578,025)	($13,935,675)	($60,513,700)	$52,338,593	$498,857,042	242%	186%
1-Jun-49	$116,804,722	($46,578,775)	($13,936,275)	($60,515,050)	$56,289,672	$555,146,714	251%	193%
1-Jun-50	$120,895,533	($46,577,675)	($13,939,375)	($60,517,050)	$60,378,483	$615,525,197	260%	200%
1-Jun-51	$125,129,569	($46,579,775)	($13,938,325)	($60,518,100)	$64,611,469	$680,136,666	269%	207%
1-Jun-52	$129,511,845	($46,579,575)	($13,936,750)	($60,516,325)	$68,995,520	$749,132,186	278%	214%
1-Jun-53	$134,047,550	($46,576,575)	($13,938,000)	($60,514,575)	$73,532,975	$822,665,160	288%	222%
1-Jun-54	$138,742,054	($46,580,000)	($13,935,150)	($60,515,150)	$78,226,904	$900,892,064	298%	229%
1-Jun-55	$143,600,918	($46,578,250)	($13,936,550)	($60,514,800)	$83,086,118	$983,978,182	308%	237%
Total	$2,737,901,755	($1,349,986,999)	($403,936,575)	($1,753,923,574)	$983,978,182			

[a] See Appendix A-1.

[b] Provided by Goldman Sachs & Co. LLC.

TABLE I-B
Projected Net Debt Service Coverage—Senior Bonds (Downside Scenario)

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Senior Debt Service[a]	Net Annual Debt Service			Revitalization Sales Tax Revenues Pledged To Sub. Debt Service	Cumulative Surplus Revenues	Debt Service Coverage	
		First Lien Senior Series 2025A[b]	Second Lien Senior Series 2025B[b]	Total			Series 2025A	Series 2025A and 2025B
1-Jun-26	$54,863,710	($38,212,136)	($11,432,887)	($49,645,024)	$5,218,686	$5,218,686	144%	111%
1-Jun-27	$52,337,548	($38,973,350)	($11,661,725)	($50,635,075)	$1,702,473	$6,921,159	134%	103%
1-Jun-28	$53,384,459	($39,753,600)	($11,896,475)	($51,650,075)	$1,734,384	$8,655,543	134%	103%
1-Jun-29	$54,719,270	($40,548,100)	($12,135,975)	($52,684,075)	$2,035,195	$10,690,738	135%	104%
1-Jun-30	$56,361,088	($41,358,600)	($12,374,225)	($53,732,825)	$2,628,263	$13,319,001	136%	105%
1-Jun-31	$58,223,598	($42,186,600)	($12,625,475)	($54,812,075)	$3,411,523	$16,730,525	138%	106%
1-Jun-32	$60,263,360	($43,033,350)	($12,878,225)	($55,911,575)	$4,351,785	$21,082,310	140%	108%
1-Jun-33	$62,374,547	($43,894,850)	($13,131,475)	($57,026,325)	$5,348,222	$26,430,532	142%	109%
1-Jun-34	$64,559,659	($44,772,100)	($13,394,225)	($58,166,325)	$6,393,334	$32,823,866	144%	111%
1-Jun-35	$66,821,285	($45,665,850)	($13,664,975)	($59,330,825)	$7,490,460	$40,314,326	146%	113%
1-Jun-36	$69,162,103	($46,581,600)	($13,937,225)	($60,518,825)	$8,643,278	$48,957,604	148%	114%
1-Jun-37	$71,584,885	($46,579,350)	($13,939,725)	($60,519,075)	$11,065,810	$60,023,414	154%	118%
1-Jun-38	$74,092,501	($46,580,850)	($13,934,725)	($60,515,575)	$13,576,926	$73,600,339	159%	122%
1-Jun-39	$76,687,921	($46,578,850)	($13,936,975)	($60,515,825)	$16,172,096	$89,772,435	165%	127%
1-Jun-40	$79,374,218	($46,581,350)	($13,935,475)	($60,516,825)	$18,857,393	$108,629,828	170%	131%
1-Jun-41	$82,154,575	($46,580,850)	($13,934,725)	($60,515,575)	$21,639,000	$130,268,828	176%	136%
1-Jun-42	$85,032,284	($46,577,313)	($13,938,188)	($60,515,500)	$24,516,784	$154,785,612	183%	141%
1-Jun-43	$88,010,753	($46,580,763)	($13,939,063)	($60,519,825)	$27,490,928	$182,276,540	189%	145%
1-Jun-44	$91,093,510	($46,577,788)	($13,936,563)	($60,514,350)	$30,579,160	$212,855,700	196%	151%
1-Jun-45	$94,284,205	($46,580,500)	($13,934,900)	($60,515,400)	$33,768,805	$246,624,505	202%	156%
1-Jun-46	$97,586,617	($46,580,225)	($13,938,025)	($60,518,250)	$37,068,367	$283,692,872	210%	161%
1-Jun-47	$101,004,658	($46,580,375)	($13,939,225)	($60,519,600)	$40,485,058	$324,177,930	217%	167%
1-Jun-48	$104,542,374	($46,578,025)	($13,935,675)	($60,513,700)	$44,028,674	$368,206,605	224%	173%
1-Jun-49	$108,203,957	($46,578,775)	($13,936,275)	($60,515,050)	$47,688,907	$415,895,511	232%	179%
1-Jun-50	$111,993,740	($46,577,675)	($13,939,375)	($60,517,050)	$51,476,690	$467,372,201	240%	185%
1-Jun-51	$115,916,214	($46,579,775)	($13,938,325)	($60,518,100)	$55,398,114	$522,770,315	249%	192%
1-Jun-52	$119,976,022	($46,579,575)	($13,936,750)	($60,516,325)	$59,459,697	$582,230,013	258%	198%
1-Jun-53	$124,177,973	($46,576,575)	($13,938,000)	($60,514,575)	$63,663,398	$645,893,411	267%	205%
1-Jun-54	$128,527,043	($46,580,000)	($13,935,150)	($60,515,150)	$68,011,893	$713,905,303	276%	212%
1-Jun-55	$133,028,381	($46,578,250)	($13,936,550)	($60,514,800)	$72,513,581	$786,418,884	286%	220%
Total	$2,540,342,458	($1,349,986,999)	($403,936,575)	($1,753,923,574)	$786,418,884			

[a]See Appendix B-1.

[b]Provided by Goldman Sachs & Co. LLC.

TABLE I-C
Projected Net Debt Service Coverage—Senior Bonds (Reduced Growth Scenario)

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Senior Debt Service[a]	Net Annual Debt Service			Revitalization Sales Tax Revenues Pledged To Sub. Debt Service	Cumulative Surplus Revenues	Debt Service Coverage	
		First Lien Senior Series 2025A[b]	Second Lien Senior Series 2025B[b]	Total			Series 2025A	Series 2025A and 2025B
1-Jun-26	$54,326,081	($38,212,136)	($11,432,887)	($49,645,024)	$4,681,057	$4,681,057	142%	109%
1-Jun-27	$55,400,515	($38,973,350)	($11,661,725)	($50,635,075)	$4,765,440	$9,446,497	142%	109%
1-Jun-28	$55,960,141	($39,753,600)	($11,896,475)	($51,650,075)	$4,310,066	$13,756,563	141%	108%
1-Jun-29	$56,525,419	($40,548,100)	($12,135,975)	($52,684,075)	$3,841,344	$17,597,907	139%	107%
1-Jun-30	$57,096,407	($41,358,600)	($12,374,225)	($53,732,825)	$3,363,582	$20,961,489	138%	106%
1-Jun-31	$57,562,753	($42,186,600)	($12,625,475)	($54,812,075)	$2,750,678	$23,712,167	136%	105%
1-Jun-32	$58,143,125	($43,033,350)	($12,878,225)	($55,911,575)	$2,231,550	$25,943,717	135%	104%
1-Jun-33	$58,729,336	($43,894,850)	($13,131,475)	($57,026,325)	$1,703,011	$27,646,728	134%	103%
1-Jun-34	$59,321,446	($44,772,100)	($13,394,225)	($58,166,325)	$1,155,121	$28,801,849	132%	102%
1-Jun-35	$59,919,514	($45,665,850)	($13,664,975)	($59,330,825)	$588,689	$29,390,538	131%	101%
1-Jun-36	$60,523,598	($46,581,600)	($13,937,225)	($60,518,825)	$4,773	$29,395,311	130%	100%
1-Jun-37	$61,133,761	($46,579,350)	($13,939,725)	($60,519,075)	$614,686	$30,009,996	131%	101%
1-Jun-38	$61,750,061	($46,580,850)	($13,934,725)	($60,515,575)	$1,234,486	$31,244,483	133%	102%
1-Jun-39	$62,372,562	($46,578,850)	($13,936,975)	($60,515,825)	$1,856,737	$33,101,220	134%	103%
1-Jun-40	$63,001,325	($46,581,350)	($13,935,475)	($60,516,825)	$2,484,500	$35,585,721	135%	104%
1-Jun-41	$63,636,413	($46,580,850)	($13,934,725)	($60,515,575)	$3,120,838	$38,706,559	137%	105%
1-Jun-42	$64,277,889	($46,577,313)	($13,938,188)	($60,515,500)	$3,762,389	$42,468,948	138%	106%
1-Jun-43	$64,925,818	($46,580,763)	($13,939,063)	($60,519,825)	$4,405,993	$46,874,941	139%	107%
1-Jun-44	$65,580,263	($46,577,788)	($13,936,563)	($60,514,350)	$5,065,913	$51,940,854	141%	108%
1-Jun-45	$66,241,291	($46,580,500)	($13,934,900)	($60,515,400)	$5,725,891	$57,666,745	142%	109%
1-Jun-46	$66,908,966	($46,580,225)	($13,938,025)	($60,518,250)	$6,390,716	$64,057,461	144%	111%
1-Jun-47	$67,583,356	($46,580,375)	($13,939,225)	($60,519,600)	$7,063,756	$71,121,218	145%	112%
1-Jun-48	$68,264,529	($46,578,025)	($13,935,675)	($60,513,700)	$7,750,829	$78,872,046	147%	113%
1-Jun-49	$68,952,551	($46,578,775)	($13,936,275)	($60,515,050)	$8,437,501	$87,309,547	148%	114%
1-Jun-50	$69,647,491	($46,577,675)	($13,939,375)	($60,517,050)	$9,130,441	$96,439,988	150%	115%
1-Jun-51	$70,349,419	($46,579,775)	($13,938,325)	($60,518,100)	$9,831,319	$106,271,307	151%	116%
1-Jun-52	$71,058,405	($46,579,575)	($13,936,750)	($60,516,325)	$10,542,080	$116,813,387	153%	117%
1-Jun-53	$71,774,519	($46,576,575)	($13,938,000)	($60,514,575)	$11,259,944	$128,073,331	154%	119%
1-Jun-54	$72,497,833	($46,580,000)	($13,935,150)	($60,515,150)	$11,982,683	$140,056,014	156%	120%
1-Jun-55	$73,228,418	($46,578,250)	($13,936,550)	($60,514,800)	$12,713,618	$152,769,632	157%	121%
Total	$1,906,693,205	($1,349,986,999)	($403,936,575)	($1,753,923,574)	$152,769,632			

[a] See Appendix C-1.

[b] Provided by Goldman Sachs & Co. LLC.

TABLE I-D
Projected Payment of Debt Service—Subordinate Bonds (Base Scenario)

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service[a]	Bonds Issued[b]	Beginning Balance	Current Interest Amount[c]	Current Interest Payment[d]	Surplus/(Deficit) After Current Interest Payments	Principal Payments	Ending Balance	Surplus/ (Deficit)	Cumulative Surplus
15-Jul-25	$0	$25,000,000	$25,000,000	$93,750	($93,750)	$0	$0	$25,000,000	$0	$0
15-Jul-26	$5,218,686		$25,000,000	$1,250,000	($1,250,000)	$3,968,686	($3,968,000)	$21,032,000	$686	$686
15-Jul-27	$5,856,881		$21,032,000	$1,051,600	($1,051,600)	$4,805,281	($4,805,000)	$16,227,000	$281	$968
15-Jul-28	$5,971,880		$16,227,000	$811,350	($811,350)	$5,160,530	($5,160,000)	$11,067,000	$530	$1,498
15-Jul-29	$6,378,629		$11,067,000	$553,350	($553,350)	$5,825,279	($5,825,000)	$5,242,000	$279	$1,777
15-Jul-30	$7,102,000		$5,242,000	$262,100	($262,100)	$6,839,900	($5,242,000)	$0	$1,597,900	$1,599,678
15-Jul-31	$8,041,841		$0	$0	$0	$8,041,841	$0	$0	$8,041,841	$9,641,519
15-Jul-32	$9,144,164		$0	$0	$0	$9,144,164	$0	$0	$9,144,164	$18,785,684
15-Jul-33	$10,308,335		$0	$0	$0	$10,308,335	$0	$0	$10,308,335	$29,094,018
15-Jul-34	$11,527,051		$0	$0	$0	$11,527,051	$0	$0	$11,527,051	$40,621,069
15-Jul-35	$12,803,856		$0	$0	$0	$12,803,856	$0	$0	$12,803,856	$53,424,925
15-Jul-36	$14,142,643		$0	$0	$0	$14,142,643	$0	$0	$14,142,643	$67,567,568
15-Jul-37	$16,757,653		$0	$0	$0	$16,757,653	$0	$0	$16,757,653	$84,325,221
15-Jul-38	$19,467,983		$0	$0	$0	$19,467,983	$0	$0	$19,467,983	$103,793,204
15-Jul-39	$22,269,340		$0	$0	$0	$22,269,340	$0	$0	$22,269,340	$126,062,544
15-Jul-40	$25,168,041		$0	$0	$0	$25,168,041	$0	$0	$25,168,041	$151,230,585
15-Jul-41	$28,170,521		$0	$0	$0	$28,170,521	$0	$0	$28,170,521	$179,401,106
15-Jul-42	$31,276,908		$0	$0	$0	$31,276,908	$0	$0	$31,276,908	$210,678,014
15-Jul-43	$34,487,656		$0	$0	$0	$34,487,656	$0	$0	$34,487,656	$245,165,670
15-Jul-44	$37,820,774		$0	$0	$0	$37,820,774	$0	$0	$37,820,774	$282,986,444
15-Jul-45	$41,263,875		$0	$0	$0	$41,263,875	$0	$0	$41,263,875	$324,250,319
15-Jul-46	$44,825,765		$0	$0	$0	$44,825,765	$0	$0	$44,825,765	$369,076,084
15-Jul-47	$48,513,965		$0	$0	$0	$48,513,965	$0	$0	$48,513,965	$417,590,049
15-Jul-48	$52,338,593		$0	$0	$0	$52,338,593	$0	$0	$52,338,593	$469,928,642
15-Jul-49	$56,289,672		$0	$0	$0	$56,289,672	$0	$0	$56,289,672	$526,218,314
15-Jul-50	$60,378,483		$0	$0	$0	$60,378,483	$0	$0	$60,378,483	$586,596,797
15-Jul-51	$64,611,469		$0	$0	$0	$64,611,469	$0	$0	$64,611,469	$651,208,266
15-Jul-52	$68,995,520		$0	$0	$0	$68,995,520	$0	$0	$68,995,520	$720,203,786
15-Jul-53	$73,532,975		$0	$0	$0	$73,532,975	$0	$0	$73,532,975	$793,736,760
15-Jul-54	$78,226,904		$0	$0	$0	$78,226,904	$0	$0	$78,226,904	$871,963,664
15-Jul-55	$83,086,118		$0	$0	$0	$83,086,118	$0	$0	$83,086,118	$955,049,782
Total	$983,978,182	$25,000,000		$4,022,150	($4,022,150)	$980,049,782	($25,000,000)		$955,049,782	

[a] See Appendix A-2.a.

[b] Provided by Goldman Sachs & Co. LLC.

[c] Assumes rate of 5.00%. Provided by Goldman Sachs & Co. LLC.

[d] Payment due bond year ending July 15, 2025 funded with capitalized interest. Provided by Goldman Sachs & Co. LLC.

TABLE I-E
Projected Payment of Debt Service—Subordinate Bonds (Downside Scenario)

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service[a]	Bonds Issued[b]	Beginning Balance	Current Interest Amount[c]	Current Interest Payment[d]	Surplus/(Deficit) After Current Interest Payments	Principal Payments	Ending Balance	Surplus/ (Deficit)	Cumulative Surplus
15-Jul-25	$0	$25,000,000	$25,000,000	$93,750	($93,750)	$0	$0	$25,000,000	$0	$0
15-Jul-26	$5,218,686		$25,000,000	$1,250,000	($1,250,000)	$3,968,686	($3,968,000)	$21,032,000	$686	$686
15-Jul-27	$1,702,473		$21,032,000	$1,051,600	($1,051,600)	$650,873	($650,000)	$20,382,000	$873	$1,559
15-Jul-28	$1,734,384		$20,382,000	$1,019,100	($1,019,100)	$715,284	($715,000)	$19,667,000	$284	$1,843
15-Jul-29	$2,035,195		$19,667,000	$983,350	($983,350)	$1,051,845	($1,051,000)	$18,616,000	$845	$2,688
15-Jul-30	$2,628,263		$18,616,000	$930,800	($930,800)	$1,697,463	($1,697,000)	$16,919,000	$463	$3,151
15-Jul-31	$3,411,523		$16,919,000	$845,950	($845,950)	$2,565,573	($2,565,000)	$14,354,000	$573	$3,725
15-Jul-32	$4,351,785		$14,354,000	$717,700	($717,700)	$3,634,085	($3,634,000)	$10,720,000	$85	$3,810
15-Jul-33	$5,348,222		$10,720,000	$536,000	($536,000)	$4,812,222	($4,812,000)	$5,908,000	$222	$4,032
15-Jul-34	$6,393,334		$5,908,000	$295,400	($295,400)	$6,097,934	($5,908,000)	$0	$189,934	$193,966
15-Jul-35	$7,490,460		$0	$0	$0	$7,490,460	$0	$0	$7,490,460	$7,684,426
15-Jul-36	$8,643,278		$0	$0	$0	$8,643,278	$0	$0	$8,643,278	$16,327,704
15-Jul-37	$11,065,810		$0	$0	$0	$11,065,810	$0	$0	$11,065,810	$27,393,514
15-Jul-38	$13,576,926		$0	$0	$0	$13,576,926	$0	$0	$13,576,926	$40,970,439
15-Jul-39	$16,172,096		$0	$0	$0	$16,172,096	$0	$0	$16,172,096	$57,142,535
15-Jul-40	$18,857,393		$0	$0	$0	$18,857,393	$0	$0	$18,857,393	$75,999,928
15-Jul-41	$21,639,000		$0	$0	$0	$21,639,000	$0	$0	$21,639,000	$97,638,928
15-Jul-42	$24,516,784		$0	$0	$0	$24,516,784	$0	$0	$24,516,784	$122,155,712
15-Jul-43	$27,490,928		$0	$0	$0	$27,490,928	$0	$0	$27,490,928	$149,646,640
15-Jul-44	$30,579,160		$0	$0	$0	$30,579,160	$0	$0	$30,579,160	$180,225,800
15-Jul-45	$33,768,805		$0	$0	$0	$33,768,805	$0	$0	$33,768,805	$213,994,605
15-Jul-46	$37,068,367		$0	$0	$0	$37,068,367	$0	$0	$37,068,367	$251,062,972
15-Jul-47	$40,485,058		$0	$0	$0	$40,485,058	$0	$0	$40,485,058	$291,548,030
15-Jul-48	$44,028,674		$0	$0	$0	$44,028,674	$0	$0	$44,028,674	$335,576,705
15-Jul-49	$47,688,907		$0	$0	$0	$47,688,907	$0	$0	$47,688,907	$383,265,611
15-Jul-50	$51,476,690		$0	$0	$0	$51,476,690	$0	$0	$51,476,690	$434,742,301
15-Jul-51	$55,398,114		$0	$0	$0	$55,398,114	$0	$0	$55,398,114	$490,140,415
15-Jul-52	$59,459,697		$0	$0	$0	$59,459,697	$0	$0	$59,459,697	$549,600,113
15-Jul-53	$63,663,398		$0	$0	$0	$63,663,398	$0	$0	$63,663,398	$613,263,511
15-Jul-54	$68,011,893		$0	$0	$0	$68,011,893	$0	$0	$68,011,893	$681,275,403
15-Jul-55	$72,513,581		$0	$0	$0	$72,513,581	$0	$0	$72,513,581	$753,788,984
Total	$786,418,884	$25,000,000		$7,723,650	($7,723,650)	$778,788,984	($25,000,000)		$753,788,984	

[a] See Appendix B-2.a.

[b] Provided by Goldman Sachs & Co. LLC.

[c] Assumes rate of 5.00%. Provided by Goldman Sachs & Co. LLC.

[d] Payment due bond year ending July 15, 2025 funded with capitalized interest. Provided by Goldman Sachs & Co. LLC.

TABLE I-F
Projected Payment of Debt Service—Subordinate Bonds (Reduced Growth Scenario)

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service[a]	Bonds Issued[b]	Beginning Balance	Current Interest Amount[c]	Current Interest Payment[d]	Surplus/(Deficit) After Current Interest Payments	Accrued Interest Account Beg. Bal.	Interest[c]	Sub-total	Increase/(Decrease)	End. Bal.	Surplus/(Deficit) After Accrued Interest Payments	Principal Payments	Ending Balance	Surplus/ (Deficit)	Cumulative Surplus
15-Jul-25	$0	$25,000,000	$25,000,000	$93,750	($93,750)	$0	$0	$0	$0	$0	$0	$0	$0	$25,000,000	$0	$0
15-Jul-26	$4,681,057		$25,000,000	$1,250,000	($1,250,000)	$3,431,057	$0	$0	$0	$0	$0	$3,431,057	($3,431,000)	$21,569,000	$57	$57
15-Jul-27	$4,765,440		$21,569,000	$1,078,450	($1,078,450)	$3,686,990	$0	$0	$0	$0	$0	$3,686,990	($3,686,000)	$17,883,000	$990	$1,047
15-Jul-28	$4,310,066		$17,883,000	$894,150	($894,150)	$3,415,916	$0	$0	$0	$0	$0	$3,415,916	($3,415,000)	$14,468,000	$916	$1,963
15-Jul-29	$3,841,344		$14,468,000	$723,400	($723,400)	$3,117,944	$0	$0	$0	$0	$0	$3,117,944	($3,117,000)	$11,351,000	$944	$2,907
15-Jul-30	$3,363,582		$11,351,000	$567,550	($567,550)	$2,796,032	$0	$0	$0	$0	$0	$2,796,032	($2,796,000)	$8,555,000	$32	$2,939
15-Jul-31	$2,750,678		$8,555,000	$427,750	($427,750)	$2,322,928	$0	$0	$0	$0	$0	$2,322,928	($2,322,000)	$6,233,000	$928	$3,867
15-Jul-32	$2,231,550		$6,233,000	$311,650	($311,650)	$1,919,900	$0	$0	$0	$0	$0	$1,919,900	($1,919,000)	$4,314,000	$900	$4,767
15-Jul-33	$1,703,011		$4,314,000	$215,700	($215,700)	$1,487,311	$0	$0	$0	$0	$0	$1,487,311	($1,487,000)	$2,827,000	$311	$5,078
15-Jul-34	$1,155,121		$2,827,000	$141,350	($141,350)	$1,013,771	$0	$0	$0	$0	$0	$1,013,771	($1,013,000)	$1,814,000	$771	$5,849
15-Jul-35	$588,689		$1,814,000	$90,700	($90,700)	$497,989	$0	$0	$0	$0	$0	$497,989	($497,000)	$1,317,000	$989	$6,838
15-Jul-36	$4,773		$1,317,000	$65,850	($4,773)	($61,077)	$0	$0	$0	$61,077	$61,077	$0	$0	$1,317,000	$0	$6,838
15-Jul-37	$614,686		$1,317,000	$65,850	($65,850)	$548,836	$61,077	$3,054	$64,131	($64,131)	$0	$484,705	($484,000)	$833,000	$705	$7,543
15-Jul-38	$1,234,486		$833,000	$41,650	($41,650)	$1,192,836	$0	$0	$0	$0	$0	$1,192,836	($833,000)	$0	$359,836	$367,379
15-Jul-39	$1,856,737		$0	$0	$0	$1,856,737	$0	$0	$0	$0	$0	$1,856,737	$0	$0	$1,856,737	$2,224,116
15-Jul-40	$2,484,500		$0	$0	$0	$2,484,500	$0	$0	$0	$0	$0	$2,484,500	$0	$0	$2,484,500	$4,708,617
15-Jul-41	$3,120,838		$0	$0	$0	$3,120,838	$0	$0	$0	$0	$0	$3,120,838	$0	$0	$3,120,838	$7,829,455
15-Jul-42	$3,762,389		$0	$0	$0	$3,762,389	$0	$0	$0	$0	$0	$3,762,389	$0	$0	$3,762,389	$11,591,844
15-Jul-43	$4,405,993		$0	$0	$0	$4,405,993	$0	$0	$0	$0	$0	$4,405,993	$0	$0	$4,405,993	$15,997,837
15-Jul-44	$5,065,913		$0	$0	$0	$5,065,913	$0	$0	$0	$0	$0	$5,065,913	$0	$0	$5,065,913	$21,063,750
15-Jul-45	$5,725,891		$0	$0	$0	$5,725,891	$0	$0	$0	$0	$0	$5,725,891	$0	$0	$5,725,891	$26,789,641
15-Jul-46	$6,390,716		$0	$0	$0	$6,390,716	$0	$0	$0	$0	$0	$6,390,716	$0	$0	$6,390,716	$33,180,357
15-Jul-47	$7,063,756		$0	$0	$0	$7,063,756	$0	$0	$0	$0	$0	$7,063,756	$0	$0	$7,063,756	$40,244,114
15-Jul-48	$7,750,829		$0	$0	$0	$7,750,829	$0	$0	$0	$0	$0	$7,750,829	$0	$0	$7,750,829	$47,994,942
15-Jul-49	$8,437,501		$0	$0	$0	$8,437,501	$0	$0	$0	$0	$0	$8,437,501	$0	$0	$8,437,501	$56,432,443
15-Jul-50	$9,130,441		$0	$0	$0	$9,130,441	$0	$0	$0	$0	$0	$9,130,441	$0	$0	$9,130,441	$65,562,884
15-Jul-51	$9,831,319		$0	$0	$0	$9,831,319	$0	$0	$0	$0	$0	$9,831,319	$0	$0	$9,831,319	$75,394,203
15-Jul-52	$10,542,080		$0	$0	$0	$10,542,080	$0	$0	$0	$0	$0	$10,542,080	$0	$0	$10,542,080	$85,936,283
15-Jul-53	$11,259,944		$0	$0	$0	$11,259,944	$0	$0	$0	$0	$0	$11,259,944	$0	$0	$11,259,944	$97,196,227
15-Jul-54	$11,982,683		$0	$0	$0	$11,982,683	$0	$0	$0	$0	$0	$11,982,683	$0	$0	$11,982,683	$109,178,910
15-Jul-55	$12,713,618		$0	$0	$0	$12,713,618	$0	$0	$0	$0	$0	$12,713,618	$0	$0	$12,713,618	$121,892,528
Total	$152,769,632	$25,000,000		$5,967,800	($5,906,723)	$146,895,582		$3,054		($3,054)		$146,892,528	($25,000,000)		$121,892,528	

[a] See Appendix C-2.a.

[b] Provided by Goldman Sachs & Co. LLC.

[c] Assumes rate of 5.00%. Provided by Goldman Sachs & Co. LLC.

[d] Payment due bond year ending July 15, 2025 funded with capitalized interest. Provided by Goldman Sachs & Co. LLC.

II. REVITALIZATION SALES TAX

OVERVIEW

The Revitalization Sales Tax is a 0.5% sales and use tax adopted by the City on October 1, 2024, for a period of thirty years, commencing on January 1, 2025, and running through December 31, 2054, as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5. The City currently levies the Revitalization Sales Tax at the maximum rate permitted by State law. Projections herein assume that the Revitalization Sales Tax will continue to be levied at the rate of 0.5%.

The Revitalization Sales Tax is generally applicable to all transactions occurring within the City. Transactions not subject to the Revitalization Sales Tax include sales of motor vehicles, aircrafts, watercrafts, modular homes, manufactured homes, and mobile homes.[6] Revitalization Sales Tax revenues remitted to the Trustee are net of the City Administration Fee, equal to 1% of the Revitalization Sales Tax Revenues collected..

COMPARISON TO CORRECTIONAL FACILITY TAX

The City has previously imposed a 0.5% sales and use tax known as the Correctional Facility Tax, pursuant to Salt Lake City Ordinance No. 18 of 2018. The Correctional Facility Tax was established, approved, and levied pursuant to Utah Code Annotated Section 59-12-402.1.

According to the District, the Correctional Facility Tax is levied upon the same transactions and at the same rate as the Revitalization Sales Tax, and thus historical collections of the Correctional Facility Tax serve as a reasonable proxy for what the Revitalization Sales Tax would have generated if it had been levied and collected over the same period.

Historical Correctional Facility Tax revenues are as shown below in **TABLE II-A.**

TABLE II-A
Historical Correctional Facility Tax Revenues

Actuals Received	Total Correctional Facility Tax	Annual Change
Actuals CY 19	$38,679,538	
Actuals CY 20	$37,125,446	-4.02%
Actuals CY 21	$45,963,576	23.81%
Actuals CY 22	$53,461,359	16.31%
Actuals CY 23	$53,435,667	-0.05%
Actuals CY 24	$54,854,540	2.66%
Actuals CY 25	$14,195,789	

[a]Source: Utah State Tax Commission, Financial Operations Division. Calendar Year 2025 Correction Facility Tax revenues represent three months of collections (sales occurring in January, February, and March of 2025, with taxes remitted to Utah State Tax Commission in March, April, and May of 2025).

[6] Additional exemptions may apply.

Unlike the Correctional Facility Tax, pursuant to Utah Code Annotated Section 59-12-402.5, the Pledged Revenues exclude any of such Revitalization Sales Tax revenues collected within the Utah Fairpark Area Investment and Restoration District (the "Fairpark District"). The Fairpark District encompasses approximately one hundred acres in the western portion of the City, owned and being developed by the Larry H. Miller Company. At the time of this writing, planned development for the Fairfield District is still under way. Based on a review by MuniCap of historical sales tax revenues remitted to the Fairpark District, the difference between historical Correctional Facility Tax revenues and those that would have been generated by the Revitalization Sales Tax is de minimis and has not been factored into projections included in this report.

COLLECTION TIMELINE

Vendors operating within the City are required to collect applicable sales taxes, including the Revitalization Sales Tax, at the point of sale. The frequency with which vendors are required to remit collected sales taxes to the Utah State Tax Commission varies depending on the annual sales tax liability for the general state sales tax of 4.85%, with those vendors who have an annual general sales tax liability of more than $50,001 required to remit monthly.

For vendors filing returns monthly, sales taxes must be remitted to the Utah State Tax Commission by the last day of the month following the month in which the transaction occurred. In turn, any sales taxes collected on the City's behalf, the Utah State Tax Commission generally distributes such taxes on a monthly basis in the month following receipt by the Utah State Tax Commission.

For purposes of forecasting Pledged Revenues in this report, it is assumed that there is up to a five-month lag between the point of sale and remittance of funds to the Trustee. **TABLE II-B** and **TABLE II-C** show the projected timeline between the occurrence of a given transaction and transfers to the Trustee, using bond year ending June 1, 2027, as an example.

TABLE II-B
Timeline for Monthly Transfer of Pledged Revenue (December 2026 Senior Bond Payment)

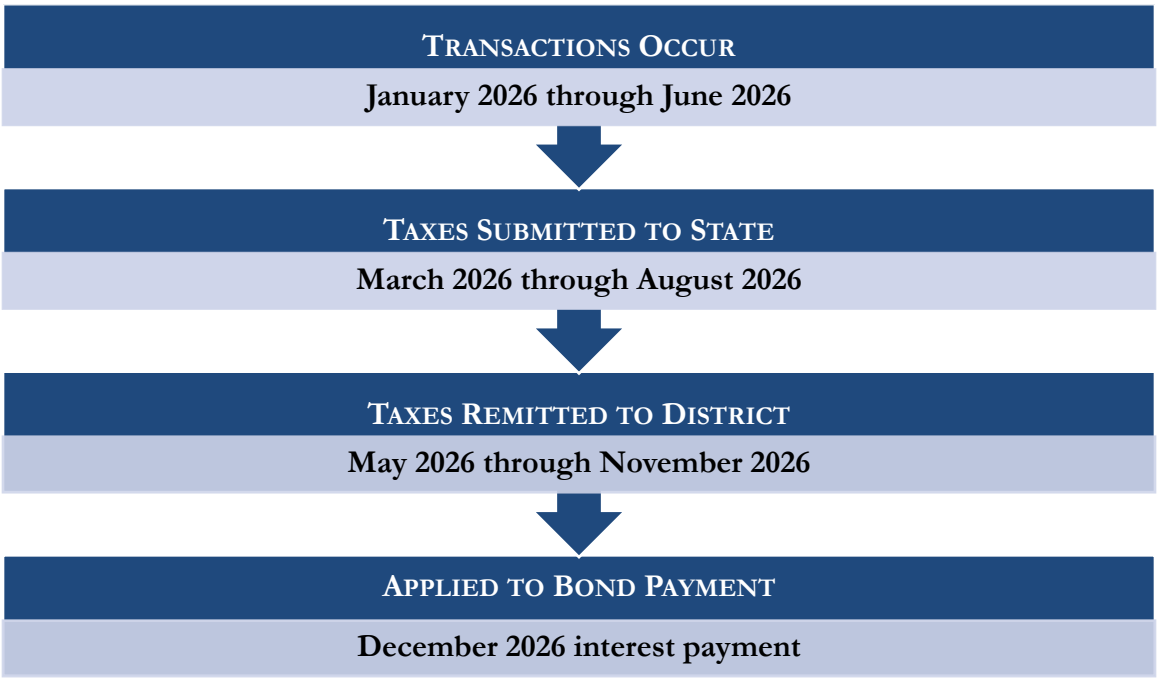
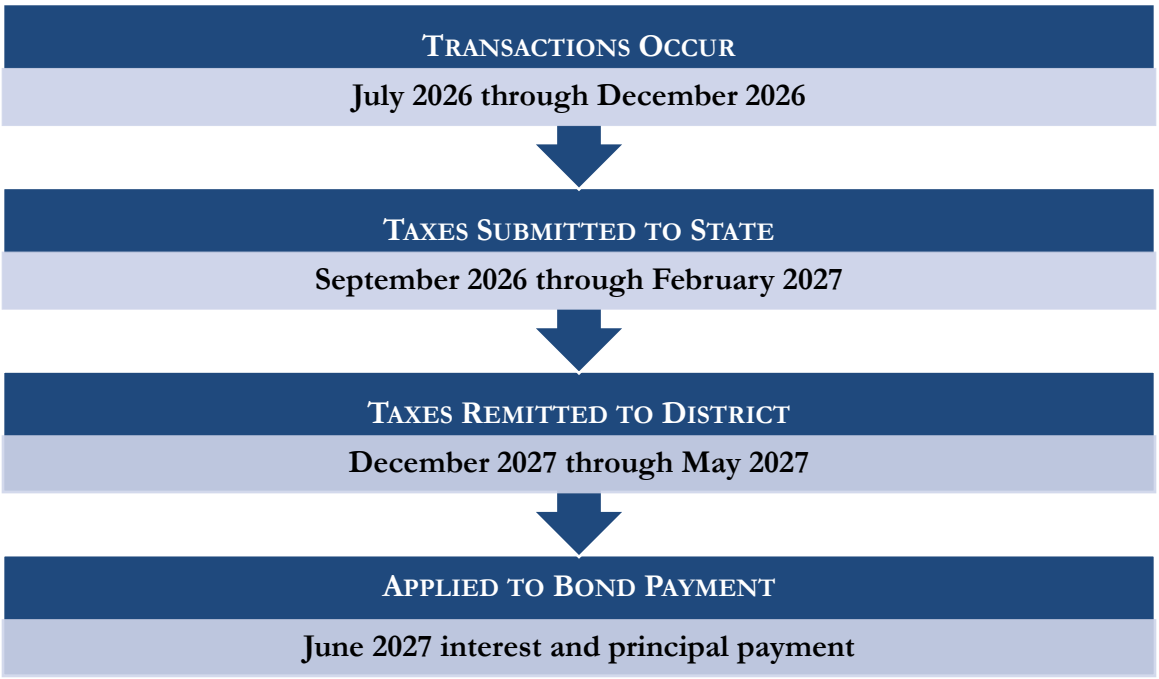


TABLE II-C
Timeline for Monthly Transfer of Pledged Revenue (June 2027 Senior Bond Payment)



III. Historical Changes in Tax Revenues

Overview

It is generally expected that sales taxes, all else being equal, will increase over time. Similarly, taxable sales are expected to increase over time due to inflation, without consideration of new construction of retail properties. This section provides an analysis of the expected increases in the City based on historic and indicative data in the market area.

Sales

Based on the data shown in **Table II-A**, Correctional Facility Tax revenues increased at a compounded annual growth rate of 7.24% from 2019 through 2024, although this growth has not been uniform, with large increases in 2021 and 2022, and more moderate or negative growth in other years.

MuniCap also reviewed historical growth in general sales taxes for the City, based on Utah State Tax Commission data. In this review, MuniCap concluded that, from 1998 through 2023, overall taxable sales within the City increased at a compounded annual growth rate of 4.37%. When adjusted for population growth, the historical sales increased at a compounded annual growth rate of 3.09%. See **V. Historical Sales Trends and Sector Analysis** for additional information and analysis related to sales.

According to U.S. Bureau of Economic Analysis data, per capita personal consumption expenditures for the State increased from $22,025 as of January 1, 2003, to $51,027 as of January 1, 2023, a compounded annual increase of 4.3%.

Under the Base Case Scenario, Municap assumed a 2.0% growth in tax revenue in 2025 through 2027 in acknowledgement of relatively small increases in the Correctional Facility Tax in 2023 through 2024. The assumed annual growth rate increases to 2.5% in 2028, 3.0% in 2029, and 3.5% starting in 2030 in that scenario, which reflects both annual inflationary increases in per capita spending and projected population growth. While these assumptions are believed to be reasonable, it should be noted that sales revenues are impacted by local, regional, and national economic factors that are not contemplated in this report. Pledged Revenues will likely not increase uniformly from year to year and may decrease in some years.

IV. Economic and Demographic Information

General

The City is the capital and most populous city in the State, the core of the Salt Lake City Metropolitan Statistical Area (MSA), and the seat of Salt Lake County (the "County"). The County is the most populous in the State, with more than 35% of the State population residing in the County. As shown in **Table IV-A**, the County population has grown significantly over time.



TABLE IV-A
Population Growth (2013-2023)

Area	Population[(a)]			
	2013	2020	2023	% Change
City	188,141	200,133	203,888	8.37%
County	1,048,314	1,146,215	1,184,689	13.01%
MSA	1,107,434	1,215,955	1,261,337	13.90%
State	2,813,673	3,151,239	3,331,187	18.39%
United States	311,536,594	326,569,308	332,387,540	6.69%

[(a)]Based on *American Community Survey 5-Year Estimates*, U.S. Census Bureau.

From 2000 through 2020, the State's population grew at a compounded annual growth rate of 1.7%, making it the fastest growing state in the nation. Based on U.S. Census Bureau data, the Salt Lake City MSA ranked 60th out of 384 MSAs nationwide in percentage population growth from 2010 through 2019.[7]

According to the Kem C. Gardner Policy Institute of the University of Utah, the County population is projected to grow at a compounded annual growth rate of 0.84% through 2060, adding approximately 475,000 residents during that time.[8] As shown in **Table IV-B,** the number of housing units has increased more rapidly in the City, County, MSA, and State than nationwide.

[7] *Cumulative Estimates of Resident Population Change and Rankings for Metropolitan Statistical Areas in the United States and Puerto Rico: April 1, 2010 to July 1, 2019.* U.S. Census Bureau.
[8] https://gardner.utah.edu/utah-demographics/population-projections/state-and-county-projections-tableau/ (accessed by MuniCap, May 21, 2025).

TABLE IV-B
GROWTH IN HOUSING UNITS (2013-2023)

Area	Housing Units[a]			
	2013	2020	2023	% Change
City	80,212	88,155	97,318	21.33%
County	366,569	404,550	440,166	20.08%
MSA	386,245	427,135	464,304	20.21%
State	988,571	1,110,369	1,193,082	20.69%
United States	132,057,804	138,432,751	142,332,876	7.78%

[a]Based on *American Community Survey 5-Year Estimates*, U.S. Census Bureau.

AGE

Based on U.S. Census Bureau data, the median age of residents in the City, County, MSA is younger than the median age of residents in the nation.

TABLE IV-C
MEDIAN AGE COMPARISON

Area	Median Age
City	33.0
County	**33.8**
MSA	33.7
State	**31.7**
United States	38.7

2023 American Community Survey 5-Year Estimates. U.S. Census Bureau.

EDUCATION

The level of educational attainment for residents of the City, County, and MSA has increased in recent years. The percentage of City residents with a bachelor's degree or higher, when compared to the percentages for the State and nation, is relatively high.

TABLE IV-D
EDUCATIONAL ATTAINMENT COMPARISON (POPULATION AGE 25 AND OVER)

	High School Diploma or Higher		Bachelor's Degree or Higher	
	2013	2023	2013	2023
City	86.30%	91.60%	41.20%	50.90%
County	**89.20%**	**91.70%**	**31.10%**	**38.60%**
MSA	89.20%	91.80%	30.50%	37.80%
State	**90.30%**	**93.30%**	**33.00%**	**36.90%**
United States	86.00%	89.40%	28.80%	35.00%

2013 and 2023 American Community Survey 5-Year Estimates, U.S. Census Bureau.

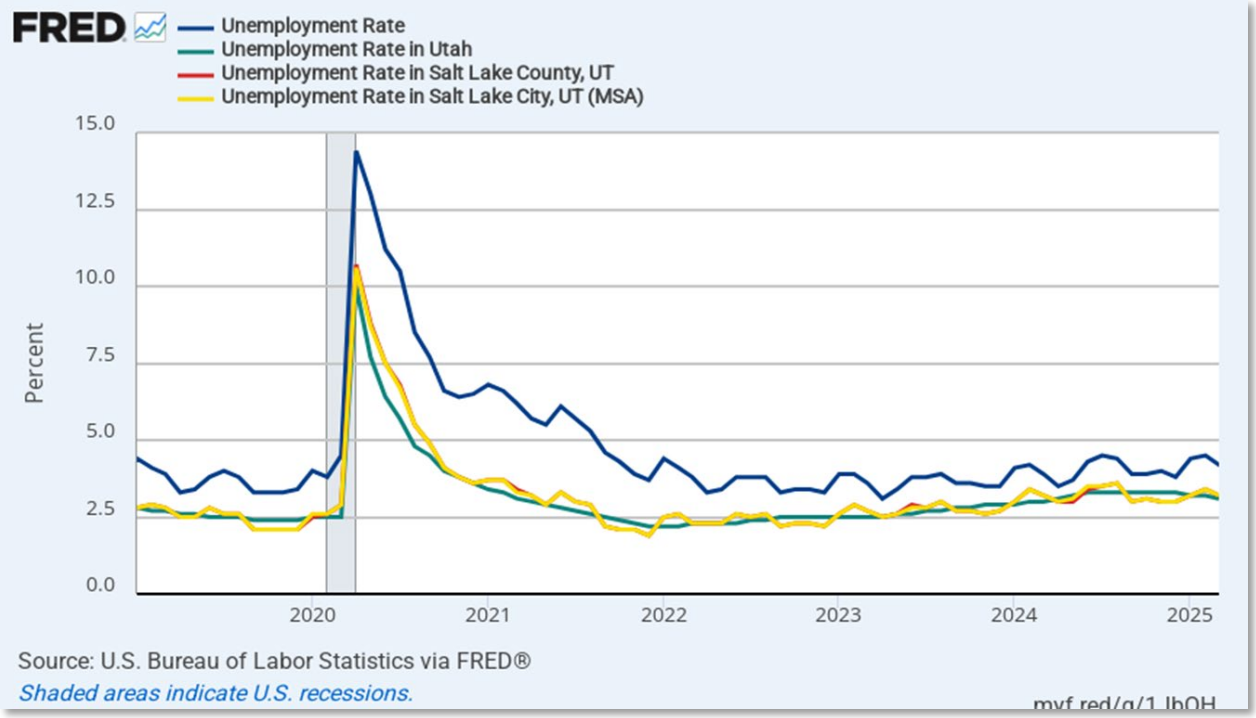
The County is home to the University of Utah, Westminster College, and Utah State University. Bringham Young University operates education centers in the City.

ECONOMIC INDICATORS

EMPLOYMENT

From January 2020 through March 2020, the County's unemployment rate ranged from 4.0% to 4.5%. Over this same period, the MSA's unemployment rate ranged from 2.7% to 3.0%. Unemployment rates peaked in May 2020 at 13.0% and 7.8% for the County and MSA, respectively, reflecting the effects of the Covid-19 pandemic. Since then, unemployment rates returned to at or near pre-pandemic levels. Generally, regional unemployment rates have been in line with the corresponding rate for the greater United States, but the County's rate has been higher. As of March 2025, the unemployment rates for the County and the MSA were 4.2% and 3.1%, respectively, while the national unemployment rate was 3.32%.[9]

FIGURE 2: REGIONAL UNEMPLOYMENT RATES REMAIN BELOW 4.5%



The region's employment base is diverse, with prominent sectors including education, healthcare, finance, technology, tourism, and professional and business services. Principal employers include University Hospital, Amazon SLCI, Delta Airlines, Fidelity Brokerage Services LLC, and Skywest Airlines, Inc.[10]

[9] Federal Reserve Bank of St. Louis, Research Division. Not seasonally adjusted.
[10] *Annual Comprehensive Financial Report for the Fiscal Year Ended June 30, 2024*. Salt Lake City Corporation.

FIGURE 3 shows the workforce composition within the Salt Lake City metropolitan region based on data from CoStar, a provider of information, analytics, and marketing services for commercial property.

FIGURE 3: MARKET EMPLOYMENT BY INDUSTRY, SALT LAKE CITY METROPOLITAN REGION

NAICS Industry	CURRENT JOBS		CURRENT GROWTH		10 YR HISTORICAL		5 YR FORECAST	
	JOBS	LQ	MARKET	US	MARKET	US	MARKET	US
Manufacturing	66K	1.0	1.98%	-0.73%	1.89%	0.37%	0.76%	0.16%
Trade, Transportation and Utilities	163K	1.0	0.62%	0.76%	2.05%	0.88%	0.56%	0.22%
Retail Trade	75K	0.9	-2.38%	0.28%	0.55%	0.04%	0.47%	0.20%
Financial Activities	65K	1.3	2.64%	0.97%	2.12%	1.35%	1.10%	0.40%
Government	121K	1.0	3.40%	1.44%	1.72%	0.71%	0.83%	0.18%
Natural Resources, Mining and Construction	64K	1.3	6.02%	1.67%	5.76%	2.15%	1.39%	0.65%
Education and Health Services	106K	0.7	5.66%	3.29%	3.35%	2.18%	1.18%	0.67%
Professional and Business Services	148K	1.2	0.97%	-0.28%	2.39%	1.41%	0.89%	0.64%
Information	26K	1.6	1.90%	-0.15%	3.69%	0.74%	1.18%	0.34%
Leisure and Hospitality	72K	0.8	2.78%	1.46%	2.39%	1.25%	1.34%	1.10%
Other Services	22K	0.7	0.95%	1.20%	0.52%	0.71%	0.42%	0.22%
TOTAL EMPLOYMENT	**853K**	**1.0**	**2.56%**	**1.15%**	**2.47%**	**1.22%**	**0.93%**	**0.48%**

Source: Oxford Economics
LQ = Location Quotient

INCOME

Median and mean incomes in the City are generally lower than those for the greater United States, but growth in income has been more steep, as shown in **TABLE VII-E** on the following page.

TABLE IV-E
COMPARISON OF HOUSEHOLD INCOME AND INDIVIDUAL EARNINGS

	Household Income				Individual Earnings (Full-Time, Year-Round)			
	2013	2023	% Change	CAGR	2013	2023	% Change	CAGR
City								
Median	**$45,862**	**$74,925**	**63.37%**	**5.03%**	**$31,685**	**$52,654**	**66.18%**	**5.21%**
Mean	**$69,724**	**$111,189**	**59.47%**	**4.78%**	**$56,663**	**$85,746**	**51.33%**	**4.23%**
County								
Median	$60,555	$94,658	56.32%	4.57%	$34,766	$54,189	55.87%	4.54%
Mean	$77,055	$121,509	57.69%	4.66%	$55,331	$81,839	47.91%	3.99%
MSA								
Median	$60,616	$95,045	56.80%	4.60%	$35,051	$54,330	55.00%	4.48%
Mean	$76,748	$121,478	58.28%	4.70%	$55,189	$81,202	47.13%	3.94%
State								
Median	$58,821	$91,750	55.98%	4.55%	$34,725	$52,135	50.14%	4.15%
Mean	$73,717	$117,307	59.13%	4.76%	$55,224	$80,382	45.56%	3.83%
United States								
Median	$53,046	$78,538	48.06%	4.00%	$35,644	$51,184	43.60%	3.68%
Mean	$73,487	$110,491	50.35%	4.16%	$58,701	$82,838	41.12%	3.50%

2013 and 2023 ACS 5-Years Estimates.

CONSUMER SPENDING

According to U.S. Bureau of Economic Analysis data, per capita personal consumption expenditures for the State increased from $22,025 as of January 1, 2003, to $51,027 as of January 1, 2023, a compounded annual increase of 4.3%. An analysis by CoStar project that per capita consumer spending in the immediate market area will continue to increase over the next five years.

FIGURE 4: AVERAGE HOUSEHOLD & PER CAPITA SPENDING IN THE SUBMARKET ARE PROJECTED TO INCREASE BY 1.7% ANNUALLY

Household & Per Capita Spending--2024

Radius	5 miles			10 miles		
Expand All	Total Spending	Avg Household	Per Capita	Total Spending	Avg Household	Per Capita
Apparel	$146,939,027	$1,512	$642	$439,661,561	$1,718	$634
Entertainment, Hobbies & P...	$437,223,931	$4,501	$1,911	$1,313,773,817	$5,132	$1,894
Food & Alcohol	$827,055,190	$8,513	$3,614	$2,375,338,758	$9,279	$3,424
Household	$467,334,108	$4,810	$2,042	$1,405,383,202	$5,490	$2,026
Transportation & Maintenance	$725,000,656	$7,463	$3,168	$2,237,707,782	$8,742	$3,226
Health Care	$136,660,959	$1,407	$597	$407,595,388	$1,592	$588
Education & Daycare	$194,118,895	$1,998	$848	$559,369,589	$2,185	$806
Total Specified Consumer S...	$2,934,332,766	$30,204	$12,823	$8,738,830,097	$34,138	$12,597

Household & Per Capita Spending--2029 (Projected)

Radius	5 miles			10 miles		
Expand All	Total Spending	Avg Household	Per Capita	Total Spending	Avg Household	Per Capita
Apparel	$157,996,769	$1,593	$679	$471,893,928	$1,810	$669
Entertainment, Hobbies & P...	$465,818,486	$4,697	$2,002	$1,396,100,009	$5,354	$1,978
Food & Alcohol	$917,317,525	$9,250	$3,942	$2,634,302,055	$10,102	$3,732
Household	$492,869,356	$4,970	$2,118	$1,475,845,480	$5,660	$2,091
Transportation & Maintenance	$843,615,532	$8,507	$3,625	$2,604,537,886	$9,988	$3,690
Health Care	$156,592,380	$1,579	$673	$465,668,721	$1,786	$660
Education & Daycare	$209,704,408	$2,115	$901	$615,457,427	$2,360	$872
Total Specified Consumer S...	$3,243,914,456	$32,712	$13,940	$9,663,805,506	$37,060	$13,691

HOME VALUES AND OWNERSHIP CHARACTERISTICS

Median values for owner-occupied homes in the City are higher than the median value of homes in the nation overall and have increased in value at a steeper rate.

TABLE IV-F
HOME VALUE COMPARISON

Area	Median Home Value (Owner-Occupied Units)			
	2013	2023	% Change	CAGR
City	**$236,600**	**$495,700**	**109.51%**	**7.68%**
County	$232,100	$484,500	108.75%	7.64%
MSA	**$228,700**	**$478,200**	**109.09%**	**7.66%**
State	$212,800	$455,000	113.82%	7.90%
United States	$176,700	$303,400	71.70%	5.55%

[a] *2013 and 2023 American Community Survey 5-Year Estimates.* U.S. Census Bureau.

V. Historical Trends and Sector Analysis

General City Sales and Trends

Based on analysis of taxable sales data from the Utah State Tax Commission, per capita sales within the City are high relative to the rest of the State. Based on **Table IV-A**, the City's resident population represents approximately 6.1% of the total State population. According to Utah State Tax Commission data, however, the City accounted for approximately 11.5% of the total taxable sales within the State in 2024. This high level of spending is in keeping with the City's reputation as a tourist destination, as the relatively high level of spending can in part be attributed to non-residents visiting the City.

According to CoStar, the Salt Lake metropolitan area is responsible for roughly 40% of the State's tourist-generated tax revenue, with Salt Lake City International Airport being a primary gateway in the region. The presence of the airport and convention center and proximity to numerous ski resorts and national parks are driving forces for the local tourism industry. The Olympic Games Committee announced that the City will host the 2034 Winter and Paralympic Games. CoStar reports that local officials predict the economic impact to the region could amount to $6.6 billion.

Based on Utah State Tax Commission Data, from 1998 through 2023, taxable sales in the City increased by a compounded annual growth rate of 4.4%. During this same period, the population increased at a compounded annual growth rate of 1.2% and taxable sales per capita increased at a compounded annual growth rate of 3.09%. Refer to **Appendix D** of this report for supporting data.

Per Capita Consumption

Table V-A on the following page shows historical personal consumption expenditures per capita for pertinent sectors.

TABLE V-A
PERSONAL CONSUMPTION EXPENDITURES PER CAPITA

Personal Consumption Expenditures Per Capita									
	United States	State of Utah							
	Goods & Services	Goods				Services			
Period	All	All Durable Goods	All Durable Goods	Food & Beverage	Clothing & Footwear	All	Recreation Services	Food & Accom. Services	Other Services
YoY	4.4%	0.8%	1.8%	3.1%	2.0%	4.2%	4.6%	4.3%	4.3%
5-Year Trend	5.9%	9.3%	6.6%	6.7%	4.3%	4.2%	5.2%	4.5%	4.0%
10-Year Trend	4.6%	8.6%	4.6%	4.9%	3.4%	4.1%	5.1%	4.3%	4.0%
15-Year Trend	4.0%	5.7%	3.2%	3.2%	2.6%	5.3%	5.2%	5.8%	5.9%
20-Year Trend	3.7%	5.2%	3.9%	3.8%	2.4%	6.6%	5.4%	6.1%	6.3%
25-Year Trend	3.9%	4.6%	3.7%	3.4%	2.1%	7.6%	6.6%	9.7%	1.0%

U.S. Bureau of Economic Analysis, retrieved from FRED, Federal Reserve Bank of St. Louis;

MARKET OVERVIEW

According to CoStar, the City's economy continues to grow, albeit at a slower pace than in recent years. In keeping with national trends, job growth is cooling. In the trailing twelve months, employment growth in Salt Lake City is at 2.8%. Office-based employment has underperformed at 1.5% but remains positive. The population has grown by 1.5% in the past year, versus the national average of 0.9%, adding 19,000 residents.

The City's finance sector has provided major tailwinds for the local economy. In addition to traditional banks, there are fifteen industrial banks located within the metropolitan area. In total, these industrial banks account for roughly one-fifth of Utah's financial assets.

Expansion plans from sizable companies bolster Salt Lake City's outlook. CleanJoule, an aviation firm, committed to adding 100 high-paying jobs and investing $150 million in the state in the next decade. Strider, a data intelligence firm, announced it would grow its footprint in the southern portion of the metro and create more than 150 jobs in the next five years.

The $4.1 billion Salt Lake International Airport (SLC) expansion continues. The project opened its first phase in the fall of 2020 and delivered its second phase in 2024. The third and fourth phases are slated to wrap up in late 2025 and early 2026. These expansions will allow the airport to support an estimated thirty-four million visitors annually.

VI. Projected Growth Rates

Scenarios

This report provides estimated assessed values, sales, and Pledged Revenues under the below-described assumptions.

"Base Case Scenario"

- Taxable sales are derived from historical Correctional Facility Tax revenues for calendar year 2024.
- Taxable sales are assumed to grow at an annual rate of 2.0% from calendar year 2025 through calendar year 2027.
- Taxable sales are assumed to grow at an annual rate of 2.5% in calendar year 2028, 3.0% in calendar year 2029, and 3.5% in each year thereafter.

"Downside Scenario" (differs from Base Case Scenario as follows)

- Taxable sales are assumed to decrease to 94.5% of prior year levels in 2026 to illustrate the impacts of a significant economic downturn.
- Taxable sales are assumed to grow at an annual rate of 2.0% in calendar year 2027, 2.5% in calendar year 2028, 3.0% in calendar year 2029, and 3.5% in each year thereafter.

"Reduced Growth Scenario" (differs from Base Case Scenario as follows)

- Taxable sales are assumed to increase at 0.8146% annually beginning in calendar year 2025.

Under the Base Case Scenario, Municap assumed a 2.0% growth in tax revenue in 2025 through 2027 in acknowledgement of relatively small increases in the Correctional Facility Tax in 2023 through 2024. The assumed annual growth rate increases to 2.5% in 2028, 3.0% in 2029, and 3.5% starting in 2030 in that scenario. As noted in **V. Historical Sales Trends and Sector Analysis**, from 1998 through 2023, taxable sales in the City increased by a compounded annual growth rate of 4.4% and taxable sales per capita increased at a compounded annual growth rate of 3.1%. As noted in **IV. Economic and Demographic Information**, the Kem C. Gardner Policy Institute of the University of Utah projects the County population to grow at a compounded annual growth rate of 0.8% through 2060. A combination of the historical increase in per capita expenditures of 3.1% and the projected population growth of 0.8% yields a combined projected compounded annual growth rate of 3.9%. For purposes of this analysis, MuniCap assumed a stabilized growth rate of 3.5% under the Base Scenario.

Under the Downside Scenario, MuniCap assumed a one-time decrease from historical sales in 2026 in acknowledgement of general uncertainty about national and global economic conditions in the immediate future.

Under the Reduced Growth Scenario, MuniCap assumed a lower growth rate to illustrate the extended impact of sales falling short of forecasts.

VII. PROJECTION OF PLEDGED REVENUES

PLEDGED REVENUES

Projected taxable sales and Pledged Revenues for the Bond Year Ending June 1, 2036, and cumulatively through 2055 are shown in **TABLE VII-A**.

TABLE VII-A
Projected Sales and Pledged Revenues
(Bond Year Ending June 1, 2036)

Scenario	Projected Sales	Projected Pledged Revenues	
		Annual	Cumulative
Base Scenario	$15,109,367,116	$75,546,836	$2,769,897,539
Downside Scenario	$13,998,384,240	$69,991,921	$2,570,342,692
Reduced Growth Scenario	$12,645,804,641	$63,229,023	$2,022,976,340

Refer to **APPENDIX A**, **APPENDIX B**, and **APPENDIX C** of this report for detailed projections of sales and Pledged Revenues on an annual basis under the Base Scenario, Downside Scenario, and Reduced Growth Scenario, respectively.

VIII. ASSUMPTIONS & LIMITATIONS

This report provides estimates of sales revenues. Actual sales revenues will almost certainly differ from the estimates included in this report. Many factors not considered in this report may impact actual future sales, and sales are not likely to be consistent from year to year. Prices, preferences, and spending patterns can change significantly over time, with resultant taxable sales materially higher or lower than values in previous years. Competition can be greater, national or local market conditions can change, travel can be impeded, and industries can be disrupted.

In summation, there are many factors that can affect property values and taxable sales. These factors make the projection of future sales an imprecise exercise.

This report estimates future Pledged Revenues based on the current Revitalization Sales Tax rate. The scenarios included herein do not assume the Revitalization Sales Tax rate in the future will differ from the rate currently imposed. The rate may vary in future years and differ from the rate assumed in this report. A significant decrease in the Revitalization Sales Tax would materially affect the Pledged Revenues available for repayment of debt service on the Bonds.

This report assumes various growth rates for taxable sales under each scenario. Actual growth in sales will not be consistent from year to year and may decrease in any future year.

This report makes assumptions regarding sales subject to taxation. The County, City, or State could introduce new exemptions, reducing the overall sales subject to the Revitalization Sales Tax. An increase in exempted sales could materially reduce the Pledged Revenues available for debt service.

The OS includes additional information on the Project, the collection of Revitalization Sales Tax, and other matters relevant to this report, including risk factors related to the Bonds. This report should be reviewed in conjunction with the OS and all relevant information therein applies to this report.

Numerous sources of information were used in the preparation of this report. These sources are believed to be reliable; however, no effort has been made to verify information obtained from other sources.

In summary, this report necessarily incorporates numerous estimates and assumptions with respect to City performance, general and local business and economic conditions, the absence of material changes in the competitive environment, and other matters. Some estimates or assumptions will inevitably not materialize, and unanticipated events and circumstances will occur. As a result, actual results will vary from the estimates in this report and the variations may be material.

Other assumptions made in the preparation of this report and limiting conditions to this report are as follows:

1. There are no zoning, building, safety, environmental or other federal, state, or local laws, regulations, or codes that would prohibit or impair the operation of the subject properties in the manner contemplated in this report, and the subject properties will be operated in compliance with all applicable laws, regulations, and codes.

2. No material changes will occur in (a) any federal, state or local law, regulation or code affecting the subject properties or (b) any federal, state or local grant, financing or other program to be utilized in connection with the subject properties.

3. The local, national and international economies will not deteriorate and there will be no significant changes in interest rates or in rates of inflation or deflation.

4. The subject properties will be served by adequate transportation, utilities, and governmental facilities.

5. The subject properties will not be subjected to any war, energy crises, embargo, strike, earthquake, flood, fire or other casualty or act of God.

6. The subject properties will be operated in a highly professional manner.

7. There are no existing, impending or threatened litigation that could hinder the operation of the subject properties.

8. MuniCap does not have expertise in and has no responsibility for legal, environmental, architectural, geologic, engineering, and other matters related to the operation of the subject properties.

ADDENDUM A: COSTAR REALTY INFORMATION, INC. DISCLAIMER

The modeling, calculations, forecasts, projections, evaluations, analyses, simulations, or other forward-looking information prepared by CoStar ("CoStar") and presented herein (the "CoStar Materials") are based on various assumptions concerning future events and circumstances, all of which are uncertain and subject to change without notice. Actual results and events may differ materially from the projections presented. All CoStar Materials speak only as of the date referenced with respect to such data and may have changed since such date, which changes may be material. You should not construe any of the CoStar Materials as investment, tax, accounting, or legal advice.

CoStar does not purport that the CoStar Materials herein are comprehensive, and, while they are believed to be accurate, the CoStar Materials are not guaranteed to be free from error, omission or misstatement. CoStar has no obligation to update any of the CoStar Materials included in this document. Any user of any such CoStar Materials accepts them "AS IS" WITHOUT ANY WARRANTIES WHATSOEVER, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO THE IMPLIED WARRANTIES OF MERCHANTABILITY, NONINFRINGEMENT, TITLE, AND FITNESS FOR ANY PARTICULAR PURPOSE. UNDER NO CIRCUMSTANCES SHALL COSTAR OR ANY OF ITS AFFILIATES, OR ANY OF THEIR DIRECTORS, OFFICERS, EMPLOYEES OR AGENTS, BE LIABLE FOR ANY INDIRECT, INCIDENTAL OR CONSEQUENTIAL DAMAGES WHATSOEVER ARISING OUT OF THE COSTAR MATERIALS, EVEN IF COSTAR OR ANY OF ITS AFFILIATES HAS BEEN ADVISED AS TO THE POSSIBILITY OF SUCH DAMAGES.

The CoStar Materials do not purport to contain all the information that may be required to evaluate City sales or any purchase or sale of the Bonds. Any potential investor should conduct his, her or its own independent investigation and analysis of the merits and risks of an investment in the Bonds. CoStar does not sponsor, endorse, offer or promote an investment in the Bonds. The user of any such CoStar Materials accepts full responsibility for his, her or its own investment decisions and for the consequences of those decisions.

Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendices to the Pledged Revenue Report

Prepared By:

MUNICAP, INC.
PUBLIC FINANCE

Scenario A (Base Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Assumptions:

2.0% Annual Increase in Sales

Rising to 2.5% in 2028, 3.0% in 2029

and 3.5% Starting in 2030

Scenario A (Base Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Projected Revitalization Sales Tax Revenues
Available For Debt Service

Scenario A (Base Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix A-1: Projected Revitalization Sales Tax Revenues Available For Debt Service

Operation Year Ending	Sales Filing Date[a]	Bond Year Ending	Change Factor[b]	Revitalization Sales Revenues[c]	Revitalization Sales Tax Rate[d]	Revitalization Sales Tax Revenues	Less: City Admin. Fee[e]	Less: Administrative Expenses[f]	Less: Trustee Fee[g]	Revitalization Sales Tax Revenues Pledged To Debt Service
31-Dec-24	31-Jan-25	1-Jun-25	100.0%	$10,970,907,904	0.00%	$0	$0	$0	$0	$0
31-Dec-25	31-Jan-26	1-Jun-26	102.0%	$11,190,326,062	0.50%	$55,951,630	($559,516)	($520,404)	($8,000)	$54,863,710
31-Dec-26	31-Jan-27	1-Jun-27	102.0%	$11,414,132,583	0.50%	$57,070,663	($570,707)	$0	($8,000)	$56,491,956
31-Dec-27	31-Jan-28	1-Jun-28	102.0%	$11,642,415,235	0.50%	$58,212,076	($582,121)	$0	($8,000)	$57,621,955
31-Dec-28	31-Jan-29	1-Jun-29	102.5%	$11,933,475,616	0.50%	$59,667,378	($596,674)	$0	($8,000)	$59,062,704
31-Dec-29	31-Jan-30	1-Jun-30	103.0%	$12,291,479,884	0.50%	$61,457,399	($614,574)	$0	($8,000)	$60,834,825
31-Dec-30	31-Jan-31	1-Jun-31	103.5%	$12,721,681,680	0.50%	$63,608,408	($636,084)	($110,408)	($8,000)	$62,853,916
31-Dec-31	31-Jan-32	1-Jun-32	103.5%	$13,166,940,539	0.50%	$65,834,703	($658,347)	($112,616)	($8,000)	$65,055,739
31-Dec-32	31-Jan-33	1-Jun-33	103.5%	$13,627,783,458	0.50%	$68,138,917	($681,389)	($114,869)	($8,000)	$67,334,660
31-Dec-33	31-Jan-34	1-Jun-34	103.5%	$14,104,755,879	0.50%	$70,523,779	($705,238)	($117,166)	($8,000)	$69,693,376
31-Dec-34	31-Jan-35	1-Jun-35	103.5%	$14,598,422,335	0.50%	$72,992,112	($729,921)	($119,509)	($8,000)	$72,134,681
31-Dec-35	31-Jan-36	1-Jun-36	103.5%	$15,109,367,116	0.50%	$75,546,836	($755,468)	($121,899)	($8,000)	$74,661,468
31-Dec-36	31-Jan-37	1-Jun-37	103.5%	$15,638,194,966	0.50%	$78,190,975	($781,910)	($124,337)	($8,000)	$77,276,728
31-Dec-37	31-Jan-38	1-Jun-38	103.5%	$16,185,531,789	0.50%	$80,927,659	($809,277)	($126,824)	($8,000)	$79,983,558
31-Dec-38	31-Jan-39	1-Jun-39	103.5%	$16,752,025,402	0.50%	$83,760,127	($837,601)	($129,361)	($8,000)	$82,785,165
31-Dec-39	31-Jan-40	1-Jun-40	103.5%	$17,338,346,291	0.50%	$86,691,731	($866,917)	($131,948)	($8,000)	$85,684,866
31-Dec-40	31-Jan-41	1-Jun-41	103.5%	$17,945,188,411	0.50%	$89,725,942	($897,259)	($134,587)	($8,000)	$88,686,096
31-Dec-41	31-Jan-42	1-Jun-42	103.5%	$18,573,270,006	0.50%	$92,866,350	($928,664)	($137,279)	($8,000)	$91,792,408
31-Dec-42	31-Jan-43	1-Jun-43	103.5%	$19,223,334,456	0.50%	$96,116,672	($961,167)	($140,024)	($8,000)	$95,007,481
31-Dec-43	31-Jan-44	1-Jun-44	103.5%	$19,896,151,162	0.50%	$99,480,756	($994,808)	($142,825)	($8,000)	$98,335,124
31-Dec-44	31-Jan-45	1-Jun-45	103.5%	$20,592,516,452	0.50%	$102,962,582	($1,029,626)	($145,681)	($8,000)	$101,779,275
31-Dec-45	31-Jan-46	1-Jun-46	103.5%	$21,313,254,528	0.50%	$106,566,273	($1,065,663)	($148,595)	($8,000)	$105,344,015
31-Dec-46	31-Jan-47	1-Jun-47	103.5%	$22,059,218,437	0.50%	$110,296,092	($1,102,961)	($151,567)	($8,000)	$109,033,565
31-Dec-47	31-Jan-48	1-Jun-48	103.5%	$22,831,291,082	0.50%	$114,156,455	($1,141,565)	($154,598)	($8,000)	$112,852,293
31-Dec-48	31-Jan-49	1-Jun-49	103.5%	$23,630,386,270	0.50%	$118,151,931	($1,181,519)	($157,690)	($8,000)	$116,804,722
31-Dec-49	31-Jan-50	1-Jun-50	103.5%	$24,457,449,789	0.50%	$122,287,249	($1,222,872)	($160,844)	($8,000)	$120,895,533
31-Dec-50	31-Jan-51	1-Jun-51	103.5%	$25,313,460,532	0.50%	$126,567,303	($1,265,673)	($164,061)	($8,000)	$125,129,569
31-Dec-51	31-Jan-52	1-Jun-52	103.5%	$26,199,431,651	0.50%	$130,997,158	($1,309,972)	($167,342)	($8,000)	$129,511,845
31-Dec-52	31-Jan-53	1-Jun-53	103.5%	$27,116,411,758	0.50%	$135,582,059	($1,355,821)	($170,689)	($8,000)	$134,047,550
31-Dec-53	31-Jan-54	1-Jun-54	103.5%	$28,065,486,170	0.50%	$140,327,431	($1,403,274)	($174,102)	($8,000)	$138,742,054
31-Dec-54	31-Jan-55	1-Jun-55	103.5%	$29,047,778,186	0.50%	$145,238,891	($1,452,389)	($177,584)	($8,000)	$143,600,918
Total						$2,769,897,539	($27,698,975)	($4,056,808)	($240,000)	$2,737,901,755

MuniCap, Inc.

[a]According to the Utah State Tax Commission, businesses can file returns monthly, quarterly, or annually depending on the previous year's tax liability. Projections assume monthly filings. A monthly return is due the last day of the month after the filing period. Revitalization sales tax revenues are collected by the Utah State Tax Commission and distributed to the City monthly. There is up to a two-month lag between the date of sale and the actual receipt of funds by Utah State Tax Commission. Projections assume up to a five-month lag between sales and receipt of Revitalization Sales Tax revenues by Trustee.
[b]Assumes a 2.0% annual increase in sales, rising to 2.5% in 2028, 3.0% in 2029, and 3.5% starting in 2030. Preliminary and subject to change.
[c]Revitalization Sales Tax revenues based on information provided by Utah State Tax Commission. See Appendix D-1. Assumed to increase at rate of change factor shown.
[d]Sales and use tax adopted by the City on October 1, 2024 for a period of thirty years (commencing on January 1, 2025 through December 31, 2054) as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5.
[e]City administration fees equal 1% of revitalization sales tax revenues. Source: Participation Agreement.
[f]Administrative expenses $100,000, growing at 2% annually. First five years pre-funded by Revitalization Sales Tax revenues collected year to date. Provided by Goldman Sachs & Co. LLC.
[g]Trustee fee provided by Goldman Sachs & Co. LLC.

Scenario A (Base Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Projected Payment of Debt Service

Scenario A (Base Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix A-2.a: Projected Payment of Debt Service - Senior Bonds

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Senior Debt Service[a]	Net Annual Debt Service			Revitalization Sales Tax Revenues Pledged To Sub. Debt Service	Cumulative Surplus Revenues	Debt Service Coverage	
		First Lien Senior Series 2025A[b]	Second Lien Senior Series 2025B[b]	Total			Series 2025A	Series 2025A and 2025B
1-Jun-25	$0	$0	$0	$0	$0	$0	-	-
1-Jun-26	$54,863,710	($38,212,136)	($11,432,887)	($49,645,024)	$5,218,686	$5,218,686	144%	111%
1-Jun-27	$56,491,956	($38,973,350)	($11,661,725)	($50,635,075)	$5,856,881	$11,075,568	145%	112%
1-Jun-28	$57,621,955	($39,753,600)	($11,896,475)	($51,650,075)	$5,971,880	$17,047,448	145%	112%
1-Jun-29	$59,062,704	($40,548,100)	($12,135,975)	($52,684,075)	$6,378,629	$23,426,077	146%	112%
1-Jun-30	$60,834,825	($41,358,600)	($12,374,225)	($53,732,825)	$7,102,000	$30,528,078	147%	113%
1-Jun-31	$62,853,916	($42,186,600)	($12,625,475)	($54,812,075)	$8,041,841	$38,569,919	149%	115%
1-Jun-32	$65,055,739	($43,033,350)	($12,878,225)	($55,911,575)	$9,144,164	$47,714,084	151%	116%
1-Jun-33	$67,334,660	($43,894,850)	($13,131,475)	($57,026,325)	$10,308,335	$58,022,418	153%	118%
1-Jun-34	$69,693,376	($44,772,100)	($13,394,225)	($58,166,325)	$11,527,051	$69,549,469	156%	120%
1-Jun-35	$72,134,681	($45,665,850)	($13,664,975)	($59,330,825)	$12,803,856	$82,353,325	158%	122%
1-Jun-36	$74,661,468	($46,581,600)	($13,937,225)	($60,518,825)	$14,142,643	$96,495,968	160%	123%
1-Jun-37	$77,276,728	($46,579,350)	($13,939,725)	($60,519,075)	$16,757,653	$113,253,621	166%	128%
1-Jun-38	$79,983,558	($46,580,850)	($13,934,725)	($60,515,575)	$19,467,983	$132,721,604	172%	132%
1-Jun-39	$82,785,165	($46,578,850)	($13,936,975)	($60,515,825)	$22,269,340	$154,990,944	178%	137%
1-Jun-40	$85,684,866	($46,581,350)	($13,935,475)	($60,516,825)	$25,168,041	$180,158,985	184%	142%
1-Jun-41	$88,686,096	($46,580,850)	($13,934,725)	($60,515,575)	$28,170,521	$208,329,506	190%	147%
1-Jun-42	$91,792,408	($46,577,313)	($13,938,188)	($60,515,500)	$31,276,908	$239,606,414	197%	152%
1-Jun-43	$95,007,481	($46,580,763)	($13,939,063)	($60,519,825)	$34,487,656	$274,094,070	204%	157%
1-Jun-44	$98,335,124	($46,577,788)	($13,936,563)	($60,514,350)	$37,820,774	$311,914,844	211%	162%
1-Jun-45	$101,779,275	($46,580,500)	($13,934,900)	($60,515,400)	$41,263,875	$353,178,719	219%	168%
1-Jun-46	$105,344,015	($46,580,225)	($13,938,025)	($60,518,250)	$44,825,765	$398,004,484	226%	174%
1-Jun-47	$109,033,565	($46,580,375)	($13,939,225)	($60,519,600)	$48,513,965	$446,518,449	234%	180%
1-Jun-48	$112,852,293	($46,578,025)	($13,935,675)	($60,513,700)	$52,338,593	$498,857,042	242%	186%
1-Jun-49	$116,804,722	($46,578,775)	($13,936,275)	($60,515,050)	$56,289,672	$555,146,714	251%	193%
1-Jun-50	$120,895,533	($46,577,675)	($13,939,375)	($60,517,050)	$60,378,483	$615,525,197	260%	200%
1-Jun-51	$125,129,569	($46,579,775)	($13,938,325)	($60,518,100)	$64,611,469	$680,136,666	269%	207%
1-Jun-52	$129,511,845	($46,579,575)	($13,936,750)	($60,516,325)	$68,995,520	$749,132,186	278%	214%
1-Jun-53	$134,047,550	($46,576,575)	($13,938,000)	($60,514,575)	$73,532,975	$822,665,160	288%	222%
1-Jun-54	$138,742,054	($46,580,000)	($13,935,150)	($60,515,150)	$78,226,904	$900,892,064	298%	229%
1-Jun-55	$143,600,918	($46,578,250)	($13,936,550)	($60,514,800)	$83,086,118	$983,978,182	308%	237%
Total	$2,737,901,755	($1,349,986,999)	($403,936,575)	($1,753,923,574)	$983,978,182			

MuniCap, Inc.

[a]See Appendix A-1.

[b]Provided by Goldman Sachs & Co. LLC.

Scenario A (Base Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix A-2.b: Projected Payment of Debt Service - Subordinate Bonds

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service[a]	Bonds Issued[b]	Beginning Balance	Current Interest Amount[c]	Current Interest Payment[d]	Surplus/(Deficit) After Current Interest Payments	Accrued Interest Account Beg. Bal.	Interest[c]	Sub-total	Increase/(Decrease)	End. Bal.	Surplus/(Deficit) After Accrued Interest Payments	Principal Payments	Ending Balance	Surplus/ (Deficit)	Cumulative Surplus
15-Jul-25	$0	$25,000,000	$25,000,000	$93,750	($93,750)	$0	$0	$0	$0	$0	$0	$0	$0	$25,000,000	$0	$0
15-Jul-26	$5,218,686		$25,000,000	$1,250,000	($1,250,000)	$3,968,686	$0	$0	$0	$0	$0	$3,968,686	($3,968,000)	$21,032,000	$686	$686
15-Jul-27	$5,856,881		$21,032,000	$1,051,600	($1,051,600)	$4,805,281	$0	$0	$0	$0	$0	$4,805,281	($4,805,000)	$16,227,000	$281	$968
15-Jul-28	$5,971,880		$16,227,000	$811,350	($811,350)	$5,160,530	$0	$0	$0	$0	$0	$5,160,530	($5,160,000)	$11,067,000	$530	$1,498
15-Jul-29	$6,378,629		$11,067,000	$553,350	($553,350)	$5,825,279	$0	$0	$0	$0	$0	$5,825,279	($5,825,000)	$5,242,000	$279	$1,777
15-Jul-30	$7,102,000		$5,242,000	$262,100	($262,100)	$6,839,900	$0	$0	$0	$0	$0	$6,839,900	($5,242,000)	$0	$1,597,900	$1,599,678
15-Jul-31	$8,041,841		$0	$0	$0	$8,041,841	$0	$0	$0	$0	$0	$8,041,841	$0	$0	$8,041,841	$9,641,519
15-Jul-32	$9,144,164		$0	$0	$0	$9,144,164	$0	$0	$0	$0	$0	$9,144,164	$0	$0	$9,144,164	$18,785,684
15-Jul-33	$10,308,335		$0	$0	$0	$10,308,335	$0	$0	$0	$0	$0	$10,308,335	$0	$0	$10,308,335	$29,094,018
15-Jul-34	$11,527,051		$0	$0	$0	$11,527,051	$0	$0	$0	$0	$0	$11,527,051	$0	$0	$11,527,051	$40,621,069
15-Jul-35	$12,803,856		$0	$0	$0	$12,803,856	$0	$0	$0	$0	$0	$12,803,856	$0	$0	$12,803,856	$53,424,925
15-Jul-36	$14,142,643		$0	$0	$0	$14,142,643	$0	$0	$0	$0	$0	$14,142,643	$0	$0	$14,142,643	$67,567,568
15-Jul-37	$16,757,653		$0	$0	$0	$16,757,653	$0	$0	$0	$0	$0	$16,757,653	$0	$0	$16,757,653	$84,325,221
15-Jul-38	$19,467,983		$0	$0	$0	$19,467,983	$0	$0	$0	$0	$0	$19,467,983	$0	$0	$19,467,983	$103,793,204
15-Jul-39	$22,269,340		$0	$0	$0	$22,269,340	$0	$0	$0	$0	$0	$22,269,340	$0	$0	$22,269,340	$126,062,544
15-Jul-40	$25,168,041		$0	$0	$0	$25,168,041	$0	$0	$0	$0	$0	$25,168,041	$0	$0	$25,168,041	$151,230,585
15-Jul-41	$28,170,521		$0	$0	$0	$28,170,521	$0	$0	$0	$0	$0	$28,170,521	$0	$0	$28,170,521	$179,401,106
15-Jul-42	$31,276,908		$0	$0	$0	$31,276,908	$0	$0	$0	$0	$0	$31,276,908	$0	$0	$31,276,908	$210,678,014
15-Jul-43	$34,487,656		$0	$0	$0	$34,487,656	$0	$0	$0	$0	$0	$34,487,656	$0	$0	$34,487,656	$245,165,670
15-Jul-44	$37,820,774		$0	$0	$0	$37,820,774	$0	$0	$0	$0	$0	$37,820,774	$0	$0	$37,820,774	$282,986,444
15-Jul-45	$41,263,875		$0	$0	$0	$41,263,875	$0	$0	$0	$0	$0	$41,263,875	$0	$0	$41,263,875	$324,250,319
15-Jul-46	$44,825,765		$0	$0	$0	$44,825,765	$0	$0	$0	$0	$0	$44,825,765	$0	$0	$44,825,765	$369,076,084
15-Jul-47	$48,513,965		$0	$0	$0	$48,513,965	$0	$0	$0	$0	$0	$48,513,965	$0	$0	$48,513,965	$417,590,049
15-Jul-48	$52,338,593		$0	$0	$0	$52,338,593	$0	$0	$0	$0	$0	$52,338,593	$0	$0	$52,338,593	$469,928,642
15-Jul-49	$56,289,672		$0	$0	$0	$56,289,672	$0	$0	$0	$0	$0	$56,289,672	$0	$0	$56,289,672	$526,218,314
15-Jul-50	$60,378,483		$0	$0	$0	$60,378,483	$0	$0	$0	$0	$0	$60,378,483	$0	$0	$60,378,483	$586,596,797
15-Jul-51	$64,611,469		$0	$0	$0	$64,611,469	$0	$0	$0	$0	$0	$64,611,469	$0	$0	$64,611,469	$651,208,266
15-Jul-52	$68,995,520		$0	$0	$0	$68,995,520	$0	$0	$0	$0	$0	$68,995,520	$0	$0	$68,995,520	$720,203,786
15-Jul-53	$73,532,975		$0	$0	$0	$73,532,975	$0	$0	$0	$0	$0	$73,532,975	$0	$0	$73,532,975	$793,736,760
15-Jul-54	$78,226,904		$0	$0	$0	$78,226,904	$0	$0	$0	$0	$0	$78,226,904	$0	$0	$78,226,904	$871,963,664
15-Jul-55	$83,086,118		$0	$0	$0	$83,086,118	$0	$0	$0	$0	$0	$83,086,118	$0	$0	$83,086,118	$955,049,782
Total	$983,978,182	$25,000,000		$4,022,150	($4,022,150)	$980,049,782		$0		$0		$980,049,782	($25,000,000)		$955,049,782	

MuniCap, Inc.

[a] See Appendix A-2.a.

[b] Provided by Goldman Sachs & Co. LLC.

[c] Assumes rate of 5.00%. Provided by Goldman Sachs & Co. LLC.

[d] Payment due bond year ending July 15, 2025 funded with capitalized interest. Provided by Goldman Sachs & Co. LLC.

Scenario B (Downside Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Assumptions:

2.0% Annual Increase in Sales

Rising to 2.5% in 2028, 3.0% in 2029

and 3.5% Starting in 2030

With a One-Time 5.5% Decline in 2026

Scenario B (Downside Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Projected Revitalization Sales Tax Revenues
Available For Debt Service

Scenario B (Downside Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix B-1: Projected Revitalization Sales Tax Revenues Available For Debt Service

Operation Year Ending	Sales Filing Date[a]	Bond Year Ending	Change Factor[b]	Revitalization Sales Revenues[c]	Revitalization Sales Tax Rate[d]	Revitalization Sales Tax Revenues	Less: City Admin. Fee[e]	Less: Administrative Expenses[f]	Less: Trustee Fee[g]	Revitalization Sales Tax Revenues Pledged To Debt Service
31-Dec-24	31-Jan-25	1-Jun-25	100.0%	$10,970,907,904	0.00%	$0	$0	$0	$0	$0
31-Dec-25	31-Jan-26	1-Jun-26	102.0%	$11,190,326,062	0.50%	$55,951,630	($559,516)	($520,404)	($8,000)	$54,863,710
31-Dec-26	31-Jan-27	1-Jun-27	94.5%	$10,574,858,129	0.50%	$52,874,291	($528,743)	$0	($8,000)	$52,337,548
31-Dec-27	31-Jan-28	1-Jun-28	102.0%	$10,786,355,291	0.50%	$53,931,776	($539,318)	$0	($8,000)	$53,384,459
31-Dec-28	31-Jan-29	1-Jun-29	102.5%	$11,056,014,174	0.50%	$55,280,071	($552,801)	$0	($8,000)	$54,719,270
31-Dec-29	31-Jan-30	1-Jun-30	103.0%	$11,387,694,599	0.50%	$56,938,473	($569,385)	$0	($8,000)	$56,361,088
31-Dec-30	31-Jan-31	1-Jun-31	103.5%	$11,786,263,910	0.50%	$58,931,320	($589,313)	($110,408)	($8,000)	$58,223,598
31-Dec-31	31-Jan-32	1-Jun-32	103.5%	$12,198,783,147	0.50%	$60,993,916	($609,939)	($112,616)	($8,000)	$60,263,360
31-Dec-32	31-Jan-33	1-Jun-33	103.5%	$12,625,740,557	0.50%	$63,128,703	($631,287)	($114,869)	($8,000)	$62,374,547
31-Dec-33	31-Jan-34	1-Jun-34	103.5%	$13,067,641,476	0.50%	$65,338,207	($653,382)	($117,166)	($8,000)	$64,559,659
31-Dec-34	31-Jan-35	1-Jun-35	103.5%	$13,525,008,928	0.50%	$67,625,045	($676,250)	($119,509)	($8,000)	$66,821,285
31-Dec-35	31-Jan-36	1-Jun-36	103.5%	$13,998,384,240	0.50%	$69,991,921	($699,919)	($121,899)	($8,000)	$69,162,103
31-Dec-36	31-Jan-37	1-Jun-37	103.5%	$14,488,327,689	0.50%	$72,441,638	($724,416)	($124,337)	($8,000)	$71,584,885
31-Dec-37	31-Jan-38	1-Jun-38	103.5%	$14,995,419,158	0.50%	$74,977,096	($749,771)	($126,824)	($8,000)	$74,092,501
31-Dec-38	31-Jan-39	1-Jun-39	103.5%	$15,520,258,828	0.50%	$77,601,294	($776,013)	($129,361)	($8,000)	$76,687,921
31-Dec-39	31-Jan-40	1-Jun-40	103.5%	$16,063,467,887	0.50%	$80,317,339	($803,173)	($131,948)	($8,000)	$79,374,218
31-Dec-40	31-Jan-41	1-Jun-41	103.5%	$16,625,689,263	0.50%	$83,128,446	($831,284)	($134,587)	($8,000)	$82,154,575
31-Dec-41	31-Jan-42	1-Jun-42	103.5%	$17,207,588,388	0.50%	$86,037,942	($860,379)	($137,279)	($8,000)	$85,032,284
31-Dec-42	31-Jan-43	1-Jun-43	103.5%	$17,809,853,981	0.50%	$89,049,270	($890,493)	($140,024)	($8,000)	$88,010,753
31-Dec-43	31-Jan-44	1-Jun-44	103.5%	$18,433,198,870	0.50%	$92,165,994	($921,660)	($142,825)	($8,000)	$91,093,510
31-Dec-44	31-Jan-45	1-Jun-45	103.5%	$19,078,360,831	0.50%	$95,391,804	($953,918)	($145,681)	($8,000)	$94,284,205
31-Dec-45	31-Jan-46	1-Jun-46	103.5%	$19,746,103,460	0.50%	$98,730,517	($987,305)	($148,595)	($8,000)	$97,586,617
31-Dec-46	31-Jan-47	1-Jun-47	103.5%	$20,437,217,081	0.50%	$102,186,085	($1,021,861)	($151,567)	($8,000)	$101,004,658
31-Dec-47	31-Jan-48	1-Jun-48	103.5%	$21,152,519,679	0.50%	$105,762,598	($1,057,626)	($154,598)	($8,000)	$104,542,374
31-Dec-48	31-Jan-49	1-Jun-49	103.5%	$21,892,857,868	0.50%	$109,464,289	($1,094,643)	($157,690)	($8,000)	$108,203,957
31-Dec-49	31-Jan-50	1-Jun-50	103.5%	$22,659,107,893	0.50%	$113,295,539	($1,132,955)	($160,844)	($8,000)	$111,993,740
31-Dec-50	31-Jan-51	1-Jun-51	103.5%	$23,452,176,669	0.50%	$117,260,883	($1,172,609)	($164,061)	($8,000)	$115,916,214
31-Dec-51	31-Jan-52	1-Jun-52	103.5%	$24,273,002,853	0.50%	$121,365,014	($1,213,650)	($167,342)	($8,000)	$119,976,022
31-Dec-52	31-Jan-53	1-Jun-53	103.5%	$25,122,557,953	0.50%	$125,612,790	($1,256,128)	($170,689)	($8,000)	$124,177,973
31-Dec-53	31-Jan-54	1-Jun-54	103.5%	$26,001,847,481	0.50%	$130,009,237	($1,300,092)	($174,102)	($8,000)	$128,527,043
31-Dec-54	31-Jan-55	1-Jun-55	103.5%	$26,911,912,143	0.50%	$134,559,561	($1,345,596)	($177,584)	($8,000)	$133,028,381
Total						$2,570,342,692	($25,703,427)	($4,056,808)	($240,000)	$2,540,342,458

MuniCap, Inc.

[a]According to the Utah State Tax Commission, businesses can file returns monthly, quarterly, or annually depending on the previous year's tax liability. Projections assume monthly filings. A monthly return is due the last day of the month after the filing period. Revitalization sales tax revenues are collected by the Utah State Tax Commission and distributed to the City monthly. There is up to a two-month lag between the date of sale and the actual receipt of funds by Utah State Tax Commission. Projections assume up to a five-month lag between sales and receipt of Revitalization Sales Tax revenues by Trustee.
[b]Assumes a 2.0% annual increase in sales, rising to 3.5% by 2030, with a one-time 5.5% decline in 2026.
[c]Revitalization Sales Tax revenues based on information provided by Utah State Tax Commission. See Appendix D-1. Assumed to increase at rate of change factor shown.
[d]Sales and use tax adopted by the City on October 1, 2024 for a period of thirty years (commencing on January 1, 2025 through December 31, 2054) as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5.
[e]City administration fees equal 1% of revitalization sales tax revenues. Source: Participation Agreement.
[f]Administrative expenses $100,000, growing at 2% annually. First five years pre-funded by Revitalization Sales Tax revenues collected year to date. Provided by Goldman Sachs & Co. LLC.
[g]Trustee fee provided by Goldman Sachs & Co. LLC.

Scenario B (Downside Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Projected Payment of Debt Service

Scenario B (Downside Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix B-2.a: Projected Payment of Debt Service - Senior Bonds

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Senior Debt Service[a]	Net Annual Debt Service: First Lien Senior Series 2025A[b]	Net Annual Debt Service: Second Lien Senior Series 2025B[b]	Net Annual Debt Service: Total	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service	Cumulative Surplus Revenues	Debt Service Coverage: Series 2025A	Debt Service Coverage: Series 2025A and 2025B
1-Jun-25	$0	$0	$0	$0	$0	$0	-	-
1-Jun-26	$54,863,710	($38,212,136)	($11,432,887)	($49,645,024)	$5,218,686	$5,218,686	144%	111%
1-Jun-27	$52,337,548	($38,973,350)	($11,661,725)	($50,635,075)	$1,702,473	$6,921,159	134%	103%
1-Jun-28	$53,384,459	($39,753,600)	($11,896,475)	($51,650,075)	$1,734,384	$8,655,543	134%	103%
1-Jun-29	$54,719,270	($40,548,100)	($12,135,975)	($52,684,075)	$2,035,195	$10,690,738	135%	104%
1-Jun-30	$56,361,088	($41,358,600)	($12,374,225)	($53,732,825)	$2,628,263	$13,319,001	136%	105%
1-Jun-31	$58,223,598	($42,186,600)	($12,625,475)	($54,812,075)	$3,411,523	$16,730,525	138%	106%
1-Jun-32	$60,263,360	($43,033,350)	($12,878,225)	($55,911,575)	$4,351,785	$21,082,310	140%	108%
1-Jun-33	$62,374,547	($43,894,850)	($13,131,475)	($57,026,325)	$5,348,222	$26,430,532	142%	109%
1-Jun-34	$64,559,659	($44,772,100)	($13,394,225)	($58,166,325)	$6,393,334	$32,823,866	144%	111%
1-Jun-35	$66,821,285	($45,665,850)	($13,664,975)	($59,330,825)	$7,490,460	$40,314,326	146%	113%
1-Jun-36	$69,162,103	($46,581,600)	($13,937,225)	($60,518,825)	$8,643,278	$48,957,604	148%	114%
1-Jun-37	$71,584,885	($46,579,350)	($13,939,725)	($60,519,075)	$11,065,810	$60,023,414	154%	118%
1-Jun-38	$74,092,501	($46,580,850)	($13,934,725)	($60,515,575)	$13,576,926	$73,600,339	159%	122%
1-Jun-39	$76,687,921	($46,578,850)	($13,936,975)	($60,515,825)	$16,172,096	$89,772,435	165%	127%
1-Jun-40	$79,374,218	($46,581,350)	($13,935,475)	($60,516,825)	$18,857,393	$108,629,828	170%	131%
1-Jun-41	$82,154,575	($46,580,850)	($13,934,725)	($60,515,575)	$21,639,000	$130,268,828	176%	136%
1-Jun-42	$85,032,284	($46,577,313)	($13,938,188)	($60,515,500)	$24,516,784	$154,785,612	183%	141%
1-Jun-43	$88,010,753	($46,580,763)	($13,939,063)	($60,519,825)	$27,490,928	$182,276,540	189%	145%
1-Jun-44	$91,093,510	($46,577,788)	($13,936,563)	($60,514,350)	$30,579,160	$212,855,700	196%	151%
1-Jun-45	$94,284,205	($46,580,500)	($13,934,900)	($60,515,400)	$33,768,805	$246,624,505	202%	156%
1-Jun-46	$97,586,617	($46,580,225)	($13,938,025)	($60,518,250)	$37,068,367	$283,692,872	210%	161%
1-Jun-47	$101,004,658	($46,580,375)	($13,939,225)	($60,519,600)	$40,485,058	$324,177,930	217%	167%
1-Jun-48	$104,542,374	($46,578,025)	($13,935,675)	($60,513,700)	$44,028,674	$368,206,605	224%	173%
1-Jun-49	$108,203,957	($46,578,775)	($13,936,275)	($60,515,050)	$47,688,907	$415,895,511	232%	179%
1-Jun-50	$111,993,740	($46,577,675)	($13,939,375)	($60,517,050)	$51,476,690	$467,372,201	240%	185%
1-Jun-51	$115,916,214	($46,579,775)	($13,938,325)	($60,518,100)	$55,398,114	$522,770,315	249%	192%
1-Jun-52	$119,976,022	($46,579,575)	($13,936,750)	($60,516,325)	$59,459,697	$582,230,013	258%	198%
1-Jun-53	$124,177,973	($46,576,575)	($13,938,000)	($60,514,575)	$63,663,398	$645,893,411	267%	205%
1-Jun-54	$128,527,043	($46,580,000)	($13,935,150)	($60,515,150)	$68,011,893	$713,905,303	276%	212%
1-Jun-55	$133,028,381	($46,578,250)	($13,936,550)	($60,514,800)	$72,513,581	$786,418,884	286%	220%
Total	$2,540,342,458	($1,349,986,999)	($403,936,575)	($1,753,923,574)	$786,418,884			

MuniCap, Inc.

[a]See Appendix B-1.
[b]Provided by Goldman Sachs & Co. LLC.

Scenario B (Downside Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix B-2.b: Projected Payment of Debt Service - Subordinate Bonds

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service[a]	Bonds Issued[b]	Beginning Balance	Current Interest Amount[c]	Current Interest Payment[d]	Surplus/(Deficit) After Current Interest Payments	Accrued Interest Account Beg. Bal.	Interest[c]	Sub-total	Increase/(Decrease)	End. Bal.	Surplus/(Deficit) After Accrued Interest Payments	Principal Payments	Ending Balance	Surplus/ (Deficit)	Cumulative Surplus
15-Jul-25	$0	$25,000,000	$25,000,000	$93,750	($93,750)	$0	$0	$0	$0	$0	$0	$0	$0	$25,000,000	$0	$0
15-Jul-26	$5,218,686		$25,000,000	$1,250,000	($1,250,000)	$3,968,686	$0	$0	$0	$0	$0	$3,968,686	($3,968,000)	$21,032,000	$686	$686
15-Jul-27	$1,702,473		$21,032,000	$1,051,600	($1,051,600)	$650,873	$0	$0	$0	$0	$0	$650,873	($650,000)	$20,382,000	$873	$1,559
15-Jul-28	$1,734,384		$20,382,000	$1,019,100	($1,019,100)	$715,284	$0	$0	$0	$0	$0	$715,284	($715,000)	$19,667,000	$284	$1,843
15-Jul-29	$2,035,195		$19,667,000	$983,350	($983,350)	$1,051,845	$0	$0	$0	$0	$0	$1,051,845	($1,051,000)	$18,616,000	$845	$2,688
15-Jul-30	$2,628,263		$18,616,000	$930,800	($930,800)	$1,697,463	$0	$0	$0	$0	$0	$1,697,463	($1,697,000)	$16,919,000	$463	$3,151
15-Jul-31	$3,411,523		$16,919,000	$845,950	($845,950)	$2,565,573	$0	$0	$0	$0	$0	$2,565,573	($2,565,000)	$14,354,000	$573	$3,725
15-Jul-32	$4,351,785		$14,354,000	$717,700	($717,700)	$3,634,085	$0	$0	$0	$0	$0	$3,634,085	($3,634,000)	$10,720,000	$85	$3,810
15-Jul-33	$5,348,222		$10,720,000	$536,000	($536,000)	$4,812,222	$0	$0	$0	$0	$0	$4,812,222	($4,812,000)	$5,908,000	$222	$4,032
15-Jul-34	$6,393,334		$5,908,000	$295,400	($295,400)	$6,097,934	$0	$0	$0	$0	$0	$6,097,934	($5,908,000)	$0	$189,934	$193,966
15-Jul-35	$7,490,460		$0	$0	$0	$7,490,460	$0	$0	$0	$0	$0	$7,490,460	$0	$0	$7,490,460	$7,684,426
15-Jul-36	$8,643,278		$0	$0	$0	$8,643,278	$0	$0	$0	$0	$0	$8,643,278	$0	$0	$8,643,278	$16,327,704
15-Jul-37	$11,065,810		$0	$0	$0	$11,065,810	$0	$0	$0	$0	$0	$11,065,810	$0	$0	$11,065,810	$27,393,514
15-Jul-38	$13,576,926		$0	$0	$0	$13,576,926	$0	$0	$0	$0	$0	$13,576,926	$0	$0	$13,576,926	$40,970,439
15-Jul-39	$16,172,096		$0	$0	$0	$16,172,096	$0	$0	$0	$0	$0	$16,172,096	$0	$0	$16,172,096	$57,142,535
15-Jul-40	$18,857,393		$0	$0	$0	$18,857,393	$0	$0	$0	$0	$0	$18,857,393	$0	$0	$18,857,393	$75,999,928
15-Jul-41	$21,639,000		$0	$0	$0	$21,639,000	$0	$0	$0	$0	$0	$21,639,000	$0	$0	$21,639,000	$97,638,928
15-Jul-42	$24,516,784		$0	$0	$0	$24,516,784	$0	$0	$0	$0	$0	$24,516,784	$0	$0	$24,516,784	$122,155,712
15-Jul-43	$27,490,928		$0	$0	$0	$27,490,928	$0	$0	$0	$0	$0	$27,490,928	$0	$0	$27,490,928	$149,646,640
15-Jul-44	$30,579,160		$0	$0	$0	$30,579,160	$0	$0	$0	$0	$0	$30,579,160	$0	$0	$30,579,160	$180,225,800
15-Jul-45	$33,768,805		$0	$0	$0	$33,768,805	$0	$0	$0	$0	$0	$33,768,805	$0	$0	$33,768,805	$213,994,605
15-Jul-46	$37,068,367		$0	$0	$0	$37,068,367	$0	$0	$0	$0	$0	$37,068,367	$0	$0	$37,068,367	$251,062,972
15-Jul-47	$40,485,058		$0	$0	$0	$40,485,058	$0	$0	$0	$0	$0	$40,485,058	$0	$0	$40,485,058	$291,548,030
15-Jul-48	$44,028,674		$0	$0	$0	$44,028,674	$0	$0	$0	$0	$0	$44,028,674	$0	$0	$44,028,674	$335,576,705
15-Jul-49	$47,688,907		$0	$0	$0	$47,688,907	$0	$0	$0	$0	$0	$47,688,907	$0	$0	$47,688,907	$383,265,611
15-Jul-50	$51,476,690		$0	$0	$0	$51,476,690	$0	$0	$0	$0	$0	$51,476,690	$0	$0	$51,476,690	$434,742,301
15-Jul-51	$55,398,114		$0	$0	$0	$55,398,114	$0	$0	$0	$0	$0	$55,398,114	$0	$0	$55,398,114	$490,140,415
15-Jul-52	$59,459,697		$0	$0	$0	$59,459,697	$0	$0	$0	$0	$0	$59,459,697	$0	$0	$59,459,697	$549,600,113
15-Jul-53	$63,663,398		$0	$0	$0	$63,663,398	$0	$0	$0	$0	$0	$63,663,398	$0	$0	$63,663,398	$613,263,511
15-Jul-54	$68,011,893		$0	$0	$0	$68,011,893	$0	$0	$0	$0	$0	$68,011,893	$0	$0	$68,011,893	$681,275,403
15-Jul-55	$72,513,581		$0	$0	$0	$72,513,581	$0	$0	$0	$0	$0	$72,513,581	$0	$0	$72,513,581	$753,788,984
Total	$786,418,884	$25,000,000		$7,723,650	($7,723,650)	$778,788,984		$0		$0		$778,788,984	($25,000,000)		$753,788,984	

MuniCap, Inc.

[a]See Appendix B-2.a.
[b]Provided by Goldman Sachs & Co. LLC.
[c]Assumes rate of 5.00%. Provided by Goldman Sachs & Co. LLC.
[d]Payment due bond year ending July 15, 2025 funded with capitalized interest. Provided by Goldman Sachs & Co. LLC.

Scenario C (Reduced Growth Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Assumptions:

1.010% Annual Increase in Sales

Scenario C (Reduced Growth Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Projected Revitalization Sales Tax Revenues
Available For Debt Service

C

Scenario C (Reduced Growth Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix C-1: Projected Revitalization Sales Tax Revenues Available For Debt Service

Operation Year Ending	Sales Filing Date[a]	Bond Year Ending	Change Factor[b]	Revitalization Sales Revenues[c]	Revitalization Sales Tax Rate[d]	Revitalization Sales Tax Revenues	Less: City Admin. Fee[e]	Less: Administrative Expenses[f]	Less: Trustee Fee[g]	Revitalization Sales Tax Revenues Pledged To Debt Service
31-Dec-24	31-Jan-25	1-Jun-25	100.0%	$10,970,907,904	0.00%	$0	$0	$0	$0	$0
31-Dec-25	31-Jan-26	1-Jun-26	101.0%	$11,081,714,074	0.50%	$55,408,570	($554,086)	($520,404)	($8,000)	$54,326,081
31-Dec-26	31-Jan-27	1-Jun-27	101.0%	$11,193,639,386	0.50%	$55,968,197	($559,682)	$0	($8,000)	$55,400,515
31-Dec-27	31-Jan-28	1-Jun-28	101.0%	$11,306,695,144	0.50%	$56,533,476	($565,335)	$0	($8,000)	$55,960,141
31-Dec-28	31-Jan-29	1-Jun-29	101.0%	$11,420,892,765	0.50%	$57,104,464	($571,045)	$0	($8,000)	$56,525,419
31-Dec-29	31-Jan-30	1-Jun-30	101.0%	$11,536,243,782	0.50%	$57,681,219	($576,812)	$0	($8,000)	$57,096,407
31-Dec-30	31-Jan-31	1-Jun-31	101.0%	$11,652,759,844	0.50%	$58,263,799	($582,638)	($110,408)	($8,000)	$57,562,753
31-Dec-31	31-Jan-32	1-Jun-32	101.0%	$11,770,452,718	0.50%	$58,852,264	($588,523)	($112,616)	($8,000)	$58,143,125
31-Dec-32	31-Jan-33	1-Jun-33	101.0%	$11,889,334,291	0.50%	$59,446,671	($594,467)	($114,869)	($8,000)	$58,729,336
31-Dec-33	31-Jan-34	1-Jun-34	101.0%	$12,009,416,567	0.50%	$60,047,083	($600,471)	($117,166)	($8,000)	$59,321,446
31-Dec-34	31-Jan-35	1-Jun-35	101.0%	$12,130,711,674	0.50%	$60,653,558	($606,536)	($119,509)	($8,000)	$59,919,514
31-Dec-35	31-Jan-36	1-Jun-36	101.0%	$12,253,231,862	0.50%	$61,266,159	($612,662)	($121,899)	($8,000)	$60,523,598
31-Dec-36	31-Jan-37	1-Jun-37	101.0%	$12,376,989,504	0.50%	$61,884,948	($618,849)	($124,337)	($8,000)	$61,133,761
31-Dec-37	31-Jan-38	1-Jun-38	101.0%	$12,501,997,098	0.50%	$62,509,985	($625,100)	($126,824)	($8,000)	$61,750,061
31-Dec-38	31-Jan-39	1-Jun-39	101.0%	$12,628,267,269	0.50%	$63,141,336	($631,413)	($129,361)	($8,000)	$62,372,562
31-Dec-39	31-Jan-40	1-Jun-40	101.0%	$12,755,812,768	0.50%	$63,779,064	($637,791)	($131,948)	($8,000)	$63,001,325
31-Dec-40	31-Jan-41	1-Jun-41	101.0%	$12,884,646,477	0.50%	$64,423,232	($644,232)	($134,587)	($8,000)	$63,636,413
31-Dec-41	31-Jan-42	1-Jun-42	101.0%	$13,014,781,407	0.50%	$65,073,907	($650,739)	($137,279)	($8,000)	$64,277,889
31-Dec-42	31-Jan-43	1-Jun-43	101.0%	$13,146,230,699	0.50%	$65,731,153	($657,312)	($140,024)	($8,000)	$64,925,818
31-Dec-43	31-Jan-44	1-Jun-44	101.0%	$13,279,007,629	0.50%	$66,395,038	($663,950)	($142,825)	($8,000)	$65,580,263
31-Dec-44	31-Jan-45	1-Jun-45	101.0%	$13,413,125,606	0.50%	$67,065,628	($670,656)	($145,681)	($8,000)	$66,241,291
31-Dec-45	31-Jan-46	1-Jun-46	101.0%	$13,548,598,175	0.50%	$67,742,991	($677,430)	($148,595)	($8,000)	$66,908,966
31-Dec-46	31-Jan-47	1-Jun-47	101.0%	$13,685,439,016	0.50%	$68,427,195	($684,272)	($151,567)	($8,000)	$67,583,356
31-Dec-47	31-Jan-48	1-Jun-48	101.0%	$13,823,661,950	0.50%	$69,118,310	($691,183)	($154,598)	($8,000)	$68,264,529
31-Dec-48	31-Jan-49	1-Jun-49	101.0%	$13,963,280,936	0.50%	$69,816,405	($698,164)	($157,690)	($8,000)	$68,952,551
31-Dec-49	31-Jan-50	1-Jun-50	101.0%	$14,104,310,073	0.50%	$70,521,550	($705,216)	($160,844)	($8,000)	$69,647,491
31-Dec-50	31-Jan-51	1-Jun-51	101.0%	$14,246,763,605	0.50%	$71,233,818	($712,338)	($164,061)	($8,000)	$70,349,419
31-Dec-51	31-Jan-52	1-Jun-52	101.0%	$14,390,655,917	0.50%	$71,953,280	($719,533)	($167,342)	($8,000)	$71,058,405
31-Dec-52	31-Jan-53	1-Jun-53	101.0%	$14,536,001,542	0.50%	$72,680,008	($726,800)	($170,689)	($8,000)	$71,774,519
31-Dec-53	31-Jan-54	1-Jun-54	101.0%	$14,682,815,158	0.50%	$73,414,076	($734,141)	($174,102)	($8,000)	$72,497,833
31-Dec-54	31-Jan-55	1-Jun-55	101.0%	$14,831,111,591	0.50%	$74,155,558	($741,556)	($177,584)	($8,000)	$73,228,418
Total						$1,930,292,943	($19,302,929)	($4,056,808)	($240,000)	$1,906,693,205

MuniCap, Inc.

[a]According to the Utah State Tax Commission, businesses can file returns monthly, quarterly, or annually depending on the previous year's tax liability. Projections assume monthly filings. A monthly return is due the last day of the month after the filing period. Revitalization sales tax revenues are collected by the Utah State Tax Commission and distributed to the City monthly. There is up to a two-month lag between the date of sale and the actual receipt of funds by Utah State Tax Commission. Projections assume up to a five-month lag between sales and receipt of Revitalization Sales Tax revenues by Trustee.
[b]Assumes 1.010% annual increase in sales.
[c]Revitalization Sales Tax revenues based on information provided by Utah State Tax Commission. See Appendix D-1. Assumed to increase at rate of change factor shown.
[d]Sales and use tax adopted by the City on October 1, 2024 for a period of thirty years (commencing on January 1, 2025 through December 31, 2054) as authorized by the CCR Act and Utah Code Annotated Section 59-12-402.5.
[e]City administration fees equal 1% of revitalization sales tax revenues. Source: Participation Agreement.
[f]Administrative expenses $100,000, growing at 2% annually. First five years pre-funded by Revitalization Sales Tax revenues collected year to date. Provided by Goldman Sachs & Co. LLC.
[g]Trustee fee provided by Goldman Sachs & Co. LLC.

Scenario C (Reduced Growth Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Projected Payment of Debt Service

Scenario C (Reduced Growth Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix C-2.a: Projected Payment of Debt Service - Senior Bonds

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Senior Debt Service[a]	Net Annual Debt Service			Revitalization Sales Tax Revenues Pledged To Sub. Debt Service	Cumulative Surplus Revenues	Debt Service Coverage	
		First Lien Senior Series 2025A[b]	Second Lien Senior Series 2025B[b]	Total			Series 2025A	Series 2025A and 2025B
1-Jun-25	$0	$0	$0	$0	$0	$0	-	-
1-Jun-26	$54,326,081	($38,212,136)	($11,432,887)	($49,645,024)	$4,681,057	$4,681,057	142%	109%
1-Jun-27	$55,400,515	($38,973,350)	($11,661,725)	($50,635,075)	$4,765,440	$9,446,497	142%	109%
1-Jun-28	$55,960,141	($39,753,600)	($11,896,475)	($51,650,075)	$4,310,066	$13,756,563	141%	108%
1-Jun-29	$56,525,419	($40,548,100)	($12,135,975)	($52,684,075)	$3,841,344	$17,597,907	139%	107%
1-Jun-30	$57,096,407	($41,358,600)	($12,374,225)	($53,732,825)	$3,363,582	$20,961,489	138%	106%
1-Jun-31	$57,562,753	($42,186,600)	($12,625,475)	($54,812,075)	$2,750,678	$23,712,167	136%	105%
1-Jun-32	$58,143,125	($43,033,350)	($12,878,225)	($55,911,575)	$2,231,550	$25,943,717	135%	104%
1-Jun-33	$58,729,336	($43,894,850)	($13,131,475)	($57,026,325)	$1,703,011	$27,646,728	134%	103%
1-Jun-34	$59,321,446	($44,772,100)	($13,394,225)	($58,166,325)	$1,155,121	$28,801,849	132%	102%
1-Jun-35	$59,919,514	($45,665,850)	($13,664,975)	($59,330,825)	$588,689	$29,390,538	131%	101%
1-Jun-36	$60,523,598	($46,581,600)	($13,937,225)	($60,518,825)	$4,773	$29,395,311	130%	100%
1-Jun-37	$61,133,761	($46,579,350)	($13,939,725)	($60,519,075)	$614,686	$30,009,996	131%	101%
1-Jun-38	$61,750,061	($46,580,850)	($13,934,725)	($60,515,575)	$1,234,486	$31,244,483	133%	102%
1-Jun-39	$62,372,562	($46,578,850)	($13,936,975)	($60,515,825)	$1,856,737	$33,101,220	134%	103%
1-Jun-40	$63,001,325	($46,581,350)	($13,935,475)	($60,516,825)	$2,484,500	$35,585,721	135%	104%
1-Jun-41	$63,636,413	($46,580,850)	($13,934,725)	($60,515,575)	$3,120,838	$38,706,559	137%	105%
1-Jun-42	$64,277,889	($46,577,313)	($13,938,188)	($60,515,500)	$3,762,389	$42,468,948	138%	106%
1-Jun-43	$64,925,818	($46,580,763)	($13,939,063)	($60,519,825)	$4,405,993	$46,874,941	139%	107%
1-Jun-44	$65,580,263	($46,577,788)	($13,936,563)	($60,514,350)	$5,065,913	$51,940,854	141%	108%
1-Jun-45	$66,241,291	($46,580,500)	($13,934,900)	($60,515,400)	$5,725,891	$57,666,745	142%	109%
1-Jun-46	$66,908,966	($46,580,225)	($13,938,025)	($60,518,250)	$6,390,716	$64,057,461	144%	111%
1-Jun-47	$67,583,356	($46,580,375)	($13,939,225)	($60,519,600)	$7,063,756	$71,121,218	145%	112%
1-Jun-48	$68,264,529	($46,578,025)	($13,935,675)	($60,513,700)	$7,750,829	$78,872,046	147%	113%
1-Jun-49	$68,952,551	($46,578,775)	($13,936,275)	($60,515,050)	$8,437,501	$87,309,547	148%	114%
1-Jun-50	$69,647,491	($46,577,675)	($13,939,375)	($60,517,050)	$9,130,441	$96,439,988	150%	115%
1-Jun-51	$70,349,419	($46,579,775)	($13,938,325)	($60,518,100)	$9,831,319	$106,271,307	151%	116%
1-Jun-52	$71,058,405	($46,579,575)	($13,936,750)	($60,516,325)	$10,542,080	$116,813,387	153%	117%
1-Jun-53	$71,774,519	($46,576,575)	($13,938,000)	($60,514,575)	$11,259,944	$128,073,331	154%	119%
1-Jun-54	$72,497,833	($46,580,000)	($13,935,150)	($60,515,150)	$11,982,683	$140,056,014	156%	120%
1-Jun-55	$73,228,418	($46,578,250)	($13,936,550)	($60,514,800)	$12,713,618	$152,769,632	157%	121%
Total	$1,906,693,205	($1,349,986,999)	($403,936,575)	($1,753,923,574)	$152,769,632			

MuniCap, Inc.

[a]See Appendix C-1.
[b]Provided by Goldman Sachs & Co. LLC.

Scenario C (Reduced Growth Scenario)
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix C-2.b: Projected Payment of Debt Service - Subordinate Bonds

Bond Year Ending	Revitalization Sales Tax Revenues Pledged To Sub. Debt Service[a]	Bonds Issued[b]	Beginning Balance	Current Interest Amount[c]	Current Interest Payment[d]	Surplus/(Deficit) After Current Interest Payments	Accrued Interest Account Beg. Bal.	Interest[c]	Sub-total	Increase/(Decrease)	End. Bal.	Surplus/(Deficit) After Accrued Interest Payments	Principal Payments	Ending Balance	Surplus/ (Deficit)	Cumulative Surplus
15-Jul-25	$0	$25,000,000	$25,000,000	$93,750	($93,750)	$0	$0	$0	$0	$0	$0	$0	$0	$25,000,000	$0	$0
15-Jul-26	$4,681,057		$25,000,000	$1,250,000	($1,250,000)	$3,431,057	$0	$0	$0	$0	$0	$3,431,057	($3,431,000)	$21,569,000	$57	$57
15-Jul-27	$4,765,440		$21,569,000	$1,078,450	($1,078,450)	$3,686,990	$0	$0	$0	$0	$0	$3,686,990	($3,686,000)	$17,883,000	$990	$1,047
15-Jul-28	$4,310,066		$17,883,000	$894,150	($894,150)	$3,415,916	$0	$0	$0	$0	$0	$3,415,916	($3,415,000)	$14,468,000	$916	$1,963
15-Jul-29	$3,841,344		$14,468,000	$723,400	($723,400)	$3,117,944	$0	$0	$0	$0	$0	$3,117,944	($3,117,000)	$11,351,000	$944	$2,907
15-Jul-30	$3,363,582		$11,351,000	$567,550	($567,550)	$2,796,032	$0	$0	$0	$0	$0	$2,796,032	($2,796,000)	$8,555,000	$32	$2,939
15-Jul-31	$2,750,678		$8,555,000	$427,750	($427,750)	$2,322,928	$0	$0	$0	$0	$0	$2,322,928	($2,322,000)	$6,233,000	$928	$3,867
15-Jul-32	$2,231,550		$6,233,000	$311,650	($311,650)	$1,919,900	$0	$0	$0	$0	$0	$1,919,900	($1,919,000)	$4,314,000	$900	$4,767
15-Jul-33	$1,703,011		$4,314,000	$215,700	($215,700)	$1,487,311	$0	$0	$0	$0	$0	$1,487,311	($1,487,000)	$2,827,000	$311	$5,078
15-Jul-34	$1,155,121		$2,827,000	$141,350	($141,350)	$1,013,771	$0	$0	$0	$0	$0	$1,013,771	($1,013,000)	$1,814,000	$771	$5,849
15-Jul-35	$588,689		$1,814,000	$90,700	($90,700)	$497,989	$0	$0	$0	$0	$0	$497,989	($497,000)	$1,317,000	$989	$6,838
15-Jul-36	$4,773		$1,317,000	$65,850	($4,773)	($61,077)	$0	$0	$0	$61,077	$61,077	$0	$0	$1,317,000	$0	$6,838
15-Jul-37	$614,686		$1,317,000	$65,850	($65,850)	$548,836	$61,077	$3,054	$64,131	($64,131)	$0	$484,705	($484,000)	$833,000	$705	$7,543
15-Jul-38	$1,234,486		$833,000	$41,650	($41,650)	$1,192,836	$0	$0	$0	$0	$0	$1,192,836	($833,000)	$0	$359,836	$367,379
15-Jul-39	$1,856,737		$0	$0	$0	$1,856,737	$0	$0	$0	$0	$0	$1,856,737	$0	$0	$1,856,737	$2,224,116
15-Jul-40	$2,484,500		$0	$0	$0	$2,484,500	$0	$0	$0	$0	$0	$2,484,500	$0	$0	$2,484,500	$4,708,617
15-Jul-41	$3,120,838		$0	$0	$0	$3,120,838	$0	$0	$0	$0	$0	$3,120,838	$0	$0	$3,120,838	$7,829,455
15-Jul-42	$3,762,389		$0	$0	$0	$3,762,389	$0	$0	$0	$0	$0	$3,762,389	$0	$0	$3,762,389	$11,591,844
15-Jul-43	$4,405,993		$0	$0	$0	$4,405,993	$0	$0	$0	$0	$0	$4,405,993	$0	$0	$4,405,993	$15,997,837
15-Jul-44	$5,065,913		$0	$0	$0	$5,065,913	$0	$0	$0	$0	$0	$5,065,913	$0	$0	$5,065,913	$21,063,750
15-Jul-45	$5,725,891		$0	$0	$0	$5,725,891	$0	$0	$0	$0	$0	$5,725,891	$0	$0	$5,725,891	$26,789,641
15-Jul-46	$6,390,716		$0	$0	$0	$6,390,716	$0	$0	$0	$0	$0	$6,390,716	$0	$0	$6,390,716	$33,180,357
15-Jul-47	$7,063,756		$0	$0	$0	$7,063,756	$0	$0	$0	$0	$0	$7,063,756	$0	$0	$7,063,756	$40,244,114
15-Jul-48	$7,750,829		$0	$0	$0	$7,750,829	$0	$0	$0	$0	$0	$7,750,829	$0	$0	$7,750,829	$47,994,942
15-Jul-49	$8,437,501		$0	$0	$0	$8,437,501	$0	$0	$0	$0	$0	$8,437,501	$0	$0	$8,437,501	$56,432,443
15-Jul-50	$9,130,441		$0	$0	$0	$9,130,441	$0	$0	$0	$0	$0	$9,130,441	$0	$0	$9,130,441	$65,562,884
15-Jul-51	$9,831,319		$0	$0	$0	$9,831,319	$0	$0	$0	$0	$0	$9,831,319	$0	$0	$9,831,319	$75,394,203
15-Jul-52	$10,542,080		$0	$0	$0	$10,542,080	$0	$0	$0	$0	$0	$10,542,080	$0	$0	$10,542,080	$85,936,283
15-Jul-53	$11,259,944		$0	$0	$0	$11,259,944	$0	$0	$0	$0	$0	$11,259,944	$0	$0	$11,259,944	$97,196,227
15-Jul-54	$11,982,683		$0	$0	$0	$11,982,683	$0	$0	$0	$0	$0	$11,982,683	$0	$0	$11,982,683	$109,178,910
15-Jul-55	$12,713,618		$0	$0	$0	$12,713,618	$0	$0	$0	$0	$0	$12,713,618	$0	$0	$12,713,618	$121,892,528
Total	$152,769,632	$25,000,000		$5,967,800	($5,906,723)	$146,895,582		$3,054		($3,054)		$146,892,528	($25,000,000)		$121,892,528	

MuniCap, Inc.

[a] See Appendix C-2.a.
[b] Provided by Goldman Sachs & Co. LLC.
[c] Assumes rate of 5.00%. Provided by Goldman Sachs & Co. LLC.
[d] Payment due bond year ending July 15, 2025 funded with capitalized interest. Provided by Goldman Sachs & Co. LLC.

Appendix D
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Sales Appreciation Analysis

Appendix D
Downtown Revitalization Public Infrastructure District
(SEG Redevelopment Project)
Salt Lake City, Utah

Appendix D-1: Correctional Facility Tax Historical Data

Table 1: Taxes - Calendar Year Collected[a]

Retail Collected Actuals Received	Jan. March	Feb. April	March May	April June	May July	June August	July Sept	August Oct	Sept. Nov	Oct. Dec	Nov. Jan	Dec. Feb	Total CF Tax Total CF Tax	Annual Change
Actuals CY 19	$2,840,313	$2,898,349	$3,300,388	$2,706,964	$3,145,147	$3,454,444	$3,169,754	$3,085,518	$3,609,885	$3,179,696	$3,247,349	$4,041,730	$38,679,538	
Actuals CY 20	$3,287,896	$2,562,909	$3,436,905	$2,499,844	$2,539,755	$3,309,329	$2,982,755	$2,878,824	$3,610,066	$2,875,740	$3,226,360	$3,915,065	$37,125,446	-4.02%
Actuals CY 21	$2,920,113	$2,940,814	$3,983,415	$3,547,549	$3,577,581	$4,626,088	$3,253,689	$4,318,703	$4,266,043	$3,428,839	$4,150,812	$4,949,931	$45,963,576	23.81%
Actuals CY 22	$3,703,362	$3,992,787	$4,850,946	$4,614,017	$3,692,746	$5,040,728	$3,957,320	$4,633,699	$5,199,896	$4,289,325	$4,705,560	$4,780,972	$53,461,359	16.31%
Actuals CY 23	$4,021,252	$4,115,960	$5,062,547	$3,725,343	$4,303,955	$5,247,556	$3,942,082	$4,488,906	$5,002,413	$4,138,781	$5,353,250	$4,033,622	$53,435,667	-0.05%
Actuals CY 24	$4,231,835	$4,722,823	$4,446,012	$4,644,067	$4,579,000	$4,568,712	$4,188,597	$4,298,919	$5,055,578	$5,155,122	$4,016,270	$4,947,604	$54,854,540	2.66%
Actuals CY 25	$4,278,670	$4,284,506	$5,632,613	-	-	-	-	-	-	-	-	-	$14,195,789	

Table 2: Imputed Revenues - Calendar Year Collected[b]

Retail Collected Actuals Received	Jan. March	Feb. April	March May	April June	May July	June August	July Sept	August Oct	Sept. Nov	Oct. Dec	Nov. Jan	Dec. Feb	Total CF Rev Total CF Rev	Annual Change
Actuals CY 19	$568,062,570	$579,669,808	$660,077,632	$541,392,818	$629,029,458	$690,888,870	$633,950,848	$617,103,626	$721,976,956	$635,939,140	$649,469,854	$808,345,926	$7,735,907,506	
Actuals CY 20	$657,579,104	$512,581,858	$687,380,926	$499,968,740	$507,951,012	$661,865,718	$596,550,972	$575,764,744	$722,013,108	$575,148,006	$645,271,940	$783,013,042	$7,425,089,170	-4.02%
Actuals CY 21	$584,022,556	$588,162,808	$796,682,900	$709,509,896	$715,516,274	$925,217,636	$650,737,728	$863,740,626	$853,208,536	$685,767,746	$830,162,328	$989,986,204	$9,192,715,238	23.81%
Actuals CY 22	$740,672,438	$798,557,462	$970,189,262	$922,803,380	$738,549,210	$1,008,145,692	$791,464,024	$926,739,828	$1,039,979,192	$857,865,084	$941,112,016	$956,194,300	$10,692,271,888	16.31%
Actuals CY 23	$804,250,340	$823,192,002	$1,012,509,492	$745,068,580	$860,791,002	$1,049,511,120	$788,416,426	$897,781,278	$1,000,482,524	$827,756,256	$1,070,649,968	$806,724,352	$10,687,133,340	-0.05%
Actuals CY 24	$846,366,996	$944,564,572	$889,202,328	$928,813,458	$915,799,944	$913,742,342	$837,719,476	$859,783,876	$1,011,115,638	$1,031,024,438	$803,254,094	$989,520,742	$10,970,907,904	2.66%
Actuals CY 25	$855,733,910	$856,901,166	$1,126,522,626	-	-	-	-	-	-	-	-	-	$2,839,157,702	

Table 3: Annual Growth Rate

Straight average through 2024	7.74%
CAGR through 2024	7.24%

MuniCap, Inc.

[a]Source: Utah State Tax Commission, Financial Operations Division.

[b]Represents taxes reported by Utah State Tax Commission, Financial Operations Division, divided by applicable tax rate (0.50%).

Appendix D-2: Utah Historical Gross Taxable Sales and Purchases - Salt Lake City (1998-2023)

Table 1: Historical Taxable Sales[(a)]

Year	County	Location Code	City	Taxable Sales	Annual Change	Running 5-Year CAGR
CY1998	Salt Lake County	18122	Salt Lake City	$4,120,740,934		
CY1999	Salt Lake County	18122	Salt Lake City	$4,158,515,726	0.92%	
CY2000	Salt Lake County	18122	Salt Lake City	$4,313,924,550	3.74%	
CY2001	Salt Lake County	18122	Salt Lake City	$4,240,558,791	-1.70%	
CY2002	Salt Lake County	18122	Salt Lake City	$4,113,736,184	-2.99%	
CY2003	Salt Lake County	18122	Salt Lake City	$4,173,343,455	1.45%	0.25%
CY2004	Salt Lake County	18122	Salt Lake City	$4,454,725,202	6.74%	1.39%
CY2005	Salt Lake County	18122	Salt Lake City	$4,791,323,937	7.56%	2.12%
CY2006	Salt Lake County	18122	Salt Lake City	$5,154,038,027	7.57%	3.98%
CY2007	Salt Lake County	18122	Salt Lake City	$5,525,644,182	7.21%	6.08%
CY2008	Salt Lake County	18122	Salt Lake City	$5,524,235,291	-0.03%	5.77%
CY2009	Salt Lake County	18122	Salt Lake City	$4,772,658,644	-13.61%	1.39%
CY2010	Salt Lake County	18122	Salt Lake City	$5,637,669,301	18.12%	3.31%
CY2011	Salt Lake County	18122	Salt Lake City	$6,009,664,832	6.60%	3.12%
CY2012	Salt Lake County	18122	Salt Lake City	$6,548,179,468	8.96%	3.45%
CY2013	Salt Lake County	18122	Salt Lake City	$6,725,590,716	2.71%	4.01%
CY2014	Salt Lake County	18122	Salt Lake City	$6,958,701,034	3.47%	7.83%
CY2015	Salt Lake County	18122	Salt Lake City	$7,345,129,723	5.55%	5.43%
CY2016	Salt Lake County	18122	Salt Lake City	$7,615,725,610	3.68%	4.85%
CY2017	Salt Lake County	18122	Salt Lake City	$8,229,084,282	8.05%	4.68%
CY2018	Salt Lake County	18122	Salt Lake City	$8,862,086,472	7.69%	5.67%
CY2019	Salt Lake County	18122	Salt Lake City	$9,178,096,008	3.57%	5.69%
CY2020	Salt Lake County	18122	Salt Lake City	$8,866,974,472	-3.39%	3.84%
CY2021	Salt Lake County	18122	Salt Lake City	$10,787,731,649	21.66%	7.21%
CY2022	Salt Lake County	18122	Salt Lake City	$12,335,303,681	14.35%	8.43%
CY2023	Salt Lake County	18122	Salt Lake City	$11,996,574,173	-2.75%	6.24%

Table 2: Change Rate

CAGR 1998-2023	4.37%
Straight average	4.61%
Average running 5-year CAGR since 2002	4.51%

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[(a)]Based on information reported by Utah State Tax Commission.

Appendix D-2: Utah Historical Gross Taxable Sales and Purchases - Salt Lake City (1998-2023), continued

Table 1: Historical Taxable Sales - Normalized and Adjusted[a]

							Sensitivity (0.55 Annual Growth Rate)				
Year	Taxable Sales[a]	Salt Lake City (MSA) Population[b]	Sales Per Capita	Sales Normalized To Base Year	Annual Change	Running 5-Year CAGR	Base Population (MSA)	Salt Lake City Population (MSA)	Adjusted Sales[c]	Annual Change	Running 5-Year CAGR
CY1998	$4,120,740,934	881,840	$4,673	$4,120,740,934			881,840	881,840	$4,120,740,934		
CY1999	$4,158,515,726	891,116	$4,667	$4,115,227,992	-0.13%		881,840	886,690	$4,137,861,746	0.42%	
CY2000	$4,313,924,550	901,209	$4,787	$4,221,208,649	2.58%		881,840	891,567	$4,267,769,636	3.14%	
CY2001	$4,240,558,791	914,609	$4,636	$4,088,626,249	-3.14%		881,840	896,471	$4,156,460,305	-2.61%	
CY2002	$4,113,736,184	925,014	$4,447	$3,921,732,121	-4.08%		881,840	901,401	$4,008,724,636	-3.55%	
CY2003	$4,173,343,455	936,838	$4,455	$3,928,343,206	0.17%	-0.95%	881,840	906,359	$4,037,567,522	0.72%	-0.41%
CY2004	$4,454,725,202	948,663	$4,696	$4,140,938,217	5.41%	0.12%	881,840	911,344	$4,279,481,965	5.99%	0.68%
CY2005	$4,791,323,937	960,489	$4,988	$4,398,989,578	6.23%	0.83%	881,840	916,356	$4,571,170,892	6.82%	1.38%
CY2006	$5,154,038,027	985,715	$5,229	$4,610,903,652	4.82%	2.43%	881,840	921,396	$4,817,732,105	5.39%	3.00%
CY2007	$5,525,644,182	1,002,799	$5,510	$4,859,133,351	5.38%	4.38%	881,840	926,464	$5,105,020,521	5.96%	4.95%
CY2008	$5,524,235,291	1,018,679	$5,423	$4,782,165,578	-1.58%	4.01%	881,840	931,559	$5,051,790,809	-1.04%	4.58%
CY2009	$4,772,658,644	1,035,871	$4,607	$4,062,978,207	-15.04%	-0.38%	881,840	936,683	$4,315,660,942	-14.57%	0.17%
CY2010	$5,637,669,301	1,032,997	$5,458	$4,812,717,071	18.45%	1.81%	881,840	941,835	$5,140,143,344	19.10%	2.37%
CY2011	$6,009,664,832	1,047,702	$5,736	$5,058,273,092	5.10%	1.87%	881,840	947,015	$5,432,118,645	5.68%	2.43%
CY2012	$6,548,179,468	1,064,140	$6,153	$5,426,397,450	7.28%	2.23%	881,840	952,223	$5,859,501,220	7.87%	2.80%
CY2013	$6,725,590,716	1,079,661	$6,229	$5,493,293,651	1.23%	2.81%	881,840	957,461	$5,964,361,243	1.79%	3.38%
CY2014	$6,958,701,034	1,090,340	$6,382	$5,628,025,130	2.45%	6.73%	881,840	962,727	$6,144,254,933	3.02%	7.32%
CY2015	$7,345,129,723	1,102,690	$6,661	$5,874,025,515	4.37%	4.07%	881,840	968,022	$6,448,090,177	4.95%	4.64%
CY2016	$7,615,725,610	1,120,751	$6,795	$5,992,277,921	2.01%	3.45%	881,840	973,346	$6,614,077,759	2.57%	4.02%
CY2017	$8,229,084,282	1,137,273	$7,236	$6,380,821,213	6.48%	3.29%	881,840	978,699	$7,081,675,131	7.07%	3.86%
CY2018	$8,862,086,472	1,148,949	$7,713	$6,801,818,300	6.60%	4.37%	881,840	984,082	$7,590,432,542	7.18%	4.94%
CY2019	$9,178,096,008	1,158,585	$7,922	$6,985,773,322	2.70%	4.42%	881,840	989,494	$7,838,592,053	3.27%	4.99%
CY2020	$8,866,974,472	1,187,028	$7,470	$6,587,252,170	-5.70%	2.32%	881,840	994,937	$7,432,072,503	-5.19%	2.88%
CY2021	$10,787,731,649	1,186,513	$9,092	$8,017,656,172	21.71%	6.00%	881,840	1,000,409	$9,095,679,555	22.38%	6.58%
CY2022	$12,335,303,681	1,192,255	$10,346	$9,123,689,310	13.79%	7.41%	881,840	1,005,911	$10,407,353,019	14.42%	8.00%
CY2023	$11,996,574,173	1,200,544	$9,993	$8,811,887,751	-3.42%	5.31%	881,840	1,011,444	$10,106,966,580	-2.89%	5.89%

Table 2: Correlation and Growth Rate

Correlation	0.93
CAGR	
Population	1.24%
Total sales	4.37%
Normalized sales	3.09%

Table 3: Correlation and Growth Rate

Correlation	0.93
CAGR	
Population	0.55%
Adjusted sales	3.65%

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[a]Reported by Utah State Tax Commission.
[b]Source: U.S. Census Bureau, via FRED®.
[c]Represents the sales per capita multiplied by Salt Lake City (MSA) population sensitivity.

Appendix D-3: Historical Personal Consumption Expenditures (1998-2023)

Table 1: Historical Personal Consumption Expenditures[a]

	State Per Capita	Per Capita		Adj. Per Capita		Salt Lake City		Sensitivity (0.55 Annual Growth Rate)		
	Personal Consumption	Personal Income[a]		Personal Consumption	Salt Lake	Personal Consumption	Annual	.55 Growth	Adjusted	Annual
Year	Expenditures[a]	Salt Lake County	State	Expenditures	City (MSA) Population[a]	Expenditures	Change	Population[b]	PCE	Change
CY1998	$18,257	$25,087	$22,207	$20,625	881,840	$18,187,711,105		881,840	$18,187,711,105	
CY1999	$18,974	$26,232	$22,995	$21,645	891,116	$19,288,174,547	6.05%	886,690	$19,192,376,529	5.52%
CY2000	$20,027	$27,847	$24,162	$23,081	901,209	$20,801,131,180	7.84%	891,567	$20,578,578,741	7.22%
CY2001	$20,586	$28,051	$24,867	$23,222	914,609	$21,238,918,231	2.10%	896,471	$20,817,709,384	1.16%
CY2002	$21,222	$28,528	$25,167	$24,056	925,014	$22,252,278,805	4.77%	901,401	$21,684,243,778	4.16%
CY2003	$22,025	$28,960	$25,749	$24,772	936,838	$23,206,978,806	4.29%	906,359	$22,451,960,859	3.54%
CY2004	$23,398	$30,295	$26,980	$26,273	948,663	$24,924,112,943	7.40%	911,344	$23,943,629,966	6.64%
CY2005	$24,734	$32,638	$28,751	$28,078	960,489	$26,968,533,773	8.20%	916,356	$25,729,376,307	7.46%
CY2006	$26,129	$35,842	$31,107	$30,106	985,715	$29,676,198,039	10.04%	921,396	$27,739,797,669	7.81%
CY2007	$27,456	$37,671	$32,924	$31,415	1,002,799	$31,502,550,347	6.15%	926,464	$29,104,509,931	4.92%
CY2008	$27,808	$38,418	$33,784	$31,622	1,018,679	$32,212,971,760	2.26%	931,559	$29,458,049,140	1.21%
CY2009	$26,763	$35,862	$31,796	$30,185	1,035,871	$31,268,171,609	-2.93%	936,683	$28,274,141,730	-4.02%
CY2010	$26,917	$36,077	$32,037	$30,311	1,032,997	$31,311,530,038	0.14%	941,835	$28,548,278,399	0.97%
CY2011	$27,772	$38,290	$34,015	$31,262	1,047,702	$32,753,658,799	4.61%	947,015	$29,605,937,376	3.70%
CY2012	$28,718	$40,101	$35,622	$32,329	1,064,140	$34,402,488,856	5.03%	952,223	$30,784,346,458	3.98%
CY2013	$29,407	$40,573	$36,102	$33,049	1,079,661	$35,681,573,230	3.72%	957,461	$31,642,988,911	2.79%
CY2014	$30,707	$42,214	$37,621	$34,456	1,090,340	$37,568,642,647	5.29%	962,727	$33,171,610,160	4.83%
CY2015	$31,656	$44,945	$39,881	$35,676	1,102,690	$39,339,136,112	4.71%	968,022	$34,534,760,679	4.11%
CY2016	$33,009	$46,354	$41,295	$37,053	1,120,751	$41,527,066,057	5.56%	973,346	$36,065,275,730	4.43%
CY2017	$34,413	$48,192	$43,030	$38,541	1,137,273	$43,831,957,595	5.55%	978,699	$37,720,318,984	4.59%
CY2018	$36,272	$50,737	$45,463	$40,480	1,148,949	$46,509,208,459	6.11%	984,082	$39,835,428,203	5.61%
CY2019	$37,749	$52,964	$48,163	$41,512	1,158,585	$48,095,074,195	3.41%	989,494	$41,075,803,309	3.11%
CY2020	$38,180	$57,253	$51,741	$42,247	1,187,028	$50,148,773,694	4.27%	994,937	$42,033,426,756	2.33%
CY2021	$43,895	$64,694	$58,183	$48,807	1,186,513	$57,910,251,111	15.48%	1,000,409	$48,827,047,629	16.16%
CY2022	$48,559	$67,827	$60,607	$54,344	1,192,255	$64,791,600,510	11.88%	1,005,911	$54,664,974,339	11.96%
CY2023	$51,027	$71,787	$63,700	$57,505	1,200,544	$69,037,409,917	6.55%	1,011,444	$58,163,170,981	6.40%

Table 2: Compounded Annual Growth Rate

Salt Lake City personal consumption expenditures	5.48%
Adjusted Salt Lake City personal consumption expenditures	4.76%

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[a]Source: U.S. Census Bureau, via FRED®.
[b]See Appendix D-3.

APPENDIX B

DEMOGRAPHIC AND ECONOMIC INFORMATION REGARDING SALT LAKE CITY AND SALT LAKE COUNTY

The following demographic information is provided solely as background information regarding Salt Lake City (the "City") and Salt Lake County (the "County"), in which the District is located. The County is the economic and population center of the State. Based on 2020 Census data, the County has approximately 36% of the total population of the State. The State capital, Salt Lake City, is located in the County.

Population

Year	Salt Lake City	% Increase From Prior Period	Salt Lake County	% Increase From Prior Period	The State	% Increase From Prior Period	United States	% Increase From Prior Period
2024 Estimate	n/a	-	1,216,274	1.31%	3,503,613	1.75%	340,110,988	0.98%
2023 Estimate	209,593	2.41%	1,200,544	0.70	3,443,222	1.54	336,806,231	0.83
2022 Estimate	204,657	2.08	1,192,255	0.48	3,391,011	1.54	334,017,321	0.58
2021 Estimate	200,478	0.38	1,186,513	0.11	3,339,738	2.08	332,099,760	0.17
2020 Census	199,723	7.12	1,185,238	15.11	3,271,616	18.37	331,526,933	7.11
2010 Census	186,440	2.58	1,029,655	14.61	2,763,885	23.77	309,327,143	9.64
2000 Census	181,743	-	898,387	-	2,233,169	-	282,126,411	-

(Source: U.S. Census Bureau, Population Division; St. Louis Federal Reserve Board.)
Note: The 2010 and 2020 Census are as of April 1 of those years; the annual population estimates are as of July 1 of the year given. Estimates are subject to change.

Per Capita and Median Household Income

Year	Per Capita Income: US	Per Capita Income: Salt Lake County	Median Household Income: US	Median Household Income: Salt Lake County
2023	69,415	70,395	80,610	94,013
2022	66,061	66,506	74,580	91,713
2021	64,419	63,510	70,780	80,676
2020	59,125	56,370	68,010	79,294
2019	55,560	52,179	68,700	79,941
2018	53,310	49,987	63,180	73,619

(Source: St. Louis Federal Reserve Board; Utah Department of Workforce Services.)

GDP Growth

Year	GDP Growth: Salt Lake City MSA ($ Million)	GDP Growth: United States MSA ($ Billion)
2023	147,519	27,720.709
2022	137,132	26,006.893
2021	122,800	23,681.171
2020	108,560	21,354.105
2019	107,992	21,539.982
2018	99,940	20,656.516
2017	91,954	19,612.102
2016	85,636	18,804.913
2015	79,804	18,295.019
2014	75,500	17,608.138
2013	71,726	16,880.683

(Source: St. Louis Federal Reserve.)

Sales and Building in Salt Lake County

Sales and Building	2024	2023	2022	2021	2020
Gross Taxable Sales	$42,782,132,079	$41,950,608,011	$41,687,264,230	$37,173,705,449	$31,377,749,196
Permit Authorized Construction ($000)	$3,565,252.3	$4,470,667.70	$3,992,958.10	$4,343,554.30	$4,122,671.50
New Dwelling Units	4,093	8,835	8,864	11,037	10,660
New Residential Value ($000)	$1,015,070.2	$2,150,869.20	$1,711,278.50	$2,153,788.30	$1,964,183.10

(Source: Kem C. Gardner Policy Institute, University of Utah - Ivory-Boyer Construction Database; Utah Department of Workforce Services.)

Hotel & Airport Enplanement Trends: Salt Lake County

Fiscal Year	Average Room Rate	Growth Rate	Average Occupancy Rate	Growth Rate
2023	$141	$10.16	69.00%	0.73%
2022	128	25.49	68.50	9.42
2021	102	20.00	62.60	36.38
2020	85	(26.09)	45.90	(34.05)
2019	115	0.88	69.60	(1.97)
2018	114	–	71.00	–

(Source: Kem C. Gardner Policy Institute, The University of Utah - County Tourism Dashboard.)

Salt Lake City International Airport

Year	Total Enplaned	Total Deplaned	Total Passengers
2024	14,025,459	14,339,151	28,364,610
2023	13,382,250	13,570,504	26,952,754
2022	12,870,771	12,882,012	25,752,783
2021	11,181,940	11,197,049	22,378,989
2020	6,285,452	6,273,574	12,559,026
2019	13,394,243	13,413,771	26,808,014
2018	12,776,496	12,777,748	25,554,244
2017	12,099,086	12,100,265	24,199,351

(Source: Salt Lake City International Airport.)

Rate of Unemployment – Annual Average

Year	County	State	United States
2024	3.2%	3.2%	4.0%
2023	2.7	2.7	3.6
2022	2.4	2.4	3.6
2021	2.9	2.8	5.3
2020	5.3	4.8	8.1
2019	2.5	2.5	3.7
2018	2.9	2.9	3.9
2017	3.0	3.1	4.4
2016	3.1	3.3	4.9
2015	3.3	3.5	5.3
2014	3.5	3.6	6.2

(Source: Utah Department of Workforce Services and the U.S. Department of Labor.)

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Economic Indicators in the County

LABOR FORCE [1]	2024	2023	2022	2021	2020
Labor Force (annual average)	693,444	681,550	664,322	645,193	638,440
Employed (annual average)	671,267	663,016	648,471	626,701	604,567
Unemployed (annual average)	21,177	18,534	15,851	18,492	33,873
Average Employment (Non-Farm Jobs)	808,038	800,299	783,881	750,123	720,686
% Change Prior Year	*0.97*	*2.09*	*4.50*	*4.08*	*-2.24*
Average Employment by Sector:					
Agriculture, Forestry, Fishing & Hunting	571	600	505	433	350
Mining	3,476	3,418	3,101	2,711	2,704
Utilities	2,755	2,675	2,621	2,540	2,613
Construction	55,103	54,096	52,254	49,403	46,121
Manufacturing	60,976	61,998	61,233	58,412	56,512
Wholesale Trade	40,141	38,401	36,899	34,826	33,589
Retail Trade	73,057	73,824	75,693	75,837	71,757
Transportation and Warehousing	50,964	50,937	48,540	46,635	45,470
Information	23,435	24,297	24,535	21,586	20,493
Finance and Insurance	51,854	51,147	51,666	51,570	50,506
Real Estate and Rental and Leasing	12,889	12,594	12,320	11,964	11,551
Professional, Scientific & Technical Services	75,991	79,954	73,906	67,717	62,213
Management of Companies and Enterprises	16,896	16,777	16,336	16,041	16,533
Administrative, Support, Waste Management, & Remediation	50,008	51,301	52,504	50,714	50,478
Education Services	68,665	66,624	65,262	62,248	63,779
Health Care and Social Assistance	93,640	90,913	86,331	83,898	81,223
Arts, Entertainment, and Recreation	13,230	12,255	11,306	9,691	8,178
Accommodation and Food Services	57,269	56,740	53,976	48,396	44,582
Other Services and Unclassified Establishments	23,160	23,114	22,902	22,348	21,239
Public Administration	33,910	32,634	31,989	31,155	30,797
Total Establishments	67,102	65,056	62,762	62,346	56,515
Total Wages ($ Millions)	$62,018.6	$58,443.4	$54,673.5	$49,206.1	$44,541.0

INCOME AND WAGES	2024	2023	2022	2021	2020
Total Personal Income ($000) [2]	n/a	$85,126,342	$80,481,119	$76,747,291	$67,958,404
Per Capita Income [2]	n/a	$71,787	$67,827	$64,694	$57,253
Median Household Income [1]	n/a	$94,658	$91,713	$80,676	$79,294
Average Monthly Nonfarm Wage [1]	$6,396	$6,086	$5,812	$5,466	$5,150

SALES & CONSTRUCTION	2024	2023	2022	2021	2020
Gross Taxable Sales ($000,000) [3]	$42,782.1	$41,950.6	$41,687.3	$37,173.7	$31,377.7
New Dwelling Units [4]	4,093	8,824	8,864	11,037	10,660
Total Construction Value ($000) [4]	$3,565,252.3	$4,463,195.5	$3,992,958.0	$4,343,554.3	$4,122,671.6
New Residential Value ($000) [4]	$1,015,070.2	$2,147,646.1	$1,711,278.5	$2,153,788.4	$1,964,183.1
New Nonresidential Value ($000) [4]	$637,834.0	$910,557.6	$1,303,331.3	$1,056,514.3	$974,277.3

(Sources: (1) Utah Department of Workforce Services; (2) U.S. Department of Commerce, Bureau of Economic Analysis, last updated November 2024; (3) Utah State Tax Commission; (4) University of Utah Ivory-Boyer Construction Database; Total Construction Value includes additions/alterations/repairs.)

Major Employers in the County

Company	Industry	Employment Range
University of Utah	Higher Education	20000+
Intermountain Health Care	Health Care	20000+
State of Utah	State Government	10000-14999
Granite School District	Public Education	7000-9999
Jordan School District	Public Education	7000-9999
Salt Lake County	Local Government	5000-6999
Amazon.com	Local Messengers and Delivery	5000-6999
Wal-Mart	Warehouse Clubs/Supercenters	5000-6999
Delta Airlines	Passenger Air Transportation	5000-6999
The Canyons School District	Public Education	4000-4999
Arup Laboratories	Medical Laboratories	4000-4999
Salt Lake City	Local Government	3000-3999
Department of Veterans Affairs	Hospitals	3000-3999
Smith's Food & Drug	Supermarkets	3000-3999
United Parcel Service	Delivery Services	3000-3999
Salt Lake City School District	Public Education	3000-3999
Zions Bancorporation	Banking	3000-3999
US Postal Service	Postal Service	2000-2999
Biofire Diagnostics	Medical Research	2000-2999
Salt Lake Community College	Higher Education	2000-2999
L3 Technologies	Manufacturing	2000-2999
SkyWest Airlines	Air Transportation	2000-2999
Kennecott Utah Copper	Mining	2000-2999
Harmons	Supermarkets	2000-2999
Mountain America FCU	Credit Unions	2000-2999
Utah Transit Authority	Public Transportation	2000-2999
Northrop Grumman Corp	Aerospace Manufacturing	2000-2999
Discover Products	Financial Services	2000-2999
Costco Wholesale	Warehouse Clubs/Supercenters	2000-2999
Merit Medical Systems	Medical Instrument Manufacturing	2000-2999
Wells Fargo Bank	Commercial Banking	2000-2999
Select Health	Medical Insurance Carriers	1000-1999
Fidelity Brokerage Services	Financial Services	1000-1999
Goldman Sachs and Co	Nondepository Credit Intermediation	1000-1999
Maverik Country Stores	Gasoline Stations with Convenience Stores	1000-1999
St Marks Hospital	Hospitals	1000-1999
The Home Depot	Home Centers	1000-1999
McDonald's	Limited-Service Restaurants	1000-1999
Core Innovative Solutions	Residential Property Managers	1000-1999
Edwards Lifesciences	Medical Instrument Manufacturing	1000-1999
Catholic Health Initiatives Colorado	Hospitals	1000-1999
Target	Warehouse Clubs/Supercenters	1000-1999
Becton, Dickinson and Company	Medical Instrument Manufacturing	1000-1999
Snowbird Operations	Hotels	1000-1999
Swire Pacific Holdings	Grocery Merchant Wholesalers	1000-1999
R1 RCM	Professional, Scientific, and Technical Services	1000-1999
Ultradent Products	Dental Equipment Manufacturing	1000-1999
Western Governors University	Higher Education	1000-1999
Ebay	General Merchandise Retailers	1000-1999
Universal Protection	Security Guards and Patrol Services	1000-1999
Varex Imaging	Irradiation Apparatus Manufacturing	1000-1999

Company	Industry	Employment Range
Optum Services	Software Publishers	1000-1999
Cache Valley Electric	Specialty Trade Contractors	1000-1999
ARO	Supermarkets	1000-1999
Pacificorp	Utilities	1000-1999
Sutter Health	Accounting Services	1000-1999
Dept of Defense	Federal Government	1000-1999
Western States Lodging and Management	Accommodations	1000-1999
West Valley City	Local Government	1000-1999

(Source: Utah Department of Workforce Services; last updated November 2024.)

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APPENDIX C

SUMMARY OF THE INDENTURES

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INDENTURE OF TRUST (SENIOR)

DEFINITIONS OF WORDS AND TERMS

The following are definitions of certain terms used in the Indenture of Trust (Senior). Reference is hereby made to the Indenture of Trust (Senior) for complete definitions of all terms.

"Act" means collectively, the Bond Act and the District Act.

"Administrative Expenses" means an amount reasonably determined by the District as being necessary to pay the District's expenses reasonably incurred in connection with the administration and operation of the District, including accounting fees, audit expenses, legal fees, insurance premiums, management expenses, board member compensation, and generally all expenses, under which generally accepted accounting practices are properly allocable to administration; however, only such expenses as are reasonably and properly necessary to the efficient administration and operation of the District and permitted under the District Act shall be included, but not in excess of the following: (i) for calendar year 2025, the amount of $100,000, (ii) for each calendar year thereafter, an additional 2%; and (iii) in the event of a claim by a third-party challenging (A) the creation or existence of the District; (B) the Bonds; and (C) the District's ability to perform its obligations under the Indenture or any resolution, indenture, or other document relating to the issuance of Bonds; the amount reasonably necessary to defend the District from such claim to the extent such amount exceeds the limit established in (i) and (ii).

"Annual Principal and Interest Requirements" means the sum of the principal of and interest on bonds to be paid during any Bond Year, but excluding any amount payable from capitalized interest. In calculating this amount, the principal amount of bonds required to be redeemed prior to maturity pursuant to the mandatory sinking fund redemption schedule, shall be treated as maturing in the Bond Year in which such bonds or other securities are so required to be redeemed, rather than in the Bond Year in which the stated maturity of such bonds or other securities occurs.

"Board" means the Board of Trustees of the District.

"Bond Act" means the applicable portions of the Local Government Bonding Act, Title 11, Chapter 14, Utah Code.

"Bond Counsel" means any firm of nationally recognized municipal bond attorneys selected by the District and experienced in the issuance of municipal bonds and the exclusion of the interest thereon from gross income for federal income tax purposes.

"Bond Resolution" means the resolution authorizing the issuance of the 2025A&B Bonds and the execution of the Indenture, certified by the Clerk/Secretary of the District to have been duly adopted by the District and to be in full force and effect on the date of such certification, including any amendments or supplements made thereto.

"Bond Year" means the period commencing on the date of issuance of the Bonds to June 1, 2026; and, thereafter, the period from June 2 of any calendar year to June 1 of the following calendar year.

"Bonds" means the First Lien Bonds and Second Lien Bonds.

"City Administrative Fee" means the administrative fee authorized by the CCR Act and the Participation Agreement, equal to one percent (1%) of the Revitalization Sales Tax collected, which fee will be deducted from the Revitalization Sales Tax received by the City before transferring the remaining amount to the Trustee.

"Code" means the Internal Revenue Code of 1986, as amended and in effect as of the date of issuance of the Bonds.

"Consent Party" means the Owner of a Bond or, if such Bond is held in the name of Cede, the Beneficial Owner of a Bond or Participant (as determined by a list provided by DTC) with respect to such Bond. The District may at its option determine whether the Owner, Beneficial Owner, or the Participant is the Consent Party with respect to any particular amendment or other matter thereunder.

"Continuing Disclosure Undertaking" means the Continuing Disclosure Undertaking relating to the 2025A&B Bonds and the 2025C Bonds dated June 18, 2025, executed by the District.

"Costs of Issuance" means costs and expenses incurred in connection with the issuance of the Bonds, including, but not limited to, the following:

(a) underwriters' spread (whether realized directly or derived through purchase of Bonds at a discount below the price at which they are expected to be sold to the public);

(b) counsel fees (including bond counsel, general counsel, underwriters' counsel, as well as any other specialized counsel fees);

(c) fees and expenses of the District's municipal advisor, accountant, manager, special consultants, and other professionals;

(d) rating agency fees;

(e) trustee and paying agent fees;

(f) printing costs (for the Bonds and of any official statement relating to the Bonds); and

(g) CUSIP fees, regulatory fees and any other costs and expenses of the District relating to the issuance of Bonds.

"Counsel" means a person, or firm of which such a person is a member, authorized in any state to practice law.

"Discharge Date" means December 31, 2055, unless extended upon authorization by the District, in its discretion.

"District Act" means applicable portions of Title 17B, Chapter 1 and Title 17D, Chapter 4 Utah Code.

"First Lien Bonds" means the 2025A Bonds and any other additional First Lien Bonds issued in accordance with the Indenture, payable from all or a portion of the Pledged Revenues and senior to the lien thereon of the Second Lien and the Subordinate Bonds.

"Governing Document" means the Governing Document for the District approved by the City on April 8, 2025 (as the same may be further amended or restated from time to time).

"Imposition Period" means the period of the Revitalization Sales Tax imposition, i.e., January 1, 2025, through December 31, 2054.

"Indenture" means the Indenture of Trust (Senior) as originally executed or as it may from time to time be supplemented or amended by one or more indentures supplemental thereto entered into pursuant to the applicable provisions thereof.

"Insurance Policy" means, in each case, the insurance policy issued by the Insurer guaranteeing the scheduled payment of principal of and interest on the Insured Bonds when due.

"Insured Bonds" means all of the 2025A&B Bonds.

"Insurer" means Assured Guaranty Inc., a Maryland corporation, or any successor thereto or assignee thereof.

"Maximum Annual Principal and Interest Requirements" means the greatest of the Annual Principal and Interest Requirements to be paid during any Bond Year for the period beginning with the Bond Year in which such computation is made and ending with the Bond Year in which any bond last becomes due at maturity or on a redemption date on which any bond thereafter maturing is called for prior redemption.

"Outstanding" or **"Outstanding Bonds"** means, as of any particular time, all Bonds which have been duly authenticated and delivered by the Trustee under the Indenture, except:

(a) Bonds theretofore cancelled by the Trustee or delivered to the Trustee for cancellation because of payment at maturity or prior redemption;

(b) Bonds for the payment or redemption of which moneys or Federal Securities in an amount sufficient (as determined pursuant to the Indenture) shall have been theretofore deposited with the Trustee, or Bonds for the payment or redemption of which moneys or Federal Securities in an amount sufficient (as determined pursuant to the Indenture) shall have been placed in escrow and in trust; and

(c) Bonds in lieu of which other Bonds have been authenticated and delivered pursuant to the Indenture.

"Owner(s)" or **"Owner(s) of Bonds"** means the registered owner(s) of any Bond(s) as shown on the registration books maintained by the Trustee, including the Depository for the Bonds, if any, or its nominee. For purposes of the Indenture, the Consent Parties shall possess all rights of the Owner(s) to direct the actions of the Trustee, execute consents, waivers, amendments, give indemnities, and otherwise give directions and approve actions taken by the Trustee.

"Permitted Investments" means any of the following securities:

(a) State and Local Government Securities issued by the United States Treasury ("SLGS");

(b) United States Treasury bills, notes, and bonds, as traded on the open market;

(c) Zero Coupon United States Treasury Bonds;

(d) Any other direct obligations of or obligations fully and unconditionally guaranteed by the United States of America (including, without limitation, obligations commonly referred to as "REFCORP strips");

(e) Obligations of any of the following federal agencies which obligations represent full faith and credit obligations of the United States of America including: the Export-Import Bank of the United States; the Government National Mortgage Association; the Federal Housing Administration; the Maritime Administration: General Services Administration, Small Business Administration; or the Department of Housing and Urban Development (PHA's);

(f) Money market funds rated "AAAm" or "AAAm-G" or better by S&P and/or the equivalent rating or better of Moody's (if so rated), including money market funds from which the Trustee or its affiliates derive a fee for investment advisory services to the fund;

(g) Commercial paper which is rated at the time of purchase in the single highest classification, P-1 by Moody's or A-1+ by S&P, and which matures not more than 270 days after the date of purchase;

(h) Bonds, notes or other evidences of indebtedness rated "AAA" by S&P and "Aaa" by Moody's issued by the Federal National Mortgage Association or the Federal Home Loan Mortgage Corporation with remaining maturities not exceeding three years;

(i) U.S. dollar denominated deposit accounts, federal funds and banker's acceptances with domestic commercial banks, including the Trustee and its affiliates, which have a rating on their short-term certificates of deposit on the date of purchase of "A-1" or "A-1+" by S&P and "P-1" by Moody's and maturing no more than 360 days after the date of purchase (ratings on holding companies are not considered as the rating of the bank);

(j) The fund held by the Treasurer for the State of Utah and commonly known as the Utah State Public Treasurer's Investment Fund; and

(k) Any other investments or securities permitted for investment of public funds under the State Money Management Act of 1974, Title 51, Chapter 7, Utah Code, including investments contracts permitted by the Indenture.

"Pledged Revenues" means, unless otherwise provided therein or by Supplemental Indenture in compliance with the Indenture, all income and revenue derived from (i) the Revitalization Sales Tax imposed by the City, and transferred to the Trustee in accordance with the Participation Agreement and the Capital Pledge Agreement, except for the City's Administrative Fee and the District Administrative Expenses, and (ii) all investment income from any fund or account established under the Indenture (excluding investment income, if any, required to be retained in the Rebate Fund established therein) and not in excess of the "Maximum Dollar Amount" as defined in the Participation Agreement. Pledged Revenues means all or a portion of the Pledged Revenues but does not include any amounts determined, pursuant to State law, to be subject to valid claims for refunds.

"Project" means all or a portion of the District Redevelopment Project defined in the Recitals thereof, as provided in the Participation Agreement.

"Project Costs" means, pursuant to the Participation Agreement, any expenses incurred by the Developer or one of their affiliates in connection with the Project that qualifies as an "allowable use of funds" in Title 63N, Chapter 3, Section 1403 of the Utah Code, including "Debt Service" as defined in the Participation Agreement.

"Qualified Reserve Facility" means with respect to any Bonds, a surety bond, letter of credit or similar instrument issued by a bank, insurance company or other financial institution with a minimum credit rating of at least A+ or A1 by S&P Global Ratings or Moody's Investors Service, Inc., respectively, for the purpose of satisfying all or any portion of the reserve requirement with respect to the such Bonds.

"Record Date" means the 15th day of the calendar month next preceding each Interest Payment Date.

"Reserve Policy" means the debt service reserve insurance policy issued by the Insurer and deposited in the Second Lien Reserve Fund.

"Revitalization Sales Tax" means the 0.5% sales and use tax adopted by the City on October 1, 2024 for a period of thirty (30) years from the date of the first imposition of the tax as authorized by the CCR Act and Section 59-12-402.5, Utah Code.

"Second Lien Bonds" means the 2025B Bonds and any other Second Lien Bonds issued in accordance with the Indenture, payable from all or a portion of the Pledged Revenues and junior to the lien thereon of the First Lien Bonds, and senior to the lien thereon of the Subordinate Bonds.

"Second Lien Reserve Requirement," if any, means, (a) fifty percent (50%) of the Maximum Annual Principal and Interest Requirements for the 2025B Bonds, which on the date of issuance of the 2025B Bonds is

$6,969,862.50, and (b) with respect to any other Second Lien Bonds that are entitled to the benefit of the Second Lien Reserve Fund, the amount, if any, specified in the Supplemental Indenture authorizing the issuance of said Second Lien Bonds.

"Second Subordinate Bonds" means any bonds or securities, if any, payable from all or a portion of the Pledged Revenues and junior and subordinate to the lien thereon of the 2025C Bonds and any other Outstanding Subordinate Bonds.

"Subordinate Bonds" means the 2025C Bonds and any other Subordinate Bonds issued in accordance with the Subordinate Indenture, payable from all or a portion of the Pledged Revenues and junior and subordinate to the lien thereon of the 2025B Bonds and any other Outstanding Second Lien Bonds.

"Subordinate Indenture" means the Indenture of Trust (Subordinate) of even date therewith as originally executed or as it may from time to time be supplemented or amended by one or more indentures supplemental thereto entered into pursuant to the applicable provisions thereof.

"Trust Estate" means the moneys, securities, revenues, receipts, and funds transferred, pledged, and assigned to the Trustee pursuant to the Granting Clauses thereof.

"2025A&B Bonds" means the bonds issued thereunder and designated as the "Downtown Revitalization Public Infrastructure District First Lien Sales Tax Revenue Bonds (SEG Redevelopment Project) Series 2025A" and the "Downtown Revitalization Public Infrastructure District Second Lien Sales Tax Revenue Bonds (SEG Redevelopment Project) Series 2025B."

* * *

SUMMARY OF THE INDENTURE OF TRUST (SENIOR)

The Indenture of Trust (Senior) specifies the details and terms of the First Lien Bonds and the Second Lien Bonds as set out in this Official Statement. The following is a summary of certain other substantially identical provisions contained in the Indenture of Trust (Senior). The following is not a comprehensive description, however, and is qualified in its entirety by reference to the Indenture of Trust (Senior) for a complete recital of the terms thereof.

Pledge and Assignment of Trust Estate

The District, in consideration of the premises and of the mutual covenants therein contained, the acceptance by the Trustee of the trusts thereby created, and of the purchase and acceptance of the Bonds by the Owners thereof and for other good and valuable consideration, the receipt of which is thereby acknowledged, in order to secure the payment of the principal of, premium if any, and interest on the Bonds at any time Outstanding under the Indenture, according to their tenor and effect, and to secure the performance and observance of all of the covenants and conditions in the Bonds, the Bond Resolution and the Indenture, and to declare the terms and conditions upon and subject to which the Bonds are issued and secured, does thereby grant and assign to the Trustee, and to its successors in trust, and to them and their assigns forever, the following (said property being referred to therein as the "Trust Estate"):

GRANTING CLAUSE FIRST:

The Pledged Revenues and all other moneys, securities, revenues, receipts, and funds from time to time held by the Trustee in the funds, accounts and subaccounts under the terms of the Indenture (except moneys and securities held in the Rebate Fund), subject to the provisions of the Indenture, and a security interest therein;

GRANTING CLAUSE SECOND:

All right, title, and interest of the District in the Revitalization Sales Tax pledged by the City and payable to or on behalf of the District under the Capital Pledge Agreement; and

GRANTING CLAUSE THIRD:

All right, title, and interest of the District in any and all other revenue of every name and nature from time to time thereafter by delivery or by writing of any kind, given, granted, assigned, pledged, conveyed, mortgaged, or transferred by the District or by anyone on its behalf as and for additional security thereunder, and the Trustee is thereby authorized to receive any and all such property at any and all times and to hold and apply the same subject to the terms thereof.

Source of Payment of Bonds

The Bonds shall constitute special limited sales tax revenue obligations of the District payable from the Pledged Revenues as provided therein. Principal of the Bonds, together with the interest thereon and any premium due in connection therewith, shall be payable from and to the extent of the Pledged Revenues, including all moneys and earnings thereon held in the funds and accounts therein created, and the Pledged Revenues are thereby pledged to the payment of the Bonds. The 2025A&B Bonds shall constitute an irrevocable lien upon the Pledged Revenues, but not necessarily an exclusive such lien. The 2025A&B Bonds are secured by a lien on the Pledged Revenues on parity with the lien thereon of any First Lien Bonds or Second Lien Bonds, respectively, issued thereafter, and senior to the lien of any Subordinate Bonds.

Creation of Funds and Accounts

There are thereby created and established the following funds and accounts, which shall be established with the Trustee and maintained by the Trustee in accordance with the provisions of the Indenture:

(a) the Senior Project Fund and, within the Senior Project Fund, a 2025 Senior Project Account and a 2025 Senior Costs of Issuance Account;

(b) Working Capital Fund;

(c) the Revenue Fund;

(d) the First Lien Bond Fund;

(e) the Second Lien Bond Fund;

(f) Rebate Fund;

(g) Second Lien Reserve Fund; and

(h) the Surplus Fund.

The Trustee is authorized to establish separate accounts and subaccounts within such funds and accounts or otherwise segregate moneys by series designation within such funds and accounts, on a book-entry basis or in such other manner as the Trustee may deem necessary or convenient, or as the Trustee shall be instructed by the District.

Initial Deposits

The net proceeds of the 2025A&B Bonds in the amount specified in the Indenture shall be paid to the Trustee, and the Trustee shall deposit and apply such amounts, together with any other moneys paid to the Trustee, as specified in the Indenture.

Senior Project Fund

(a) *2025 Senior Costs of Issuance Account*. The Trustee shall disburse moneys on deposit in the 2025 Senior Costs of Issuance Account from time to time for payment or reimbursement of Costs of Issuance in connection with the issuance of the Series 2025A&B Bonds, upon written disbursement requests of the District, in substantially the form attached to the Indenture, signed by a District Representative. Six (6) months from the date of original issuance of the 2025A&B Bonds, the Trustee shall transfer any moneys remaining in the 2025 Senior Costs of Issuance Account to the 2025 Senior Project Account.

(b) *2025 Senior Project Account*. So long as no Event of Default shall have occurred and be continuing, the Trustee shall disburse moneys on deposit in the 2025 Senior Project Account from time to time to pay or as reimbursement for payment made for Project Costs (other than Costs of Issuance paid pursuant to subsection (a) above), in each case within 3 Business Days after receipt by the Trustee of written disbursement requests in substantially the form attached to the Indenture, signed by the District Representative, accompanied by the District's Acceptance Ratification, including the Accountant's Cost Certification and the Engineer's Cost Certification, all as defined in the Infrastructure Acquisition and Reimbursement Agreement between the District and the Developer, for which payment is being requested.

In making payments pursuant to this Section, the Trustee may rely conclusively on any such requisitions and accompanying certificates and invoices and shall not be required to make any

independent investigation in connection therewith. The execution of any requisition by the District Representative shall constitute, unto the Trustee, an irrevocable determination that all conditions precedent to the payments requested have been completed. The Trustee shall keep and maintain adequate records pertaining to the 2025 Senior Project Account and the 2025 Senior Costs of Issuance Account and all disbursements therefrom and shall file periodic statements of activity regarding such accounts with the District.

Within **90** days of payment by the Trustee of all disbursement requests theretofore tendered to the Trustee under the provisions of this Section, except as provided in subsection (2) below, the District shall deliver to the Trustee, a certificate of the District Representative stating:

(1) that the Project or portion of the Project financed with the proceeds of the 2025A&B Bonds has been fully completed substantially in accordance with the plans and specifications for the Project, as then amended, and the date of completion of the Project or portion thereof; and

(2) that the Project Costs paid or reimbursed with proceeds of the 2025A&B Bonds have been fully paid for and no claim or claims exist against the District or against the Project out of which a lien based on furnishing labor or material exists or might ripen; provided, however, there may be excepted from the foregoing statement any claim or claims out of which a lien exists or might ripen in the event that the District intends to contest such claim or claims, in which event such claim or claims shall be described; and that moneys are on deposit in the 2025 Senior Project Account or are available through enumerated bank loans (including letters of credit) or other sources sufficient to make payment of the full amount which might in any event be payable in order to satisfy such claim or claims.

If after payment by the Trustee of all disbursement requests theretofore tendered to the Trustee under the provisions of this Section and after receipt by the Trustee of the District Representative's certificate required by this Section and after all rebatable earnings have been transferred to the Rebate Fund pursuant to the Indenture, there shall remain any moneys in the 2025 Senior Project Account, such moneys shall be deposited and applied in the following order of priority: (1) to pay the Bond Requirements of any Outstanding 2025A Bonds or any other Outstanding First Lien Bonds due in such Bond Year and not paid; (2) to pay the Bond Requirements of any Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds due in such Bond Year and not paid; (3) to pay accrued interest on and/or redeem Outstanding 2025C Bonds or any other Outstanding Subordinate Bonds; (4) if there are no Subordinate Bonds Outstanding, to pay accrued interest on and/or redeem any Outstanding Second Subordinate Bonds, if any; (5) to optionally to redeem Outstanding 2025A Bonds or any other Outstanding First Lien Bonds; and (6) to optionally redeem Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds; provided, in the discretion of the District, such moneys may be applied for any other purpose that, based on an opinion of Bond Counsel addressed and delivered to the Trustee, will not adversely affect the exclusion of the interest on the 2025A&B Bonds from gross income for federal income tax purposes.

Revenue Fund

In accordance with the Participation Agreement and the Capital Pledge Agreement, not later than 30 days following receipt by the City of the Pledged Revenues derived from the Revitalization Sales Tax, the City shall transfer to the Trustee such Pledged Revenues, less the City's Administrative Fee, as defined in the Participation Agreement, for deposit to the Revenue Fund. Notwithstanding the foregoing, prior to the District's issuance of the 2025A&B Bonds and the 2025C Bonds, all Revitalization Sales Tax collected by the City shall be held and maintained by the City in a separate City-managed account in accordance with the Participation Agreement. On the issue date of the 2025A&B Bonds and the 2025C Bonds, the City will transfer all accumulated Revitalization Sales Tax to the Trustee for deposit as provided in the Indenture.

So long as any of the Bonds thereby authorized shall be Outstanding, as to any Bond Requirements, the following payments shall be made from the Revenue Fund as provided in the Indenture (District Administrative Expenses through Surplus Fund), as applicable.

IN NO EVENT IS THE DISTRICT PERMITTED TO APPLY ANY PORTION OF THE PLEDGED REVENUE TO ANY OTHER PURPOSE, OR TO WITHHOLD ANY PORTION OF THE OF THE PLEDGED REVENUE.

Administration of Revenue Fund

So long as any First Lien Bonds, Second Lien Bonds, and Subordinate Bonds shall be Outstanding, as to any Bond Requirements, the following payments shall be made from the Revenue Fund as provided in the Indenture (District Administrative Expenses through Surplus Fund).

District Administrative Expenses

FIRST, on January 1 of each calendar year, commencing January 1, 2029, from any moneys in the Revenue Fund, there shall be credited to the Working Capital Fund, the amount budgeted by the District to pay Administrative Expenses for the coming Fiscal Year in accordance with the Indenture.

First Lien Bond Fund Payments

SECOND, so long as any First Lien Bonds are Outstanding, from any moneys in the Revenue Fund, there shall be credited to the applicable accounts in the First Lien Bond Fund:

(a) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025A Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay next maturing installment of interest on the 2025A Bonds then Outstanding, and on the 15th day of every month thereafter, (1) the amount of accrued but unpaid interest and compound interest on any unpaid interest, if any, and (2) one sixth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next maturing installment of interest on the 2025A Bonds then Outstanding. On the same day as payments are made to the applicable account in the First Lien Bond Fund as required thereby for the 2025A Bonds, there shall also be deposited or transferred to the applicable accounts in the First Lien Bond Fund created with respect to any other Outstanding First Lien Bonds the amount with respect to interest (including accrued but unpaid interest, compound interest on any unpaid interest and current interest) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the First Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding each interest payment date (i.e., June 1 and December 1) for the First Lien Bonds, if moneys in the applicable accounts in the First Lien Bond Fund are insufficient to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025A Bonds and such other First Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority to the applicable accounts in the First Lien Bond Fund in order to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025A Bonds and such other First Lien Bonds: (i) the Revenue Fund, and (ii) the Surplus Fund. In the event such amounts in the Revenue Fund and the Surplus Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

(b) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025A Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay

the next installment of principal of the 2025A Bonds coming due at maturity, and on the 15th day of every month thereafter, (1) any past due principal, and (2) one twelfth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025A Bonds coming due at maturity. On the same day as payments are made to the applicable account in the First Lien Bond Fund as required thereby for the 2025A Bonds, there shall also be deposited or transferred to the applicable accounts in the First Lien Bond Fund created with respect to any other Outstanding First Lien Bonds the amount with respect to principal (including past due principal) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the First Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding June 1 of each year, if moneys in the applicable accounts in the First Lien Bond Fund are insufficient to pay any past due principal and the next installment of principal on the 2025A Bonds and such other First Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority to the First Lien Bond Fund in order to pay any past due principal and the next maturing installment of principal on the 2025A Bonds and such other First Lien Bonds: (i) the Revenue Fund, and (ii) the Surplus Fund. In the event such amounts in the Revenue Fund and the Surplus Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

The moneys credited to the First Lien Bond Fund shall be used *first*, to pay interest (including any accrued but unpaid interest, compound interest on any unpaid interest, and current interest), due and payable on the First Lien Bonds, and *then*, to pay the principal (including any past due principal) of, and redemption premiums due, if any, as such principal and premiums become due at maturity or on a redemption date designated in a mandatory sinking fund redemption schedule, in a notice of prior redemption, or otherwise.

Second Lien Bond Fund Payments

THIRD, so long as any Second Lien Bonds are Outstanding, from any moneys in the Revenue Fund, there shall be credited to the applicable accounts in the Second Lien Bond Fund:

(a) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025B Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay next maturing installment of interest on the 2025B Bonds then Outstanding, and on the 15th day of every month thereafter, (1) the amount of accrued but unpaid interest and compound interest on any unpaid interest, if any, and (2) one sixth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next maturing installment of interest on the 2025B Bonds then Outstanding. On the same day as payments are made to the applicable account in the Second Lien Bond Fund as required thereby for the 2025B Bonds, there shall also be deposited or transferred to the applicable accounts in the Second Lien Bond Fund created with respect to any other Outstanding Second Lien Bonds the amount with respect to interest (including accrued but unpaid interest, compound interest on unpaid interest and current interest) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the Second Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding each interest payment date (i.e., June 1 and December 1), if moneys in the applicable accounts in the Second Lien Bond Fund are insufficient to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025B Bonds and such other Second Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority to the applicable accounts in the Second Lien Bond Fund in order to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025B Bonds and such other Second Lien Bonds: (i) the Revenue Fund, (ii) the Surplus Fund, and (iii) the

Second Lien Reserve Fund. In the event such amounts in the Revenue Fund, the Surplus Fund and the Second Lien Reserve Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

(b) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025B Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025B Bonds coming due at maturity, and on the 15th day of every month thereafter, (1) any past due principal, and (2) one twelfth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025B Bonds coming due at maturity. On the same day as payments are made to the applicable account in the Second Lien Bond Fund as required thereby for the 2025B Bonds, there shall also be deposited or transferred to the applicable accounts in the Second Lien Bond Fund created with respect to any other Outstanding Second Lien Bonds the amount with respect to principal (including past due principal) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the Second Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding June 1 of each year, if moneys in the applicable accounts in the Second Lien Bond Fund are insufficient to pay any past due principal and the next installment of principal on the 2025B Bonds and such other Second Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority into the applicable accounts in the Second Lien Bond Fund in order to pay any past due principal and the next maturing installment of principal on the 2025B Bonds and such other Second Lien Bonds: (i) the Revenue Fund, (ii) the Surplus Fund, and (iii) the Second Lien Reserve Fund. In the event such amounts in the Revenue Fund, the Surplus Fund and the Second Lien Reserve Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

The moneys credited to the Second Lien Bond Fund shall be used *first*, to pay interest (including any accrued but unpaid interest, compound interest on any unpaid interest, and current interest), due and payable on the Second Lien Bonds, and *then*, to pay the principal (including any past due principal) of, and redemption premiums due, if any, as such principal and premiums become due at maturity or on a redemption date designated in a mandatory sinking fund redemption schedule, in a notice of prior redemption, or otherwise.

Trustees Fees

FOURTH, on the 15th day of every month and when billed, the District shall use any moneys in the Revenue Fund to pay fees of the Trustee, if any, in accordance with the Indenture.

Rebate Fund

FIFTH, so long as any First Lien Bonds, Second Lien Bonds or Subordinate Bonds are Outstanding, semi-annually on each June 2 and December 2, as necessary, and after payments therein above required to be made by the Indenture are made, the Trustee, upon the District's written request, shall transfer moneys remaining in the Revenue Fund to be deposited into the Rebate Fund in such amounts as are required in connection with the Bonds under Section 148 of the Tax Code and regulations promulgated thereunder and shall apply such funds to the extent required to comply with the Indenture to make payments to the United States with respect to the Series 2025A&B Bonds. Any moneys in the Rebate Fund not needed for such purpose shall be transferred to the Revenue Fund. The Trustee shall have no responsibility with respect to compliance with the provisions of this Section, except to comply with the written request of the District related to the transfer of the Rebate Fund payments.

Second Lien Reserve Fund

(a) **SIXTH**, so long as any Second Lien Bonds are Outstanding, annually on June 2 of each year, from any moneys remaining in the Revenue Fund, there shall be credited to the Second Lien Reserve Fund, an amount necessary to replenish the Second Lien Reserve Fund to an amount equal to the Second Lien Reserve Requirement, if any, less the amount of any other moneys available therefor that are accounted for in the Second Lien Reserve Fund in order to maintain the Second Lien Reserve Fund as a continuing reserve in an amount equal to the Second Lien Reserve Requirement, to meet possible deficiencies in the Second Lien Bond Fund. The moneys in the Second Lien Reserve Fund shall be accumulated or reaccumulated and maintained as a continuing reserve to be used for the payment of the principal of and interest on the 2025B Bonds and any other Outstanding Second Lien Bonds in the event moneys in the Second Lien Bond Fund or such other bond funds of Second Lien Bonds are insufficient to make such payments when due, whether on an interest payment date, sinking fund redemption date, maturity date, or otherwise.

(b) The funds held in the Second Lien Reserve Fund shall be transferred to the Second Lien Bond Fund if needed to prevent a default in the payment of the principal of and interest on the 2025B Bonds and any other Outstanding Second Lien Bonds to the extent Pledged Revenues are insufficient therefor, first to make up any deficiency in moneys available to pay interest on the 2025B Bonds or any other Second Lien Bonds and then to make up any deficiency in moneys available to pay principal of the 2025B Bonds or any other Second Lien Bonds. Any moneys at any time in excess of the Second Lien Reserve Requirement in the Second Lien Reserve Fund shall be withdrawn therefrom, and transferred from time to time to the Second Lien Bond Fund and used as therein provided for moneys credited to such fund. Failure to maintain the Second Lien Reserve Fund in the amount of the Second Lien Reserve Requirement, draws on the Second Lien Reserve Fund and failure to replenish any draw on the Second Lien Reserve Fund shall not constitute an Event of Default or any default under the Indenture. On the final maturity date(s) of the 2025B Bonds and any other Outstanding Second Lien Bonds, any moneys in the Second Lien Reserve Fund may be used to pay the principal of and interest on the 2025B Bonds and any other Outstanding Second Lien Bonds on such final maturity date(s).

(c) All or a portion of the Second Lien Reserve Requirement may be satisfied by deposits in cash, Permitted Investments, or a Qualified Reserve Facility guaranteeing payments into the Second Lien Reserve Fund in accordance with the requirements of this Section. On the date of the initial issuance and delivery of the 2025B Bonds, the Second Lien Reserve Requirement of $6,969,862.50 will be satisfied by the Reserve Policy issued by the Insurer. Should the rating of the issuer of any Qualified Reserve Facility fall below the required level, a replacement facility, cash, or Permitted Investments equal in value to the reserve facility being replaced must be deposited in the Second Lien Reserve Fund within 12 months of such downgrading. Six months prior to the expiration of a Qualified Reserve Facility then in effect, a commitment for delivery of a replacement facility therefor prior to such expiration date must have been received or the Second Lien Reserve Fund must be funded with a like amount of cash and Permitted Investments. In no event may the issuer of a Qualified Reserve Facility be granted a security interest in the Trust Estate granted thereunder. Any such Qualified Reserve Facility shall be issued in the name of the Trustee and shall contain no restrictions on the ability of the Trustee to receive payment thereunder other than a certification by the Trustee that the funds drawn thereunder are to be used for the purposes set forth in this Section. The Trustee shall receive payment thereunder prior to any expiration or termination thereof and whenever moneys are required for the purposes for which such fund's moneys may be applied. If the District elects to deposit a Qualified Reserve Facility in the Second Lien Reserve Fund in lieu of moneys or Permitted Investments on deposit therein, upon any such deposit, the Trustee shall release to the Second Lien Bond Fund from the Second Lien Reserve Fund cash in an amount equal to, or Permitted Investments held therein having a market value equal to, the face amount of the Qualified Reserve Facility then being deposited.

Subordinate Bond Fund

SEVENTH, so long as the 2025C Bonds or any other Subordinate Bonds are Outstanding, the Trustee shall, annually on June 2, determine or cause to be determined the amounts in the Revenue Fund that are available and therefor required to be used *first*, to pay interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price, as defined in the Subordinate Indenture), due and payable on the Subordinate Bonds, and *then*, to redeem Subordinate Bonds in accordance with the Subordinate Indenture. Such amounts shall be available *first*, to pay interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price, as defined in the Subordinate Indenture) due and payable on Subordinate Bonds, and *then*, to redeem Subordinate Bonds, only after all transfers pursuant to the Indenture have been made as of June 1. Notwithstanding the prior sentence and except for the last maturity, amounts available to pay interest on Subordinate Bonds and to redeem Subordinate Bonds shall not include any Revitalization Sales Tax received by the Trustee which are attributable to January, February, March, and April collections and typically received in March, April, May, and June, respectively. Such Revitalization Sales Tax will instead be applied on the next June 15 to monthly transfers to the First Lien Bond Fund and the Second Lien Bond Fund pursuant to the Indenture. The Trustee shall calculate the amount of interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price, as defined in the Subordinate Indenture) due and payable on the Subordinate Bonds. If the amount in the Revenue Fund is sufficient to pay all of the interest due and payable on the Subordinate Bonds, and there are additional moneys in the Revenue Fund, then, based on the Mandatory Redemption Price, as defined in the Subordinate Indenture, for the Subordinate Bonds on the upcoming July 15 (in accordance with the Subordinate Indenture), the Trustee will also calculate, or cause to be calculated, the amount of funds needed to redeem Subordinate Bonds. The Trustee will transfer funds from the Revenue Fund to the Subordinate Bond Fund on June 2, *first*, to pay all or a portion of the interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price, as defined in the Subordinate Indenture) due and payable on the Subordinate Bonds, and *then*, to redeem Subordinate Bonds. If the funds transferred are sufficient to pay all of the interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price, as defined in the Subordinate Indenture) on the Subordinate Bonds and to redeem Subordinate Bonds, not later than June 5 of each year, the Trustee shall send the required redemption notices, or cause the required redemption notices to be sent, to effectuate such redemption on the immediately succeeding July 15 in accordance with the Subordinate Indenture.

Notwithstanding the foregoing, no later than 10 days prior to a final maturity date or dates of the 2025C Bonds or any other Subordinate Bonds, so long as the payments therein above required to be made by the Indenture have been made, the Trustee shall transfer available amounts from the Revenue Fund to the Subordinate Bond Fund required to pay any accrued interest and the remaining Subordinate Bonds due on the upcoming July 15 maturity date or dates, if such amounts are available.

Second Subordinate Bond Fund

EIGHTH, so long as there are no Subordinate Bonds Outstanding, the Trustee shall, if there are any Second Subordinate Bonds Outstanding, annually on June 2, determine or cause to be determined the amounts in the Revenue Fund that are available and therefor required to be used first, to pay interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any mandatory redemption price) due and payable on Second Subordinate Bonds, and then, to redeem Second Subordinate Bonds in accordance with the indenture authorizing such Second Subordinate Bonds. Such amounts shall be available *first*, to pay interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any mandatory redemption price) due and payable on Second Subordinate Bonds, and *then*, to redeem Second Subordinate Bonds, only after all transfers pursuant to the Indenture have been made as of June 1. Notwithstanding the prior sentence and except for the last maturity, amounts available to pay interest on and to redeem any Second Subordinate Bonds shall not include any Revitalization Sales Tax received by the Trustee which are attributable to January, February, March, and April collections and typically received in

March, April, May, and June, respectively. Such Revitalization Sales Tax will instead be applied on the next June 15 to monthly transfers to the First Lien Bond Fund and the Second Lien Bond Fund pursuant to the Indenture. The Trustee shall calculate the amount of interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any mandatory redemption price) on the Second Subordinate Bonds. If the amount in the Revenue Fund is sufficient to pay all of the interest due and payable on the Second Subordinate Bonds, and there are additional moneys in the Revenue Fund, then, based on the mandatory redemption price for Second Subordinate Bonds on the upcoming July 15 (in accordance with the indenture authorizing the Second Subordinate Bonds), the Trustee will also calculate, or cause to be calculated, the amount of funds needed to redeem Second Subordinate Bonds. The trustee will transfer funds from the Revenue Fund to the Second Subordinate Bond Fund on June 2 of each year, *first*, to pay all or a portion of the interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any mandatory redemption price) due and payable on the Second Subordinate Bonds, and *then*, to redeem Second Subordinate Bonds. If the funds transferred are sufficient to pay all of the interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any mandatory redemption price) on the Second Subordinate Bonds and to redeem Second Subordinate Bonds, not later than June 5 of each year, the Trustee shall send the required redemption notices, or cause the required redemption notices to be sent, to effectuate such redemption on the immediately succeeding July 15 in accordance with the indenture authorizing such Second Subordinate Bonds.

Notwithstanding the foregoing, no later than 10 days prior to a final maturity date or dates of any Second Subordinate Bonds, so long as the payments therein above required to be made by the Indenture have been made, the Trustee shall transfer available amounts from the Revenue Fund to the Second Subordinate Bond Fund required to pay any accrued interest and the remaining Second Subordinate Bonds due on the upcoming July 15 maturity date or dates, if such amounts are available.

Surplus Fund

NINTH, when the Subordinate Bonds and the Second Subordinate Bonds, if any, are no longer Outstanding, annually on June 2 of each year, any moneys remaining in the Revenue Fund shall be credited to the Surplus Fund. Amounts in the Surplus Fund shall be used for any lawful purpose as provided in the Indenture, including, but not limited to, the following purposes: (1) to pay the annual Bond Requirements of any Outstanding 2025A Bonds or any other Outstanding First Lien Bonds due in such Bond Year and not paid; (2) to pay the annual Bond Requirements of any Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds due in such Bond Year and not paid; (3) to optionally redeem Outstanding 2025A Bonds or any other Outstanding First Lien Bonds to the extent such bonds are currently callable; (4) to optionally redeem Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds to the extent such bonds are currently callable; and (5) to pay any other obligations on a subordinate basis to the First Lien Bonds and the Second Lien Bonds as may be permitted by law. Whenever all of the Bonds, the Subordinate Bonds and any Second Subordinate Bonds and interest thereon have been paid in full as provided therein and all expenses and fees of the Trustee have been paid, any balance remaining in the Surplus Fund attributable to the Revitalization Sales Tax shall be applied in accordance with the Participation Agreement and the Capital Pledge Agreement, including without limitation, to pay any other obligations as may be permitted by law.

Working Capital Fund

(a) Amounts in the Working Capital Fund shall be released by the Trustee to the District in accordance with requisitions submitted to the Trustee in substantially the form set forth in the Indenture, signed by a District Representative and certifying that all amounts drawn will be applied to the payment of Administrative Expenses. The Trustee may rely conclusively on any such requisitions and shall not be required to make any independent investigation in connection therewith. The execution of any requisition by a District Representative shall constitute, unto the Trustee, an irrevocable determination that all conditions precedent to the payments requested have been completed.

(b) On the later to occur of (i) March 1, 2029, or (ii) the date of receipt by the Trustee of a resolution of the District determining that amounts on deposit in the Working Capital Fund are no longer needed,

any balance remaining in the Working Capital Fund shall be credited to the Revenue Fund. The Working Capital Fund shall terminate at such time as the District is no longer incurring Administrative Expenses and no further moneys remain therein.

Trustee's Fees, Charges, and Expenses

The District shall pay the Trustee's fees for services rendered thereunder in accordance with its then-current schedule of fees and reimburse the Trustee for all advances, legal fees, and other expenses reasonably or necessarily made or incurred by, in, or about the execution of the trust created by the Indenture and in or about the exercise and performance of the powers and duties of the Trustee thereunder and for the reasonable and necessary costs and expenses incurred in defending any liability in the premises of any character whatsoever, unless such liabilities resulted from the negligence or willful misconduct of the Trustee.

Moneys to Be Held in Trust

All moneys deposited with or paid to the Trustee under any provision of the Indenture shall be held by the Trustee in trust for the purposes specified in the Indenture, and except for amounts due and owing to the Trustee for its fees and expenses in performance of its duties thereunder, shall constitute part of the Trust Estate and be subject to the lien thereof. Except to the extent otherwise specifically provided in the Indenture, the District shall have no claim to or rights in any moneys deposited with or paid to the Trustee thereunder.

Performance of Covenants, Authority

The District covenants that it will faithfully perform and observe at all times any and all covenants, undertakings, stipulations, and provisions contained in the Bond Resolution, the Indenture, the Capital Pledge Agreement, the Bonds, and all its proceedings pertaining thereto. The District covenants that it is duly authorized under the constitution and laws of the State, including, particularly and without limitation, the Act, to issue the Bonds and to execute the Indenture and that all action on its part for the issuance of the Bonds and the execution and delivery of the Indenture has been duly and effectively taken and will be duly taken as provided therein, and that the Bonds are and will be valid and enforceable obligations of the District according to the terms thereof.

No Additional Parity Bonds Other than Refunding Bonds.

No additional indebtedness, bonds or notes of the District secured by a lien upon or a pledge of Pledged Revenues ranking prior to the lien or to the pledge created by the Indenture shall be created or incurred without the prior written consent of the Owners of 100% of the Outstanding First Lien Bonds, Second Lien Bonds, Subordinate Bonds and Second Subordinate Bonds, if any. No additional bonds or other obligations may be issued on a parity with the liens of the First Lien Bonds or the Second Lien Bonds, except for the purpose of refunding such Outstanding bonds, provided that:

(a) Any First Lien Bonds or Second Lien Bonds refunded must be defeased in accordance with their terms and thus no longer Outstanding for purposes of the Indenture;

(b) Upon the issuance of the 2025A Bonds, First Lien Bonds may only be issued thereafter to refund, in whole or in part, Outstanding First Lien Bonds; and

(c) Upon the issuance of the 2025B Bonds, Second Lien Bonds may only be issued thereafter to refund, in whole or in part, Outstanding First Lien Bonds and/or Second Lien Bonds.

In addition, prior to the issuance of any First Lien Bonds or Second Lien Bonds for refunding purposes in accordance with this Section, a certificate of the District Representative must be delivered setting forth, for each Bond Year from and after the date of the refunding to and including the latest Bond Year of all Outstanding Bonds for all series, (a) combined annual debt service on all First Lien Bonds and Second Lien Bonds Outstanding prior to such refunding and (b) combined annual debt service on all First Lien Bonds and Second Lien Bonds Outstanding taking

into account such refunding, and (c) that for each such Bond Year, the amount set forth in clause (b) is no greater than the amounts set forth in clause (a).

Additional Covenants and Agreements

The District thereby further irrevocably covenants and agrees with each and every Owner that so long as any of the Bonds remain Outstanding:

(a) The District shall faithfully and punctually perform or cause to be performed all duties with respect to the Pledged Revenues and the Project required by the Act, the Constitution and laws of the State and the various resolutions, ordinances and other instruments of the District, including, without limitation, the proper segregation of the proceeds of the Bonds and the Pledged Revenues and their application from time to time to the respective funds and accounts provided therefor.

(b) At any and all times the District, except when otherwise required by law, shall, so far as it may be authorized by law, pass, make, do, execute, acknowledge, deliver and file or record all and every such further instruments, acts, deeds, conveyances, assignments, transfers, other documents and assurances as may be necessary or desirable for the better assuring, conveying, granting, assigning and confirming all and singular the rights, the Pledged Revenues, and other moneys and accounts thereby pledged or assigned, or which the District may thereafter become bound to pledge or to assign, or as may be reasonable and required to carry out the purposes of the Indenture and to comply with the Act. The District shall at all times, to the extent permitted by law, defend, preserve, and protect the pledge of the Pledged Revenues and other moneys and accounts pledged thereunder and all the rights of every owner of any Bonds against all claims and demands of all persons whomsoever.

(c) Upon the date of issuance of any Bonds, all conditions, acts and things required by the Constitution or statutes of the State, including without limitation, the Act or the Indenture, to exist, to have happened, and to have been performed precedent to or in the issuance of the Bonds shall exist, have happened, and have been performed; and the Bonds, together with all other obligations of the District, shall not contravene any debt or other limitation prescribed by the State Constitution or statutes.

(d) The District shall observe and perform all of the terms and conditions contained in the Indenture and the Act, and all laws supplemental thereto and shall comply with all valid acts, rules, regulations, orders and directives of any legislative, executive, administrative or judicial body applicable to the Project or to the District.

(e) The District and the officers, agents and employees of the District shall not take any action in such manner or to such extent as might prejudice the security for the payment of the Bond Requirements of the Bonds according to the terms thereof. No contract shall be entered into nor any other action taken by which the rights of any owner of any Bond or other security payable from the Pledged Revenues might be prejudicially and materially impaired or diminished. In particular, the District will not amend or supplement any of the documents pertaining to the First Lien Bonds or Second Lien Bonds in any way which (1) alters the amortization of the principal of such First Lien Bonds or Second Lien Bonds, or (2) increases the rate or rates of interest borne by the First Lien Bonds or Second Lien Bonds, except upon the prior written consent of 100% of the Consent Parties with respect to the First Lien Bonds, the Second Lien Bonds and the Subordinate Bonds Outstanding in accordance with the Indenture.

(f) The District shall promptly pay the Bond Requirements of every Bond issued thereunder and secured thereby, on the dates, and in the manner specified therein and in the Bonds according to the true intent and meaning thereof.

(g) None of the Pledged Revenues shall be used for any purpose other than as provided therein. The District shall apply the Pledged Revenues to the payment of the principal of Bonds, and the interest thereon (but not necessarily exclusively thereto), but it is not prohibited from making such payments from any moneys which may be lawfully used for that purpose.

(h) The First Lien Bond Fund shall be used solely and only and the moneys credited to such fund are thereby pledged for the purpose of paying the Bond Requirements of the First Lien Bonds, except for those moneys in excess of such Bond Requirements, both accrued and not accrued, to their respective maturities or any redemption date or redemption dates, whichever due date is earlier, if any. The Second Lien Bond Fund shall be used solely and only and the moneys credited to such fund are thereby pledged for the purpose of paying the Bond Requirements of the Second Lien Bonds, except for those moneys in excess of such Bond Requirements, both accrued and not accrued, to their respective maturities or any redemption date or redemption dates, whichever due date is earlier, if any.

(i) Any other securities thereafter authorized to be issued and payable from the Pledged Revenues shall not thereafter be issued unless the additional securities are also issued in conformance with the provisions of the Indenture.

(j) The District will maintain its existence and shall not merge or otherwise alter its corporate structure in any manner or to any extent as might reduce the security provided for the payment of the Bonds, and will continue to operate and manage the District and its facilities in an efficient and economical manner in accordance with all applicable laws, rules, and regulations.

(k) At least once a year the District will cause an audit to be performed of the records relating to its revenues and expenditures, and the District shall use its commercially reasonable efforts to have such audit report completed no later than 200 days following the end of its Fiscal Year. The foregoing covenant shall apply notwithstanding any State law audit exemptions that may exist. In addition, at least once a year in the time and manner provided by law, the District will cause a budget to be prepared and adopted. Copies of the budget and the audit will be filed and recorded in the places, time, and manner provided by law.

(l) The District will carry general liability, public officials liability, and such other forms of insurance coverage on insurable District property upon the terms and conditions, and in such amount, as in the judgment of the District will protect the District and its limited operations.

(m) Each District official or other person having custody of any District funds or responsible for the handling of such funds, shall be bonded or insured against theft or defalcation at all times.

(n) Other than as set forth therein, the District covenants that it will not take any action (other than issuing refunding bonds permitted under the Indenture) that could reduce the amounts available for Subordinate Bond Owners or any Second Subordinate Bond Owners in any year. The District covenants that it will not exercise any optional redemption of First Lien Bonds and Second Lien Bonds that are not funded from refunding bond proceeds that could result in the reduction of amounts available for Subordinate Bond Owners in any year.

(o) The District will diligently pursue all reasonable remedies available to the District under the terms of the Capital Pledge Agreement, whether at law or in equity, with respect to enforcing the collection of the Revitalization Sales Tax. The District will not take any of the following actions without the prior written consent of the Consent Parties of the Bonds, the Subordinate Bonds and the Second Subordinate Bonds, if any, then Outstanding; (1) reduce the amounts due to the District (or to the Trustee on behalf of the District) under the Capital Pledge Agreement; or (2) amend or supplement the Capital Pledge Agreement where such amendment or supplement would materially adversely affect the amount of Pledged Revenues to be paid to or on behalf of the District thereunder.

(p) The District shall employ or cause to be employed as required a certified public accountant to perform auditing functions and duties required by the Act and the Indenture, and such other professionals as the District deems necessary to assist the District in completing its obligations under the Continuing Disclosure Undertaking.

(q) The District thereby covenants and agrees that it will comply with and carry out all of the provisions of the Continuing Disclosure Undertaking. Notwithstanding any other provision of the Indenture, failure of the District to comply with the Continuing Disclosure Undertaking shall not be considered an Event of Default; however, the Trustee may (and, at the request of any participating underwriter or the Owners of at least 25% aggregate principal amount of the Outstanding Bonds and receipt of indemnity to its satisfaction), or any Owner of the Bonds or Beneficial Owner may take such actions as may be necessary and appropriate, including seeking specific performance by court order, to cause the District to comply with its obligations under this Section.

Investments

(a) All moneys held by the Trustee in any of the funds, accounts or subaccounts created thereby shall be promptly invested or reinvested by the Trustee, upon receipt by the Trustee of written direction of the District Representative, in Permitted Investments only. The Trustee may conclusively rely upon the District Representative's written instruction as to both the suitability and legality of the directed investments. If the District fails to provide written directions concerning investment of moneys held by the Trustee, the Trustee shall, in accordance with this subsection, invest and reinvest the moneys in a money market fund selected by the District which is a Permitted Investment, subject to any other requirements of this Section. Any such investments shall mature, be redeemable at the option of the owner thereof, pay interest or, in the case of money market funds, shall be available for withdrawal, no later than the respective dates when moneys held for the credit of such fund, account or subaccount will be required for the purposes intended. The interest income derived from the investment and reinvestment of any moneys in any fund, account or subaccount held by the Trustee under the Indenture shall be credited to the fund, account, or subaccount from which the moneys invested were derived.

(b) The Trustee may make any and all such investments through its own investment department or that of its affiliates or subsidiaries and may charge its ordinary and customary fees for such trades, including cash sweep account fees. The District acknowledges that regulations of the Comptroller of the Currency grant the District the right to receive brokerage confirmations of any investment transactions as they occur. The District specifically waives such notification to the extent permitted by law and will receive periodic cash transaction statements that will detail all investment transactions. The Trustee will not issue a monthly statement for any fund, account, or subaccount if no activity occurred in such fund, account, or subaccount during such month. Unless otherwise confirmed or directed in writing, an account statement delivered periodically by the Trustee to the District Representative shall confirm that the investment transactions identified therein accurately reflect the investment directions of the District Representative, unless the District Representative notified the Trustee in writing to the contrary within 30 days of the date of such statement. The Trustee is specifically authorized to implement its automated cash investments system to assure that cash on hand is invested and to charge reasonable cash management fees, which may be deducted from income earned on investments.

(c) Any and all such investments shall be subject to full and complete compliance at all times with the covenants and provisions of the Indenture.

Tax Matters

(a) The District shall at all times do and perform all acts and things necessary or desirable in order to assure that interest paid on the 2025A&B Bonds shall, for the purposes of federal income taxation, be excludable from the gross income of the recipients thereof and exempt from such taxation.

(b) The District shall not use or permit the use of any proceeds of 2025A&B Bonds or any funds of the District, directly or indirectly, to acquire any securities or obligations, and shall not take or permit to be taken any other action or actions, which would cause any 2025A&B Bonds to be "arbitrage bonds" within the meaning of Section 148 of the Code or "federally guaranteed" within the meaning of Section 149(b) of the Code and any such applicable requirements promulgated from time to time thereunder and under Section 103(b) of the Code, and the District shall observe and not violate the requirements of Section 148 of the Code and any such applicable regulations. The District shall comply with all requirements of Sections 148 and 149(d) of the Code to the extent applicable to the 2025A&B Bonds. In the event that at any time the District is of the opinion that for purposes of this paragraph it is necessary to restrict or to limit the yield on the investment of any moneys held by the Trustee or held by the District under the Indenture, the District shall so restrict or limit the yield on such investment or shall so instruct the Trustee in a detailed certificate, and the Trustee shall take such action as may be necessary in accordance with such instructions.

(c) The District specifically covenants to comply with the provisions and procedures of the Tax Certificate.

(d) The covenants contained in this Section shall continue in effect until all 2025A&B Bonds are fully paid, satisfied, and discharged.

Discharge of the Lien of the Indenture

(a) If the District shall pay or cause to be paid to the Trustee, for the Owners of the Bonds, the principal of and interest to become due thereon at the times and in the manner stipulated therein, and if the District shall keep, perform, and observe all and singular the covenants and promises in the Bonds and in the Indenture expressed to be kept, performed, and observed by it or on its part, and if all fees and expenses of the Trustee required by the Indenture to be paid shall have been paid, then these presents and the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Indenture, and execute and deliver to the District such instruments in writing as shall be required to satisfy the lien thereof, and assign and deliver to the District any property at the time subject to the lien of the Indenture which may then be in its possession, and deliver any amounts required to be paid to the District under the Indenture, except for moneys and Federal Securities held by the Trustee for the payment of the principal of, premium if any, and interest on the Bonds.

(b) Any Bond shall, prior to the maturity or prior redemption thereof, be deemed to have been paid within the meaning and with the effect expressed in this Section if, for the purpose of paying such Bond (i) there shall have been deposited with the Trustee an amount sufficient, without investment, to pay the principal of, premium if any, and interest on such Bond as the same becomes due at maturity or upon one or more designated prior redemption dates, or (ii) there shall have been placed in escrow and in trust with a commercial bank exercising trust powers, an amount sufficient (including the known minimum yield from Federal Securities in which such amount may be invested) to pay the principal of, premium if any, and interest on such Bond, as the same becomes due at maturity or upon one or more designated prior redemption dates. The Federal Securities in any such escrow shall not be subject to redemption or prepayment at the option of the issuer, and shall become due at or prior to the respective times on which the proceeds thereof shall be needed, in accordance with a schedule established and agreed upon between the District and such bank at the time of the creation of the escrow, or the Federal Securities shall be subject to redemption at the

option of the holders thereof to assure such availability as so needed to meet such schedule. The sufficiency of any such escrow funded with Federal Securities shall be verified by a certified public accountant.

(c) Neither the Federal Securities, nor moneys deposited with the Trustee or placed in escrow and in trust pursuant to this Section, nor principal or interest payments on any such Federal Securities shall be withdrawn or used for any purpose other than, and shall be held in trust for, the payment of the principal of and interest on such Bonds; provided however, that any cash received from such principal or interest payments on such Federal Securities, if not then needed for such purpose, shall, to the extent practicable, be reinvested subject to the provisions of the Indenture in Federal Securities maturing at the times and in amounts sufficient to pay, when due, the principal of and interest on the such Bonds.

(d) Prior to the investment or reinvestment of such moneys or such Federal Securities as therein provided, the Trustee shall receive and may rely upon: (i) an opinion of Bond Counsel experienced in matters arising under Section 103 of the Code and acceptable to the Trustee, that the investment or reinvestment of such moneys or such Federal Securities complies with the Indenture; and (ii) a report of a certified public accountant that the moneys or Federal Securities will be sufficient to provide for the payment of the principal of and interest on such Bonds when due.

(e) The release of the obligations of the District under this Section shall be without prejudice to the rights of the Trustee to be paid reasonable compensation by the District for all services rendered by it thereunder and all its reasonable expenses, charges, and other disbursements incurred in the administration of the trust thereby created, the exercise of its powers, and the performance of its duties thereunder.

Discharge on December 31, 2055

In accordance with the CCR Act and Section 59-12-402.5, Utah Code, the Revitalization Sales Tax is not permitted to be imposed for a period exceeding thirty (30) years from the first date of its imposition, i.e., January 1, 2025, through December 31, 2054 (the "Imposition Period"). Pursuant to the Participation Agreement and the Capital Pledge Agreement, the City shall remit to the District Revitalization Sales Taxes imposed but not collected during the Imposition Period, including any delinquent taxes, through December 31, 2055. In the event that any amount of principal of or interest on any Bonds remains unpaid after the application of all Pledged Revenue available therefor, the Bonds and the lien of the Indenture securing payment thereof shall be deemed discharged on December 31, 2055 (the "Discharge Date"), the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Indenture, and execute and deliver to the District such instruments in writing as shall be requested to evidence the same. Notwithstanding the foregoing, in the event that the Imposition Period for the Revitalization Sales Tax is legally extended beyond December 31, 2054, the Discharge Date may likewise be extended upon authorization by the District in its discretion as permitted by law. Upon such discharge, the Owners will have no recourse to the District or any property of the District for the payment of any amount of principal of or interest on any Bonds remaining unpaid.

Events of Default

The occurrence of any one or more of the following events or the existence of any one or more of the following conditions shall constitute an Event of Default under the Indenture (whatever the reason for such event or condition and whether it shall be voluntary or involuntary or be effected by operation of law or pursuant to any judgment, decree, rule, regulation, or order of any court or any administrative or governmental body), and there shall be no default or Event of Default thereunder except as provided in this Section:

(a) default in the payment of the principal of (or premium, if any, on) any of the First Lien Bonds or Second Lien Bonds when the same becomes due and payable, either at maturity or otherwise;

(b) default in the payment of any installment of interest on the First Lien Bonds or Second Lien Bonds when the same becomes due and payable;

(c) the District shall be in default in the due and punctual performance of any other representations, covenants, conditions, agreements and provisions contained in the First Lien Bonds or Second Lien Bonds or in the Indenture or the Capital Pledge Agreement on its part to be performed, and if such default shall continue for thirty (30) days after written notice specifying such default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in principal amount of the First Lien Bonds then Outstanding or, if no First Lien Bonds are Outstanding, the Owners of ten percent (10%) in principal amount of the Second Lien Bonds then Outstanding; provided, that if such default cannot be fully remedied within such 30-day period, but can reasonably be expected to be fully remedied, such default shall not constitute an Event of Default if the District shall promptly upon receipt of such notice commence the curing of such default and shall thereafter prosecute and complete the same with due diligence and dispatch; and

(d) the District files a petition under the federal bankruptcy laws or other applicable bankruptcy laws seeking to adjust the obligation represented by the Bonds.

Notwithstanding the foregoing, and subject to the provisions of the Indenture with respect to the discharge of the lien of the Indenture, except as provided in the Indenture, if First Lien Bonds are Outstanding, no Event of Default (other than an Event of Default described in the Indenture) will exist or may be declared with respect to any Second Lien Bonds and no remedies shall be pursued by the Trustee on behalf of the Owners of Second Lien Bonds or directly by the Owners of Second Lien Bonds and, provided further, that upon the occurrence of an Event of Default described in the Indenture, the Trustee on behalf of such Second Lien Owners or such Second Lien Owners' remedy shall be to specifically enforce the provisions of the Indenture to provide for payment of principal and interest on the Second Lien Bonds.

WITHOUT LIMITING THE FOREGOING, AND NOTWITHSTANDING ANY OTHER PROVISION CONTAINED THEREIN, THE DISTRICT ACKNOWLEDGES AND AGREES THAT THE APPLICATION OF ANY PORTION OF THE PLEDGED REVENUE TO ANY PURPOSE OTHER THAN DEPOSIT WITH THE TRUSTEE IN ACCORDANCE WITH THE PROVISIONS THEREOF CONSTITUTES A VIOLATION OF THE TERMS OF THE INDENTURE AND A BREACH OF THE COVENANTS MADE THEREUNDER FOR THE BENEFIT OF THE OWNERS OF THE BONDS, WHICH SHALL ENTITLE THE TRUSTEE TO PURSUE, ON BEHALF OF THE OWNERS OF THE BONDS, ALL AVAILABLE ACTIONS AGAINST THE DISTRICT IN LAW OR IN EQUITY, AS MORE PARTICULARLY DESCRIBED IN THE INDENTURE. THE DISTRICT FURTHER ACKNOWLEDGES AND AGREES THAT THE APPLICATION OF PLEDGED REVENUE IN VIOLATION OF THE COVENANTS THEREOF WILL RESULT IN IRREPARABLE HARM TO THE OWNERS OF THE BONDS. IN NO EVENT SHALL ANY PROVISION THEREOF BE INTERPRETED TO PERMIT THE DISTRICT TO RETAIN ANY PORTION OF THE PLEDGED REVENUE, EXCEPT AS PROVIDED IN THE INDENTURE WITH RESPECT TO THE DEPOSIT OF REVITALIZATION SALES TAX TO THE WORKING CAPITAL FUND.

Remedies on Occurrence of Event of Default

(a) Upon the occurrence and continuance of an Event of Default, the Trustee shall have the following rights and remedies which may be pursued:

(i) *Receivership*. Upon the filing of a bill in equity or other commencement of judicial proceedings to enforce the rights of the Trustee and of the Owners, the Trustee shall be entitled as a matter of right to the appointment of a receiver or receivers of the Trust Estate, and of the revenues, income, product, and profits thereof pending such proceedings, subject however, to constitutional limitations inherent in the sovereignty of the District; but notwithstanding the appointment of any receiver or other custodian, the Trustee shall be

entitled to the possession and control of any cash, securities, or other instruments at the time held by, or payable or deliverable under the provisions of the Indenture to, the Trustee.

(ii) *Suit for Judgment*. The Trustee may proceed to protect and enforce its rights and the rights of the Owners under the Act, the Bonds, the Bond Resolution, the Indenture, and any provision of law by such suit, action, or special proceedings as the Trustee, being advised by Counsel, shall deem appropriate.

(iii) *Mandamus or Other Suit*. The Trustee may proceed by mandamus or any other suit, action, or proceeding at law or in equity, to enforce all rights of the Owners.

(b) Notwithstanding anything therein to the contrary, there shall be no right of acceleration with respect to any obligations secured by the Pledged Revenues, including the First Lien Bonds, the Second Lien Bonds and all other obligations secured by the Pledged Revenues. Any Event of Default with respect to one series of Bonds shall not cause an event of default with respect to any other series of Bonds unless such event or condition on its own constitutes an Event of Default with respect to such other series of Bonds pursuant to the Indenture. The remedies provided therein with respect to using the moneys on deposit in funds and accounts shall be limited to the funds and accounts pledged thereunder to the applicable series of Bonds with respect to which an Event of Default exists.

(c) As long as First Lien Bonds are Outstanding, neither the Trustee nor the Second Lien Owners shall have the right to institute or exercise any remedies provided for in the Indenture during an Event of Default; provided, however, that the Trustee may, and upon the written direction of the Owners of a majority in aggregate principal amount of Second Lien Bonds then Outstanding, shall institute action against the District to specifically enforce any Event of Default with respect to (1) the payment of principal and interest on Second Lien Bonds, and (2) the Indenture if such Event of Default shall continue for thirty (30) days after written notice specifying such Event of Default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in aggregate principal amount of Second Lien Bonds then Outstanding.

(d) Notwithstanding the foregoing provisions of this Section, the Trustee for the Subordinate Bonds may, and upon the written direction of the Owners of ten percent (10%) in aggregate principal amount of Subordinate Bonds, shall institute action against the District to specifically enforce any Event of Default with respect to the provisions of the Indenture if such Event of Default shall continue for thirty (30) days after written notice specifying such Event of Default and requiring the same to be remedied shall have been given to the District by the Trustee for the Subordinate Bonds or by the Owners of ten percent (10%) in aggregate principal amount of Subordinate Bonds then Outstanding.

(e) No recovery of any judgment by the Trustee shall in any manner or to any extent affect the lien of the Indenture or any rights, powers, or remedies of the Trustee thereunder, or any lien, rights, powers, and remedies of the Owners of the Bonds, but such lien, rights, powers, and remedies of the Trustee and of the Owners shall continue unimpaired as before.

Majority of Consent Parties May Control Proceedings

The Consent Parties of not less than a majority in principal amount of the First Lien Bonds then Outstanding or, if there are no First Lien Bonds Outstanding, a majority in principal amount of the Second Lien Bonds then Outstanding, shall have the right, at any time, to the extent permitted by law, by an instrument or instruments in writing executed and delivered to the Trustee, to direct the time, method, and place of conducting all proceedings to be taken in connection with the enforcement of the terms and conditions of the Indenture, or for the appointment of a receiver, and any other proceedings thereunder; provided that such direction shall not be otherwise than in accordance with the provisions thereof; and provided further that at its option the Trustee shall be indemnified as provided in the Indenture.

Rights and Remedies of Owners

No Owner of any Bond shall have any right to institute any suit, action, or proceeding in equity or at law for the enforcement of the Indenture or for the execution of any trust thereof or for the appointment of a receiver or any other remedy thereunder, unless (a) a default has occurred of which the Trustee has been notified as provided in the Indenture, or of which under that Section it is deemed to have notice; (b) such default shall have become an Event of Default; (c) the Owners of not less than 10% in aggregate principal amount of Bonds then Outstanding adversely affected thereby shall have made written request to the Trustee and shall have offered reasonable opportunity either to proceed to exercise the powers therein above granted or to institute such action, suit, or proceedings in their own name, and shall have also offered to the Trustee indemnity as provided in the Indenture; and (d) the Trustee shall thereafter fail or refuse to exercise the powers thereinbefore granted, or to institute such action, suit, or proceeding in its own name; such notification, request, and offer of indemnity are declared in every case at the option of the Trustee to be conditions precedent to any action or cause of action for the enforcement of the Indenture, or for the appointment of a receiver or for any other remedy thereunder; it being understood and intended that no one or more Owners of Bonds shall have any right in any manner whatsoever to affect, disturb, or prejudice the lien of the Indenture by his, her, its, or their action, or to enforce any right thereunder except in the manner therein provided and that all proceedings at law or in equity shall be instituted, had, and maintained in the manner therein provided.

Application of Moneys

All moneys received by the Trustee pursuant to any right given or action taken under the provisions of the Indenture and any other moneys held as part of the Trust Estate, after payment of the costs and expenses of the proceedings resulting in the collection of such moneys and the fees (including attorneys' fees and costs of any other professionals hired by the Trustee thereunder), expenses, liabilities, and advances incurred or made by the Trustee, shall be deposited in the appropriate funds or accounts created thereunder in the same manner as is provided for deposits of other revenue and used for the purposes thereof, until the principal of, premium if any, and interest on all of the First Lien Bonds, Second Lien Bonds and Subordinate Bonds has been paid in full. Whenever all Bonds and interest thereon have been paid under the provisions of this Section and all expenses and fees of the Trustee have been paid, any balance remaining in any of the funds and accounts held thereunder attributable to the Revitalization Sales Tax shall be applied in accordance with the Participation Agreement and the Capital Pledge Agreement.

Waivers of Events of Default

The Trustee shall waive any Event of Default thereunder and its consequences, upon the written request of the Consent Parties of not less than a majority in principal amount of First Lien Bonds then Outstanding or Second Lien Bonds then Outstanding, as applicable; provided however, that there shall not be waived without the consent of the Consent Parties of 100% of the First Lien Bonds then Outstanding or, 100% of the Second Lien Bonds Outstanding, as applicable, as to any Event of Default under the Indenture. In case of any such waiver, or in case any proceedings taken by the Trustee on account of any such default shall have been discontinued or abandoned or determined adversely to the Trustee, then in every such case the District, the Trustee, and the Owners shall be restored to their former positions and rights thereunder respectively, but no such waiver or rescission shall extend to any subsequent or other default, or impair any right consequent thereon.

Notice of Default; Opportunity to Cure Defaults

(a) The Trustee shall give to the Owners of all Bonds notice by mailing to the address shown on the registration books maintained by the Trustee or by electronic means to DTC or its successors, of all Events of Default of which the Trustee is by the Indenture required to take notice, or if notice of an Event of Default is given as provided in said section, as soon as possible after the Trustee has knowledge of the occurrence of such default or Event of Default unless such default or Event of Default shall have been cured before the giving of such notice.

(b) No default under the Indenture shall constitute an Event of Default until written notice specifying such default and requiring the same to be remedied shall be given to the District by the Trustee or

by the Owners of not less than 10% in aggregate principal amount of the First Lien Bonds then Outstanding or, if no First Lien Bonds are Outstanding, the Owners of not less than 10% in aggregate principal amount of the Second Lien Bonds then Outstanding, and the District shall have had 30 days after receipt of such notice to correct said default or cause said default to be corrected, and shall not have corrected said default or caused said default to be corrected within the applicable period; provided, that if such default cannot be fully remedied within the 30-day period, but can reasonably be expected to be fully remedied, such default shall not constitute an Event of Default if the District shall promptly upon receipt of such notice commence the curing of such default and shall thereafter prosecute and complete the same with due diligence and dispatch.

Cooperation of District

In the case of any Event of Default thereunder, the District shall cooperate with the Trustee and use its best efforts to protect the Owners.

Resignation or Replacement of Trustee

(a) The Trustee may resign, subject to the appointment of a successor, by giving 30 days' notice of such resignation to the District and to all Owners of Bonds specifying the date when such resignation shall take effect. Such resignation shall take effect on the date specified in such notice unless a successor shall have been previously appointed as thereinafter provided, in which event such resignation shall take effect immediately on the appointment of such successor. The Trustee may petition the courts, at the expense of the District, to appoint a successor in the event no such successor shall have been previously appointed. The Trustee may be removed at any time by an instrument in writing, executed by the District, as long as the District is not in default under the terms of the Indenture or any other instrument authorizing other First Lien Bonds or Second Lien Bonds. Upon the occurrence of an Event of Default thereunder, the Trustee, or any successor, may be removed at any time by the Owners of 25% in aggregate principal amount of the Bonds and the Subordinate Bonds then Outstanding. Any removal or resignation of the Trustee and appointment of a successor Trustee shall become effective only upon acceptance of appointment by the successor Trustee.

(b) In case the Trustee shall at any time resign or be removed or otherwise become incapable of acting, a successor may be appointed by the District so long as it is not in default thereunder; otherwise by the Owners of 25% in aggregate principal amount of the Bonds and the Subordinate Bonds then Outstanding by an instrument or concurrent instruments signed by such Owners, or their attorneys-in-fact appointed; provided however, that even if the District is in default thereunder it may appoint a successor until a new successor shall be appointed by the District or the Owners as therein authorized. The District, upon making such appointment, shall forthwith give notice thereof to the Owners by mailing to the address shown on the registration books maintained by the Trustee, which notice may be given concurrently with the notice of resignation given by any resigning Trustee. Any successor so appointed by the District shall immediately and without further act be superseded by a successor appointed in the manner above provided by the District or the Owners of 25% in aggregate principal amount of the Bonds and the Subordinate Bonds then Outstanding, as applicable.

(c) Every successor Trustee shall always be a commercial bank or trust company in good standing, qualified to act thereunder, and having a capital surplus of not less than $50,000,000, if there be such an institution willing, qualified, and able to accept the trust upon reasonable or customary terms. Any successor appointed thereunder shall execute, acknowledge, and deliver to the District an instrument accepting such appointment thereunder, and thereupon such successor shall, without any further act, deed, or conveyance, become vested with all estates, properties, rights, powers, and trusts of its predecessor in the trust thereunder with like effect as if originally named as the Trustee thereunder and thereupon the duties and obligations of the predecessor shall cease and terminate; but the Trustee retiring shall, nevertheless, on the written demand of its successor and upon payment

of the fees and expenses owed to the predecessor, execute and deliver an instrument conveying and transferring to such successor, upon the trusts therein expressed, all the estates, properties, rights, powers, and trusts of the predecessor, who shall duly assign, transfer, and deliver to the successor all properties and moneys held by it under the Indenture. If any instrument from the District is required by any successor for more fully and certainly vesting in and confirming to it the estates, properties, rights, powers, and trusts of the predecessor, those instruments shall be made, executed, acknowledged, and delivered by the District on request of such successor.

Prioritization of Trustee Obligations

If at any time an Event of Default has occurred or is occurring or such event has occurred which has caused a conflict to arise between the Trustee's role as trustee for the First Lien Bonds and the trustee's role as Trustee for the Second Lien Bonds, the Trustee shall prioritize its obligations by first protecting the interests of the First Lien Bond Owners and then protecting the interests of the Second Lien Bond Owners. If the Trustee is unable to resolve any such conflicts that may arise, the Trustee shall resign (or be removed by the District or the applicable Owners) as trustee for the First Lien Bonds or the Second Lien Bonds.

Supplemental Indentures Not Requiring Consent

Subject to the provisions of the Indenture, the District and the Trustee may, without the consent of or notice to the Consent Parties of any First Lien Bonds or Second Lien Bonds, enter into such indentures supplemental thereto, which supplemental indentures shall thereafter form a part thereof, for any one or more of the following purposes:

(a) to cure any ambiguity, to cure, correct, or supplement any formal defect or omission or inconsistent provision contained in the Indenture, to make any provision necessary or desirable due to a change in law, to make any provisions with respect to matters arising under the Indenture, or to make any provisions for any other purpose if such provisions are necessary or desirable and do not materially adversely affect the interests of the Owners of the Bonds;

(b) to grant or confer upon the Trustee for the benefit of the Owners any additional rights, remedies, powers, or authority that may lawfully be granted to or conferred upon the Owners or the Trustee;

(c) to add to the conditions, limitations, and restrictions thereafter to be observed by the District under the provisions of the Indenture;

(d) to add to the covenants and agreements of the District in the Indenture other covenants and agreements thereafter to be observed by the District or to surrender any right or power therein reserved or conferred upon the District;

(e) to provide for the issuance of additional First Lien Bonds and Second Lien Bonds in accordance with the Indenture;

(f) to make any changes that may be required by the rating agencies and to the extent necessary to prevent any then current ratings of said services in respect of the Bonds from being reduced or withdrawn to the extent such changes do not materially adversely affect the interests of the Owners of the Bonds;

(g) to preserve the excludability of interest on any Bonds from gross income for purposes of federal income taxes, or to change the tax covenants set forth in the Indenture pursuant to an opinion of Bond Counsel that such action will not adversely affect such excludability;

(h) to evidence the appointment of a separate Trustee or the succession of a new Trustee under the Indenture;

(i) to modify, eliminate or add to the provisions of the Indenture to such extent as shall be necessary to effect the qualification of the Indenture under the Trust Indenture Act of 1939, as amended, or under any similar federal statute thereafter enacted, or to permit the qualification of the Bonds for sale under the securities laws of the United States or any state of the United States; and

(j) to make any other change that would not materially adversely affect the security for the First Lien Bonds or the Second Lien Bonds.

Supplemental Indentures Requiring Consent

(a) Except for supplemental indentures delivered pursuant to the Indenture, and subject to the provisions of the Indenture, the Consent Parties with respect to not less than a majority (or for modifications of provisions thereof which require the consent of a percentage of Owners or Consent Parties higher than a majority, such higher percentage) in aggregate principal amount of the First Lien Bonds and Second Lien Bonds then Outstanding shall have the right, from time to time, to consent to and approve the execution by the District and the Trustee of such indenture or indentures supplemental thereto as shall be deemed necessary or desirable by the District for the purpose of modifying, altering, amending, adding to, or rescinding, in any particular, any of the terms or provisions contained in the Indenture.

(b) Notwithstanding the foregoing, without the consent of the Consent Parties of the First Lien Bonds or Second Lien Bonds adversely affected thereby, nothing therein contained shall permit, or be construed as permitting:

(i) a change in the maturity of the principal amount of any Outstanding First Lien Bond or Second Lien Bond or any installment of interest thereon or mandatory redemption provisions applicable thereto;

(ii) a reduction in the principal amount of any First Lien Bond or Second Lien Bond, or the rate of interest thereon;

(iii) the creation of a lien upon or a pledge of Pledged Revenues ranking prior to the lien or to the pledge created by the Indenture;

(iv) a reduction in the principal amount or percentages or otherwise affecting the description of First Lien Bonds or Second Lien Bonds or the consent of the Consent Parties of which is required for any such modification or amendment;

(v) the establishment of priorities as between First Lien Bonds or Second Lien Bonds issued and Outstanding under the provisions of the Indenture; or

(vi) the modifications of or otherwise prejudicially affect the rights or privileges of the Owners of less than all of the First Lien Bonds or Second Lien Bonds then Outstanding.

(c) Notwithstanding the foregoing, without the consent of the Consent Parties of the Subordinate Bonds adversely affected thereby, nothing therein contained shall permit, or be construed as permitting:

(i) any modification of maturity dates, redemption provisions or interest rates of First Lien Bonds and Second Lien Bonds that could reduce amounts available to the Subordinate Bond Owners in any year;

(ii) any change which would permit the issuance of additional obligations with a lien on Pledged Revenues prior and superior to the lien thereon of the Subordinate Bonds, other

than First Lien Bonds and Second Lien Bonds issued for refunding purposes in accordance with the Indenture;

(iii) any changes to the refunding bonds provisions in the Indenture that could reduce the amounts available to the Subordinate Bond Owners in any year;

(iv) any amendment to the Indenture that could reduce the amount available for the Subordinate Bond Owners in any year;

(v) any modification to rights and remedies of the First Lien Bond Owners and the Second Lien Bond Owners which (a) permit acceleration, (b) increase amounts payable to the First Lien Bond Owners and the Second Lien Bond Owners prior to the Subordinate Bond Owners, or (c) grant additional rights to the First Lien Bond Owners and the Second Lien Bond Owners that have a material adverse impact on the Subordinate Bond Owners;

(vi) the creation of a lien upon or a pledge of the Pledged Revenues ranking prior to the lien or to the pledge created by the Indenture; or

(vii) the modification of priorities as between the Subordinate Bond Owners and either the First Lien Bond Owners or the Second Lien Bond Owners.

If at any time the District shall request the Trustee to enter into such supplemental indenture for any of the purposes of the Indenture, the Trustee shall, upon being satisfactorily indemnified with respect to fees and expenses, cause notice of the proposed execution of such supplemental indenture to be given by mailing such notice by certified or registered first class mail to the Owners of the First Lien Bonds, the Second Lien Bonds and the Subordinate Bonds to the address shown on the registration books of the Trustee or by electronic means to DTC or its successors, as well as the Rating Agencies then maintaining a rating on the First Lien Bonds and Second Lien Bonds, at least 30 days prior to the proposed date of execution and delivery of any such supplemental indenture. Such notice shall briefly set forth the nature of the proposed supplemental indenture and shall state that copies thereof are on file at the principal corporate trust office of the Trustee for inspection by all Owners. If owner consent is required in accordance with the Indenture, within 60 days or such longer period as shall be prescribed by the District following the giving of such notice, the requisite percentage of Owners at the time of the execution of any such supplemental indenture shall have consented to and approved the execution thereof as therein provided, the District may execute and deliver such supplemental indenture and no Owner of any First Lien Bond, Second Lien Bond or Subordinate Bond shall have any right to object to any of the terms and provisions contained therein, or the operation thereof, or in any manner to question the propriety of the execution thereof, or to enjoin or restrain the Trustee or the District from executing the same or from taking any action pursuant to the provisions thereof.

Applicable Law

THE INDENTURE SHALL BE GOVERNED EXCLUSIVELY BY THE APPLICABLE LAWS OF THE STATE.

Provisions Relating to Bond Insurance and Reserve Policy

The District and the Trustee acknowledge and agree that as long as the Insurer is not in default under the applicable Insurance Policy or the Reserve Policy, notwithstanding anything to the contrary in the Indenture, the provisions relating to such Insurance Policy and the Reserve Policy contained in Exhibit F to the Indenture are incorporated into the Indenture and shall govern.

The Provisions relating to Bond Insurance are as follows:

(a) The Insurer shall be deemed to be the sole Owner of the Insured Bonds for the purpose of exercising any voting right or privilege or giving any consent or direction or taking any other action that the Owners of the Insured Bonds are entitled to take pursuant to the Indenture pertaining to (i) defaults and remedies and (ii) the duties and obligations of the Trustee. In furtherance thereof and as a term of the Indenture and each Insured Bond, each Owner of the Insured Bonds appoints the Insurer as its agent and attorney-in-fact with respect to the Insured Bonds and agrees that the Insurer may at any time during the continuation of any proceeding by or against the District under the United States Bankruptcy Code or any other applicable bankruptcy, insolvency, receivership, rehabilitation or similar law (an "Insolvency Proceeding") direct all matters relating to such Insolvency Proceeding, including without limitation, (A) all matters relating to any claim or enforcement proceeding in connection with an Insolvency Proceeding (a "Claim"), (B) the direction of any appeal of any order relating to any Claim, (C) the posting of any surety, supersedeas or performance bond pending any such appeal, and (D) the right to vote to accept or reject any plan of adjustment. In addition, each Owner of the Insured Bonds delegates and assigns to the Insurer, to the fullest extent permitted by law, the rights of each Owner of the Insured Bonds in the conduct of any Insolvency Proceeding, including, without limitation, all rights of any party to an adversary proceeding or action with respect to any court order issued in connection with any such Insolvency Proceeding. The Trustee acknowledges such appointment, delegation and assignment by each Owner of the Insured Bonds for the Insurer's benefit, and agrees to cooperate with the Insurer in taking any action reasonably necessary or appropriate in connection with such appointment, delegation and assignment. Remedies granted to the Owners shall expressly include mandamus.

(b) The prior written consent of the Insurer shall be a condition precedent to the deposit of any Qualified Reserve Facility, provided in substitution of the Reserve Policy or lieu of a cash deposit into the Second Lien Reserve Fund. Notwithstanding anything to the contrary set forth in the Indenture, amounts on deposit in the Second Lien Reserve Fund shall be applied solely to the payment of debt service due on the 2025B Bonds and any refunding Bonds secured by the Second Lien Reserve Fund.

(c) The Trustee shall notify the Insurer if there is a default under Section 8.01(c) of the Indenture which cannot be fully remedied within the 30-day period provided for therein, but can be reasonably expected to be fully remedied and the District has promptly commenced the curing such default.

(d) The Insurer is a third party beneficiary of the Indenture.

(e) Any amendment, supplement, modification to, or waiver of, the Indenture or any other transaction document, including any underlying security agreement (each a "Related Document"), that requires the consent of Owners or adversely affects the rights and interests of the Insurer shall be subject to the prior written consent of the Insurer.

(f) The rights granted to the Insurer under the Indenture or any other Related Document to request, consent to or direct any action are rights granted to the Insurer in consideration of its issuance of the Insurance Policy. Any exercise by the Insurer of such rights is merely an exercise of the Insurer's contractual rights and shall not be construed or deemed to be taken for the benefit, or on behalf, of the Owners and such action does not evidence any position of the Insurer, affirmative or negative, as to whether the consent of the Owners or any other person is required in addition to the consent of the Insurer.

(g) To accomplish defeasance of the Insured Bonds, the District shall cause to be delivered to the Insurer (i) other than with respect to a current refunding that is gross funded, a report of either a nationally-recognized verification agent or a firm of independent, nationally-recognized certified public accountants as shall be acceptable to the Insurer verifying the sufficiency of the escrow established to pay the Insured Bonds in full on the maturity or redemption date ("Verification"), (ii) an escrow deposit agreement or other irrevocable written instructions (which shall be acceptable in form and substance to the Insurer), (iii) an opinion of nationally-recognized bond counsel to the effect that the Insured Bonds are no longer "Outstanding" under

the Indenture and (iv) a certificate of discharge of the Trustee with respect to the Insured Bonds; each Verification and defeasance opinion shall be acceptable in form and substance, and addressed, to the District, the Trustee and the Insurer. The Insurer shall be provided with final drafts of the above-referenced documentation not less than five (5) Business Days prior to the funding of the escrow.

Insured Bonds shall be deemed "Outstanding" under the Indenture unless and until they are in fact paid and retired or the above criteria are met.

(h) Amounts paid by the Insurer under the Insurance Policy shall not be deemed paid for purposes of the Indenture and the Insured Bonds relating to such payments shall remain Outstanding and continue to be due and owing until paid by the District in accordance with the Indenture, subject to Section 7.03 of the Indenture with respect to the discharge of the Insured Bonds and the Indenture on the Discharge Date.

(i) Each of the District and Trustee covenant and agree to take such action (including, as applicable, filing of UCC financing statements and continuations thereof) as is necessary from time to time to preserve the priority of the pledge of the Pledged Revenue under applicable law.

(j) Claims Upon the Insurance Policy and Payments by and to the Insurer.

If, on the third Business Day prior to the related scheduled interest payment date or principal payment date ("Payment Date") there is not on deposit with the Trustee, after making all transfers and deposits required under the Indenture, moneys sufficient to pay the principal of and interest on the Insured Bonds due on such Payment Date, the Trustee shall give notice to the Insurer and to its designated agent (if any) (the "Insurer's Fiscal Agent") by telephone of the amount of such deficiency by 12:00 noon, New York City time, on such Business Day. If, on the second Business Day prior to the related Payment Date, there continues to be a deficiency in the amount available to pay the principal of and interest on the Insured Bonds due on such Payment Date, the Trustee shall make a claim under the Insurance Policy and give notice to the Insurer and the Insurer's Fiscal Agent (if any) by telephone of the amount of such deficiency, and the allocation of such deficiency between the amount required to pay interest on the Insured Bonds and the amount required to pay principal of the Insured Bonds, confirmed in writing to the Insurer and the Insurer's Fiscal Agent by 12:00 noon, New York City time, on such second Business Day by filling in the form of Notice of Claim and Certificate delivered with the Insurance Policy.

The Trustee shall designate any portion of payment of principal on Insured Bonds paid by the Insurer, whether by virtue of mandatory sinking fund redemption, maturity or other advancement of maturity, on its books as a reduction in the principal amount of Insured Bonds registered to the then current Owner of the Insured Bonds, whether DTC or its nominee or otherwise, and shall issue a replacement Insured Bond to the Insurer, registered in the name of Assured Guaranty Inc., in a principal amount equal to the amount of principal so paid (without regard to authorized denominations); provided that the Trustee's failure to so designate any payment or issue any replacement Insured Bond shall have no effect on the amount of principal or interest payable by the District on any Insured Bond or the subrogation rights of the Insurer.

The Trustee shall keep a complete and accurate record of all funds deposited by the Insurer into the Policy Payments Account (defined below) and the allocation of such funds to payment of interest on and principal of any Insured Bond. The Insurer shall have the right to inspect such records at reasonable times upon reasonable notice to the Trustee.

Upon payment of a claim under the Insurance Policy, the Trustee shall establish a separate special purpose trust account for the benefit of Owners of the Insured Bonds referred to herein as the "Policy Payments Account" and over which the Trustee shall have exclusive control and sole right of withdrawal. The Trustee shall receive any amount paid under the Insurance Policy in trust on behalf of Owners of the Insured Bonds and shall deposit any such amount in the Policy Payments Account and distribute such amount only for purposes of making the payments for which a claim was made. Such amounts shall be disbursed by the Trustee to Owners of the Insured Bonds in the same manner as principal and interest payments are to be made

with respect to the Insured Bonds under the sections of the Indenture regarding payment of Insured Bonds. It shall not be necessary for such payments to be made by checks or wire transfers separate from the check or wire transfer used to pay debt service with other funds available to make such payments. Notwithstanding anything in the Indenture to the contrary, the District agrees to pay to the Insurer, solely from the Pledged Revenue (i) a sum equal to the total of all amounts paid by the Insurer under the Insurance Policy (the "Insurer Advances"); and (ii) interest on such Insurer Advances from the date paid by the Insurer until payment thereof in full, payable to the Insurer at the Insurance Policy Late Payment Rate per annum (collectively, the "Insurer Reimbursement Amounts"). "Insurance Policy Late Payment Rate" means the lesser of (a) the greater of (i) the per annum rate of interest, publicly announced from time to time by JPMorgan Chase Bank at its principal office in The City of New York, as its prime or base lending rate (any change in such rate of interest to be effective on the date such change is announced by JPMorgan Chase Bank) plus 3%, and (ii) the then applicable highest rate of interest on the Insured Bonds and (b) the maximum rate permissible under applicable usury or similar laws limiting interest rates. The Insurance Policy Late Payment Rate shall be computed on the basis of the actual number of days elapsed over a year of 360 days. The District hereby covenants and agrees that the Insurer Reimbursement Amounts are secured by a lien on and pledge of the Pledged Revenue and payable from such Pledged Revenue on a parity with debt service due on the Insured Bonds.

Funds held in the Policy Payments Account shall not be invested by the Trustee and may not be applied to satisfy any costs, expenses or liabilities of the Trustee. The Trustee shall notify the Insurer of any funds remaining in the Policy Payments Account after the Trustee has made the payments for which a claim was made to the Owners of the Insured Bonds and shall, at the written direction of the Insurer, promptly remit such funds remaining to the Insurer.

(k) The Insurer shall, to the extent it makes any payment of principal of or interest on the Insured Bonds, become subrogated to the rights of the recipients of such payments in accordance with the terms of the Insurance Policy (which subrogation rights shall also include the rights of any such recipients in connection with any Insolvency Proceeding). Each obligation of the District to the Insurer under the Related Documents is subject to Section 7.03 of the Indenture with respect to the discharge of the Insured Bonds and the Indenture on the Discharge Date.

(l) The District shall pay or reimburse the Insurer, solely from the Pledged Revenue in the same manner as the Trustee under Section 8.05 of the Indenture, any and all charges, fees, costs and expenses that the Insurer may reasonably pay or incur in connection with (i) the administration, enforcement, defense or preservation of any rights or security in any Related Document; (ii) the pursuit of any remedies under the Indenture or any other Related Document or otherwise afforded by law or equity, (iii) any amendment, waiver or other action with respect to, or related to, the Indenture or any other Related Document whether or not executed or completed, or (iv) any litigation, proceeding (including any Insolvency Proceeding) or other dispute in connection with the Indenture or any other Related Document or the transactions contemplated thereby, other than costs resulting from the failure of the Insurer to honor its obligations under the Insurance Policy. The Insurer reserves the right to charge a reasonable fee as a condition to executing any amendment, waiver or consent proposed in respect of the Indenture or any other Related Document. Amounts payable by the District hereunder shall bear interest at the Insurance Policy Late Payment Rate from the date such amount is paid or incurred by the Insurer until the earlier of date the Insurer is paid in full or the Insured Bonds and the Indenture are discharged in accordance with Section 7.03 of the Indenture.

(m) After payment to the Trustee and the Insurer in accordance with Section 8.05 of the Indenture, the application of funds realized upon default shall be applied to the payment of rebate only after the payment of past due and current debt service on the Bonds.

(n) The Insurer shall be entitled to pay principal or interest on the Insured Bonds that shall become Due for Payment but shall be unpaid by reason of Nonpayment by the District (as such terms are defined in the Insurance Policy), whether or not the Insurer has received a Notice of Nonpayment (as such terms are defined in the Insurance Policy) or a claim upon the Insurance Policy.

(o) Notices to the Insurer shall be sent to the following address (or such other address as the Insurer may designate in writing):

Assured Guaranty Inc.
1633 Broadway
New York, NY 10019
Attention: Managing Director – Municipal Surveillance
Re: Policy Nos. _____-N (Insurance Policy) and/or _____-R (Reserve Policy)
Telephone: (212) 974-0100
Email: munidisclosure@agltd.com

In each case in which the notice or other communication refers to a claim on the Insurance Policy, the Reserve Policy or an Event of Default, such notice or other communication shall be marked "URGENT MATERIAL ENCLOSED" and a copy shall also be sent to the attention of the General Counsel at the above address and at generalcounsel@agltd.com.

(p) The Insurer shall be provided with the following information by the District or the Trustee, as the case may be:

1. To the extent not otherwise filed with the Municipal Securities Rulemaking Board's EMMA system, annual audited financial statements within the filing deadline specified in the District's Continuing Disclosure Undertaking with respect to the Bonds (together with a certification of the District that it is not aware of any default or Event of Default under the Indenture), and, upon request, the District's annual budget within thirty (30) days after the approval thereof together with such other information, data or reports as the Insurer shall reasonably request from time to time;

2. Notice of any draw upon the Second Lien Reserve Fund within two (2) Business Days after knowledge thereof other than (i) withdrawals of amounts in excess of the Second Lien Reserve Requirement and (ii) withdrawals in connection with a refunding of Bonds and any refunding bonds secured by the Second Lien Reserve Fund;

3. Notice of any default or Event of Default under the Indenture known to the Trustee or the District within five (5) Business Days after knowledge thereof;

4. Prior notice of the refunding or redemption of any of the Insured Bonds, including the principal amount, maturities and CUSIP numbers thereof;

5. Notice of the resignation or removal of the Trustee and Bond Registrar and the appointment of, and acceptance of duties by, any successor thereto;

6. Notice of the commencement of any Insolvency Proceeding (as defined in subsection (a) above);

7. Notice of the making of any claim in connection with any Insolvency Proceeding seeking the avoidance as a preferential transfer of any payment of principal of, or interest on, the Insured Bonds;

8. A full original transcript of all proceedings relating to the execution of any amendment, supplement, or waiver to the Related Documents;

9. All reports, notices and correspondence to be delivered to Owners under the terms of the Related Documents; and

10. To the extent not otherwise filed with the Municipal Securities Rulemaking Board's EMMA system, all information required to be furnished pursuant to the District's Continuing Disclosure Undertaking with respect to the Bonds.

(q) The Insurer shall have the right to receive such additional information as it may reasonably request.

(r) The District will permit the Insurer to discuss the affairs, finances and accounts of the District or any information the Insurer may reasonably request regarding the security for the Bonds with appropriate officers of the District and will use commercially reasonable efforts to enable the Insurer to have access to the facilities, books and records of the District on any Business Day upon reasonable prior notice.

(s) The Trustee shall notify the Insurer of any known failure of the District to provide notices, certificates and other information under the Related Documents that are required to be delivered to the Owners of the Bonds.

(t) Notwithstanding satisfaction of the other conditions to the issuance of refunding bonds set forth in the Indenture, no such issuance may occur (1) if an Event of Default (or any event which, once all notice or grace periods have passed, would constitute an Event of Default) exists unless such default shall be cured upon such issuance and (2), with respect to the 2025B Bonds, unless the Second Lien Reserve Fund is fully funded at the Second Lien Reserve Requirement including the proposed issue) upon the issuance of such refunding bonds, in either case unless otherwise permitted by the Insurer.

(u) In determining whether any amendment, consent, waiver or other action to be taken, or any failure to take action, under the Indenture would adversely affect the security for the Bonds or the rights of the Owners, the effect of any such amendment, consent, waiver, action or inaction shall be considered as if there were no Insurance Policy.

(v) No contract shall be entered into or any action taken by which the rights of the Insurer or security for or sources of payment of the Insured Bonds may be impaired or prejudiced in any material respect except upon obtaining the prior written consent of the Insurer.

(w) The District shall not enter into any interest rate exchange agreement or any other interest rate maintenance agreement secured by and payable from the Pledged Revenue without the prior written consent of the Insurer.

The Provisions relating to the Reserve Policy are as follows:

(1) The District shall repay any draws under the Reserve Policy and pay all related reasonable expenses incurred by the Insurer and shall pay interest thereon from the date of payment by the Insurer at the Reserve Policy Late Payment Rate. "Reserve Policy Late Payment Rate" means the lesser of (x) the greater of (i) the per annum rate of interest, publicly announced from time to time by JPMorgan Chase Bank at its principal office in the City of New York, as its prime or base lending rate ("Prime Rate") (any change in such Prime Rate to be effective on the date such change is announced by JPMorgan Chase Bank) plus 5%, and (ii) the then-applicable highest rate of interest on the 2025B Bonds and (y) the maximum rate permissible under applicable usury or similar laws limiting interest rates. The Reserve Policy Late Payment Rate shall be computed on the basis of the actual number of days elapsed over a year of 360 days. In the event JPMorgan Chase Bank ceases to announce its Prime Rate publicly, Prime Rate shall be the publicly announced prime or base lending rate of such national bank as the Insurer shall specify. If the interest provisions of this subparagraph (1) shall result in an effective rate of interest which, for any period, exceeds the limit of the usury or any other laws applicable to the indebtedness created herein, then all sums in excess of those lawfully collectible as interest for the period in question shall, without further agreement or notice between or by any party hereto, be applied as additional interest for any later periods of time when amounts are outstanding hereunder to the extent that interest otherwise due hereunder for such periods plus such additional interest would not exceed the limit of the usury or such other laws, and any excess shall be applied upon principal immediately upon receipt of such moneys by the Insurer, with the same force and effect as if the District had specifically designated such extra sums to be so applied and the Insurer had agreed to accept such extra payment(s) as additional interest for such later periods.

In no event shall any agreed-to or actual exaction as consideration for the indebtedness created in the Indenture exceed the limits imposed or provided by the law applicable to this transaction for the use or detention of money or for forbearance in seeking its collection.

Repayment of draws and payment of expenses and accrued interest thereon at the Reserve Policy Late Payment Rate (collectively, "Policy Costs") shall commence on June 2 immediately following each draw, and such payments will be made as provided in Section 3.13(a) of the Indenture.

Amounts in respect of Policy Costs paid to the Insurer shall be credited first to interest due, then to the expenses due and then to principal due. As and to the extent that payments are made to the Insurer on account of principal due, the coverage under the Reserve Policy will be increased by a like amount, subject to the terms of the Reserve Policy. The obligation to pay Policy Costs shall be secured by a valid lien on all revenues and other collateral pledged as security for the 2025B Bonds (subject only to the priority of payment provisions set forth under the **Error! Reference source not found.**).

All cash and investments in the Second Lien Reserve Fund, if any, shall be transferred to the Second Lien Bond Fund for payment of debt service on the 2025B Bonds before any drawing may be made on the Reserve Policy or any other Qualified Reserve Facility credited to the Second Lien Reserve Fund in lieu of cash. Payment of any Policy Costs shall be made prior to replenishment of any such cash amounts. Draws on all Qualified Reserve Facilities (including the Reserve Policy) on which there is available coverage shall be made on a pro-rata basis (calculated by reference to the coverage then available thereunder) after applying all available cash and Permitted Investments, if any, in the Second Lien Reserve Fund. Payment of Policy Costs and reimbursement of amounts with respect to other Qualified Reserve Facilities shall be made on a pro-rata basis prior to replenishment of any cash drawn from the Second Lien Reserve Fund. ***Repayment of all Policy Costs and the replenishment of the Second Lien Reserve Fund shall be made on a pari passu basis with payments and replenishments required to be made under the*** *Error! Reference source not found.* ***with respect to debt service reserve funds, if any, securing any outstanding parity obligations.*** For the avoidance of doubt, "available coverage" means the coverage then available for disbursement pursuant to the terms of the applicable Qualified Reserve Facility without regard to the legal or financial ability or willingness of the provider of such instrument to honor a claim or draw thereon or the failure of such provider to honor any such claim or draw.

(2) If the District shall fail to pay any Policy Costs in accordance with the requirements of subparagraph (a) hereof, the Insurer shall be entitled to exercise any and all legal and equitable remedies available to it, including those provided under the **Error! Reference source not found.** other than (i) acceleration of the maturity of the 2025B Bonds or (ii) remedies which would adversely affect owners of the 2025B Bonds.

(3) Policy Costs shall be paid by the District in accordance with the Indenture, subject to Section 7.03 of the Indenture with respect to the discharge of the 2025B Bonds and the Indenture on the Discharge Date.

(4) The Trustee shall ascertain the necessity for a claim upon the Reserve Policy in accordance with the provisions of subparagraph (1) hereof and provide notice to the Insurer in accordance with the terms of the Reserve Policy at least five Business Days prior to each date upon which interest or principal is due on the 2025B Bonds. Where deposits are required to be made by the District with the Trustee to the Second Lien Bonds Fund for the 2025A Bonds more often than semi-annually, the Trustee shall give notice to the Insurer of any failure of the District to make timely payment in full of such deposits within two Business Days of the date due.

* * *

INDENTURE OF TRUST (SUBORDINATE)

DEFINITIONS OF WORDS AND TERMS

The following are definitions of certain terms used in the Indenture of Trust (Subordinate). Reference is hereby made to the Indenture of Trust (Subordinate) for complete definitions of all terms.

"Act" means collectively, the Bond Act and the District Act.

"Administrative Expenses" means an amount reasonably determined by the District as being necessary to pay the District's expenses reasonably incurred in connection with the administration and operation of the District, including accounting fees, audit expenses, legal fees, insurance premiums, management expenses, board member compensation, and generally all expenses, under which generally accepted accounting practices are properly allocable to administration; however, only such expenses as are reasonably and properly necessary to the efficient administration and operation of the District and permitted under the District Act shall be included, but not in excess of the following: (i) for calendar year 2025, the amount of $100,000, (ii) for each calendar year thereafter, an additional 2%; and (iii) in the event of a claim by a third-party challenging (A) the creation or existence of the District; (B) the Bonds; and (C) the District's ability to perform its obligations under the Indenture or any resolution, indenture, or other document relating to the issuance of Bonds; the amount reasonably necessary to defend the District from such claim to the extent such amount exceeds the limit established in (i) and (ii).

"Board" means the Board of Trustees of the District.

"Bond Act" means the applicable portions of the Local Government Bonding Act, Title 11, Chapter 14, Utah Code.

"Bond Counsel" means any firm of nationally recognized municipal bond attorneys selected by the District and experienced in the issuance of municipal bonds and the exclusion of the interest thereon from gross income for federal income tax purposes.

"Bond Resolution" means the resolution authorizing the issuance of the Bonds and the execution of the Indenture, certified by the Clerk/Secretary of the District to have been duly adopted by the District and to be in full force and effect on the date of such certification, including any amendments or supplements made thereto.

"Bond Year" means, with respect to the Bonds, the period commencing on the date of issuance of the Bonds to July 15, 2025; and, thereafter, the period from July 16 of any calendar year to July 15 of the following calendar year, and with respect to First Lien Bonds and Second Lien Bonds, the period commencing on the date of issuance of the Bonds to June 1, 2026; and, thereafter, the period from June 2 of any calendar year to June 1 of the following calendar year.

"Bonds" means the Subordinate Bonds.

"City Administrative Fee" means the administrative fee authorized by the CCR Act and the Participation Agreement, equal to one percent (1%) of the Revitalization Sales Tax collected, which fee will be deducted from the Revitalization Sales Tax received by the City before transferring the remaining amount to the Trustee.

"Code" means the Internal Revenue Code of 1986, as amended and in effect as of the date of issuance of the Bonds.

"Consent Party" means the Owner of a Bond or, if such Bond is held in the name of Cede, the Beneficial Owner of a Bond or Participant (as determined by a list provided by DTC) with respect to such Bond. The District may at its option determine whether the Owner, Beneficial Owner, or the Participant is the Consent Party with respect to any particular amendment or other matter thereunder.

"Continuing Disclosure Undertaking" means the Continuing Disclosure Undertaking relating to the 2025A&B Bonds and the 2025C Bonds dated June 18, 2025, executed by the District.

"Costs of Issuance" means costs and expenses incurred in connection with the issuance of the Bonds, including but not limited to the following:

(a) underwriters' spread (whether realized directly or derived through purchase of Bonds at a discount below the price at which they are expected to be sold to the public);

(b) counsel fees (including bond counsel, general counsel, underwriters' counsel, as well as any other specialized counsel fees);

(c) fees and expenses of the District's municipal advisor, accountant, manager, special consultants, and other professionals;

(d) rating agency fees;

(e) trustee and paying agent fees;

(f) printing costs (for the Bonds and of any official statement relating to the Bonds); and

(g) CUSIP fees, regulatory fees and any other costs and expenses of the District relating to the issuance of Bonds.

"Counsel" means a person, or firm of which such a person is a member, authorized in any state to practice law.

"Discharge Date" means December 31, 2055, unless extended upon authorization by the District, in its discretion.

"District Act" means applicable portions of Title 17B, Chapter 1 and Title 17D, Chapter 4 Utah Code.

"First Lien Bonds" means the 2025A Bonds and any other additional First Lien Bonds issued in accordance with the provisions of the Senior Indenture, payable from all or a portion of the Pledged Revenues and senior to the lien thereon of the Second Lien Bonds and the Subordinate Bonds.

"Governing Document" means the Governing Document for the District approved by the City on April 8, 2025 (as the same may be further amended or restated from time to time).

"Imposition Period" means the period of the Revitalization Sales Tax imposition, i.e. January 1, 2025, through December 31, 2054.

"Indenture" means the Indenture of Trust (Subordinate) as originally executed or as it may from time to time be supplemented or amended by one or more indentures supplemental thereto entered into pursuant to the applicable provisions thereof.

"Outstanding" or **"Outstanding Bonds"** means, as of any particular time, all Bonds which have been duly authenticated and delivered by the Trustee under the Indenture, except:

(a) Bonds theretofore cancelled by the Trustee or delivered to the Trustee for cancellation because of payment at maturity or prior redemption;

(b) Bonds for the payment or redemption of which moneys or Federal Securities in an amount sufficient (as determined pursuant to the Indenture) shall have been theretofore deposited with the Trustee, or Bonds for the payment or redemption of which moneys or Federal Securities in an amount sufficient (as determined pursuant to the Indenture) shall have been placed in escrow and in trust; and

(c) Bonds in lieu of which other Bonds have been authenticated and delivered pursuant to the Indenture.

"Owner(s)" or **"Owner(s) of Bonds"** means the registered owner(s) of any Bond(s) as shown on the registration books maintained by the Trustee, including the Depository for the Bonds, if any, or its nominee. For purposes of the Indenture, the Consent Parties shall possess all rights of the Owner(s) to direct the actions of the Trustee, execute consents, waivers, amendments, give indemnities, and otherwise give directions and approve actions taken by the Trustee.

"Permitted Investments" means any of the following securities:

(a) State and Local Government Securities issued by the United States Treasury ("SLGS");

(b) United States Treasury bills, notes and bonds, as traded on the open market;

(c) Zero Coupon United States Treasury Bonds;

(d) Any other direct obligations of or obligations fully and unconditionally guaranteed by, the United States of America (including, without limitation, obligations commonly referred to as "REFCORP strips");

(e) Obligations of any of the following federal agencies which obligations represent full faith and credit obligations of the United States of America including: the Export-Import Bank of the United States; the Government National Mortgage Association; the Federal Housing Administration; the Maritime Administration: General Services Administration, Small Business Administration; or the Department of Housing and Urban Development (PHA's);

(f) Money market funds rated "AAAm" or "AAAm-G" or better by S&P and/or the equivalent rating or better of Moody's (if so rated), including money market funds from which the Trustee or its affiliates derive a fee for investment advisory services to the fund;

(g) Commercial paper which is rated at the time of purchase in the single highest classification, P-1 by Moody's or A-1+ by S&P, and which matures not more than 270 days after the date of purchase;

(h) Bonds, notes or other evidences of indebtedness rated "AAA" by S&P and "Aaa" by Moody's issued by the Federal National Mortgage Association or the Federal Home Loan Mortgage Corporation with remaining maturities not exceeding three years;

(i) U.S. dollar denominated deposit accounts, federal funds and banker's acceptances with domestic commercial banks, including the Trustee and its affiliates, which have a rating on their short-term certificates of deposit on the date of purchase of "A-1" or "A-1+" by S&P and "P-1" by Moody's and maturing no more than 360 days after the date of purchase (ratings on holding companies are not considered as the rating of the bank);

(j) The fund held by the Treasurer for the State of Utah and commonly known as the Utah State Public Treasurer's Investment Fund; and

(k) Any other investments or securities permitted for investment of public funds under the State Money Management Act of 1974, Title 51, Chapter 7, Utah Code, including investments contracts permitted by the Indenture.

"Pledged Revenues" means, unless otherwise provided therein or by Supplemental Indenture in compliance with the Indenture, all income and revenue derived from (i) the Revitalization Sales Tax imposed by the City, and transferred to the Trustee in accordance with the Participation Agreement and the Capital Pledge Agreement, except for the City's Administrative Fee and the District Administrative Expenses, and (ii) all investment income from any fund or account established under the Indenture (excluding investment income, if any, required to be retained in the Rebate Fund established therein) and not in excess of the "Maximum Dollar Amount" as defined in the Participation Agreement. Pledged Revenues means all or a portion of the Pledged Revenues but does not include any amounts determined, pursuant to State law, to be subject to valid claims for refunds.

"Project" means all or a portion of the District Redevelopment Project defined in the Recitals thereof, as provided in the Participation Agreement.

"Project Costs" means, pursuant to the Participation Agreement, any expenses incurred by the Developer or one of their affiliates in connection with the Project that qualifies as an "allowable use of funds" in Title 63N, Chapter 3, Section 1403 of the Utah Code, including "Debt Service" as defined in the Participation Agreement.

"Qualified Reserve Facility" means with respect to any Bonds, a surety bond, letter of credit or similar instrument issued by a bank, insurance company or other financial institution with a minimum credit rating of at least A+ or A1 by S&P Global Ratings or Moody's Investors Service, Inc., respectively, for the purpose of satisfying all or any portion of the reserve requirement with respect to the such Bonds.

"Record Date" means June 30 of the calendar month next preceding each Interest Payment Date.

"Revitalization Sales Tax" means the 0.5% sales and use tax adopted by the City on October 1, 2024, for a period of thirty (30) years from the date of the first imposition of the tax as authorized by the CCR Act and Section 59-12-402.5, Utah Code.

"Second Lien Bonds" means the 2025B Bonds and any other Second Lien Bonds issued in accordance with the provisions of the Senior Indenture, payable from all or a portion of the Pledged Revenues and junior to the lien thereon of the First Lien Bonds, and senior to the lien thereon of the Subordinate Bonds.

"Second Lien Reserve Requirement," if any, means, (a) fifty percent (50%) of the Maximum Annual Principal and Interest Requirements (as defined in the Senior Indenture) for the 2025B Bonds, which on the date of issuance of the 2025B Bonds is $6,969,862.50, and (b) with respect to any other Second Lien Bonds that are entitled to the benefit of the Second Lien Reserve Fund, the amount, if any, specified in the Supplemental Indenture authorizing the issuance of said Second Lien Bonds.

"Second Subordinate Bonds" means any bonds or securities, if any, payable from all or a portion of the Pledged Revenues and junior and subordinate to the lien thereon of the Subordinate Bonds.

"Senior Indenture" means the Indenture of Trust (Senior) of even date herewith as originally executed or as it may from time to time be supplemented or amended by one or more indentures supplemental thereto entered into pursuant to the applicable provisions thereof.

"Subordinate Bonds" means the 2025C Bonds and any other Subordinate Bonds issued in accordance with the Indenture, payable from all or a portion of the Pledged Revenues and junior and subordinate to the lien thereon of the 2025B Bonds and any other Outstanding Second Lien Bonds.

"Trust Estate" means the moneys, securities, revenues, receipts, and funds transferred, pledged, and assigned to the Trustee pursuant to the Granting Clauses thereof.

"2025A&B Bonds" means the bonds issued under the Senior Indenture and designated as the "Downtown Revitalization Public Infrastructure District First Lien Sales Tax Revenue Bonds (SEG Redevelopment Project) Series

2025A" and the "Downtown Revitalization Public Infrastructure District Second Lien Sales Tax Revenue Bonds (SEG Redevelopment Project) Series 2025B."

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SUMMARY OF THE INDENTURE OF TRUST (SUBORDINATE)

The Indenture of Trust (Subordinate) specifies the details and terms of the Subordinate Bonds as set out in this Official Statement. The following is a summary of certain other substantially identical provisions contained in the Indenture of Trust (Subordinate). The following is not a comprehensive description, however, and is qualified in its entirety by reference to the Indenture of Trust (Subordinate) for a complete recital of the terms thereof.

Pledge and Assignment of Trust Estate

The District, in consideration of the premises and of the mutual covenants therein contained, the acceptance by the Trustee of the trusts thereby created, and of the purchase and acceptance of the Bonds by the Owners thereof and for other good and valuable consideration, the receipt of which is thereby acknowledged, in order to secure the payment of the principal of, premium if any, and interest on the Bonds at any time Outstanding under the Indenture, according to their tenor and effect, and to secure the performance and observance of all of the covenants and conditions in the Bonds, the Bond Resolution and the Indenture, and to declare the terms and conditions upon and subject to which the Bonds are issued and secured, does thereby grant and assign to the Trustee, and to its successors in trust, and to them and their assigns forever, the following (said property being referred to therein as the "Trust Estate"):

GRANTING CLAUSE FIRST:

The Pledged Revenues and all other moneys, securities, revenues, receipts, and funds from time to time held by the Trustee in the funds, accounts and subaccounts under the terms of the Indenture (except moneys and securities held in the Rebate Fund), subject to the provisions of the Indenture, and a security interest therein;

GRANTING CLAUSE SECOND:

All right, title and interest of the District in the Revitalization Sales Tax pledged by the City and payable to or on behalf of the District under the Capital Pledge Agreement; and

GRANTING CLAUSE THIRD:

All right, title, and interest of the District in any and all other revenue of every name and nature from time to time thereafter by delivery or by writing of any kind, given, granted, assigned, pledged, conveyed, mortgaged, or transferred by the District or by anyone on its behalf as and for additional security thereunder, and the Trustee is thereby authorized to receive any and all such property at any and all times and to hold and apply the same subject to the terms thereof.

Source of Payment of Bonds

The Bonds shall constitute subordinate special limited sales tax revenue obligations of the District payable from the Pledged Revenues as provided therein. Principal of the Bonds, together with the interest thereon and any premium due in connection therewith, shall be payable from and to the extent of the Pledged Revenues, including all moneys and earnings thereon held in the funds and accounts therein created, and the Pledged Revenues are hereby pledged to the payment of the Bonds. The 2025C Bonds shall constitute an irrevocable lien upon the Pledged Revenues, but not necessarily an exclusive such lien. The 2025C Bonds are secured by a lien on the Pledged Revenues on parity with the lien thereon of any other Subordinate Bonds issued thereafter and subordinate to the lien thereon of the First Lien Bonds and the Second Lien Bonds.

Creation and Ratification of Funds and Accounts

The funds and accounts previously created pursuant to the Senior Indenture are thereby ratified, continued and confirmed. The Revenue Fund and the Rebate Fund shall be maintained by the Trustee for so long as any Bonds are Outstanding. The Working Capital Fund shall be maintained by the Trustee in accordance with the Indenture.

(a) the Senior Project Fund and within the Senior Project Fund a 2025 Senior Project Account and a 2025 Senior Costs of Issuance Account;

(b) Working Capital Fund;

(c) the Revenue Fund;

(d) the First Lien Bond Fund;

(e) the Second Lien Bond Fund;

(f) Rebate Fund;

(g) Second Lien Reserve Fund; and

(h) the Surplus Fund.

The Subordinate Project Fund and, within the Subordinate Project Fund, a 2025 Subordinate Project Account and a 2025 Subordinate Costs of Issuance Account, and the Subordinate Bond Fund are thereby created and established with the Trustee and maintained by the Trustee in accordance with the provisions of the Indenture.

The Trustee is authorized to establish separate accounts and subaccounts within such funds and accounts or otherwise segregate moneys by series designation within such funds and accounts, on a book-entry basis or in such other manner as the Trustee may deem necessary or convenient, or as the Trustee shall be instructed by the District.

Initial Deposits

The net proceeds of the 2025C Bonds in the amount specified in the Indenture shall be paid to the Trustee, and the Trustee shall deposit and apply such amounts, together with any other moneys paid to the Trustee, as specified in the Indenture.

Subordinate Project Fund

(a) 2025 Subordinate Costs of Issuance Account. The Trustee shall disburse moneys on deposit in the 2025 Subordinate Costs of Issuance Account from time to time for payment or reimbursement of Costs of Issuance in connection with the issuance of the Series 2025C Bonds, upon written disbursement requests of the District, in substantially the form attached to the Indenture, signed by a District Representative. Six (6) months from the date of original issuance of the 2025C Bonds, the Trustee shall transfer any moneys remaining in the 2025 Subordinate Costs of Issuance Account to the 2025 Subordinate Project Account.

(b) 2025 Subordinate Project Account. Without further authorization, on July 15, 2025, the Trustee shall use the capitalized interest on deposit in the 2025 Subordinate Project Account to pay interest due on the 2025C Bonds on July 15, 2025. Except as otherwise provided in the preceding sentence, so long as no Event of Default shall have occurred and be continuing, the Trustee shall disburse moneys on deposit in the 2025 Subordinate Project Account from time to time to pay or as reimbursement for payment made for Project Costs (other than Costs of Issuance paid pursuant to subsection (a) above), in each case within 3 Business Days after receipt by the Trustee of written disbursement requests in substantially the form attached to the Indenture, signed by the District Representative, accompanied by the District's Acceptance Ratification, including the Accountant's Cost Certification and the Engineer's Cost Certification, all as defined in the Infrastructure Acquisition and Reimbursement Agreement between the District and the Developer, for which payment is being requested.

In making payments pursuant to this Section, the Trustee may rely conclusively on any such requisitions and accompanying certificates and invoices and shall not be required to make any independent investigation in connection therewith. The execution of any requisition by the District Representative shall constitute, unto the Trustee, an irrevocable determination that all conditions precedent to the payments requested have been completed. The Trustee shall keep and maintain adequate records pertaining to the 2025 Subordinate Project Account and all disbursements therefrom, and shall file periodic statements of activity regarding the 2025 Subordinate Project Account with the District.

Within 90 days of payment by the Trustee of all disbursement requests theretofore tendered to the Trustee under the provisions of this Section, except as provided in subsection (2) below, the District shall deliver to the Trustee, a certificate of the District Representative stating:

(1) that the Project or portion of the Project financed with the proceeds of the 2025C Bonds has been fully completed substantially in accordance with the plans and specifications for the Project, as then amended, and the date of completion of the Project or portion thereof; and

(2) that the Project Costs paid or reimbursed with proceeds of the 2025C Bonds have been fully paid for and no claim or claims exist against the District or against the Project out of which a lien based on furnishing labor or material exists or might ripen; provided, however, there may be excepted from the foregoing statement any claim or claims out of which a lien exists or might ripen in the event that the District intends to contest such claim or claims, in which event such claim or claims shall be described; and that moneys are on deposit in the 2025 Subordinate Project Account or are available through enumerated bank loans (including letters of credit) or other sources sufficient to make payment of the full amount which might in any event be payable in order to satisfy such claim or claims.

If after payment by the Trustee of all disbursement requests theretofore tendered to the Trustee under the provisions of this Section and after receipt by the Trustee of the District Representative's certificate required by this Section and after all rebatable earnings have been transferred to the Rebate Fund pursuant to the Indenture, there shall remain any moneys in the 2025 Subordinate Project Account, such moneys shall be deposited and applied in the following order of priority: (1) to pay the Bond Requirements of any Outstanding 2025A Bonds or any other Outstanding First Lien Bonds due in such Bond Year and not paid; (2) to pay the Bond Requirements of any Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds due in such Bond Year and not paid; (3) to pay accrued interest on and/or redeem Outstanding 2025C Bonds or any other Outstanding Subordinate Bonds; (4) if there are no Subordinate Bonds Outstanding, to pay accrued interest on and/or redeem any Outstanding Second Subordinate Bonds (5) to optionally redeem Outstanding 2025A Bonds or any other Outstanding First Lien Bonds; and (6) to optionally redeem Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds; provided, in the discretion of the District, such moneys may be applied for any other purpose that, based on an opinion of Bond Counsel addressed and delivered to the Trustee, will not adversely affect the exclusion of the interest on the 2025C Bonds from gross income for federal income tax purposes.

Revenue Fund

In accordance with the Participation Agreement and the Capital Pledge Agreement, not later than 30 days following receipt by the City of the Pledged Revenues derived from the Revitalization Sales Tax, the City shall transfer to the Trustee such Pledged Revenues, less the City's Administrative Fee, as defined in the Participation Agreement, for deposit to the Revenue Fund. Notwithstanding the foregoing, prior to the District's issuance of the 2025A&B Bonds and the 2025C Bonds, all Revitalization Sales Tax collected by the City shall be held and maintained by the City in a separate City-managed account in accordance with the Participation Agreement. On the issue date of the

2025A&B Bonds and the 2025C Bonds, the City will transfer all accumulated Revitalization Sales Tax to the Trustee for deposit as provided in the Indenture.

So long as any of the Bonds thereby authorized shall be Outstanding, as to any Bond Requirements, the following payments shall be made from the Revenue Fund as provided in the Indenture (District Administrative Expenses through Surplus Fund), as applicable.

IN NO EVENT IS THE DISTRICT PERMITTED TO APPLY ANY PORTION OF THE PLEDGED REVENUE TO ANY OTHER PURPOSE, OR TO WITHHOLD ANY PORTION OF THE OF THE PLEDGED REVENUE.

Administration of Revenue Fund

So long as any First Lien Bonds, Second Lien Bonds, and Subordinate Bonds shall be Outstanding, as to any Bond Requirements, the following payments shall be made from the Revenue Fund as provided in the Indenture (District Administrative Expenses) through (Surplus Fund).

District Administrative Expenses

FIRST, on January 1 of each calendar year, commencing January 1, 2029, from any moneys in the Revenue Fund, there shall be credited to the Working Capital Fund, the amount budgeted by the District to pay Administrative Expenses for the coming Fiscal Year in accordance with the Indenture.

First Lien Bond Fund Payments

SECOND, so long as any First Lien Bonds are Outstanding, from any moneys in the Revenue Fund, there shall be credited to the First Lien Bond Fund:

(a) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025A Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay next maturing installment of interest on the 2025A Bonds then Outstanding, and on the 15th day of every month thereafter, (1) the amount of accrued but unpaid interest and compound interest on any unpaid interest, if any, and (2) one sixth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next maturing installment of interest on the 2025A Bonds then Outstanding. On the same day as payments are made to the applicable account in the First Lien Bond Fund as required for the 2025A Bonds, there shall also be deposited or transferred to the applicable accounts in the First Lien Bond Fund created with respect to any other Outstanding First Lien Bonds the amount with respect to interest (including accrued but unpaid interest, compound interest on any unpaid interest and current interest) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the First Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding each interest payment date (i.e., June 1 and December 1) for the First Lien Bonds, if moneys in the applicable accounts in the First Lien Bond Fund are insufficient to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025A Bonds and such other First Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority to the applicable accounts in the First Lien Bond Fund in order to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025A Bonds and such other First Lien Bonds: (i) the Revenue Fund, and (ii) the Surplus Fund. In the event such amounts in the Revenue Fund and the Surplus Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

(b) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025A Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025A Bonds coming due at maturity, and on the 15th day of every month thereafter, (1) any past due principal, and (2) one twelfth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025A Bonds coming due at maturity. On the same day as payments are made to the applicable account in the First Lien Bond Fund as required thereby for the 2025A Bonds, there shall also be deposited or transferred to the applicable accounts in the First Lien Bond Fund created with respect to any other Outstanding First Lien Bonds the amount with respect to principal (including past due principal) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the First Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding June 1 of each year, if moneys in the applicable accounts in the First Lien Bond Fund are insufficient to pay any past due principal and the next installment of principal on the 2025A Bonds and such other First Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority to the First Lien Bond Fund in order to pay any past due principal and the next maturing installment of principal on the 2025A Bonds and such other First Lien Bonds: (i) the Revenue Fund, and (ii) the Surplus Fund. In the event such amounts in the Revenue Fund and the Surplus Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

The moneys credited to the First Lien Bond Fund shall be used first, to pay interest (including any accrued but unpaid interest, compound interest on any unpaid interest, and current interest), due and payable on the First Lien Bonds, and then, to pay the principal (including any past due principal) of, and redemption premiums due, if any, as such principal and premiums become due at maturity or on a redemption date designated in a mandatory sinking fund redemption schedule, in a notice of prior redemption, or otherwise.

Second Lien Bond Fund Payments

THIRD, so long as any Second Lien Bonds are Outstanding, from any moneys in the Revenue Fund, there shall be credited to the applicable accounts in the Second Lien Bond Fund:

(a) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025B Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay next maturing installment of interest on the 2025B Bonds then Outstanding, and on the 15th day of every month thereafter, (1) the amount of accrued but unpaid interest and compound interest on any unpaid interest, if any, and (2) one sixth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next maturing installment of interest on the 2025B Bonds then Outstanding. On the same day as payments are made to the applicable account in the Second Lien Bond Fund as required for the 2025B Bonds, there shall also be deposited or transferred to the applicable accounts in the Second Lien Bond Fund created with respect to any other Outstanding Second Lien Bonds the amount with respect to interest (including accrued but unpaid interest, compound interest on any unpaid interest and current interest) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the accounts in the Second Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding each interest payment date (i.e., June 1 and December 1), if moneys in the applicable accounts in the Second Lien Bond Fund are insufficient to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025B Bonds and such other Second Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority to the applicable accounts in the

Second Lien Bond Fund in order to pay any accrued but unpaid interest, compound interest on any unpaid interest and the next maturing installment of interest on the 2025B Bonds and such other Second Lien Bonds: (i) the Revenue Fund, (ii) the Surplus Fund, and (iii) the Second Lien Reserve Fund. In the event such amounts in the Revenue Fund, the Surplus Fund and the Second Lien Reserve Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

(b) Monthly, commencing on the 15th day of the month immediately succeeding the delivery date of the 2025B Bonds, an amount in equal monthly installments necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025B Bonds coming due at maturity, and on the 15th day of every month thereafter, (1) any past due principal and (2) one twelfth of the amount necessary, together with any other moneys from time to time available therefor and on deposit therein from whatever source, to pay the next installment of principal of the 2025B Bonds coming due at maturity. On the same day as payments are made to the applicable account in the Second Lien Bond Fund as required for the 2025B Bonds, there shall also be deposited or transferred to the applicable accounts in the Second Lien Bond Fund created with respect to any other Outstanding Second Lien Bonds the amount with respect to principal (including past due principal) required by the supplemental bond indentures creating such accounts. In the event there are insufficient amounts of Pledged Revenues to make such payments to the applicable accounts in the Second Lien Bond Fund, the Trustee shall deposit or transfer a pro rata amount into each such account. On the last Business Day preceding June 1 of each year, if moneys in the applicable accounts in the Second Lien Bond Fund are insufficient to pay any past due principal and the next installment of principal on the 2025B Bonds and such other Second Lien Bonds, the Trustee shall transfer sufficient amounts from the following funds in the following order of priority into the applicable accounts in the Second Lien Bond Fund in order to pay any past due principal and the next maturing installment of principal on the 2025B Bonds and such other Second Lien Bonds: (i) the Revenue Fund, (ii) the Surplus Fund, and (iii) the Second Lien Reserve Fund. In the event such amounts in the Revenue Fund, the Surplus Fund and the Second Lien Reserve Fund are insufficient for such purposes, the Trustee shall transfer the available amounts pro rata.

The moneys credited to the Second Lien Bond Fund shall be used first, to pay interest (including any accrued but unpaid interest, compound interest on any unpaid interest, and current interest), due and payable on the Second Lien Bonds, and then, to pay the principal (including any past due principal) of, and redemption premiums due, if any, as such principal and premiums become due at maturity or on a redemption date designated in a mandatory sinking fund redemption schedule, in a notice of prior redemption, or otherwise.

Trustees Fees

FOURTH, on the 15th day of every month and when billed, the District shall use any moneys in the Revenue Fund to pay fees of the Trustee, if any, in accordance with the Indenture.

Rebate Fund

FIFTH, so long as any Bonds, First Lien Bonds or Second Lien Bonds are Outstanding, semi-annually on each June 2 and December 2, as necessary, and after payments therein above required to be made by the Indenture are made, the Trustee, upon the District's written request, shall transfer moneys remaining in the Revenue Fund to be deposited into the Rebate Fund in such amounts as are required in connection with the Bonds under Section 148 of the Tax Code and regulations promulgated thereunder and shall apply such funds to the extent required to comply with the Indenture to make payments to the United States with respect to the 2025C Bonds. Any moneys in the Rebate Fund not needed for such purpose shall be transferred to the Revenue Fund. The Trustee shall have no responsibility with respect to compliance with the provisions of this Section, except to comply with the written request of the District related to the transfer of the Rebate Fund payments.

Second Lien Reserve Fund

(a) **SIXTH**, so long as any Second Lien Bonds are Outstanding, annually on June 2 of each year, from any moneys remaining in the Revenue Fund, there shall be credited to the Second Lien Reserve Fund, an amount necessary to replenish the Second Lien Reserve Fund to an amount equal to the Second Lien Reserve Requirement, if any, less the amount of any other moneys available therefor that are accounted for in the Second Lien Reserve Fund in order to maintain the Second Lien Reserve Fund as a continuing reserve in an amount equal to the Second Lien Reserve Requirement, to meet possible deficiencies in the Second Lien Bond Fund. The moneys in the Second Lien Reserve Fund shall be accumulated or reaccumulated and maintained as a continuing reserve to be used for the payment of the principal of and interest on the 2025B Bonds and any other Outstanding Second Lien Bonds in the event moneys in the Second Lien Bond Fund or such other bond funds of Second Lien Bonds are insufficient to make such payments when due, whether on an interest payment date, sinking fund redemption date, maturity date, or otherwise.

(b) The funds held in the Second Lien Reserve Fund shall be transferred to the Second Lien Bond Fund if needed to prevent a default in the payment of the principal of and interest on the 2025B Bonds and any other Outstanding Second Lien Bonds to the extent Pledged Revenues are insufficient therefor, first to make up any deficiency in moneys available to pay interest on the 2025B Bonds or any other Second Lien Bonds and then to make up any deficiency in moneys available to pay principal of the 2025B Bonds or any other Second Lien Bonds. Any moneys at any time in excess of the Second Lien Reserve Requirement in the Second Lien Reserve Fund shall be withdrawn therefrom, and transferred from time to time to the Second Lien Bond Fund and used as therein provided for moneys credited to such fund. Failure to maintain the Second Lien Reserve Fund in the amount of the Second Lien Reserve Requirement, draws on the Second Lien Reserve Fund and failure to replenish any draw on the Second Lien Reserve Fund shall not constitute an Event of Default or any default under the Indenture. On the final maturity date(s) of the 2025B Bonds and any other Outstanding Second Lien Bonds, any moneys in the Second Lien Reserve Fund may be used to pay the principal of and interest on the 2025B Bonds and any other Outstanding Second Lien Bonds on such final maturity date(s).

(c) All or a portion of the Second Lien Reserve Requirement may be satisfied by deposits in cash, Permitted Investments, or a Qualified Reserve Facility guaranteeing payments into the Second Lien Reserve Fund in accordance with the requirements of this Section. On the date of the initial issuance and delivery of the 2025B Bonds, the Second Lien Reserve Requirement of $6,969,862.50 will be satisfied by the Reserve Policy issued by the Insurer (both as defined in the Senior Indenture). Should the rating of the issuer of any Qualified Reserve Facility fall below the required level, a replacement facility, cash, or Permitted Investments equal in value to the reserve facility being replaced must be deposited in the Second Lien Reserve Fund within 12 months of such downgrading. Six months prior to the expiration of a Qualified Reserve Facility then in effect, a commitment for delivery of a replacement facility therefor prior to such expiration date must have been received or the Second Lien Reserve Fund must be funded with a like amount of cash and Permitted Investments. In no event may the issuer of a Qualified Reserve Facility be granted a security interest in the Trust Estate granted thereunder. Any such Qualified Reserve Facility shall be issued in the name of the Trustee and shall contain no restrictions on the ability of the Trustee to receive payment thereunder other than a certification by the Trustee that the funds drawn thereunder are to be used for the purposes set forth in this Section. The Trustee shall receive payment thereunder prior to any expiration or termination thereof and whenever moneys are required for the purposes for which such fund's moneys may be applied. If the District elects to deposit a Qualified Reserve Facility in the Second Lien Reserve Fund in lieu of moneys or Permitted Investments on deposit therein, upon any such deposit, the Trustee shall release to the Second Lien Bond Fund from the Second Lien Reserve Fund cash in an amount equal to, or Permitted Investments held therein having a market value equal to, the face amount of the Qualified Reserve Facility then being deposited.

Subordinate Bond Fund

SEVENTH, so long as the 2025C Bonds or any other Subordinate Bonds are Outstanding, the Trustee shall, annually on June 2, determine or cause to be determined the amounts in the Revenue Fund that are available and therefor required to be used first, to pay interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price), due and payable on the Subordinate Bonds, and then, to redeem Subordinate Bonds in accordance with the Indenture. Such amounts shall be available first, to pay interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price) due and payable on Subordinate Bonds, and then, to redeem Subordinate Bonds, only after all transfers pursuant to the Indenture have been made as of June 1. Notwithstanding the prior sentence and except for the last maturity, amounts available to pay interest on Subordinate Bonds and to redeem Subordinate Bonds shall not include any Revitalization Sales Tax received by the Trustee which are attributable to January, February, March, and April collections and typically received in March, April, May, and June, respectively. Such Revitalization Sales Tax will instead be applied on the next June 15 to monthly transfers to the First Lien Bond Fund and the Second Lien Bond Fund pursuant to the Indenture. The Trustee shall calculate the amount of interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price) due and payable on the Subordinate Bonds. If the amount in the Revenue Fund is sufficient to pay all of the interest due and payable on the Subordinate Bonds, and there are additional moneys in the Revenue Fund, then, based on the Mandatory Redemption Price for the Subordinate Bonds on the upcoming July 15 (in accordance with the provisions thereof), the Trustee will also calculate, or cause to be calculated, the amount of funds needed to redeem Subordinate Bonds. The Trustee will transfer funds from the Revenue Fund to the Subordinate Bond Fund on June 2, first, to pay all or a portion of the interest (including current interest, accrued but unpaid interest and compound interest on any unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price) due and payable on the Subordinate Bonds, and then, to redeem Subordinate Bonds. If the funds transferred are sufficient to pay all of the interest (including current interest, accrued but unpaid interest and compound interest on unpaid interest, and including the accrued interest portion of any Mandatory Redemption Price) on the Subordinate Bonds and to redeem Subordinate Bonds, not later than June 5 of each year, the Trustee shall send the required redemption notices, or cause the required redemption notices to be sent, to effectuate such redemption on the immediately succeeding July 15 in accordance with the provisions thereof.

Notwithstanding the foregoing, no later than 10 days prior to a final maturity date or dates of the 2025C Bonds or any other Subordinate Bonds, as long as the payments therein above required to be made by the Indenture have been made, the Trustee shall transfer available amounts from the Revenue Fund to the Subordinate Bond Fund required to pay any accrued interest and the remaining Subordinate Bonds due on the upcoming July 15 maturity date or dates, if such amounts are available.

Second Subordinate Bond Fund

EIGHTH, so long as there are no Subordinate Bonds Outstanding, the Trustee shall, if there are any Second Subordinate Bonds Outstanding, annually, on June 2, determine or cause to be determined the amounts in the Revenue Fund that are available and therefor required to be used first, to pay interest (including current interest, accrued but unpaid interest and compound interest on unpaid interest, and including the accrued interest portion of any mandatory redemption price) due and payable on Second Subordinate Bonds, and then, to redeem Second Subordinate Bonds in accordance with the indenture authorizing such Second Subordinate Bonds. Such amounts shall be available first, to pay interest (including current interest, accrued but unpaid interest and compound interest on unpaid interest, and including the accrued interest portion of any mandatory redemption price) due and payable on Second Subordinate Bonds, and then, to redeem Second Subordinate Bonds, only after all transfers pursuant to the Indenture have been made as of June 1. Notwithstanding the prior sentence and except for the last maturity, amounts available to pay interest on and to redeem any Second Subordinate Bonds shall not include any Revitalization Sales Tax received by the Trustee which are attributable to January, February, March, and April collections and typically received in March, April, May, and June respectively. Such Revitalization Sales Tax will instead be applied on the next June 15 to monthly transfers to the First Lien Bond Fund and the Second Lien Bond Fund pursuant to the Indenture. The Trustee shall calculate the amount of interest (including current interest, accrued but unpaid interest and compound interest on

unpaid interest, and including the accrued interest portion of any mandatory redemption price) on Second Subordinate Bonds. If the amount in the Revenue Fund is sufficient to pay all of the interest due and payable on the Second Subordinate Bonds, and there are additional moneys in the Revenue Fund, then, based on the mandatory redemption price for Second Subordinate Bonds on the upcoming July 15 (in accordance with the indenture authorizing the Second Subordinate Bonds), the Trustee will also calculate, or cause to be calculated, the amount of funds needed to redeem Second Subordinate Bonds. The trustee will transfer funds from the Revenue Fund to the Second Subordinate Bond Fund on June 2 of each year, first, to pay all or a portion of the interest (including current interest, accrued but unpaid interest and compound interest on unpaid interest, and including the accrued interest portion of any mandatory redemption price) due and payable on the Second Subordinate Bonds, and then, to redeem Second Subordinate Bonds. If the funds transferred are sufficient to pay all of the interest (including current interest, accrued but unpaid interest and compound interest on unpaid interest, and including the accrued interest portion of any mandatory redemption price) on the Second Subordinate Bonds and to redeem Second Subordinate Bonds, not later than June 5 of each year, the Trustee shall send the required redemption notices, or cause the required redemption notices to be sent, to effectuate such redemption on the immediately succeeding July 15 in accordance with the indenture authorizing such Second Subordinate Bonds.

Notwithstanding the foregoing, no later than 10 days prior to a final maturity date or dates of any Second Subordinate Bonds, so long as the payments therein above required to be made by the Indenture have been made, the Trustee shall transfer available amounts from the Revenue Fund to the Second Subordinate Bond Fund required to pay any accrued interest and the remaining Second Subordinate Bonds due on the upcoming July 15 maturity date or dates, if such amounts are available.

Surplus Fund

NINTH, when the Subordinate Bonds and the Second Subordinate Bonds, if any, are no longer Outstanding, annually on June 2 of each year, any moneys remaining in the Revenue Fund shall be credited to the Surplus Fund. Amounts in the Surplus Fund shall be used for any lawful purpose as provided in the Indenture, including, but not limited to, the following purposes: (1) to pay the annual Bond Requirements of any Outstanding First Lien Bonds due in such Bond Year and not paid; (2) to pay the annual Bond Requirements of any Outstanding Second Lien Bonds due in such Bond Year and not paid; (3) to optionally redeem Outstanding 2025A Bonds or any other Outstanding First Lien Bonds to the extent such bonds are currently callable; (4) to optionally redeem Outstanding 2025B Bonds or any other Outstanding Second Lien Bonds to the extent such bonds are currently callable; and (5) to pay any other obligations on a subordinate basis to the First Lien Bonds and the Second Lien Bonds as may be permitted by law. Whenever all of the First Lien Bonds, Second Lien Bonds, Subordinate Bonds and Second Subordinate Bonds, if any, and interest thereon have been paid as provided therein and all expenses and fees of the Trustee have been paid, any balance remaining in the Surplus Fund attributable to the Revitalization Sales Tax shall be applied in accordance with the Participation Agreement and the Capital Pledge Agreement, including without limitation, to pay any other obligations as may be permitted by law.

Working Capital Fund

(a) Amounts in the Working Capital Fund shall be released by the Trustee to the District in accordance with requisitions submitted to the Trustee in substantially the form set forth in the Senior Indenture, signed by a District Representative and certifying that all amounts drawn will be applied to the payment of Administrative Expenses. The Trustee may rely conclusively on any such requisitions and shall not be required to make any independent investigation in connection therewith. The execution of any requisition by a District Representative shall constitute, unto the Trustee, an irrevocable determination that all conditions precedent to the payments requested have been completed.

(b) On the later to occur of (i) March 1, 2029, or (ii) the date of receipt by the Trustee of a resolution of the District determining that amounts on deposit in the Working Capital Fund are no longer needed, any balance remaining in the Working Capital Fund shall be credited to the Revenue Fund. The

Working Capital Fund shall terminate at such time as the District is no longer incurring Administrative Expenses and no further moneys remain therein.

Trustee's Fees, Charges, and Expenses

The District shall pay the Trustee's fees for services rendered thereunder in accordance with its then-current schedule of fees and reimburse the Trustee for all advances, legal fees, and other expenses reasonably or necessarily made or incurred by, in, or about the execution of the trust created by the Indenture and in or about the exercise and performance of the powers and duties of the Trustee thereunder and for the reasonable and necessary costs and expenses incurred in defending any liability in the premises of any character whatsoever, unless such liabilities resulted from the negligence or willful misconduct of the Trustee.

Moneys to Be Held in Trust

All moneys deposited with or paid to the Trustee under any provision of the Indenture shall be held by the Trustee in trust for the purposes specified in the Indenture, and except for amounts due and owing to the Trustee for its fees and expenses in performance of its duties thereunder, shall constitute part of the Trust Estate and be subject to the lien thereof. Except to the extent otherwise specifically provided in the Indenture, the District shall have no claim to or rights in any moneys deposited with or paid to the Trustee thereunder.

Performance of Covenants, Authority

The District covenants that it will faithfully perform and observe at all times any and all covenants, undertakings, stipulations, and provisions contained in the Bond Resolution, the Indenture, the Capital Pledge Agreement, the Bonds, and all its proceedings pertaining thereto. The District covenants that it is duly authorized under the constitution and laws of the State, including, particularly and without limitation, the Act, to issue the Bonds and to execute the Indenture and that all action on its part for the issuance of the Bonds and the execution and delivery of the Indenture has been duly and effectively taken and will be duly taken as provided therein, and that the Bonds are and will be valid and enforceable obligations of the District according to the terms thereof.

No Additional Parity Bonds Other than Refunding Bonds

No additional indebtedness, bonds or notes of the District secured by a lien upon or a pledge of Pledged Revenues ranking prior to the lien or to the pledge created by the Senior Indenture shall be created or incurred without the prior written consent of the Owners of 100% of the Outstanding First Lien Bonds, Second Lien Bonds, Subordinate Bonds and Second Subordinate Bonds, if any. No additional bonds or other obligations may be issued on a parity with the liens of the First Lien Bonds or the Second Lien Bonds, except for the purpose of refunding such Outstanding bonds in accordance with the Senior Indenture.

No additional bonds or other obligations may be issued on a parity with the lien of the 2025C Bonds, except for the purpose of refunding, in whole, all Outstanding Subordinate Bonds. All Subordinate Bonds must be defeased in accordance with their terms and thus no longer Outstanding for purposes of the Indenture.

Additional Covenants and Agreements

The District thereby further irrevocably covenants and agrees with each and every Owner that so long as any of the Bonds remain Outstanding:

(a) The District shall faithfully and punctually perform or cause to be performed all duties with respect to the Pledged Revenues and the Project required by the Act, the Constitution and laws of the State and the various resolutions, ordinances and other instruments of the District, including, without limitation, the proper segregation of the proceeds of the Bonds and the Pledged Revenues and their application from time to time to the respective funds and accounts provided therefor.

(b) At any and all times the District, except when otherwise required by law, shall, so far as it may be authorized by law, pass, make, do, execute, acknowledge, deliver and file or record all and every such further instruments, acts, deeds, conveyances, assignments, transfers, other documents and assurances as may be necessary or desirable for the better assuring, conveying, granting, assigning and confirming all and singular the rights, the Pledged Revenues, and other moneys and accounts thereby pledged or assigned, or which the District may thereafter become bound to pledge or to assign, or as may be reasonable and required to carry out the purposes of the Indenture and to comply with the Act. The District shall at all times, to the extent permitted by law, defend, preserve, and protect the pledge of the Pledged Revenues and other moneys and accounts pledged thereunder and all the rights of every owner of any Bonds against all claims and demands of all persons whomsoever.

(c) Upon the date of issuance of any Bonds, all conditions, acts and things required by the Constitution or statutes of the State, including without limitation, the Act or the Indenture, to exist, to have happened, and to have been performed precedent to or in the issuance of the Bonds shall exist, have happened, and have been performed; and the Bonds, together with all other obligations of the District, shall not contravene any debt or other limitation prescribed by the State Constitution or statutes.

(d) The District shall observe and perform all of the terms and conditions contained in the Indenture and the Act, and all laws supplemental thereto and shall comply with all valid acts, rules, regulations, orders and directives of any legislative, executive, administrative or judicial body applicable to the Project or to the District.

(e) The District and the officers, agents and employees of the District shall not take any action in such manner or to such extent as might prejudice the security for the payment of the Bond Requirements of the Bonds according to the terms thereof. No contract shall be entered into nor any other action taken by which the rights of any owner of any Bond or other security payable from the Pledged Revenues might be prejudicially and materially impaired or diminished. In particular, the District will not amend or supplement any of the documents pertaining to the First Lien Bonds or Second Lien Bonds in any way which (1) alters the amortization of the principal of such First Lien Bonds or Second Lien Bonds, or (2) increases the rate or rates of interest borne by the First Lien Bonds or Second Lien Bonds, except upon the prior written consent of 100% of the Consent Parties with respect to the First Lien Bonds, the Second Lien Bonds and the Subordinate Bonds Outstanding in accordance with the Senior Indenture and the Indenture.

(f) The District shall promptly pay the Bond Requirements of every Bond issued thereunder and secured thereby, on the dates, and in the manner specified therein and in the Bonds according to the true intent and meaning thereof.

(g) None of the Pledged Revenues shall be used for any purpose other than as provided therein. The District shall apply the Pledged Revenues to the payment of the principal of Bonds, and the interest thereon (but not necessarily exclusively thereto), but it is not prohibited from making such payments from any moneys which may be lawfully used for that purpose.

(h) The Subordinate Bond Fund shall be used solely and only and the moneys credited to such fund are thereby pledged for the purpose of paying accrued interest on and/or to redeem Subordinate Bonds, except for those moneys in excess of such amounts, both accrued and not accrued, to their respective maturities or any redemption date or redemption dates, whichever due date is earlier, if any.

(i) Any other securities thereafter authorized to be issued and payable from the Pledged Revenues shall not thereafter be issued unless the additional securities are also issued in conformance with the provisions of the Indenture.

(j) The District will maintain its existence and shall not merge or otherwise alter its corporate structure in any manner or to any extent as might reduce the security provided for the payment of the Bonds, and will continue to operate and manage the District and its facilities in an efficient and economical manner in accordance with all applicable laws, rules, and regulations.

(k) At least once a year the District will cause an audit to be performed of the records relating to its revenues and expenditures, and the District shall use its commercially reasonable efforts to have such audit report completed no later than 200 days following the end of its Fiscal Year. The foregoing covenant shall apply notwithstanding any State law audit exemptions that may exist. In addition, at least once a year in the time and manner provided by law, the District will cause a budget to be prepared and adopted. Copies of the budget and the audit will be filed and recorded in the places, time, and manner provided by law.

(l) The District will carry general liability, public officials liability, and such other forms of insurance coverage on insurable District property upon the terms and conditions, and in such amount, as in the judgment of the District will protect the District and its limited operations.

(m) Each District official or other person having custody of any District funds or responsible for the handling of such funds, shall be bonded or insured against theft or defalcation at all times.

(n) Other than as set forth therein, the District covenants that it will not take any action (other than issuing refunding bonds permitted under the Indenture), that could reduce the amounts available for Second Subordinate Bond Owners in any year, if any. The District covenants that it will not exercise any optional redemption of Subordinate Bonds that are not funded from refunding bond proceeds that could result in the reduction of amounts available for Second Subordinate Bond Owners, if any, in any year.

(o) The District will diligently pursue all reasonable remedies available to the District under the terms of the Capital Pledge Agreement, whether at law or in equity, with respect to enforcing the collection of the Revitalization Sales Tax. The District will not take any of the following actions without the prior written consent of the Consent Parties of the First Lien Bonds, Second Lien Bonds, Subordinate Bonds and Second Subordinate Bonds, if any, then Outstanding; (1) reduce the amounts due to the District (or to the Trustee on behalf of the District) under the Capital Pledge Agreement; or (2) amend or supplement the Capital Pledge Agreement where such amendment or supplement would materially adversely affect the amount of Pledged Revenues to be paid to or on behalf of the District thereunder.

(p) The District shall employ or cause to be employed as required a certified public accountant to perform auditing functions and duties required by the Act and the Indenture, and such other professionals as the District deems necessary to assist the District in completing its obligations under the Continuing Disclosure Undertaking.

(q) The District thereby covenants and agrees that it will comply with and carry out all of the provisions of the Continuing Disclosure Undertaking. Notwithstanding any other provision of the Indenture, failure of the District to comply with the Continuing Disclosure Undertaking shall not be considered an Event of Default; however, the Trustee may (and, at the request of any participating underwriter or the Owners of at least 25% aggregate principal amount of the Outstanding Bonds and receipt of indemnity to its satisfaction), or any Owner of the Bonds or Beneficial Owner may take such actions as may be necessary and appropriate, including seeking specific performance by court order, to cause the District to comply with its obligations under this Section.

Investments

(a) All moneys held by the Trustee in any of the funds, accounts or subaccounts created thereby shall be promptly invested or reinvested by the Trustee, upon receipt by the Trustee of written direction of the District Representative, in Permitted Investments only. The Trustee may conclusively rely upon the District Representative's written instruction as to both the suitability and legality of the directed investments. If the District fails to provide written directions concerning investment of moneys held by the Trustee, the Trustee shall, in accordance with this subsection, invest and reinvest the moneys in a money market fund selected by the District which is a Permitted Investment, subject to any other requirements of this Section. Any such investments shall mature, be redeemable at the option of the owner thereof, pay interest or, in the case of money market funds, shall be available for withdrawal, no later than the respective dates when moneys held for the credit of such fund, account or subaccount will be required for the purposes intended. The interest income derived from the investment and reinvestment of any moneys in any fund, account or subaccount held by the Trustee under the Indenture shall be credited to the fund, account, or subaccount from which the moneys invested were derived.

(b) The Trustee may make any and all such investments through its own investment department or that of its affiliates or subsidiaries and may charge its ordinary and customary fees for such trades, including cash sweep account fees. The District acknowledges that regulations of the Comptroller of the Currency grant the District the right to receive brokerage confirmations of any investment transactions as they occur. The District specifically waives such notification to the extent permitted by law and will receive periodic cash transaction statements that will detail all investment transactions. The Trustee will not issue a monthly statement for any fund, account, or subaccount if no activity occurred in such fund, account, or subaccount during such month. Unless otherwise confirmed or directed in writing, an account statement delivered periodically by the Trustee to the District Representative shall confirm that the investment transactions identified therein accurately reflect the investment directions of the District Representative, unless the District Representative notified the Trustee in writing to the contrary within 30 days of the date of such statement. The Trustee is specifically authorized to implement its automated cash investments system to assure that cash on hand is invested and to charge reasonable cash management fees, which may be deducted from income earned on investments.

(c) Any and all such investments shall be subject to full and complete compliance at all times with the covenants and provisions of the Indenture.

Tax Matters

(a) The District shall at all times do and perform all acts and things necessary or desirable in order to assure that interest paid on the 2025C Bonds shall, for the purposes of federal income taxation, be excludable from the gross income of the recipients thereof and exempt from such taxation.

(b) The District shall not use or permit the use of any proceeds of 2025C Bonds or any funds of the District, directly or indirectly, to acquire any securities or obligations, and shall not take or permit to be taken any other action or actions, which would cause any 2025C Bonds to be "arbitrage bonds" within the meaning of Section 148 of the Code or "federally guaranteed" within the meaning of Section 149(b) of the Code and any such applicable requirements promulgated from time to time thereunder and under Section 103(b) of the Code, and the District shall observe and not violate the requirements of Section 148 of the Code and any such applicable regulations. The District shall comply with all requirements of Sections 148 and 149(d) of the Code to the extent applicable to the 2025C Bonds. In the event that at any time the District is of the opinion that for purposes of this paragraph it is necessary to restrict or to limit the yield on the investment of any moneys held by the Trustee or held by the District under the Indenture, the District shall so restrict or limit the yield on

such investment or shall so instruct the Trustee in a detailed certificate, and the Trustee shall take such action as may be necessary in accordance with such instructions.

(c) The District specifically covenants to comply with the provisions and procedures of the Tax Certificate.

(d) The covenants contained in this Section shall continue in effect until all 2025C Bonds are fully paid, satisfied, and discharged.

Discharge of the Lien of the Indenture

(a) If the District shall pay or cause to be paid to the Trustee, for the Owners of the Bonds, the principal of and interest to become due thereon at the times and in the manner stipulated therein, and if the District shall keep, perform, and observe all and singular the covenants and promises in the Bonds and in the Indenture expressed to be kept, performed, and observed by it or on its part, and if all fees and expenses of the Trustee required by the Indenture to be paid shall have been paid, then these presents and the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Indenture, and execute and deliver to the District such instruments in writing as shall be required to satisfy the lien thereof, and assign and deliver to the District any property at the time subject to the lien of the Indenture which may then be in its possession, and deliver any amounts required to be paid to the District under the Indenture, except for moneys and Federal Securities held by the Trustee for the payment of the principal of, premium if any, and interest on the Bonds.

(b) Any Bond shall, prior to the maturity or prior redemption thereof, be deemed to have been paid within the meaning and with the effect expressed in this Section if, for the purpose of paying such Bond (i) there shall have been deposited with the Trustee an amount sufficient, without investment, to pay the principal of, premium if any, and interest on such Bond as the same becomes due at maturity or upon one or more designated prior redemption dates, or (ii) there shall have been placed in escrow and in trust with a commercial bank exercising trust powers, an amount sufficient (including the known minimum yield from Federal Securities in which such amount may be invested) to pay the principal of, premium if any, and interest on such Bond, as the same becomes due at maturity or upon one or more designated prior redemption dates. The Federal Securities in any such escrow shall not be subject to redemption or prepayment at the option of the issuer, and shall become due at or prior to the respective times on which the proceeds thereof shall be needed, in accordance with a schedule established and agreed upon between the District and such bank at the time of the creation of the escrow, or the Federal Securities shall be subject to redemption at the option of the holders thereof to assure such availability as so needed to meet such schedule. The sufficiency of any such escrow funded with Federal Securities shall be verified by a certified public accountant. With respect to any accrued and unpaid interest on the Bonds, including any compound interest on any unpaid interest remaining unpaid, it is acknowledged that such amounts are due and payable immediately at the time of funding any escrow intended to accomplish a defeasance of the Bonds. Upon the funding of an escrow defeasing Bonds in accordance with the provisions of the Indenture, the Bonds shall cease to be subject to mandatory redemption in accordance with the provisions of the Indenture, and the principal of the Bonds shall be due and payable only on the designated redemption date(s).

(c) Neither the Federal Securities, nor moneys deposited with the Trustee or placed in escrow and in trust pursuant to this Section, nor principal or interest payments on any such Federal Securities shall be withdrawn or used for any purpose other than, and shall be held in trust for, the payment of the principal of and interest on the Bonds; provided however, that any cash received from such principal or interest payments on such Federal Securities, if not then needed for such purpose, shall, to the extent practicable, be reinvested subject to the provisions of the Indenture in Federal Securities

maturing at the times and in amounts sufficient to pay, when due, the principal of and interest on the Bonds.

(d) Prior to the investment or reinvestment of such moneys or such Federal Securities as therein provided, the Trustee shall receive and may rely upon: (i) an opinion of Bond Counsel experienced in matters arising under Section 103 of the Code and acceptable to the Trustee, that the investment or reinvestment of such moneys or such Federal Securities complies with the Indenture; and (ii) a report of a certified public accountant that the moneys or Federal Securities will be sufficient to provide for the payment of the principal of and interest on the Bonds when due.

(e) The release of the obligations of the District under this Section shall be without prejudice to the rights of the Trustee to be paid reasonable compensation by the District for all services rendered by it thereunder and all its reasonable expenses, charges, and other disbursements incurred in the administration of the trust thereby created, the exercise of its powers, and the performance of its duties thereunder.

Discharge on December 31, 2055

In accordance with the CCR Act and Section 59-12-402.5, Utah Code, the Revitalization Sales Tax is not permitted to be imposed for a period exceeding thirty (30) years from the first date of its imposition, i.e., January 1, 2025, through December 31, 2054 (the "Imposition Period"). Pursuant to the Participation Agreement and the Capital Pledge Agreement, the City shall remit to the District Revitalization Sales Taxes imposed but not collected during the Imposition Period, including any delinquent taxes, through December 31, 2055. In the event that any amount of principal of or interest on any Bonds remains unpaid after the application of all Pledged Revenue available therefor, the Bonds and the lien of the Indenture securing payment thereof shall be deemed discharged on December 31, 2055 (the "Discharge Date"), the estate and rights thereby granted shall cease, terminate, and be void, and thereupon the Trustee shall cancel and discharge the lien of the Indenture, and execute and deliver to the District such instruments in writing as shall be requested to evidence the same. Notwithstanding the foregoing, in the event that the Imposition Period for the Revitalization Sales Tax is legally extended beyond December 31, 2054, the Discharge Date may likewise be extended upon authorization by the District in its discretion as permitted by law. Upon such discharge, the Owners will have no recourse to the District or any property of the District for the payment of any amount of principal of or interest on any Bonds remaining unpaid.

Events of Default

The occurrence of any one or more of the following events or the existence of any one or more of the following conditions shall constitute an Event of Default under the Indenture (whatever the reason for such event or condition and whether it shall be voluntary or involuntary or be effected by operation of law or pursuant to any judgment, decree, rule, regulation, or order of any court or any administrative or governmental body), and there shall be no default or Event of Default thereunder except as provided in this Section:

(a) the District fails or refuses to apply the Pledged Revenues as required by the Indenture;

(b) the District shall be in default in the due and punctual performance of any other representations, covenants, conditions, agreements and provisions contained in the Bonds or in the Indenture or in the Capital Pledge Agreement on its part to be performed, and if such default shall continue for thirty (30) days after written notice specifying such default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in principal amount of the Bonds then Outstanding; provided, that if such default cannot be fully remedied within such 30-day period, but can reasonably be expected to be fully remedied, such default shall not constitute an Event of Default if the District shall promptly upon receipt of such notice commence the curing of such default and shall thereafter prosecute and complete the same with due diligence and dispatch; and

(c) the District files a petition under the federal bankruptcy laws or other applicable bankruptcy laws seeking to adjust the obligation represented by the Bonds.

It is acknowledged that due to the limited nature of the Pledged Revenue available to pay debt service on the Subordinate Bonds, the failure to pay the principal of or interest on the Bonds when due shall not, of itself, constitute an Event of Default thereunder.

Notwithstanding the foregoing, and subject to the provisions of the Indenture with respect to the discharge of the lien of the Indenture, except as provided in the Indenture, if any Second Lien Bonds are Outstanding, no Event of Default (other than an Event of Default described in the Indenture) will exist or may be declared with respect to the Bonds and no remedies shall be pursued by the Trustee on behalf of the Owners of the Bonds or directly by the Owners of the Bonds and, provided further, that upon the occurrence of an Event of Default described in the Indenture, the Trustee on behalf of such Bond Owners or such Bond Owners' remedy shall be to specifically enforce the provisions of the Indenture to provide for payment of principal and interest on the Bonds.

WITHOUT LIMITING THE FOREGOING, AND NOTWITHSTANDING ANY OTHER PROVISION CONTAINED THEREIN, THE DISTRICT ACKNOWLEDGES AND AGREES THAT THE APPLICATION OF ANY PORTION OF THE PLEDGED REVENUE TO ANY PURPOSE OTHER THAN DEPOSIT WITH THE TRUSTEE IN ACCORDANCE WITH THE PROVISIONS THEREOF CONSTITUTES A VIOLATION OF THE TERMS OF THE INDENTURE AND A BREACH OF THE COVENANTS MADE THEREUNDER FOR THE BENEFIT OF THE OWNERS OF THE BONDS, WHICH SHALL ENTITLE THE TRUSTEE TO PURSUE, ON BEHALF OF THE OWNERS OF THE BONDS, ALL AVAILABLE ACTIONS AGAINST THE DISTRICT IN LAW OR IN EQUITY, AS MORE PARTICULARLY DESCRIBED IN THE INDENTURE. THE DISTRICT FURTHER ACKNOWLEDGES AND AGREES THAT THE APPLICATION OF PLEDGED REVENUE IN VIOLATION OF THE COVENANTS THEREOF WILL RESULT IN IRREPARABLE HARM TO THE OWNERS OF THE BONDS. IN NO EVENT SHALL ANY PROVISION THEREOF BE INTERPRETED TO PERMIT THE DISTRICT TO RETAIN ANY PORTION OF THE PLEDGED REVENUE, EXCEPT AS PROVIDED IN THE INDENTURE WITH RESPECT TO THE DEPOSIT OF REVITALIZATION SALES TAX TO THE WORKING CAPITAL FUND.

Remedies on Occurrence of Event of Default

(a) Upon the occurrence and continuance of an Event of Default, the Trustee shall have the following rights and remedies which may be pursued:

(i) *Receivership*. Upon the filing of a bill in equity or other commencement of judicial proceedings to enforce the rights of the Trustee and of the Owners, the Trustee shall be entitled as a matter of right to the appointment of a receiver or receivers of the Trust Estate, and of the revenues, income, product, and profits thereof pending such proceedings, subject however, to constitutional limitations inherent in the sovereignty of the District; but notwithstanding the appointment of any receiver or other custodian, the Trustee shall be entitled to the possession and control of any cash, securities, or other instruments at the time held by, or payable or deliverable under the provisions of the Indenture to, the Trustee.

(ii) *Suit for Judgment*. The Trustee may proceed to protect and enforce its rights and the rights of the Owners under the Act, the Bonds, the Bond Resolution, the Indenture, and any provision of law by such suit, action, or special proceedings as the Trustee, being advised by Counsel, shall deem appropriate.

(iii) *Mandamus or Other Suit*. The Trustee may proceed by mandamus or any other suit, action, or proceeding at law or in equity, to enforce all rights of the Owners.

(b) Notwithstanding anything therein to the contrary, there shall be no right of acceleration with respect to any obligations secured by the Pledged Revenues, including the First Lien Bonds, the Second

Lien Bonds, the Subordinate Bonds, and all other obligations secured by the Pledged Revenues. Any Event of Default with respect to one series of Bonds shall not cause an event of default with respect to any other series of Bonds unless such event or condition on its own constitutes an Event of Default with respect to such other series of Bonds pursuant to the Indenture. The remedies provided therein with respect to using the moneys on deposit in funds and accounts shall be limited to the funds and accounts pledged thereunder to the applicable series of Bonds with respect to which an Event of Default exists.

(c) As long as any First Lien Bonds or Second Lien Bonds are Outstanding, neither the Trustee nor the Bond Owners shall have the right to institute or exercise any remedies provided for in the Indenture during an Event of Default; provided, however, that the Trustee may, and upon the written direction of the Owners of a majority in aggregate principal amount of Bonds then Outstanding, shall institute action against the District to specifically enforce any Event of Default with respect to the Indenture, if such Event of Default shall continue for thirty (30) days after written notice specifying such Event of Default and requiring the same to be remedied shall have been given to the District by the Trustee or by the Owners of ten percent (10%) in aggregate principal amount of Bonds then Outstanding.

(d) No recovery of any judgment by the Trustee shall in any manner or to any extent affect the lien of the Indenture or any rights, powers, or remedies of the Trustee thereunder, or any lien, rights, powers, and remedies of the Owners of the Bonds, but such lien, rights, powers, and remedies of the Trustee and of the Owners shall continue unimpaired as before.

Majority of Consent Parties May Control Proceedings

The Consent Parties of not less than a majority in principal amount of the Bonds then Outstanding, shall have the right, at any time, to the extent permitted by law, by an instrument or instruments in writing executed and delivered to the Trustee, to direct the time, method, and place of conducting all proceedings to be taken in connection with the enforcement of the terms and conditions of the Indenture, or for the appointment of a receiver, and any other proceedings thereunder; provided that such direction shall not be otherwise than in accordance with the provisions thereof; and provided further that at its option the Trustee shall be indemnified as provided in the Indenture.

Rights and Remedies of Owners

No Owner of any Bond shall have any right to institute any suit, action, or proceeding in equity or at law for the enforcement of the Indenture or for the execution of any trust thereof or for the appointment of a receiver or any other remedy thereunder, unless (a) a default has occurred of which the Trustee has been notified as provided in the Indenture, or of which under that Section it is deemed to have notice; (b) such default shall have become an Event of Default; (c) the Owners of not less than 10% in aggregate principal amount of Bonds then Outstanding adversely affected thereby shall have made written request to the Trustee and shall have offered reasonable opportunity either to proceed to exercise the powers therein above granted or to institute such action, suit, or proceedings in their own name, and shall have also offered to the Trustee indemnity as provided in the Indenture; and (d) the Trustee shall thereafter fail or refuse to exercise the powers thereinbefore granted, or to institute such action, suit, or proceeding in its own name; such notification, request, and offer of indemnity are declared in every case at the option of the Trustee to be conditions precedent to any action or cause of action for the enforcement of the Indenture, or for the appointment of a receiver or for any other remedy thereunder; it being understood and intended that no one or more Owners of Bonds shall have any right in any manner whatsoever to affect, disturb, or prejudice the lien of the Indenture by his, her, its, or their action, or to enforce any right thereunder except in the manner therein provided and that all proceedings at law or in equity shall be instituted, had, and maintained in the manner therein provided.

Application of Moneys

All moneys received by the Trustee pursuant to any right given or action taken under the provisions of the Indenture and any other moneys held as part of the Trust Estate, after payment of the costs and expenses of the proceedings resulting in the collection of such moneys and the fees (including attorneys' fees and costs of any other

professionals hired by the Trustee thereunder), expenses, liabilities, and advances incurred or made by the Trustee, shall be deposited in the appropriate funds or accounts created thereunder in the same manner as is provided for deposits of other revenue and used for the purposes thereof, until the principal of, premium if any, and interest on all of the Bonds has been paid in full. Whenever all Bonds and interest thereon have been paid under the provisions of this Section and all expenses and fees of the Trustee have been paid, any balance remaining in any of the funds and accounts held thereunder shall be applied in accordance with the Participation Agreement and the Capital Pledge Agreement.

Waivers of Events of Default

The Trustee shall waive any Event of Default thereunder and its consequences, upon the written request of the Consent Parties of not less than a majority in principal amount of the Bonds then Outstanding; provided however, that there shall not be waived without the consent of the Consent Parties of 100% of the Bonds then Outstanding, as to any Event of Default under the Indenture. In case of any such waiver, or in case any proceedings taken by the Trustee on account of any such default shall have been discontinued or abandoned or determined adversely to the Trustee, then in every such case the District, the Trustee, and the Owners shall be restored to their former positions and rights thereunder respectively, but no such waiver or rescission shall extend to any subsequent or other default, or impair any right consequent thereon.

Notice of Default; Opportunity to Cure Defaults

(a) The Trustee shall give to the Owners of all Bonds notice by mailing to the address shown on the registration books maintained by the Trustee or by electronic means to DTC or its successors, of all Events of Default of which the Trustee is by the Indenture required to take notice, or if notice of an Event of Default is given as provided in said section, as soon as possible after the Trustee has knowledge of the occurrence of such default or Event of Default unless such default or Event of Default shall have been cured before the giving of such notice.

(b) No default under the Indenture shall constitute an Event of Default until written notice specifying such default and requiring the same to be remedied shall be given to the District by the Trustee or by the Owners of not less than 10% in aggregate principal amount of Bonds then Outstanding, and the District shall have had 30 days after receipt of such notice to correct said default or cause said default to be corrected, and shall not have corrected said default or caused said default to be corrected within the applicable period; provided, that if such default cannot be fully remedied within the 30-day period, but can reasonably be expected to be fully remedied, such default shall not constitute an Event of Default if the District shall promptly upon receipt of such notice commence the curing of such default and shall thereafter prosecute and complete the same with due diligence and dispatch.

Cooperation of District

In the case of any Event of Default thereunder, the District shall cooperate with the Trustee and use its best efforts to protect the Owners.

Resignation or Replacement of Trustee

(a) The Trustee may resign, subject to the appointment of a successor, by giving 30 days' notice of such resignation to the District and to all Owners of Bonds specifying the date when such resignation shall take effect. Such resignation shall take effect on the date specified in such notice unless a successor shall have been previously appointed as thereinafter provided, in which event such resignation shall take effect immediately on the appointment of such successor. The Trustee may petition the courts, at the expense of the District, to appoint a successor in the event no such successor shall have been previously appointed. The Trustee may be removed at any time by an instrument in writing, executed by the District, as long as the District is not in default under the

terms of the Indenture or the Senior Indenture. Upon the occurrence of an Event of Default thereunder, the Trustee, or any successor, may be removed at any time by the Owners of 25% in aggregate principal amount of the First Lien Bonds, Second Lien Bonds and the Bonds then Outstanding. Any removal or resignation of the Trustee and appointment of a successor Trustee shall become effective only upon acceptance of appointment by the successor Trustee.

(b) In case the Trustee shall at any time resign or be removed or otherwise become incapable of acting, a successor may be appointed by the District so long as it is not in default thereunder; otherwise by the Owners of 25% in aggregate principal amount of the First Lien Bonds, the Second Lien Bonds and the Bonds then Outstanding by an instrument or concurrent instruments signed by such Owners, or their attorneys-in-fact appointed; provided however, that even if the District is in default thereunder it may appoint a successor until a new successor shall be appointed by the District or the Owners as therein authorized. The District, upon making such appointment, shall forthwith give notice thereof to the Owners by mailing to the address shown on the registration books maintained by the Trustee, which notice may be given concurrently with the notice of resignation given by any resigning Trustee. Any successor so appointed by the District shall immediately and without further act be superseded by a successor appointed in the manner above provided by the District or the Owners of 25% in aggregate principal amount of the First Lien Bonds, the Second Lien Bonds and the Bonds then Outstanding, as applicable.

(c) Every successor Trustee shall always be a commercial bank or trust company in good standing, qualified to act thereunder, and having a capital surplus of not less than $50,000,000, if there be such an institution willing, qualified, and able to accept the trust upon reasonable or customary terms. Any successor appointed thereunder shall execute, acknowledge, and deliver to the District an instrument accepting such appointment thereunder, and thereupon such successor shall, without any further act, deed, or conveyance, become vested with all estates, properties, rights, powers, and trusts of its predecessor in the trust thereunder with like effect as if originally named as the Trustee thereunder and thereupon the duties and obligations of the predecessor shall cease and terminate; but the Trustee retiring shall, nevertheless, on the written demand of its successor and upon payment of the fees and expenses owed to the predecessor, execute and deliver an instrument conveying and transferring to such successor, upon the trusts therein expressed, all the estates, properties, rights, powers, and trusts of the predecessor, who shall duly assign, transfer, and deliver to the successor all properties and moneys held by it under the Indenture. If any instrument from the District is required by any successor for more fully and certainly vesting in and confirming to it the estates, properties, rights, powers, and trusts of the predecessor, those instruments shall be made, executed, acknowledged, and delivered by the District on request of such successor.

(d) The instruments evidencing the resignation or removal of the Trustee and the appointment of a successor thereunder, together with all other instruments provided for in this Section, shall be filed or recorded by the successor Trustee in each recording office, if any, where the Indenture shall have been filed or recorded.

Prioritization of Trustee Obligations

If at any time an Event of Default has occurred or is occurring or such event has occurred which has caused a conflict to arise between the Trustee's role as trustee for the First Lien Bonds and the Second Lien Bonds and the trustee's role as Trustee for the Bonds, the Trustee shall prioritize its obligations by first protecting the interests of the Owners of the First Lien Bonds and the Second Lien Bonds and then protecting the interests of the Owners of the Bonds. If the Trustee is unable to resolve any such conflicts that may arise, the Trustee shall resign (or be removed by the District or the applicable Owners) as trustee for the First Lien Bonds and Second Lien Bonds or as trustee for the Bonds.

Supplemental Indentures Not Requiring Consent

Subject to the provisions of the Indenture, the District and the Trustee may, without the consent of or notice to the Consent Parties of any Subordinate Bonds, enter into such indentures supplemental thereto, which supplemental indentures shall thereafter form a part thereof, for any one or more of the following purposes:

(a) to cure any ambiguity, to cure, correct, or supplement any formal defect or omission or inconsistent provision contained in the Indenture, to make any provision necessary or desirable due to a change in law, to make any provisions with respect to matters arising under the Indenture, or to make any provisions for any other purpose if such provisions are necessary or desirable and do not materially adversely affect the interests of the Owners of the Bonds;

(b) to grant or confer upon the Trustee for the benefit of the Owners any additional rights, remedies, powers, or authority that may lawfully be granted to or conferred upon the Owners or the Trustee;

(c) to add to the conditions, limitations, and restrictions thereafter to be observed by the District under the provisions of the Indenture;

(d) to add to the covenants and agreements of the District in the Indenture other covenants and agreements thereafter to be observed by the District or to surrender any right or power therein reserved or conferred upon the District;

(e) to provide for the issuance of additional Subordinate Bonds in accordance with the Indenture;

(f) to preserve the excludability of interest on any Bonds from gross income for purposes of federal income taxes, or to change the tax covenants set forth in the Indenture pursuant to an opinion of Bond Counsel that such action will not adversely affect such excludability;

(g) to evidence the appointment of a separate Trustee or the succession of a new Trustee under the Indenture;

(h) to modify, eliminate or add to the provisions of the Indenture to such extent as shall be necessary to effect the qualification of the Indenture under the Trust Indenture Act of 1939, as amended, or under any similar federal statute thereafter enacted, or to permit the qualification of the Bonds for sale under the securities laws of the United States or any state of the United States; and

(i) to make any other change that would not materially adversely affect the security for the Subordinate Bonds.

Supplemental Indentures Requiring Consent

(a) Except for supplemental indentures delivered pursuant to the Indenture, and subject to the provisions of the Indenture, the Consent Parties with respect to not less than a majority (or for modifications of provisions thereof which require the consent of a percentage of Owners or Consent Parties higher than a majority, such higher percentage) in aggregate principal amount of the Subordinate Bonds then Outstanding shall have the right, from time to time, to consent to and approve the execution by the District and the Trustee of such indenture or indentures supplemental thereto as shall be deemed necessary or desirable by the District for the purpose of modifying, altering, amending, adding to, or rescinding, in any particular, any of the terms or provisions contained in the Indenture.

(b) Notwithstanding the foregoing, without the consent of the Consent Parties of the Subordinate Bonds adversely affected thereby, nothing therein contained shall permit, or be construed as permitting:

(i) a change in the maturity of the principal amount of any Outstanding Subordinate Bond or any installment of interest thereon, or change in the optional or mandatory redemption provisions applicable thereto;

(ii) a reduction in the principal amount of any Subordinate Bond, or the rate of interest thereon;

(iii) the creation of a lien upon or a pledge of Pledged Revenues ranking prior to the lien or to the pledge created by the Indenture, other than the lien securing First Lien Bonds and Second Lien Bonds;

(iv) a reduction in the principal amount or percentages or otherwise affecting the description of Subordinate Bonds or the consent of the Consent Parties of which is required for any such modification or amendment;

(v) the establishment of priorities as between Subordinate Bonds Outstanding under the provisions of the Indenture and First or Second Lien Bonds issued and Outstanding under the provisions of the Senior Indenture; or

(vi) the modifications of or otherwise prejudicially affect the rights or privileges of the Owners of less than all of the Subordinate Bonds then Outstanding.

(c) Notwithstanding the foregoing, without the consent of the Consent Parties of any Second Subordinate Bonds, if any, adversely affected thereby, nothing therein contained shall permit, or be construed as permitting:

(i) any modification of maturity dates, redemption provisions or interest rates of Subordinate Bonds that could reduce amounts available to the Second Subordinate Bond Owners in any year;

(ii) any change which would permit the issuance of additional obligations with a lien on Pledged Revenues prior and superior to the lien thereon of the Second Subordinate Bonds, other than the Subordinate Bonds issued for refunding purposes in accordance with the Indenture;

(iii) any changes to the refunding bonds provisions in the Indenture that could reduce the amounts available to the Second Subordinate Bond Owners in any year;

(iv) any amendment to the Indenture that could reduce the amount available for the Second Subordinate Bond Owners in any year;

(v) any modification to rights and remedies of the Subordinate Bond Owners which (a) permit acceleration, (b) increase amounts payable to the Subordinate Bond Owners prior to the Second Subordinate Bond Owners, or (c) grant additional rights to the Subordinate Bond Owners that have a material adverse impact on the Second Subordinate Bond Owners;

(vi) the creation of a lien upon or a pledge of the Pledged Revenues ranking prior to the lien or to the pledge created by the Senior Indenture; or

(vii) the modification of priorities as between the Second Subordinate Bond Owners and the Subordinate Bond Owners;

If at any time the District shall request the Trustee to enter into such supplemental indenture for any of the purposes of the Indenture, the Trustee shall, upon being satisfactorily indemnified with respect to fees and expenses, cause notice of the proposed execution of such supplemental indenture to be given by mailing such notice by certified or registered first class mail to the Owners of the Subordinate Bonds and the Second Subordinate Bonds, if any, to the address shown on the registration books of the Trustee or by electronic means to DTC or its successors, at least 30 days prior to the proposed date of execution and delivery of any such supplemental indenture. Such notice shall briefly set forth the nature of the proposed supplemental indenture and shall state that copies thereof are on file at the principal corporate trust office of the Trustee for inspection by all Owners. If owner consent is required in accordance with the Indenture, within 60 days or such longer period as shall be prescribed by the District following the giving of such notice, the requisite percentage of Owners at the time of the execution of any such supplemental indenture shall have consented to and approved the execution thereof as therein provided, the District may execute and deliver such supplemental indenture and no Owner of any Subordinate Bond or Second Subordinate Bond shall have any right to object to any of the terms and provisions contained therein, or the operation thereof, or in any manner to question the propriety of the execution thereof, or to enjoin or restrain the Trustee or the District from executing the same or from taking any action pursuant to the provisions thereof.

Applicable Law

THE INDENTURE SHALL BE GOVERNED EXCLUSIVELY BY THE APPLICABLE LAWS OF THE STATE.

Provisions Relating to Bond Insurance for the 2025A&B Bonds and the Reserve Policy for the 2025B Bonds

The District and the Trustee acknowledge and agree that as long as the Insurer is not in default under the applicable Insurance Policy or the Reserve Policy (both as defined in the Senior Indenture), notwithstanding anything to the contrary in the Indenture or the Senior Indenture, the relevant provisions in the Indenture related to the 2025A&B Bonds shall be governed by the provisions relating to such Insurance Policy and the Reserve Policy contained in Exhibit F of the Senior Indenture, which provisions are incorporated into the Indenture to the extent applicable.

* * *

APPENDIX D

FORM OF CONTINUING DISCLOSURE UNDERTAKING

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CONTINUING DISCLOSURE UNDERTAKING

DOWNTOWN REVITALIZATION PUBLIC INFRASTRUCTURE DISTRICT
(In Salt Lake City)
Salt Lake County, Utah

$649,895,000
First Lien Sales Tax Revenue Bonds
(SEG Redevelopment Project)
Series 2025A

$194,460,000
Second Lien Sales Tax Revenue Bonds
(SEG Redevelopment Project)
Series 2025B

$25,000,000
Subordinate Lien Sales Tax Revenue Bonds
(SEG Redevelopment Project)
Series 2025C

This **CONTINUING DISCLOSURE UNDERTAKING** (this "Undertaking") is executed and delivered, as of June 18, 2025 by the Downtown Revitalization Public Infrastructure District, in Salt Lake City, Salt Lake County, Utah (the "District") in connection with the issuance of the above-captioned Bonds (the "Bonds"). The Bonds are being issued pursuant to a resolution adopted by the District's Board of Trustees on April 17, 2025 (the "Resolution") and two separates indentures of trust, each dated June 1, 2025, by and between the District and Zions Bancorporation, National Association, as trustee (the "Indentures"). Capitalized terms used but not otherwise defined herein shall have the meanings assigned thereto in the Resolution and the Indentures.

In consideration of the issuance of the Bonds by the District and the purchase of such Bonds by the owners thereof, the District hereby covenants and agrees as follows:

Section 1. Purpose of this Undertaking. This Undertaking is executed and delivered by the District as of the date set forth above, for the benefit of the holders and owners (the "Bondholders") of the Bonds and in order to assist the Participating Underwriters (as defined below) in complying with the requirements of the Rule (as defined below).

Section 2. Definitions. The terms set forth below shall have the following meanings in this Undertaking, unless the context clearly otherwise requires.

"*Audited Financial Statements*" means the most recent annual financial statements for the District prepared in accordance with generally accepted accounting principles ("GAAP") for governmental units as prescribed by the Governmental Accounting Standards Board ("GASB"), which financial statements shall have been audited by such auditor as shall be then required or permitted by the laws of the State of Utah.

"*Business Day*" means any day other than (a) a Saturday or Sunday or (b) a day on which banking institutions in the State are authorized or obligated by law or executive order to be closed for business.

"*Commission*" means the Securities and Exchange Commission.

"*Dissemination Agent*" means such dissemination agent, if any, engaged by the District pursuant to this Undertaking.

"*EMMA*" means the Electronic Municipal Market Access facility for municipal securities disclosure of the MSRB.

"*Exchange Act*" means the Securities Exchange Act of 1934, as amended.

"*Financial Information*" means the financial information and operating data described in Exhibit I.

"*Financial Information Disclosure*" means the dissemination of the Financial Information and the Audited Financial Statements as set forth in Section 4 hereof.

"*Material Event*" means the occurrence of any of the events with respect to the Bonds set forth in Exhibit II.

"*Material Events Disclosure*" means dissemination of a notice of a Material Event as set forth in Section 6 hereof.

"*MSRB*" means the Municipal Securities Rulemaking Board.

"*Participating Underwriters*" means Goldman Sachs & Co. LLC, as senior managing underwriter, and D.A. Davidson & Co., as co-managing underwriter.

"*Prescribed Form*" means, with regard to the filing of Audited Financial Statements, Financial Information, and notices of Material Events with the MSRB at www.emma.msrb.org (or such other address or addresses as the MSRB may from time to time specify), such electronic format, accompanied by such identifying information, as shall have been prescribed by the MSRB and which shall be in effect on the date of filing of such information.

"*Rule*" means Rule 15c2-12 adopted by the Commission under the Exchange Act, as the same may be amended from time to time.

"*State*" means the State of Utah.

Section 3. CUSIP Number; Official Statement. For reference purposes, the base CUSIP© Number of the Bonds is 26118T [1]. The final Official Statement relating to the Bonds is dated June 5, 2025 (the "Official Statement").

Section 4. Financial Information and Audited Financial Statements. Subject to Section 10 hereof, the District hereby covenants that it will disseminate the Financial Information and Audited Financial Statements (in the form and by the dates set forth below and in Exhibit I) by the District's delivery of such Financial Information and Audited Financial Statements to the MSRB as set forth in Exhibit I. The initial dissemination of such information required to be filed shall be filed on or before the dates set forth in Exhibit I. If Audited Financial Statements are not available when the Financial Information is filed, unaudited financial statements shall be included, and Audited Financial Statements will be provided to the MSRB within 10 business days after availability to the District.

The District is required to deliver such information in Prescribed Form and by such time so that such entities receive the information by the dates specified.

If any part of the Audited Financial Statements or Financial Information can no longer be generated because the operations to which it is related have been materially changed or discontinued, the District will disseminate a statement to such effect as part of the Financial Information Disclosure for the year in which such event first occurs.

It shall be sufficient if the District provides to the MSRB any or all of the Financial Information by specific reference to documents previously provided to the MSRB or the Commission and, if such document is a final Official Statement within the meaning of the Rule, available from the MSRB.

If any amendment is made to this Undertaking, the Financial Information Disclosure for the year in which such amendment is made (or in any notice or supplement provided to the MSRB) shall contain a narrative description of the reasons for such amendment and its impact on the type of information being provided.

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[1] The Issuing District takes no responsibility for the accuracy of the CUSIP numbers, which are included solely for the convenience of owners of the Bonds.

Section 5. Identity of Person from Which Information Can be Obtained. The name, address and telephone number of the person from which the Financial Information referenced above may be obtained is:

Pinnacle Consulting Group (District Accountant)*
6950 E. Belleview Avenue, Suite 200
Greenwood Village, Colorado 80111
Phone: 303-333-4380

*The individual acting in said capacity may change from time to time without further amendment to this Undertaking.

Section 6. Material Events Disclosure. Subject to Section 10 hereof, the District hereby covenants that it will disseminate in a timely manner, not in excess of 10 Business Days after the occurrence of the event, Material Events Disclosure to the MSRB in the Prescribed Form. Notwithstanding the foregoing, notice of optional or unscheduled redemption of any Bonds or defeasance of any Bonds need not be given under this Undertaking any earlier than the notice (if any) of such redemption or defeasance is given to the owners of the Bonds pursuant to the Indentures.

Section 7. Duty to Update EMMA/MSRB. The District shall determine, in the manner it deems appropriate, whether there has occurred a change in the MSRB's e-mail address or filing procedures and requirements under EMMA each time it is required to file information with the MSRB, for purposes of District compliance with the Rule.

Section 8. Amendments; Waiver. Notwithstanding any other provision of this Undertaking, the District may amend this Undertaking, and any provision of this Undertaking may be waived, if:

(i) The amendment or waiver is made in connection with a change in circumstances that arises from a change in legal requirements, change in law, or change in the identity, nature or status of the District or type of business conducted;

(ii) This Undertaking, as amended, or the provision, as waived, would have complied with the requirements of the Rule at the time of the primary offering, after taking into account any amendments or interpretations of the Rule, as well as any change in circumstances;

(iii) The amendment or waiver does not materially impair the interests of the Bondholders of the Bonds, as determined either by parties unaffiliated with the District or by an approving vote of the Bondholders of the Bonds holding a majority of the aggregate principal amount of the Bonds (excluding Bonds held by or on behalf of the District or its affiliates) pursuant to the terms of the Indenture at the time of the amendment; or

(iv) The amendment or waiver is otherwise permitted by the Rule.

Section 9. Termination of Undertaking. The Undertaking of the District shall be terminated hereunder when the District shall no longer have any legal liability for any obligation on or relating to the repayment of the Bonds. This Undertaking, or any provision hereof, shall be null and void in the event that the District delivers to EMMA, an opinion of Bond Counsel to the effect that those portions of the Rule which require this Undertaking, or any such provision, are invalid, have been repealed retroactively or otherwise do not apply to the Bonds; provided that the District shall have provided notice of such delivery and the cancellation of this Undertaking or any provision hereof to EMMA.

Section 10. Dissemination Agent. The District may, from time to time, appoint or engage a Dissemination Agent to assist it in carrying out its obligations under this Undertaking, and may discharge any such Dissemination Agent, with or without appointing a successor Dissemination Agent. The Dissemination Agent shall transmit all information delivered to it by the District hereunder to the MSRB as provided in this Undertaking. As of closing on the Bonds the District does not anticipate engaging a Dissemination Agent, but may do so in the future.

Section 11. Additional Information. Nothing in this Undertaking shall be deemed to prevent the District from disseminating any other information, using the means of dissemination set forth in this Undertaking or any other means of communication, or including any other information in any Financial Information or notice of occurrence of a Material Event, in addition to that which is required by this Undertaking. If the District chooses to include any information from any document or notice of occurrence of a Material Event in addition to that which is specifically required by this Undertaking, the District shall not have any obligation under this Undertaking to update such information or include it in any future disclosure or notice of the occurrence of a Material Event.

Section 12. No Event of Default. The District shall give notice in a timely manner, not in excess of 10 Business Days after the occurrence of the event, to the MSRB in Prescribed Form of any failure to provide the Financial Information Disclosure when the same is due hereunder.

Any failure by the District to perform in accordance with this Undertaking shall not constitute an Event of Default under the Indentures, and the rights and remedies provided by the Indentures upon the occurrence of an Event of Default shall not apply to any such failure. If the District fails to comply with this Undertaking, any Owner of a Bond may take such actions as may be necessary and appropriate, including seeking specific performance by court order, to cause the District to comply with its obligations hereunder.

Section 13. Beneficiaries. This Undertaking has been executed in order to assist the Participating Underwriters in complying with the Rule; however, this Undertaking shall inure solely to the benefit of the District, the Dissemination Agent, if any, the Trustee, and the Bondholders of the Bonds, and shall create no rights in any other person or entity.

Section 14. Assignment. The District shall not transfer its obligations under the Resolution or the Indentures unless the transferee agrees to assume all obligations of the District under this Undertaking or to execute a continuing disclosure undertaking under the Rule.

Section 15. Governing Law. This Undertaking shall be governed by the laws of the State.

This Continuing Disclosure Undertaking is executed as of the date first set forth above.

DOWNTOWN REVITALIZATION PUBLIC INFRASTRUCTURE DISTRICT, in Salt Lake City, Salt Lake County, Utah

By: _____
Chair

EXHIBIT I

FINANCIAL INFORMATION AND AUDITED FINANCIAL STATEMENTS

"*Financial Information*" means financial information and operating data exclusive of Audited Financial Statements as set forth below of the type appearing or incorporated by reference in the (a) the table in the Official Statement under the heading "Historical Revitalization Sales Tax Revenues" updated for subsequent periods showing historic monthly amounts of Revitalization Sales Tax received by the City of Salt Lake, (b) actual budget, compared with adopted budget, for the District held funds, including the District's General Fund, Debt Service Fund and Capital Projects Fund, as applicable and (c) on a monthly basis commencing September 1, 2025 the most recent available monthly distribution amount of the Revitalization Sales Tax distributed to the Trustee, after deduction of the City's Administrative Fee.

All or a portion of the Financial Information and the Audited Financial Statements may be included by reference to other documents which have been submitted to the MSRB or filed with the Commission, and such information need not be provided in the exact format as shown in the Official Statement but may be reported in any format chosen by the District. Further, any Financial Information found in the related Audited Financial Statements (such as the various fund Budget Summary and Comparison tables) need not be filed separately. The District shall clearly identify each such item of information included by reference.

Financial Information described in (a) and (b) will be provided to the MSRB by on or before September 30 following the end of the District's fiscal year, commencing with fiscal year 2025 (i.e., on or before September 30, 2026). Audited Financial Statements as described below should be filed at the same time as the Financial Information. If Audited Financial Statements are not available when the Financial Information is filed, unaudited financial statements shall be included, and Audited Financial Statements will be provided to the MSRB within 10 Business Days after availability to the District. Audited Financial Statements will be prepared in accordance with generally accepted accounting principles in the United States as in effect from time to time.

Financial Information of the type described in (c) shall be provided to the MSRB commencing on or before September 1, 2025 and continuing on a monthly basis until the Subordinate Lien Sales Tax Revenue Bonds (SEG Redevelopment Project) Series 2025C are no longer outstanding.

If any change is made to the Financial Information as permitted by Section 4 of this Undertaking, including for this purpose a change made to the fiscal year-end of the District, the District will disseminate a notice to the MSRB of such change in Prescribed Form as required by such Section 4.

EXHIBIT II

EVENTS WITH RESPECT TO THE BONDS FOR WHICH MATERIAL EVENTS DISCLOSURE IS REQUIRED

1. Principal and interest payment delinquencies
2. Nonpayment related defaults, if material
3. Unscheduled draws on debt service reserves reflecting financial difficulties
4. Unscheduled draws on credit enhancements reflecting financial difficulties
5. Substitution of credit or liquidity providers, or their failure to perform
6. Adverse tax opinions, the issuance by the Internal Revenue Service of proposed or final determinations of taxability, Notices of Proposed Issue (IRS Form 5701 TEB) or other material notices or determinations with respect to the tax status of the security, or other material events affecting the tax status of the security
7. Modifications to rights of security holders, if material
8. Bond calls, if material, and tender offers
9. Defeasances
10. Release, substitution or sale of property securing repayment of the securities, if material
11. Rating changes
12. Bankruptcy, insolvency, receivership or similar event of the District [*]
13. The consummation of a merger, consolidation or acquisition involving the District or the sale of all or substantially all of the assets of the District, other than in the ordinary course of business, the entry into a definitive agreement to undertake such an action or the termination of a definitive agreement relating to any such actions, other than pursuant to its terms, if material
14. Appointment of a successor or additional Trustee or the change of name of a Trustee, if material
15. Incurrence of a Financial Obligation[1] of the District, if material, or agreement to covenants, events of default, remedies, priority rights, or other similar terms of a Financial Obligation of the District, any of which affect security holders, if material
16. Default, event of acceleration, termination event, modification of terms, or other similar events under the terms of the Financial Obligation of the District, any of which reflect financial difficulties

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[*] This event is considered to occur when any of the following occur: the appointment of a receiver, fiscal agent or similar officer for the District in a proceeding under the U.S. Bankruptcy Code or in any other proceeding under State or federal law in which a court or governmental authority has assumed jurisdiction over substantially all of the assets or business of the District, or if such jurisdiction has been assumed by leaving the existing governing body and officials or officers in possession but subject to the supervision and orders of a court or governmental authority, or the entry of an order confirming a plan of reorganization, arrangement or liquidation by a court or governmental authority having supervision or jurisdiction over substantially all of the assets or business of the District.

[1] "Financial Obligation" shall mean a (i) debt obligation; (ii) derivative instrument entered into, in connection with, or pledged as security or a source of payment for, an existing or planned debt obligation; or (iii) guarantee of (i) or (ii). The term "Financial Obligation" shall not include municipal securities (as defined in the Securities Exchange Act of 1934) as to which a final Official Statement (as defined in the Rule) has been provided to the MSRB consistent with the Rule.

APPENDIX E

FORM OF OPINION OF BOND COUNSEL

DOWNTOWN REVITALIZATION PUBLIC INFRASTRUCTURE DISTRICT

$649,895,000
FIRST LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025A

$194,460,000
SECOND LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025B

$25,000,000
SUBORDINATE LIEN SALES TAX REVENUE BONDS
(SEG REDEVELOPMENT PROJECT)
SERIES 2025C

We have acted as bond counsel to the Downtown Revitalization Public Infrastructure District (the "District") in connection with the issuance by the District of its First Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025A (the "2025A Bonds"), its Second Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025B (the "2025B Bonds" and together with the 2025A Bonds, the "Senior Bonds"), and its Subordinate Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025C (the "Subordinate Bonds" and, together with the Senior Bonds, the "Bonds"). The Bonds are being issued pursuant to (i) a resolution of the District adopted on April 17, 2025; (ii) Title 17B, Chapter 1 and Title 17D, Chapter 4, Utah Code Annotated 1953, as amended, and applicable portions of the Local Government Bonding Act, Title 11, Chapter 14, Utah Code Annotated 1953, as amended, and (iii) an Indenture of Trust (Senior) dated as of June 1, 2025, with respect to the Senior Bonds (the "Senior Indenture") and an Indenture of Trust (Subordinate) dated as of June 1, 2025, with respect to the Subordinate Bonds (the "Subordinate Indenture" and, together with the Senior Indenture, the "Indentures"), each between the District and Zions Bancorporation, National Association, as trustee (the "Trustee"). The Senior Bonds are being issued to: (i) pay a portion of the Project, (ii) fund the Second Lien Reserve Requirement, and (iii) pay other costs in connection with the issuance of the Senior Bonds. The Subordinate Bonds are being issued to: (i) pay an additional portion of the Project, (ii) fund capitalized interest on the Subordinate Bonds through July 15, 2025, and (iii) pay other costs in connection with the issuance of the Subordinate Bonds. Capitalized terms used herein and not otherwise defined shall have the meanings given such terms in the Indentures.

We have examined the law and such certified proceedings and other documents as we deem necessary to render this opinion. As to questions of fact material to our opinion, we have relied upon the certified proceedings and other certifications of public officials furnished to us without undertaking to verify the same by independent investigation. Our opinion is limited to the matters expressly set forth herein, and we express no opinion concerning any other matters.

Based on our examination and the foregoing, we are of the opinion as of the date hereof and under existing law, as follows:

1. The Senior Indenture has been duly authorized, executed and delivered by the District, constitutes a valid and binding obligation of the District enforceable against the District and creates a valid

lien on the Pledged Revenue, senior and prior to the lien securing the 2025C Bonds, and the other amounts pledged thereunder for the security of the 2025A&B Bonds.

2. The Subordinate Indenture has been duly authorized, executed and delivered by the District, constitutes a valid and binding obligation of the District enforceable against the District and creates a valid lien on the Pledged Revenue, subordinate and junior to the lien on the 2025A&B Bonds, and the other amounts pledged thereunder for the security of the 2025C Bonds.

3. The Bonds have been duly authorized, executed, and delivered by the District and are valid and binding special limited sales tax revenue obligations of the District payable solely from the Pledged Revenue, and other amounts pledged therefor in the respective Indentures, and are entitled to the benefits and security of the respective Indenture and are legally enforceable in accordance with their terms.

4. The interest on the Bonds (i) is excludable from gross income for federal income tax purposes and (ii) is not an item of tax preference for purposes of computing the federal alternative minimum tax. The opinions set forth in this paragraph are subject to the condition that the District complies with all requirements of the Internal Revenue Code of 1986, as amended, that must be satisfied subsequent to the issuance of the Bonds in order that interest thereon be, or continue to be, excludable from gross income for federal income tax purposes. The District has covenanted to comply with all of these requirements. Failure to comply with certain of these requirements may cause the interest on the Bonds to be included in gross income for federal income tax purposes retroactive to the date of issuance of the Bonds.

5. Interest on the Bonds is exempt from State of Utah individual income taxes.

We express no opinion herein regarding the accuracy, adequacy, or completeness of any offering material relating to the Bonds.

The rights of the holders of the Bonds and the enforceability thereof and of the documents identified in this opinion may be subject to bankruptcy, insolvency, reorganization, arrangement, fraudulent conveyance, moratorium, and other similar laws affecting creditors' rights heretofore or hereafter enacted to the extent applicable, and their enforcement may be subject to the application of equitable principles and the exercise of judicial discretion in appropriate cases.

This opinion is given as of its date, and we assume no obligation to revise or supplement this opinion to reflect any facts or circumstances that may come to our attention or any changes in law that may occur after the date of this opinion.

Respectfully submitted,

APPENDIX F

PROVISIONS REGARDING BOOK-ENTRY ONLY SYSTEM

DTC will act as securities depository for the Bonds. The Bonds will be issued as fully-registered securities registered in the name of Cede & Co. (DTC's partnership nominee) or such other name as may be requested by an authorized representative of DTC. One fully-registered Bond certificate will be issued for each maturity of the Bonds, each in the aggregate principal amount of such maturity, and will be deposited with DTC.

DTC, the world's largest depository, is a limited-purpose trust company organized under the New York Banking Law, a "banking organization" within the meaning of the New York Banking Law, a member of the Federal Reserve System, a "clearing corporation" within the meaning of the New York Uniform Commercial Code, and a "clearing agency" registered pursuant to the provisions of section 17A of the Securities Exchange Act of 1934. DTC holds and provides asset servicing for over 3.5 million issues of U.S. and non-U.S. equity issues, corporate and municipal debt issues, and money market instruments (from over 100 countries) that DTC's participants ("Direct Participants") deposit with DTC. DTC also facilitates the post-trade settlement among Direct Participants of sales and other securities transactions in deposited securities, through electronic computerized book-entry transfers and pledges between Direct Participants' accounts. This eliminates the need for physical movement of securities certificates. Direct Participants include both U.S. and non-U.S. securities brokers and dealers, banks, trust companies, clearing corporations and certain other organizations. DTC is a wholly owned subsidiary of The Depository Trust & Clearing Corporation ("DTCC"). DTCC is the holding company for DTC, National Securities Clearing Corporation and Fixed Income Clearing Corporation, all of which are registered clearing agencies. DTCC is owned by the users of its regulated subsidiaries. Access to the DTC system is also available to others such as both U.S. and non-U.S. securities brokers and dealers, banks, trust companies, and clearing corporations that clear through or maintain a custodial relationship with a Direct Participant, either directly or indirectly ("Indirect Participants"). DTC has S&P Global's rating of AA+. The DTC Rules applicable to its Participants are on file with the Securities and Exchange Commission. More information about DTC can be found at www.dtcc.com.

Purchases of Bonds under the DTC system must be made by or through Direct Participants, which will receive a credit for the Bonds on DTC's records. The ownership interest of each actual purchaser of each Bond ("Beneficial Owner") is in turn to be recorded on the Direct and Indirect Participants' records. Beneficial Owners will not receive written confirmation from DTC of their purchase. Beneficial Owners are, however, expected to receive written confirmations providing details of the transaction, as well as periodic statements of their holdings, from the Direct or Indirect Participant through which the Beneficial Owner entered into the transaction. Transfers of ownership interests in the Bonds are to be accomplished by entries made on the books of Direct and Indirect Participants acting on behalf of Beneficial Owners. Beneficial Owners will not receive certificates representing their ownership interests in Bonds, except in the event that use of the book-entry system for the Bonds is discontinued.

To facilitate subsequent transfers, all Bonds deposited by Direct Participants with DTC are registered in the name of DTC's partnership nominee, Cede & Co., or such other name as may be requested by an authorized representative of DTC. The deposit of Bonds with DTC and their registration in the name of Cede & Co. or such other nominee do not effect any change in beneficial ownership. DTC has no knowledge of the actual Beneficial Owners of the Bonds; DTC's records reflect only the identity of the Direct Participants to whose accounts such Bonds are credited, which may or may not be the Beneficial Owners. The Direct and Indirect Participants will remain responsible for keeping account of their holdings on behalf of their customers.

Conveyance of notices and other communications by DTC to Direct Participants, by Direct Participants to Indirect Participants, and by Direct Participants and Indirect Participants to Beneficial Owners will be governed by arrangements among them, subject to any statutory or regulatory requirements as may be in effect from time to time. Beneficial Owners of Bonds may wish to take certain steps to augment the transmission to them of notices of significant events with respect to the Bonds, such as redemptions, tenders, defaults, and proposed amendments to the Bond documents. For example, Beneficial Owners of Bonds may wish to ascertain that the nominee holding the Bonds for their benefit has agreed to obtain and transmit notices to Beneficial Owners. In the alternative, Beneficial Owners may wish to provide their names and addresses to the registrar and request that copies of notices be provided directly to them.

Redemption notices shall be sent to DTC. If less than all of the Bonds within an issue are being redeemed, DTC's practice is to determine by lot the amount of the interest of each Direct Participant in such issue to be redeemed.

Neither DTC nor Cede & Co. (nor any other DTC nominee) will consent or vote with respect to Bonds unless authorized by a Direct Participant in accordance with DTC's MMI Procedures. Under its usual procedures, DTC mails an Omnibus Proxy to the District as soon as possible after the record date. The Omnibus Proxy assigns Cede & Co.'s consenting or voting rights to those Direct Participants to whose accounts Bonds are credited on the record date (identified in a listing attached to the Omnibus Proxy).

Redemption proceeds, distributions, and dividend payments on the Bonds will be made to Cede & Co., or such other nominee as may be requested by an authorized representative of DTC. DTC's practice is to credit Direct Participants' accounts upon DTC's receipt of funds and corresponding detail information from the District or the Paying Agent, on payable date in accordance with their respective holdings shown on DTC's records. Payments by Participants to Beneficial Owners will be governed by standing instructions and customary practices, as is the case with securities held for the accounts of customers in bearer form or registered in "street name," and will be the responsibility of such Participant and not of DTC, the Paying Agent, or the District, subject to any statutory or regulatory requirements as may be in effect from time to time. Payment of redemption proceeds, distributions, and interest payments to Cede & Co. (or such other nominee as may be requested by an authorized representative of DTC) is the responsibility of the District or the Paying Agent, disbursement of such payments to Direct Participants will be the responsibility of DTC, and disbursement of such payments to the Beneficial Owners will be the responsibility of Direct and Indirect Participants.

DTC may discontinue providing its services as depository with respect to the Bonds at any time by giving reasonable notice to the District or the Paying Agent. Under such circumstances, in the event that a successor depository is not obtained, Bond certificates are required to be printed and delivered.

The District may decide to discontinue use of the system of book-entry-only transfers through DTC (or a successor securities depository). In that event, bond certificates will be printed and delivered to DTC.

The information in this section concerning DTC and DTC's book-entry system has been obtained from sources that the District believes to be reliable, but the District takes no responsibility for the accuracy thereof.

APPENDIX G

FORM OF INVESTOR LETTER

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Board of Trustees
Downtown Revitalization Public Infrastructure District
c/o
Gilmore & Bell, P.C.
15 West South Temple, Suite 1400
Salt Lake City, Utah 84101

Zions Bancorporation, National Association
One South Main Street, 12th Floor
Salt Lake City, Utah

Goldman Sachs & Co. LLC
200 West Street
New York, NY 10282

D.A. Davidson & Co.
95 S State Street
Suite 1500
Salt Lake City, UT 84111

Re: Downtown Revitalization Public Infrastructure District Subordinate Lien Sales Tax Revenue Bonds (SEG Redevelopment Project), Series 2025C

Ladies and Gentlemen:

The undersigned (the "Purchaser"), being an initial purchaser of the above-referenced bonds (the "Bonds"), does hereby certify, represent and warrant for the benefit of the Downtown Revitalization Public Infrastructure District, in Salt Lake City, Salt Lake County, Utah (the "District"), Zions Bancorporation, National Association, as trustee (the "Trustee"), and Goldman Sachs & Co. LLC, as senior managing underwriter, and D.A. Davidson & Co., as co-managing underwriter (together, the "Underwriter"), that:

1. The Purchaser is a "Qualified Institutional Buyer" as defined under Rule 144A under the Securities Act of 1933, as amended (the "Securities Act") or an "Accredited Investor" as defined in Rule 501 of Regulation D under the Securities Act.

2. The Purchaser has sufficient knowledge and experience in financial and business matters, including the purchase and ownership of tax-exempt obligations and is capable of evaluating the merits and risks of its investment in the Bonds and, based on such knowledge and experience, the Preliminary Official Statement dated May __, 2025, relating to the Bonds (the "POS"), and the Purchaser's own internal due diligence in reliance on the POS, has evaluated such risks and merits to its satisfaction. The Purchaser is able to bear the economic risk of, and an entire loss of, an investment in the Bonds.

3. The Purchaser understands that the Bonds have not been registered under the Securities Act or under any state securities laws. Without limiting the Trustee's or the Underwriter's respective obligations to comply with

any applicable state and federal securities laws then in effect with respect to the sale or disposition of the Bonds, the Purchaser agrees that it will comply with any applicable state and federal securities laws then in effect with respect to any disposition of the Bonds by it, and further acknowledges that any current exemption from registration of the Bonds does not affect or diminish such requirements.

4. Based on the Purchaser's knowledge and experience, the information set forth in the POS, and the Purchaser's own internal due diligence in reliance on the POS, the Purchaser (a) is familiar with the conditions, financial and otherwise, of the District; and (b) has made its own analysis with respect to the Bonds, the security, and other material factors affecting the security and payment of the Bonds. Further, the Purchaser understands that the Bonds involve a significant degree of risk. The Purchaser has received and read the POS. The Purchaser understands it will receive the final Official Statement at or prior to the time of closing of the Bonds. The Purchaser has had the opportunity to review the documents to be executed in conjunction with the issuance of the Bonds, including, without limitation, the Indenture.

5. The Purchaser has authority to purchase the Bonds and to execute this letter in connection with the purchase of the Bonds. The undersigned is authorized to cause the Purchaser to make the certifications, representations and warranties contained herein by execution of this letter on behalf of the Purchaser.

6. The Purchaser understands that the Bonds are secured by a pledge of moneys received or to be received from the Revitalization Sales Tax imposed by the City and transferred to the Trustee in accordance with the Participation Agreement, not in excess of the "Maximum Dollar Amount" as defined therein, and other sources of revenue described in the POS; that the Bonds will never represent or constitute a pledge of the full faith and credit of the District, Salt Lake City, Salt Lake County, the State of Utah, or any political subdivision thereof; and that the liability of the District with respect to the Bonds is subject to further limitations as set forth in the Bonds, the POS, and the Indenture.

7. Neither the Trustee, the Underwriter nor the District, nor any of their respective members, governing bodies, or employees, counsel or agents (the "Transaction Participants") will have any responsibility to the Purchaser for the accuracy or completeness of information obtained by the Purchaser from third parties or their agents (i.e., parties other than the Transaction Participants) regarding the Bonds, the provision for payment thereof, or the sufficiency of any security therefor. No written information has been provided by the District to the Purchaser with respect to the Bonds except as set forth in the POS and the final Official Statement. The Purchaser has sought such advice as it considers necessary to make an informed investment decision. The Purchaser acknowledges that, as between the Purchaser, the District, the Underwriter, and the Trustee, the Purchaser has assumed responsibility for obtaining such information and making such review as the Purchaser deemed necessary or desirable in connection with its decision to purchase the Bonds. Notwithstanding anything to the contrary contained herein, (a) the Purchaser may rely on the final opinion furnished by Bond Counsel as set forth as an Appendix to the POS and the final Official Statement; and (b) the Purchaser is not waiving any rights it may have against the Underwriter under applicable anti-fraud provisions of the United States or any state securities laws.

The Purchaser acknowledges that the sale of the Bonds to the Purchaser is made in reliance upon the certifications, representations and warranties herein by the addressees hereto. Capitalized terms used herein and not

otherwise defined have the meanings given such terms in the Indenture of Trust (Subordinate), dated as of June 1, 2025 (the "Indenture") between the District and the Trustee.

_____, on behalf of _____
("PURCHASER")

By: _____

Printed Name: _____

Title: _____

Date: _____

cc: Gilmore & Bell, P.C. ("Bond Counsel")

SUMMARY OF INVESTMENT

Original Principal Amount: $_____

CUSIP Number: _____

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APPENDIX H

SPECIMEN MUNICIPAL BOND INSURANCE POLICY

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ASSURED GUARANTY®

MUNICIPAL BOND INSURANCE POLICY

ISSUER: Policy No.: -N

BONDS: $ in aggregate principal amount of Effective Date:

Premium: $

ASSURED GUARANTY INC. ("AG"), for consideration received, hereby UNCONDITIONALLY AND IRREVOCABLY agrees to pay to the trustee (the "Trustee") or paying agent (the "Paying Agent") (as set forth in the documentation providing for the issuance of and securing the Bonds) for the Bonds, for the benefit of the Owners or, at the election of AG, directly to each Owner, subject only to the terms of this Policy (which includes each endorsement hereto), that portion of the principal of and interest on the Bonds that shall become Due for Payment but shall be unpaid by reason of Nonpayment by the Issuer.

On the later of the day on which such principal and interest becomes Due for Payment or the Business Day next following the Business Day on which AG shall have received Notice of Nonpayment, AG will disburse to or for the benefit of each Owner of a Bond the face amount of principal of and interest on the Bond that is then Due for Payment but is then unpaid by reason of Nonpayment by the Issuer, but only upon receipt by AG, in a form reasonably satisfactory to it, of (a) evidence of the Owner's right to receive payment of the principal or interest then Due for Payment and (b) evidence, including any appropriate instruments of assignment, that all of the Owner's rights with respect to payment of such principal or interest that is Due for Payment shall thereupon vest in AG. A Notice of Nonpayment will be deemed received on a given Business Day if it is received prior to 1:00 p.m. (New York time) on such Business Day; otherwise, it will be deemed received on the next Business Day. If any Notice of Nonpayment received by AG is incomplete, it shall be deemed not to have been received by AG for purposes of the preceding sentence and AG shall promptly so advise the Trustee, Paying Agent or Owner, as appropriate, who may submit an amended Notice of Nonpayment. Upon disbursement in respect of a Bond, AG shall become the owner of the Bond, any appurtenant coupon to the Bond or right to receipt of payment of principal of or interest on the Bond and shall be fully subrogated to the rights of the Owner, including the Owner's right to receive payments under the Bond, to the extent of any payment by AG hereunder. Payment by AG to the Trustee or Paying Agent for the benefit of the Owners shall, to the extent thereof, discharge the obligation of AG under this Policy.

Except to the extent expressly modified by an endorsement hereto, the following terms shall have the meanings specified for all purposes of this Policy. "Business Day" means any day other than (a) a Saturday or Sunday or (b) a day on which banking institutions in the State of New York or the Insurer's Fiscal Agent are authorized or required by law or executive order to remain closed. "Due for Payment" means (a) when referring to the principal of a Bond, payable on the stated maturity date thereof or the date on which the same shall have been duly called for mandatory sinking fund redemption and does not refer to any earlier date on which payment is due by reason of call for redemption (other than by mandatory sinking fund redemption), acceleration or other advancement of maturity unless AG shall elect, in its sole discretion, to pay such principal due upon such acceleration together with any accrued interest to the date of acceleration and (b) when referring to interest on a Bond, payable on the stated date for payment of interest. "Nonpayment" means, in respect of a Bond, the failure of the Issuer to have provided sufficient funds to the Trustee or, if there is no Trustee, to the Paying Agent for payment in full of all principal and interest that is Due for Payment on such Bond. "Nonpayment" shall also include, in respect of a Bond, any payment of principal or interest that is Due for Payment made to an Owner by or on behalf of the Issuer which has been recovered from such Owner pursuant to the United States Bankruptcy Code by a trustee in bankruptcy in accordance with a final, nonappealable order of a court having competent jurisdiction. "Notice" means telephonic or telecopied notice, subsequently confirmed in a signed writing, or written notice by registered or certified mail, from an Owner, the Trustee or the Paying Agent to AG which notice shall specify (a) the person or entity making the claim, (b) the Policy Number, (c) the claimed amount and (d) the date such claimed amount became Due for Payment. "Owner" means, in respect of a Bond, the person or entity who, at the time of Nonpayment, is entitled under the terms of such Bond to payment thereof, except that "Owner" shall not include the Issuer or any person or entity whose direct or indirect obligation constitutes the underlying security for the Bonds.

SPECIMEN

AG may appoint a fiscal agent (the "Insurer's Fiscal Agent") for purposes of this Policy by giving written notice to the Trustee and the Paying Agent specifying the name and notice address of the Insurer's Fiscal Agent. From and after the date of receipt of such notice by the Trustee and the Paying Agent, (a) copies of all notices required to be delivered to AG pursuant to this Policy shall be simultaneously delivered to the Insurer's Fiscal Agent and to AG and shall not be deemed received until received by both and (b) all payments required to be made by AG under this Policy may be made directly by AG or by the Insurer's Fiscal Agent on behalf of AG. The Insurer's Fiscal Agent is the agent of AG only and the Insurer's Fiscal Agent shall in no event be liable to any Owner for any act of the Insurer's Fiscal Agent or any failure of AG to deposit or cause to be deposited sufficient funds to make payments due under this Policy.

To the fullest extent permitted by applicable law, AG agrees not to assert, and hereby waives, only for the benefit of each Owner, all rights (whether by counterclaim, setoff or otherwise) and defenses (including, without limitation, the defense of fraud), whether acquired by subrogation, assignment or otherwise, to the extent that such rights and defenses may be available to AG to avoid payment of its obligations under this Policy in accordance with the express provisions of this Policy.

This Policy sets forth in full the undertaking of AG, and shall not be modified, altered or affected by any other agreement or instrument, including any modification or amendment thereto. Except to the extent expressly modified by an endorsement hereto, (a) any premium paid in respect of this Policy is nonrefundable for any reason whatsoever, including payment, or provision being made for payment, of the Bonds prior to maturity and (b) this Policy may not be canceled or revoked. THIS POLICY IS NOT COVERED BY THE PROPERTY/CASUALTY INSURANCE SECURITY FUND SPECIFIED IN ARTICLE 76 OF THE NEW YORK INSURANCE LAW.

In witness whereof, ASSURED GUARANTY INC. has caused this Policy to be executed on its behalf by its Authorized Officer.

ASSURED GUARANTY INC.

By _____
Authorized Officer

1633 Broadway, New York, N.Y. 10019 (212) 974-0100

Form 500 (8/24)

SPECIMEN

Mixed Sources
Product group from well managed forests, controlled sources and recycled wood or fiber.

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